FW: 2022-12-22 NCD and PDNCD Briefing Book

From: "Chang, Caroline EOP/NCD" <(b) (6)>
To: "Knake, Robert K. EOP/NCD" <(b) (6)>, "DeRusha, Chris J. EOP/OMB" (b) (6)>, "Higgins, Neal L. EOP/NCD" (b) (6)>, "Stewart Gloster, Camille A. EOP/NCD" (b) (6)>
Cc: DL ExecSec <(b) (6)>, "Hochman, Michael C. EOP/NCD" <(b) (6)>, "Klein, Julie G. EOP/NCD" <(b) (6)>, "Fontanez, Jose A. EOP/NCD" (b) (6)>, "Haas, Benjamin E. EOP/NCD" (b) (6)>, "Reynolds, Gevin B. EOP/NCD" <(b) (6)>, "Ring, Haley A. EOP/NCD" <haley.a.ring@ncd.eop.gov>
Date: Wed, 21 Dec 2022 11:12:00 -0500
Attachments: 1. Mtg. Agenda Leg Affairs Bi-weekly.pdf (569.81 kB); 2. Decision Memo_Intl Engagement Strategy (Clean).pdf (345.35 kB); 3. Open Source Software Security Initiative.pdf (805.15 kB); 4. Briefing Memo - HATWH Event Concept.pdf (112.44 kB); 5. Briefing Memo - Africa Leaders Summit Readout.pdf (94.93 kB); 6. Space Executive Forum - Participant List and Agenda.pdf (268.56 kB); NCD - Daily Schedule.docx (91.45 kB); PDNCD - Daily Schedule.docx (91.09 kB)

Dear Deputies, please see attached a soft copy of NCD and PDNCD's briefing book.

Best,
Caroline

Caroline Chang
Senior Advisor to NCD and ExecSec
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Chang, Caroline EOP/NCD
Sent: Wednesday, December 21, 2022 11:11 AM
To: Inglis, Chris C. EOP/NCD (b) (6)>; Walden, Kemba E. EOP/NCD (b) (6) <(b) (6)>
Cc: DL ExecSec <(b) (6)>; Hochman, Michael C. EOP/NCD <(b) (6)>
Subject: 2022-12-22 NCD and PDNCD Briefing Book

Dear Chris and Kemba,

Please see attached your briefing book for tomorrow and the weekend. We are including a few of the papers we transmitted to you yesterday so you have all your holiday reading in one place. Please let us know if you have any questions.

1. Bi weekly Leg Affairs Sync Agenda + Read Ahead Materials
2. Decision Memo on International Strategy
3. Briefing Memo on Open Source Software Security Initiative

4. Briefing Memo on Hackers at the White House Event
5. Briefing Memo on Africa Leaders Summit Readout
6. Draft participant list and agenda for the Space Executive Forum
    - Please see the accompanying cover paragraph in the email enclosed

Best,
Caroline

Caroline Chang
Senior Advisor to NCD and ExecSec
Office of the National Cyber Director
Executive Office of the President
(b) (6)

MEMORANDUM FOR THE DEPUTY NATIONAL CYBER DIRECTOR
FOR TECHNOLOGY & ECOSYSTEM SECURITY

FROM: Anjana Rajan
Assistant National Cyber Director
Technology Security

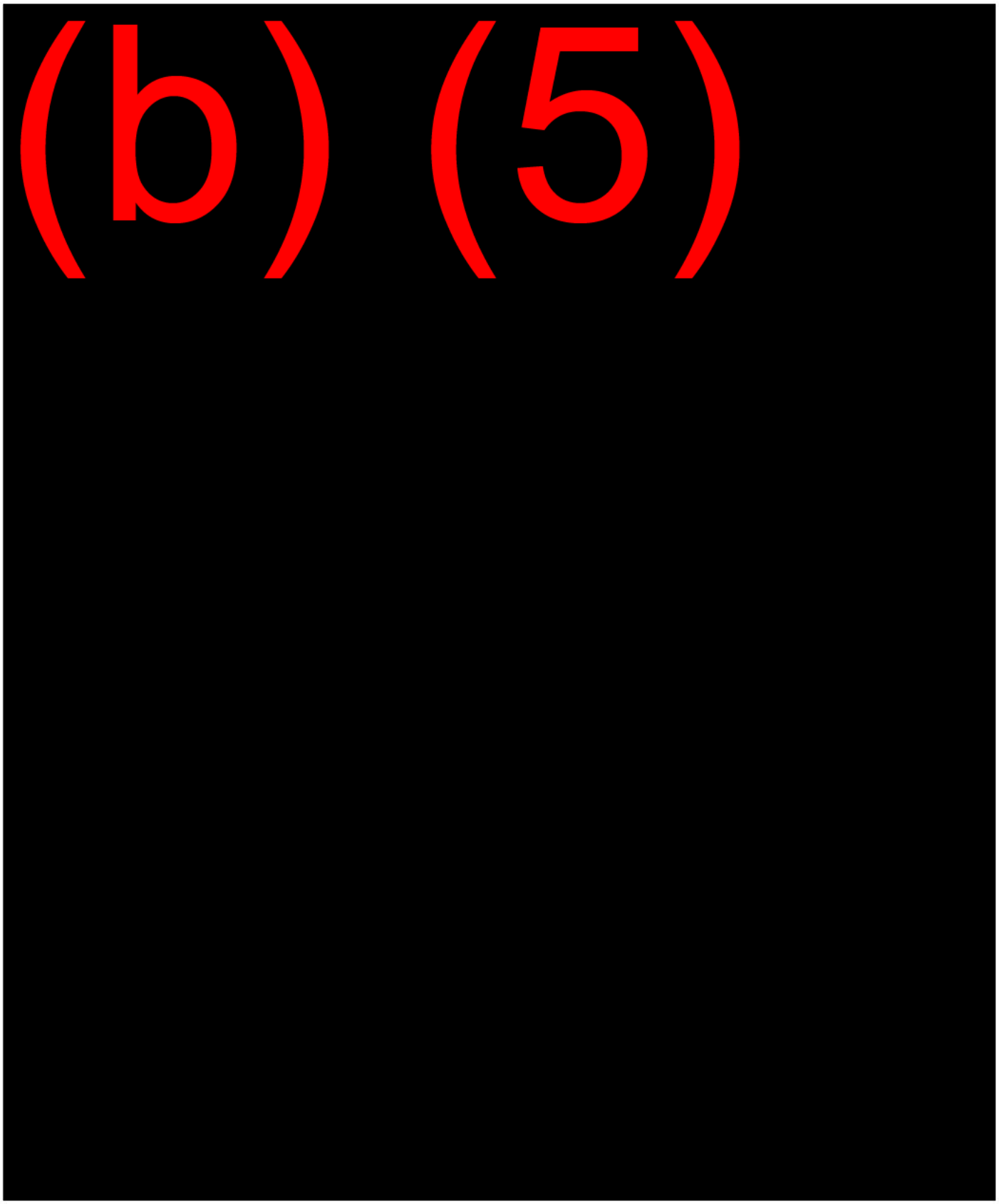
Seeyew Mo
Assistant National Cyber Director
Cyber Workforce

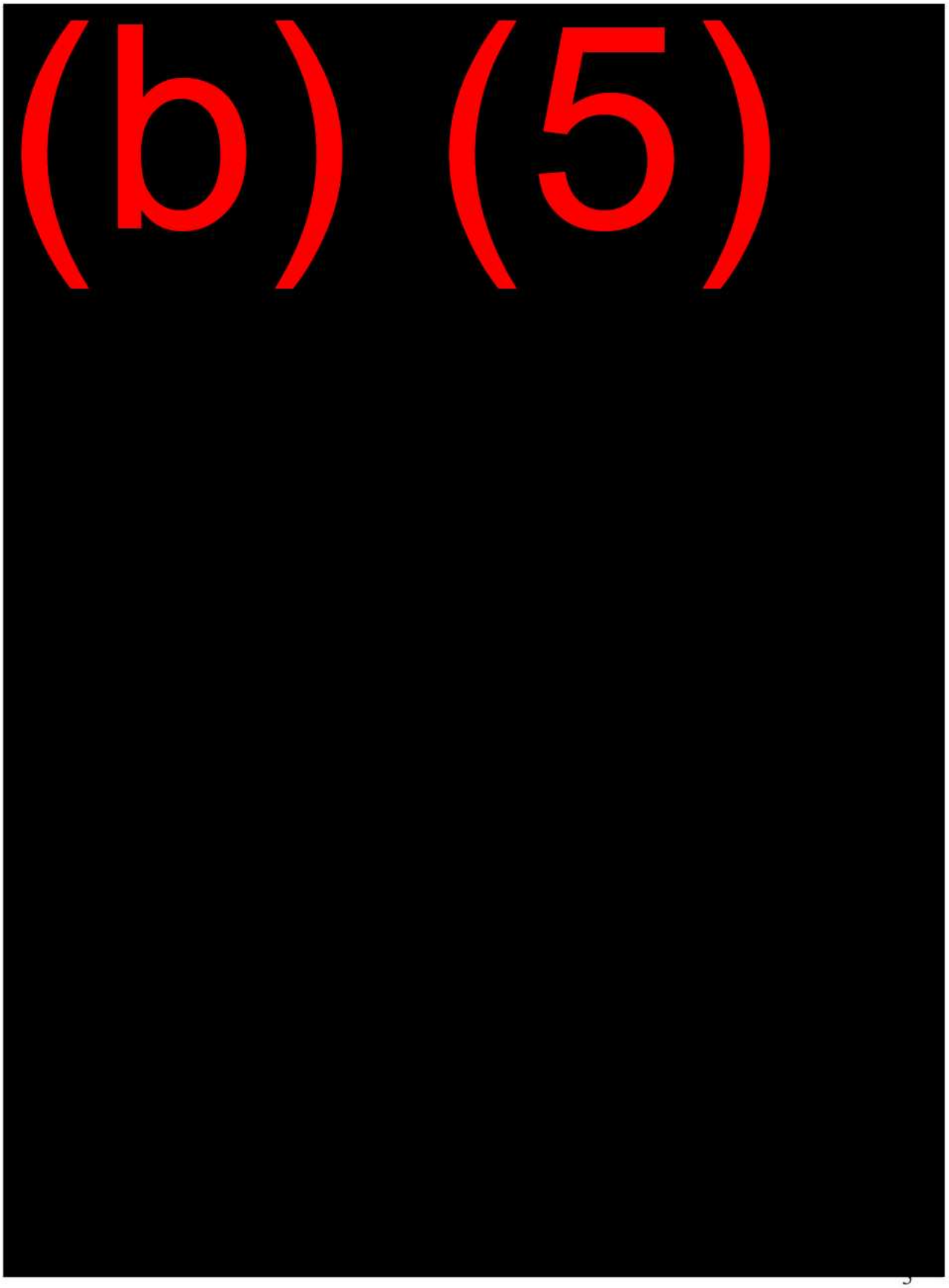
Eric Mill
Senior Advisor
Office of the Federal Chief Information Officer

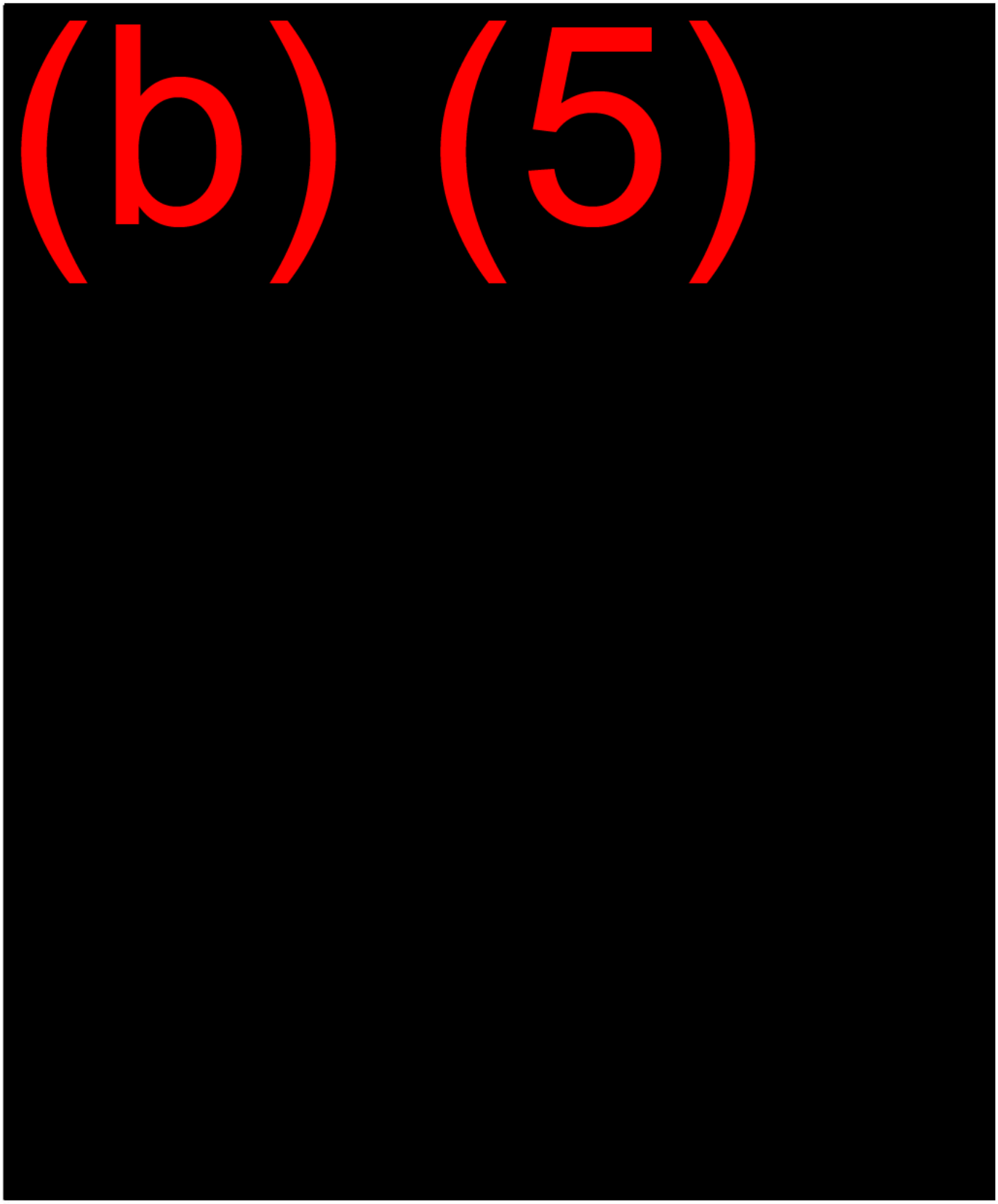
Conrad Stosz
Policy Advisor
Office of the Federal Chief Information Officer

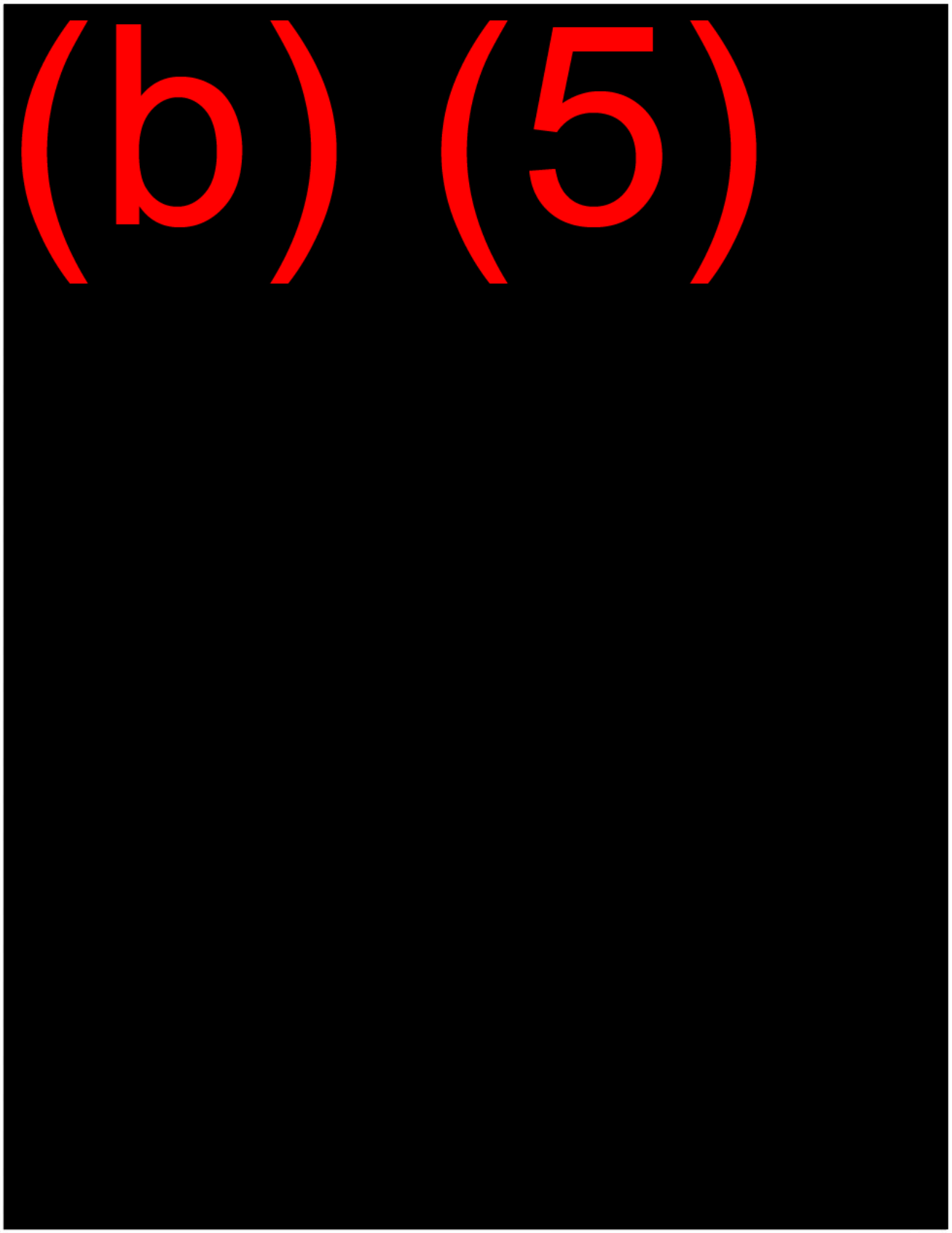
DATE: December 7, 2022

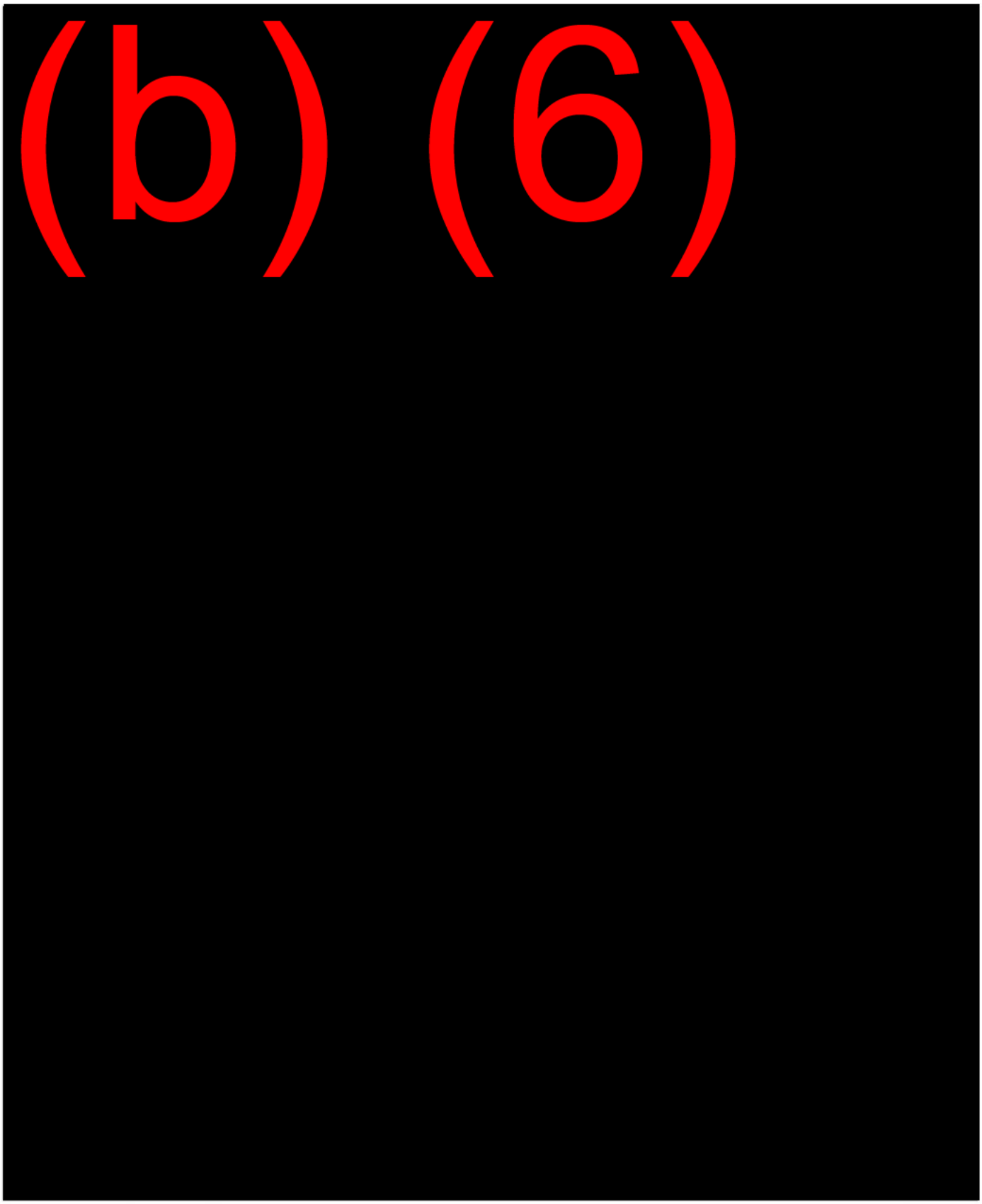
SUBJECT: Open-Source Software Security Initiative (OS3I):
2022 Strategic Recommendations (Phase I) & 2023 Implementation Initiatives (Phase II)

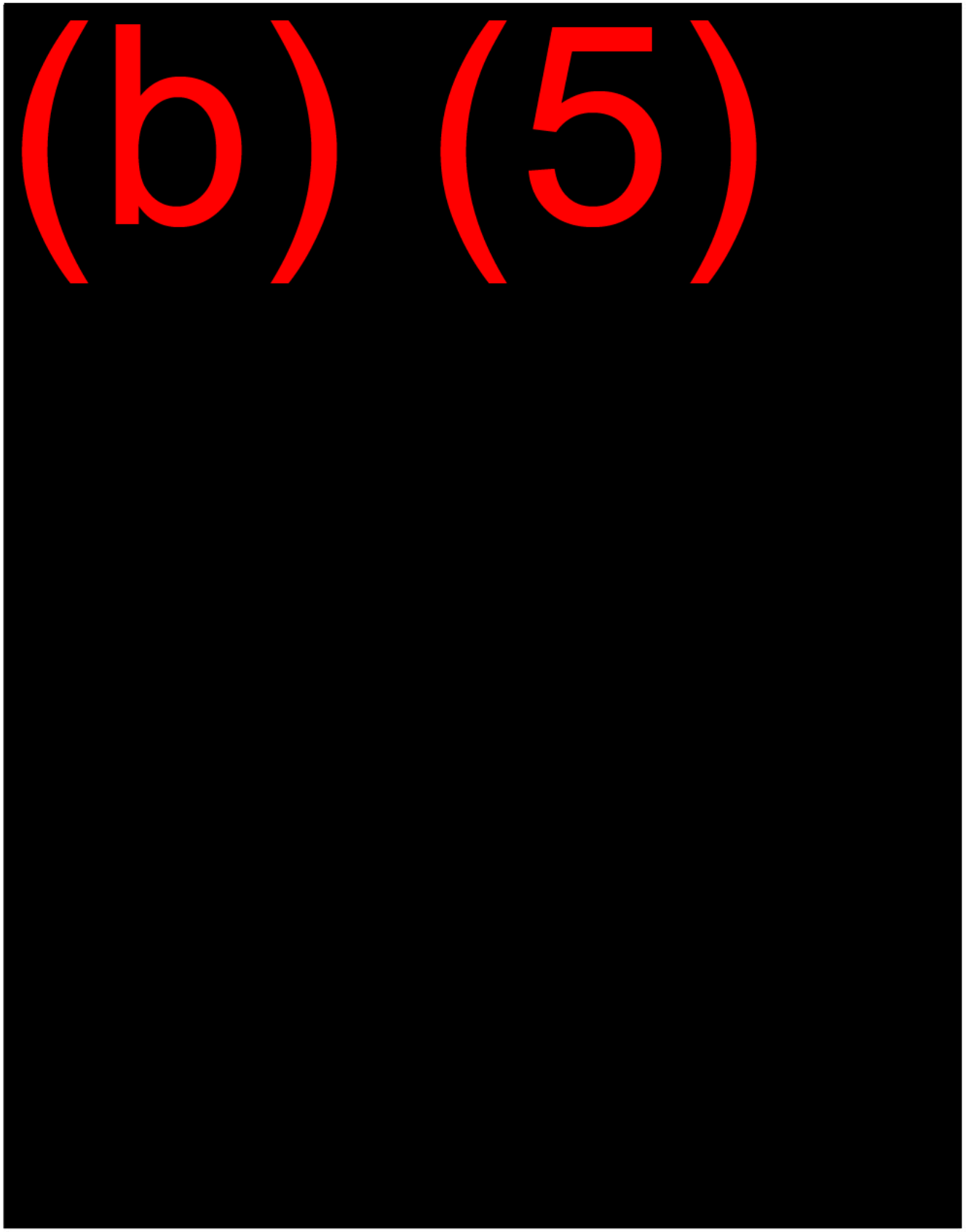

(b) (5)

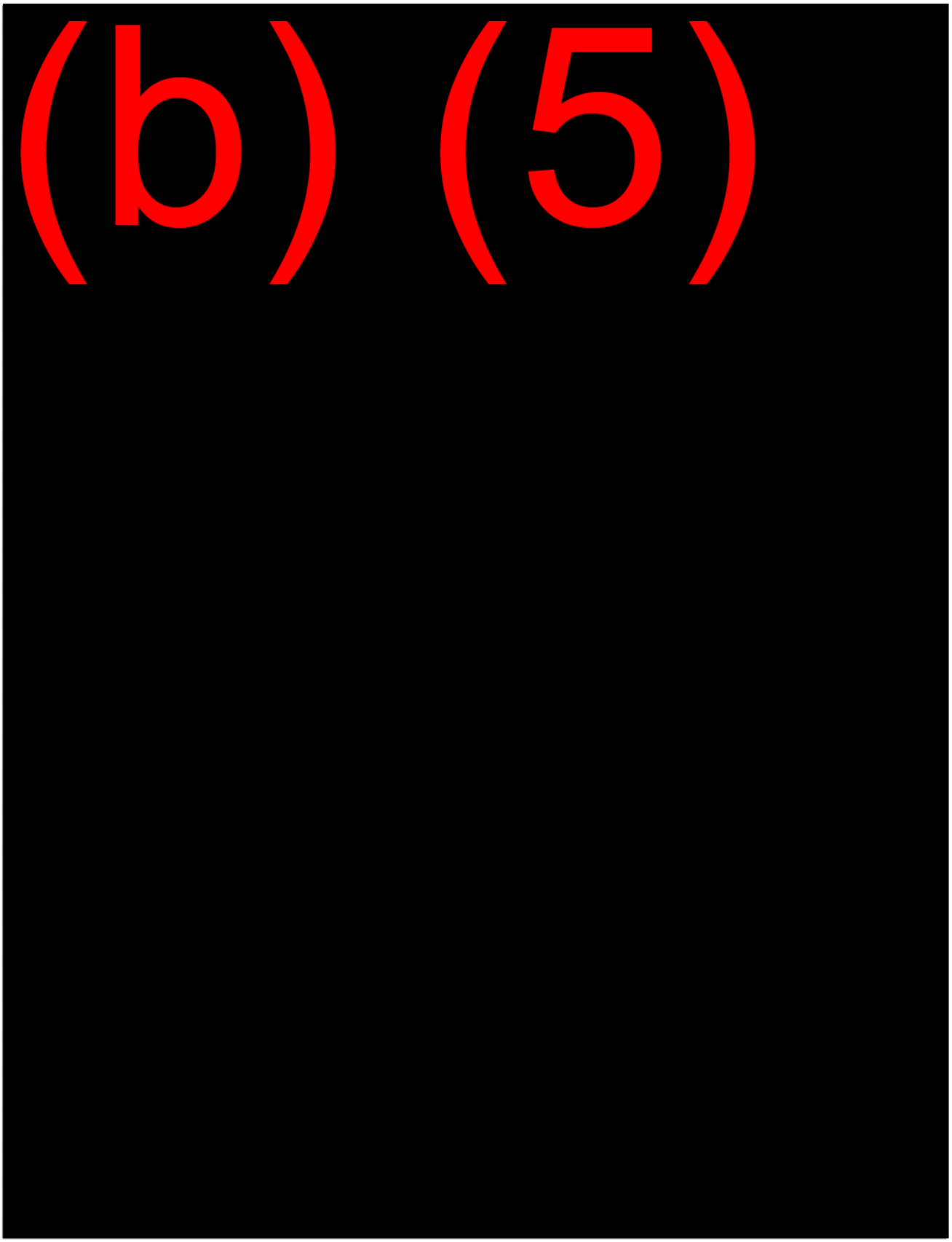

(b) (5)

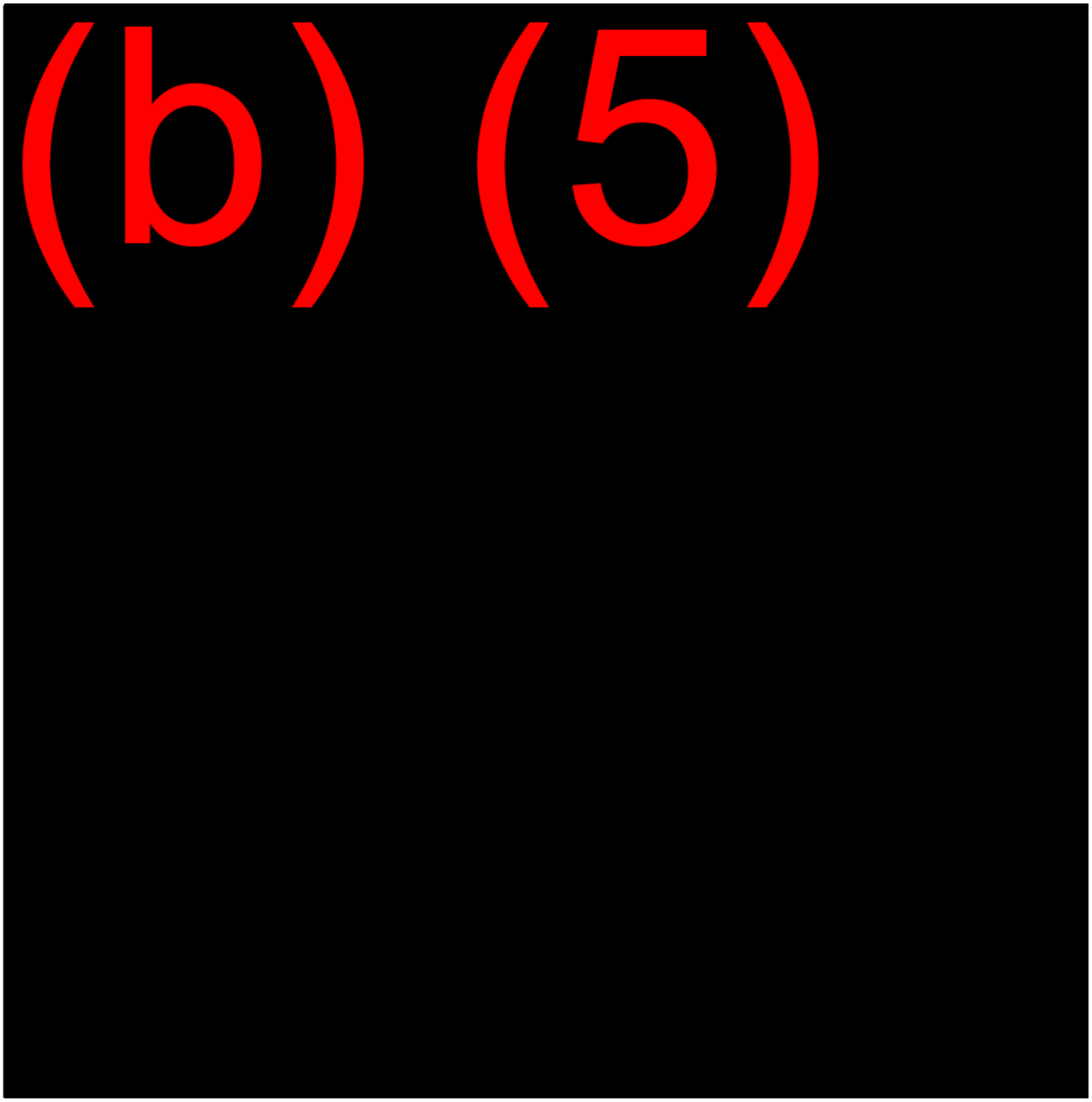

(b) (5)


(b) (5)


(b) (6)


(b) (5)


(b) (5)


(b) (5)

OFFICE OF THE NATIONAL CYBER DIRECTOR DECISION

December 18, 2022

Approval and Coordination Decision

PREPARED BY: Anjana Rajan, (b) (6), (b) (6)

IN COORDINATION WITH: Eric Mill (b) (6)), Conrad Stosz (b) (6)), Seeyew Mo ((b) (6)) and other members across ONCD

CLEARED BY: Joyce Corell (b) (6))

ATTACHMENTS:

Attachment A: OS3I Phase I Strategic Recommendations (FINAL)

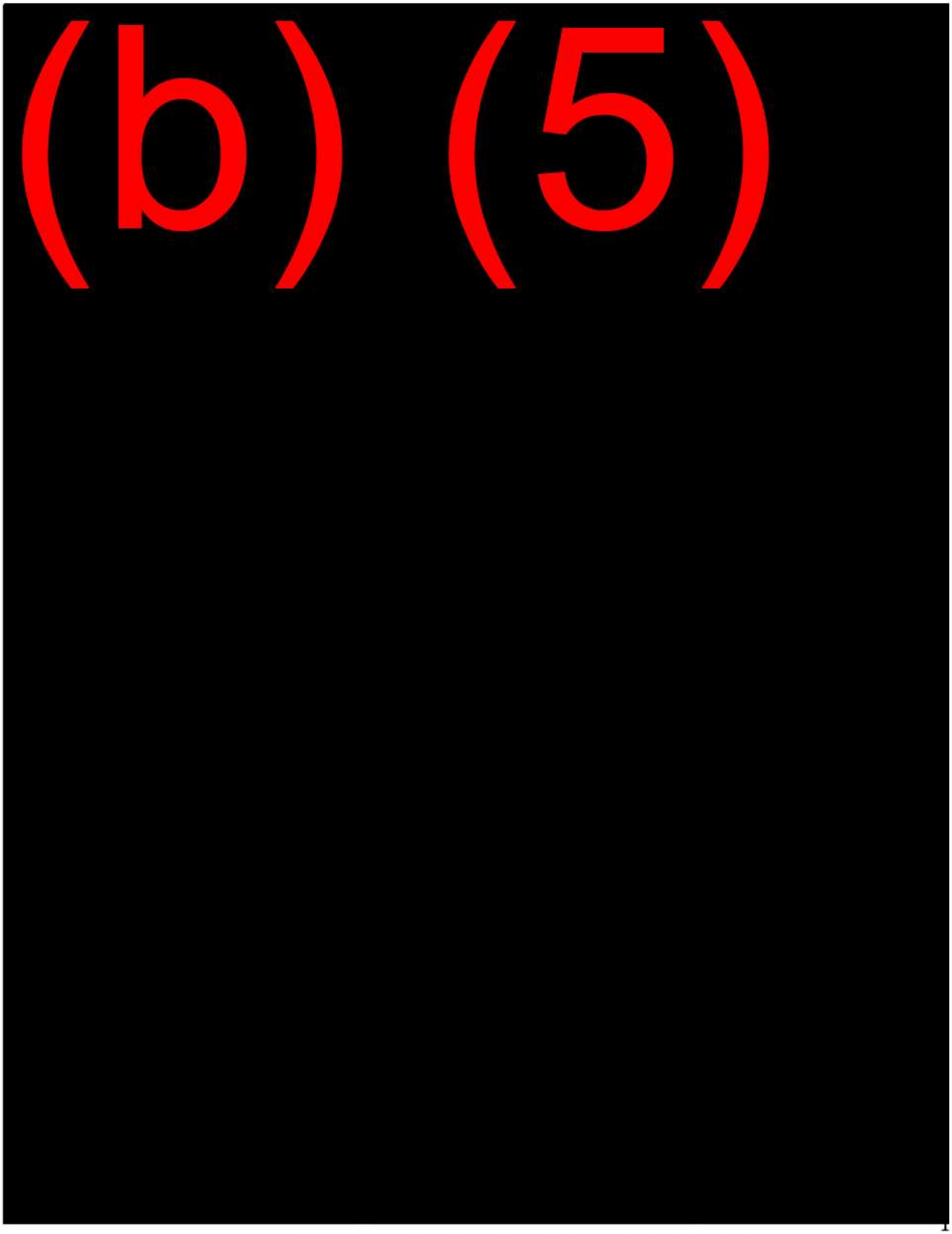
Attachment B: Open-Source Software Security Initiative – Executive Summary

Approve:	X	Approve as Amended:	
Reject:		Discuss:	

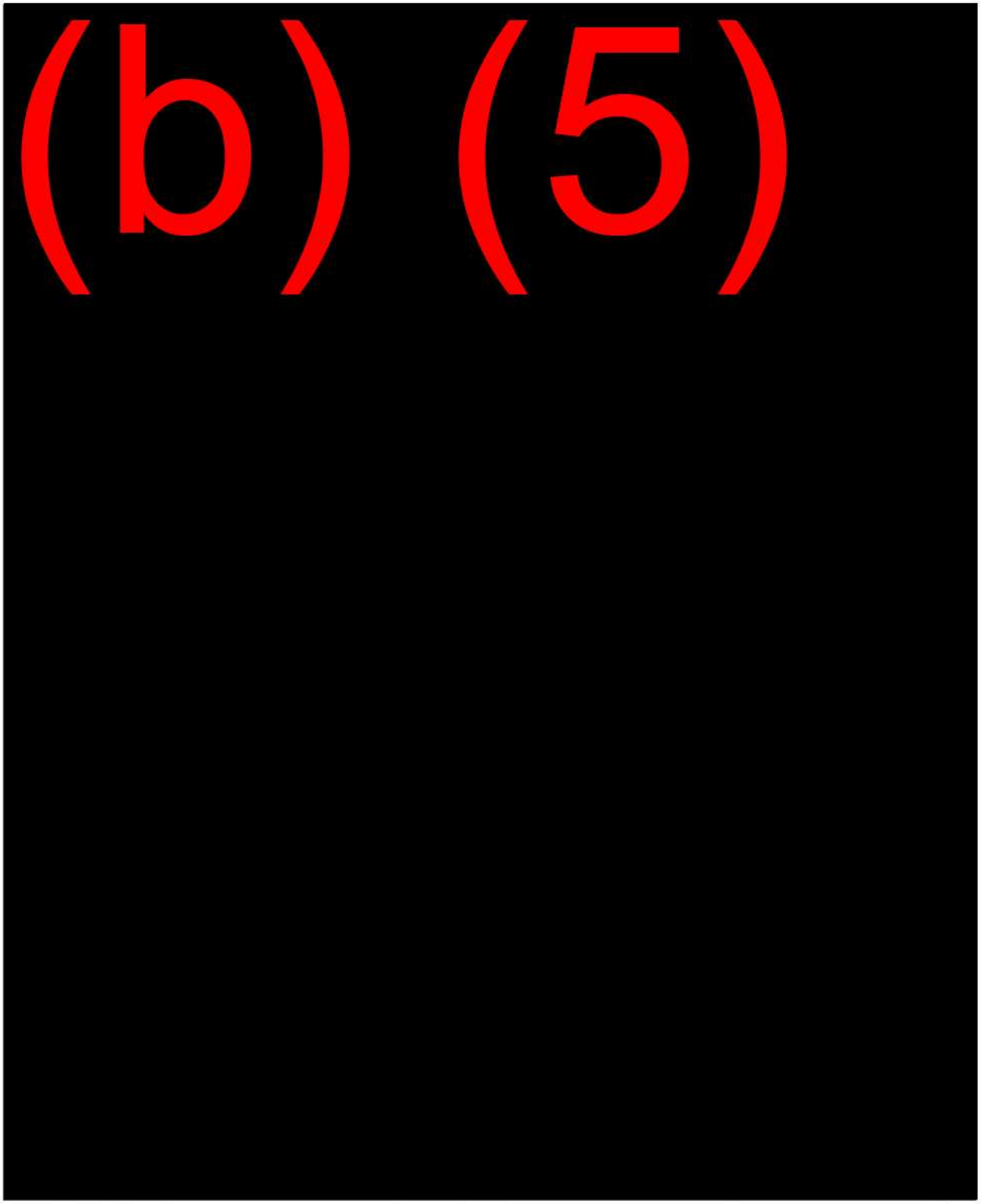
CAMILLE STEWART
Digitally signed by CAMILLE STEWART
Date: 2022.12.19 10:36:17 -05'00'

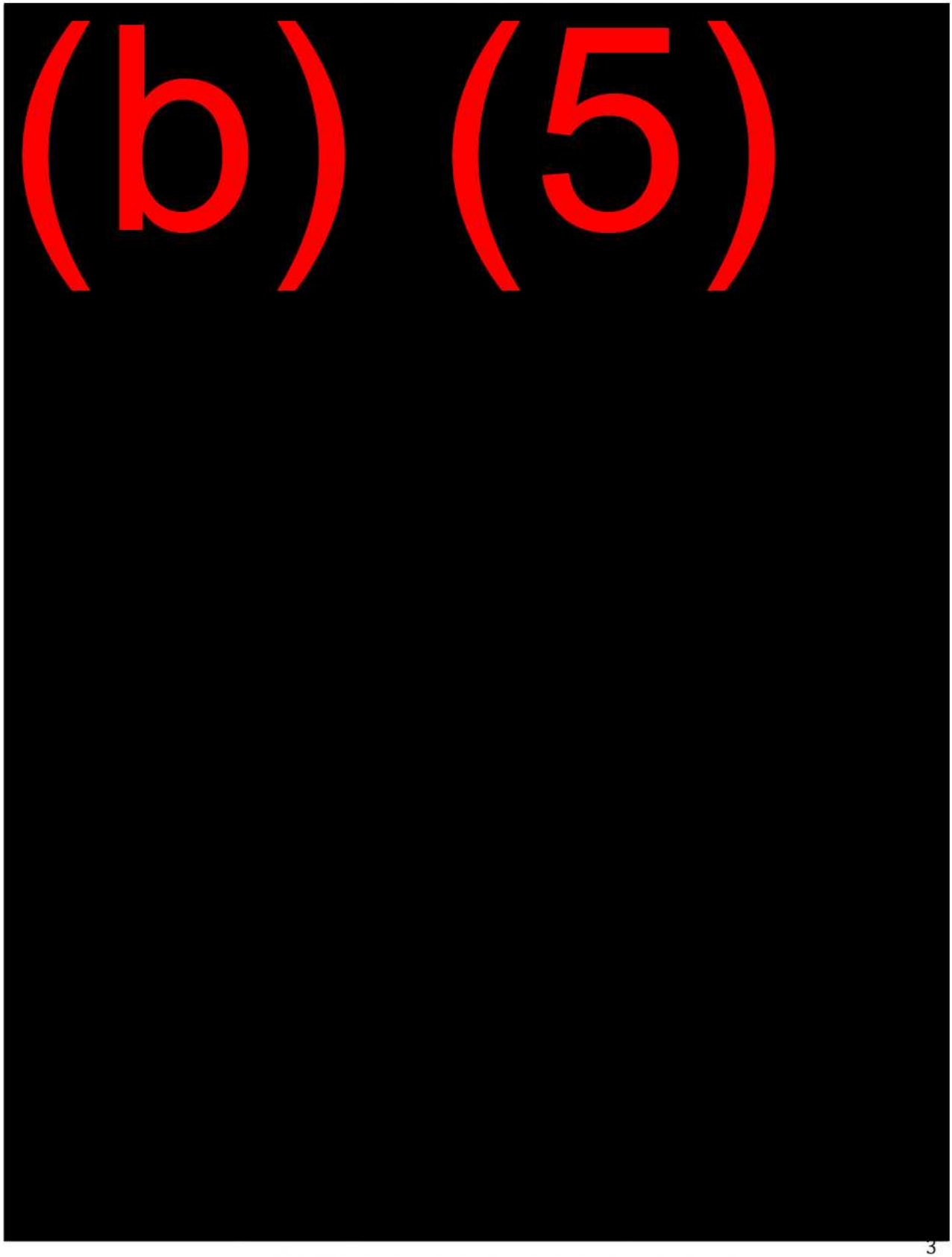
CAMILLE STEWART GLOSTER
Deputy National Cyber Director, TES
Office of the National Cyber Director
Executive Office of the President

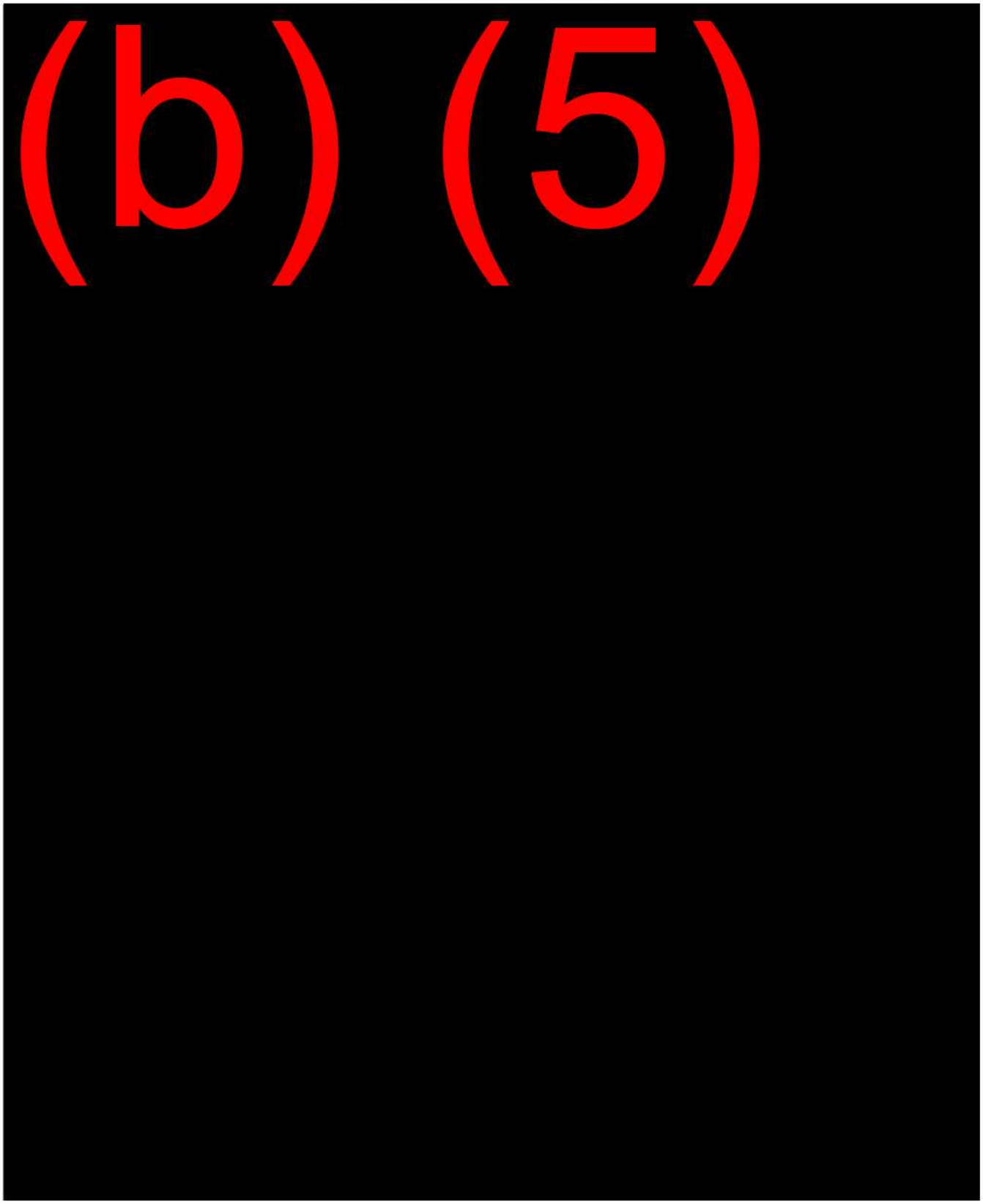
DATE

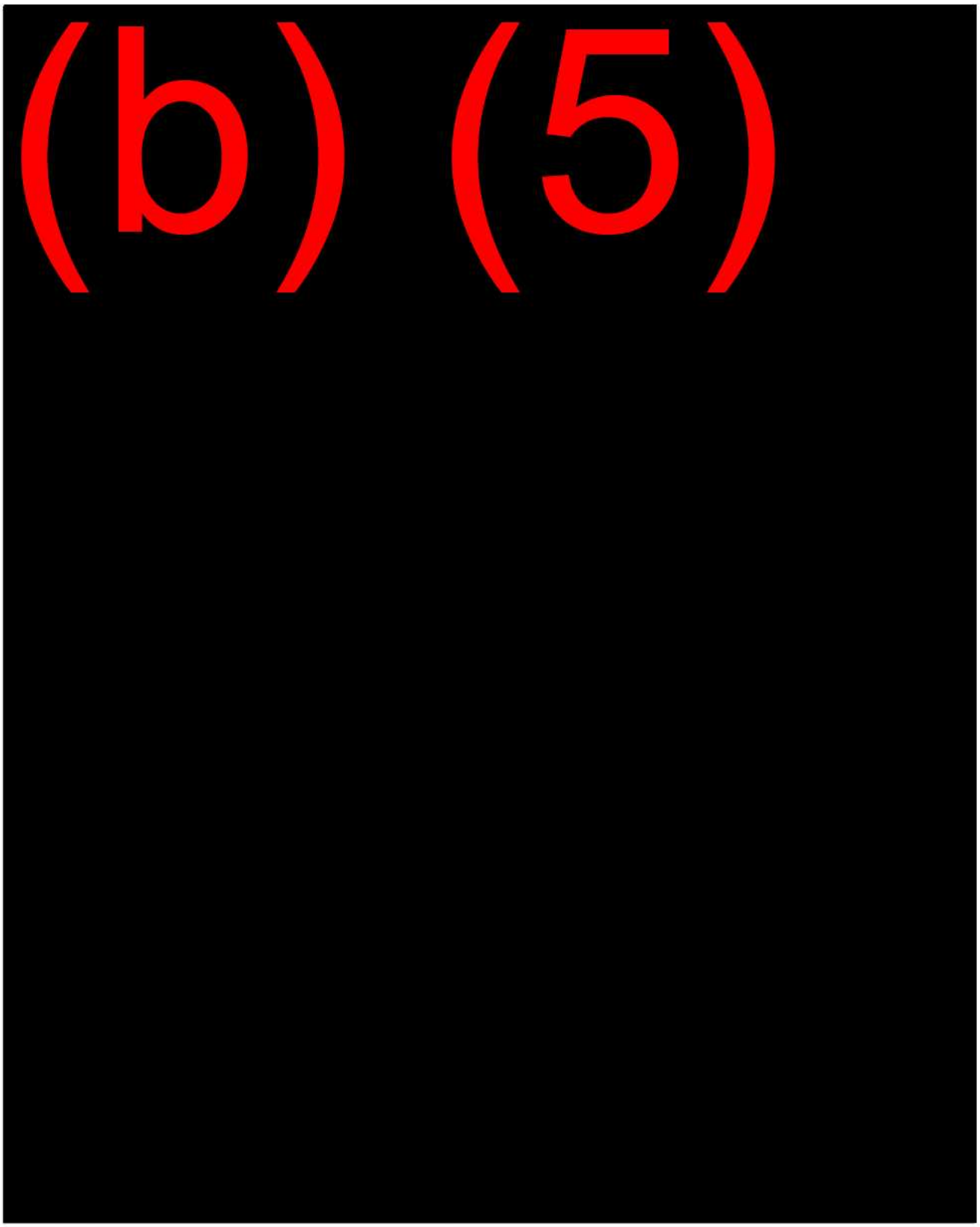

(b) (5)

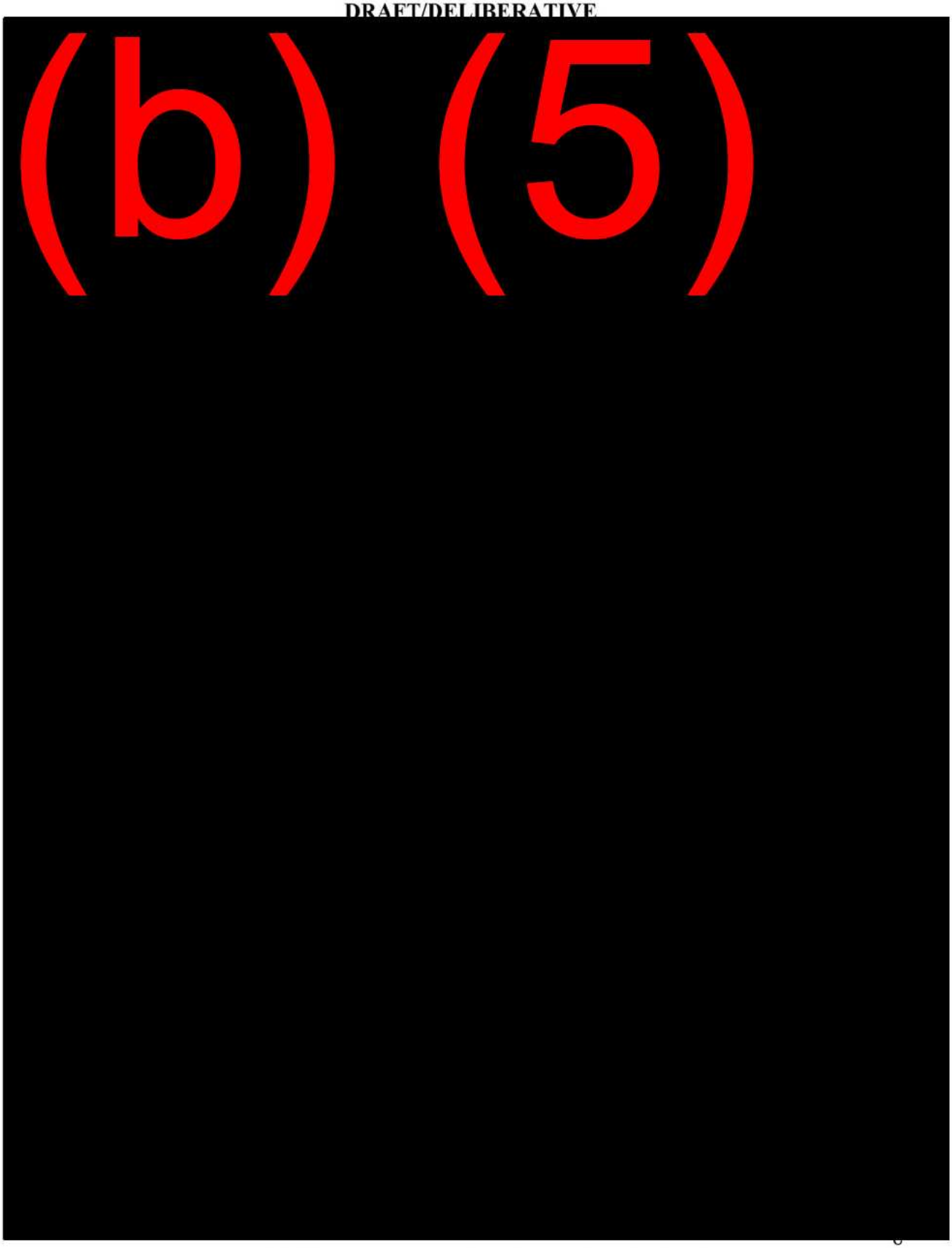
BACKGROUND

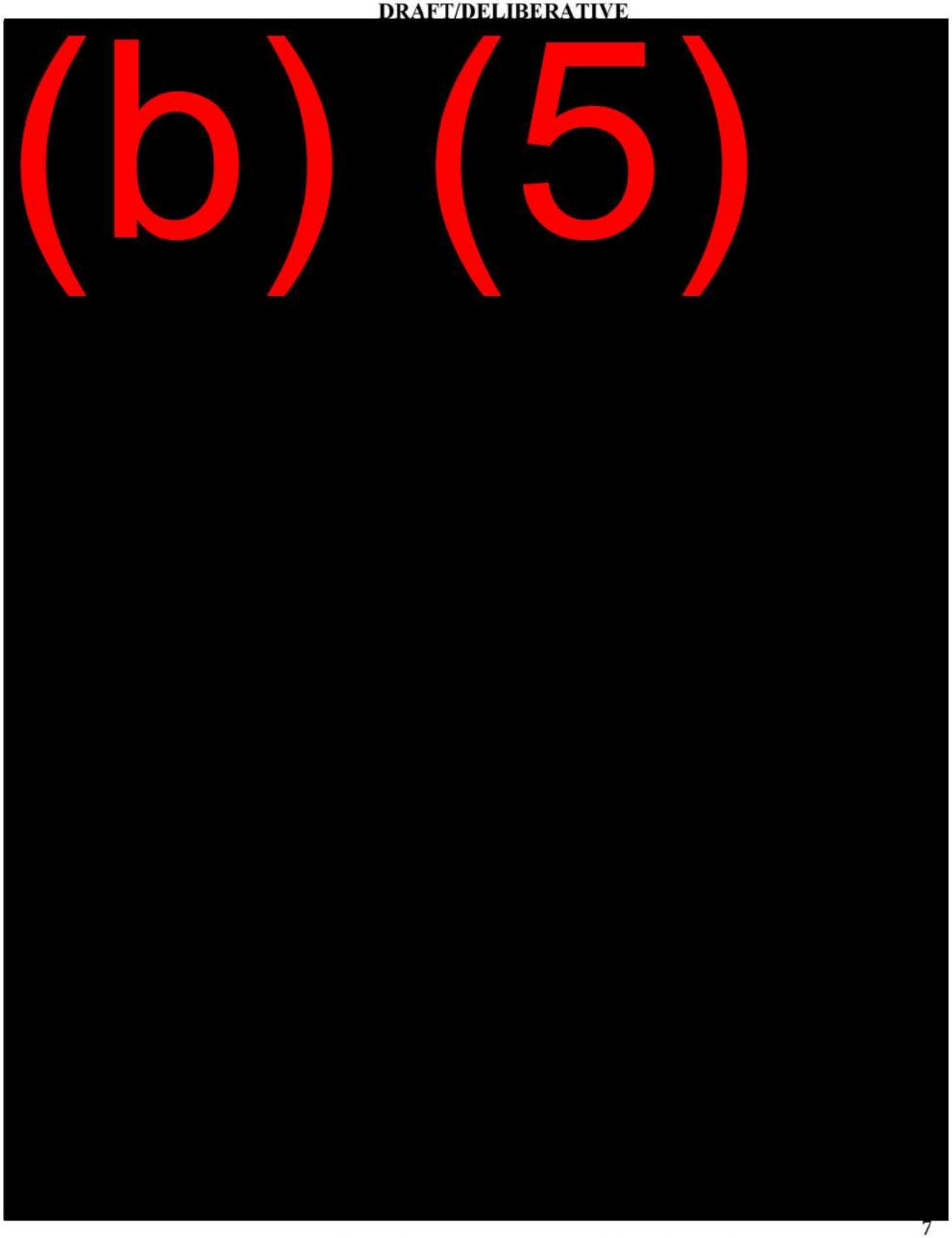



(b) (5)

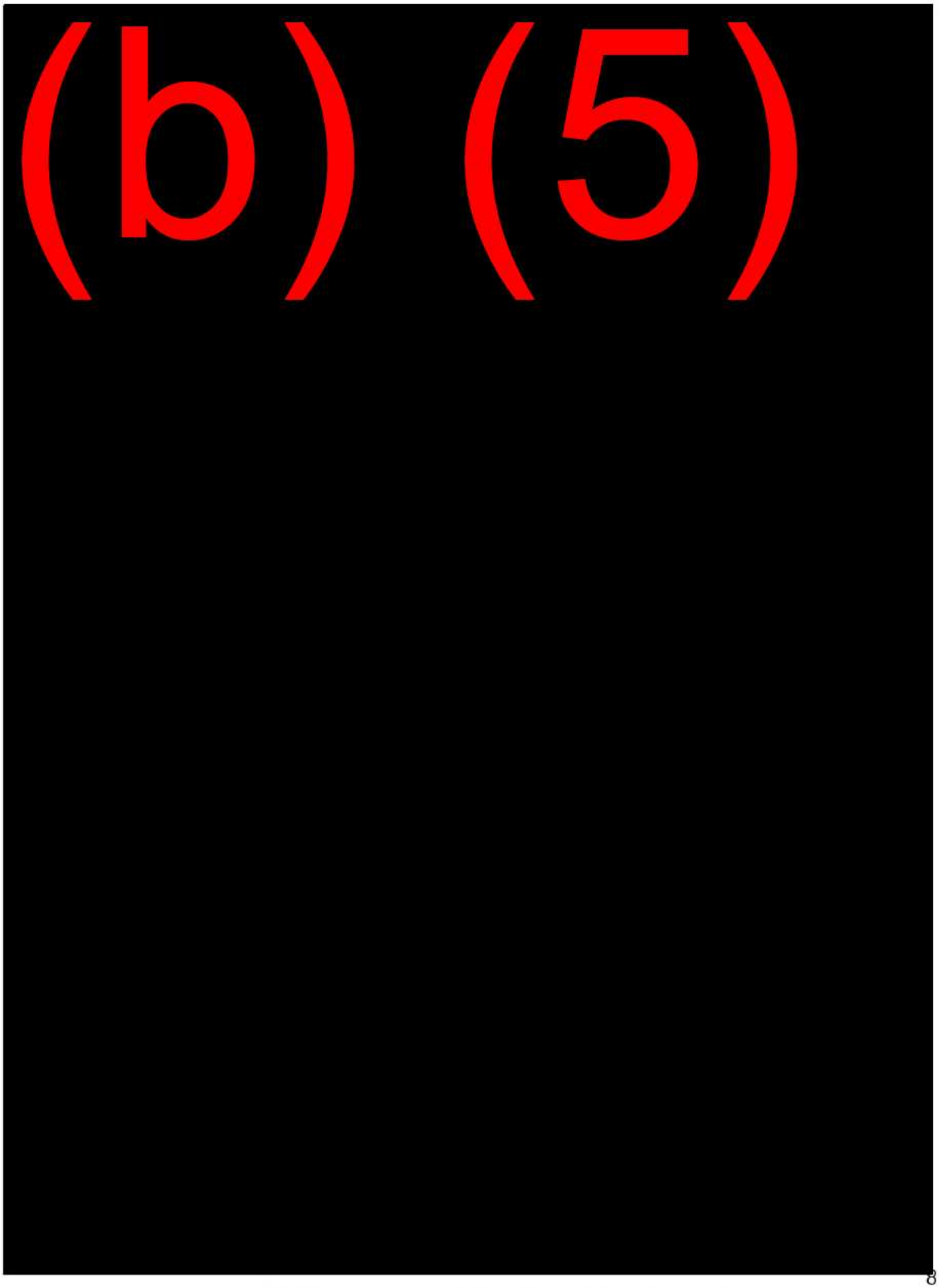

(b) (5)


(b) (5)


(b) (5)



7



8

Open Source Software Security Initiative (OS3I)

(b) (5)

(b) (5)

Chang, Caroline EOP/NCD

From: Rajan, Anjana EOP/NCD
Sent: Tuesday, December 20, 2022 4:15 PM
To: Chang, Caroline EOP/NCD
Cc: Leiserson, Nick J. EOP/NCD; Williams, Lauryn D. EOP/NCD; Simms, Tanya L. EOP/NCD; Krejsa, Harry H. EOP/NCD; Scott, Brian C. EOP/NCD; Corell, Joyce E. EOP/NCD; Berlin, Jen S. EOP/NCD
Subject: [for NCD/PDNCD] Space Forum - Proposed Attendee List and Agenda
Attachments: Space Executive Forum - Participant List & Agenda.docx

Hi Caroline,

Linked and attached is our due out for Chris and Kemba on the proposed attendees and agenda for the Space Forum. I've included a paragraph to include with this deliverable. Please let us know if you need anything from us on this!

Warmly,
Anjana

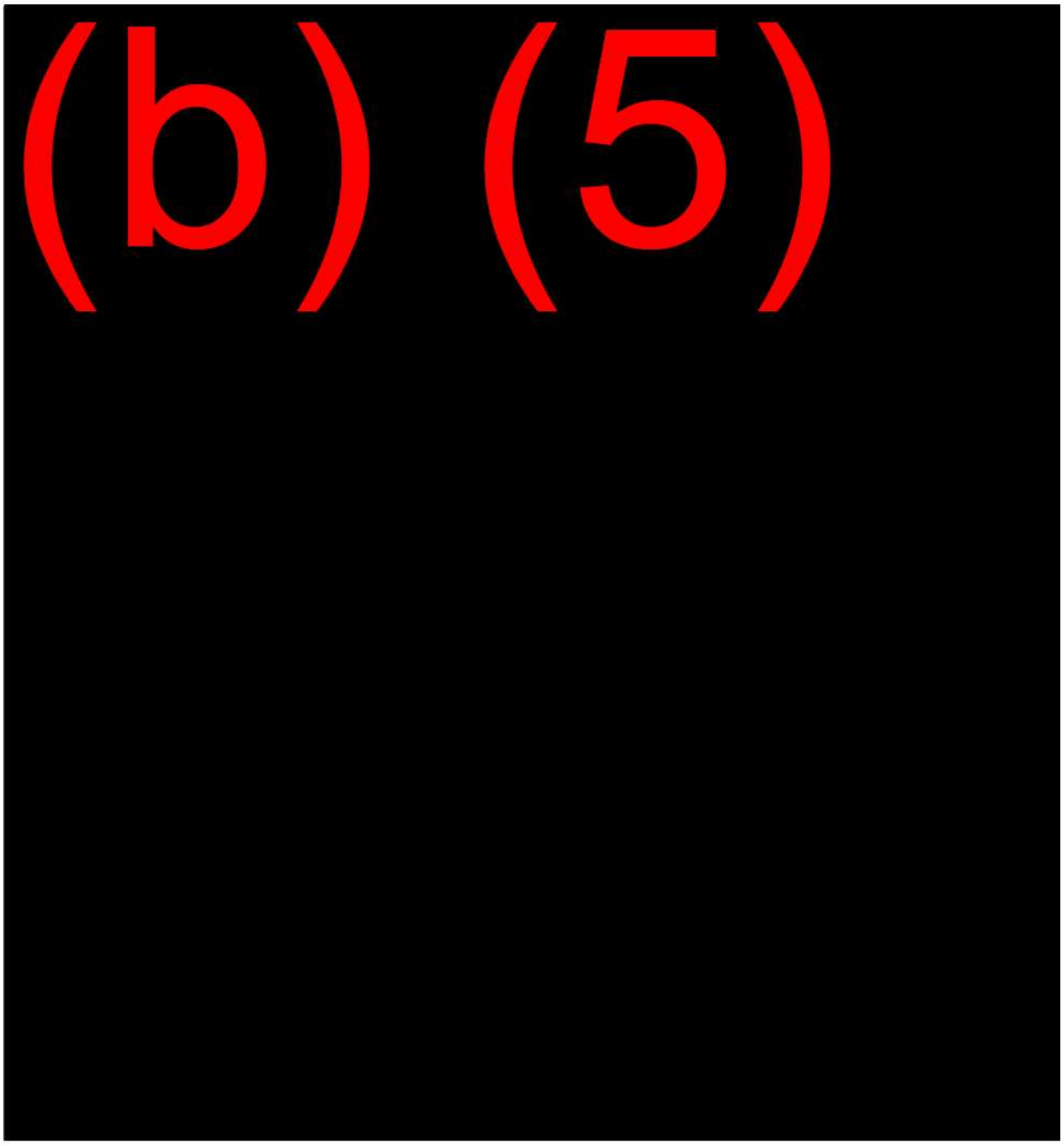
--
Dear Chris and Kemba,

Pursuant to our meeting last Tuesday, we have put together a draft attendee list and draft agenda. We look forward to hearing your comments. Our next step will be to begin socializing this with our interagency partners. We look forward to briefing you in the new year about our SPD-5 implementation plan and our progress on the Space Forum.

Thanks,
Space Team

--
Anjana Rajan
Assistant National Cyber Director, Technology Security
Office of the National Cyber Director
(b) (6) | (b) (6)

Space Executive Forum
Proposed Participant List & Agenda



Draft Agenda

- Intelligence Threat Briefing (1'50")
- Transition (0'10")
- Opening Remarks – USG (0'20")
- Discussion – all (1'05")
    - SPD-5 Implementation Plan Pillars
- Closing remarks/summary – NCD/VPOTUS (0'05")
- [Press gaggle – VPOTUS/NCD (0'15")]
- [Reception (1'15")]

Total Time: 3'30" (sans press gaggle and reception.) Can be hosted in a morning or afternoon time slot.

Legislative Affairs Bi-Weekly Meeting Agenda

December 22, 2022

10:00 – 10:30 am

Agenda

1. **118th Congress Leadership Update**

2. **Hill Engagement**
   a. Recap - COR Hearing FITARA/ Fed Cyber - December 15th

3. **Legislation**
   a. FY '23 Omnibus Recap
      i. ONCD funded at FY '23 PBR of $21.9 M (~4% increase over IIJA amount)
      ii. New Authorities
         1. TikTok on government devices ban
         2. FDA cyber requirements for medical devices
         3. EBT Card fraud security requirements
   b. 118th Congress ONCD Legislative Priorities

4. **Staff Engagements**
   a. Sen. Manchin & Workforce Team
   b. Sen. Wyden - VEP

5. **Other**
   a. CISA Letter – Force Structure Assessment

FY '23 NDAA - Cyber Provisions of Interest

(b) (5)

FY '23 NDAA - Cyber Provisions of Interest

(b) (5)

FY '23 NDAA - Cyber Provisions of Interest

(b) (5)

Congress of the United States
House of Representatives
Washington, DC 20515–3202

December 16, 2022

The Honorable Alejandro Mayorkas
Secretary of Department of Homeland Security
Washington, DC 20528

Dear Secretary Mayorkas:

We write to convey our concern over the Department's failure to submit the Cybersecurity and Infrastructure Security Agency (CISA) review and force structure assessment as required by law. The legislation requiring this review stemmed from a recommendation from the Cyberspace Solarium Commission[1] to strengthen CISA and received bipartisan support in Congress. We aim to better understand CISA's current efforts to execute its mission, and how the Agency applies its personnel and resources to safeguard the American people from physical and cyber risk to the critical infrastructure that underpins our way of life.

As you know, the Department was mandated to conduct this comprehensive review of the ability of the Agency to fulfill its mission obligations, as well as a completion of a force structure assessment in the National Defense Authorization Act for Fiscal Year 2021 (FY21 NDAA).[2] The law states, "not later than one year after the date of the enactment of this Act, the Secretary of Homeland Security shall submit to Congress a report detailing the results of the assessment". The deadline for submission to Congress was nearly a year ago – January 2022.

CISA's mission is to lead the national effort to understand, manage, and reduce risk to our cyber and physical infrastructure.[3] As the nation's risk advisor and lead federal civilian cybersecurity agency, CISA's work is critically important to our country. Additionally, as the Department's newest component agency, it is both appropriate and fundamental that you provide oversight over the growth, development, and execution of CISA's relatively nascent authority in this space. As the Department overseeing CISA, submitting a baseline understanding of the ability of the Agency to fulfill "the missions of the Agency" and a "comprehensive force structure assessment of CISA" should be one of your highest priorities. These review efforts reflect back on the ability of the Department to effectively manage its components and are crucial to understanding CISA's current ability to conduct its mission effectively, as well as its current and future resource needs.

Please detail the Department's efforts to conduct this review and force assessment and the timeline for transmittal to Congress as soon as possible, but no later than January 3, 2023. Understanding CISA's current ability to fulfill its mission and receiving a comprehensive review of the personnel and resources required to do so are absolutely paramount for Congressional oversight and the security of our Nation.

---

[1] Cyberspace Solarium Commission Report: https://www.solarium.gov/report
[2] William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021: https://www.congress.gov/116/bills/hr6395/BILLS-116hr6395enr.pdf
[3] About CISA: https://www.cisa.gov/about-cisa

NCD008FY23023_000000159

Sincerely,

John M. Katko
Ranking Member

Andrew R. Garbarino
Member of Congress

Mike Gallagher
Member of Congress

cc:
The Honorable Jennifer Easterly
Director of the Cybersecurity and Infrastructure Security Agency

The Honorable Robert Silvers
Undersecretary for Strategy, Policy, and Plans, DHS

The Honorable Iranga Kahangama
Assistant Secretary for Cyber, Infrastructure, Risk, and Resilience, DHS

The Honorable Christopher Inglis
National Cyber Director

Ms. Anne Neuberger
Deputy National Security Advisor for Cyber and Emerging Technology

Ms. Shalanda Young
Director of the Office of Management and Budget

SEC. 1745. CYBERSECURITY AND INFRASTRUCTURE SECURITY AGENCY REVIEW.

(a) DHS REVIEW.—

(1) IN GENERAL.—In order to strengthen the Cybersecurity and Infrastructure Security Agency of the Department of Homeland Security, the Secretary of Homeland Security shall conduct a comprehensive review of the ability of the Agency to fulfill—

(A) the missions of the Agency; and

(B) the recommendations detailed in the report issued by the Cyberspace Solarium Commission under section 1652(k) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232).

Assessments.

(2) ELEMENTS OF REVIEW.—The review conducted under paragraph (1) shall include the following elements:

(A) An assessment of how additional budget resources could be used by the Cybersecurity and Infrastructure Security Agency for projects and programs that—

(i) support the national risk management mission;

(ii) support public and private-sector cybersecurity;

(iii) promote public-private integration; and

(iv) provide situational awareness of cybersecurity threats.

(B) A comprehensive force structure assessment of the Cybersecurity and Infrastructure Security Agency, including—

Determination.

(i) a determination of the appropriate size and composition of personnel to accomplish the mission of the Agency, as well as the recommendations detailed in the report issued by the Cyberspace Solarium Commission under section 1652(k) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232);

(ii) an assessment of whether existing personnel are appropriately matched to the prioritization of threats in the cyber domain and risks in critical infrastructure;

(iii) an assessment of whether the Agency has the appropriate personnel and resources to—

(I) perform risk assessments, threat hunting, incident response to support both private and public cybersecurity;

(II) carry out the responsibilities of the Agency related to the security of Federal information and Federal information systems; and

(III) carry out the critical infrastructure responsibilities of the Agency, including national risk management; and

(iv) an assessment of whether current structure, personnel, and resources of regional field offices are sufficient in fulfilling agency responsibilities and mission requirements.

Deadline. Recommendations.

(3) SUBMISSION OF REVIEW.—Not later than one year after the date of the enactment of this Act, the Secretary of Homeland Security shall submit to Congress a report detailing the results of the assessments required under paragraph (1), including recommendations to address any identified gaps.

(b) GENERAL SERVICES ADMINISTRATION REVIEW.—

(1) IN GENERAL.—The Administrator of the General Services Administration shall—

(A) conduct a review of current Cybersecurity and Infrastructure Security Agency facilities and assess the suitability of such facilities to fully support current and projected mission requirements nationally and regionally; and

(B) make recommendations regarding resources needed to procure or build a new facility or augment existing facilities to ensure sufficient size and accommodations to fully support current and projected mission requirements, including the integration of personnel from the private sector and other departments and agencies. Recommendations.

(2) SUBMISSION OF REVIEW.—Not later than one year after the date of the enactment of this Act, the Administrator of the General Services Administration shall submit the review required under subsection (a) to— Deadline.

(A) the President;

(B) the Secretary of Homeland Security; and

(C) the Committee on Homeland Security and Governmental Affairs, the Committee on Appropriations, and the Committee on Environment and Public Work of the Senate, and the Committee on Homeland Security, the Committee on Appropriations, the Committee on Oversight and Reform, and the Committee on Transportation and Infrastructure of the House of Representatives.

SEC. 1746. REPORT ON ENABLING UNITED STATES CYBER COMMAND RESOURCE ALLOCATION.

(a) IN GENERAL.—Not later than April 15, 2021, the Secretary of Defense shall submit to the congressional defense committees a report detailing the actions the Secretary will undertake to implement clauses (ii) and (iii) of section 167b(d)(2) of title 10, United States Code, including actions to ensure that the Commander of United States Cyber Command has enhanced authority, direction, and control of the Cyber Operations Forces and the equipment budget that enables Cyber Operations Forces' operations and readiness, beginning with the budget to be submitted to Congress by the President under section 1105(a) of title 31, United States Code, for fiscal year 2024, and the budget justification materials for the Department of Defense to be submitted to Congress in support of such budget.

(b) ELEMENTS.—The report required by subsection (a) shall address the following items: Procedures.

(1) The procedures by which the Principal Cyber Advisor (PCA) will exercise authority, direction, and oversight over the Commander of United States Cyber Command, with respect to Cyber Operations Forces-peculiar equipment and resources.

(2) The procedures by which the Commander of United States Cyber Command will—

(A) prepare and submit to the Secretary program recommendations and budget proposals for Cyber Operations Forces and for other forces assigned to United States Cyber Command; and Recommendations. Budget proposals.

(B) exercise authority, direction, and control over the expenditure of funds for—

BRIEFING MEMORANDUM

December 20, 2022

MEMORANDUM FOR THE NATIONAL CYBER DIRECTOR AND PRINCIPAL DEPUTY NATIONAL CYBER DIRECTOR

FROM: Philip Stupak, Director, Federal Cybersecurity

THROUGH: Camille Stewart Gloster, Deputy National Cyber Director, Technology & Ecosystem

SUBJECT: Africa Leaders' Summit Readout – Cybersecurity Meeting

---

I. PURPOSE:

This memo conveys the details of a cybersecurity meeting held on the periphery of the Africa Leaders' Summit hosted by Cybastion and the Cybersecurity Alliance at Venable's Washington, DC offices.

II. BACKGROUND:

On December 13, 2022, Deputy National Cyber Director (DNCD) Stewart Gloster and Phil Stupak attended a multilateral meeting between U.S. Government (USG) representatives[1], French-speaking West African countries[2], and the private sector[3] that focused on regional cybersecurity challenges.

III. DISCUSSION:

The discussion began with each country describing cybersecurity challenges before the conversation turned towards ongoing USG capacity building initiatives.

Regional Cybersecurity Challenges
Regionally, each country described progress on digitizing their society as a top concern.

- The **Benin** perspective tied digitization to improved tax collection, which supports all other domestic initiatives.
- **Burkina Faso** also highlighted the financing element but approached digitization from an intelligence perspective.

---

[1] ONCD, State Department (Bureau of Cyber space and Digital Policy), USAID, and Department of Commerce (NIST, Multilateral Development Bank Group)
[2] Burkina Faso, Benin, Cabo Verde, Cameroon, Republic of the Congo, and Niger
[3] Cybastion, Venable, Cybersecurity Coalition, and Coris Bank

- **Niger** was heavily focused on workforce development given a population that is the youngest in the world (56.9% of the population is younger than 18 and 49.2% of the population is younger than 15) and highly decentralized.
- Other countries echoed the need for digital workforce development as a core element of cybersecurity capacity building. There was regional consensus on the need to partner with U.S. private sector companies to produce desired change.

One surprising comment came from Benin. Their delegation stated that they saw an increase in cyberattacks following the Russian invasion of Ukraine. This point was not elaborated on, but the traditional ruler of Benin, Oba Ewuare II, has been vocal on African impacts of the war and his hope that hostilities end.

USG Capacity Building

DNCD Stewart Gloster started the USG portion of the discussion by highlighting ONCD's willingness to be a partner especially on digital workforce development and zero trust. This seemed well received by the representatives. State Department's Bureau of Cyberspace and Digital Policy (CDP) broadly offered regional capacity building and training efforts, and tied the same to the *UN Framework on Responsible State Behavior in Cyberspace* while highlighting ongoing programs in Benin and Niger. Amy Mahn, NIST, offered assistance with standards through the French translation of the National Cyber Framework.

Danica Starks, Head of the Multilateral Development Bank Group, at the Department of Commerce provided an interesting briefing on the role of the World Bank within cybersecurity development. Ms. Starks' presentation focused on three key initiatives led by the World Bank:

- **Closing the digital connectivity gap**. Affordable mobile broadband (3G/4G) is particularly important to drive connectivity forward, though fiber optic connections are growing rapidly in main economic centers. Extending broadband to areas with no coverage presents a substantial economic challenge.
- **Investing in safe and open digital public infrastructure**. Digital public infrastructure comprise platforms hosted in data centers and clouds for digital identification, payments, data sharing, representing key elements for digital transactions including authentication of individuals and payments, and the flow of money and data. Only when such platforms are able to integrate and work together seamlessly and safely, can more sophisticated products and services be unlocked.
- **Helping countries access and use digital services**. Investments to improve connectivity and internet access along with DPIs offers leapfrogging opportunities to increase productivity and promises new solutions to long-standing problems.

She also offered the International Finance Corporation as a vehicle for bringing public-private partnerships to work on these three initiatives. Representatives were interested in this tool as a way to bring U.S. private sector companies into domestic projects.

Summary

The French-speaking West African countries shared a common desire for digital workforce development and capacity building. There is a strong interest in working with the White House, World Bank, and U.S. private sector companies. ONCD is well positioned to build a coherent position across multiple USG agencies and to explore leading a delegation in late FY 2023.

IV. NEXT STEPS

DNCD Stewart Gloster plans to engage with the World Bank and the African Development Bank to learn more as a next step prior to additional engagement with French-speaking West African countries.

December 20, 2022

OFFICE OF THE NATIONAL CYBER DIRECTOR
EXECUTIVE SECRETARY

Tracking

NUMBER:	**N/A**
VERSION:	**v(1.2)**
DATE:	**15 December 2022**

Coordination and Approval

PREPARED BY:	Philip Stupak, (b) (6) (b) (6)
CLEARED BY:	Camille Stewart Gloster, DNCD Technology and Ecosystem Caroline Chang, Senior Advisor, ExecSec Joe Scheidler, Special Advisor, ExecSec

Documents

ATTACHMENTS: Attendees

ATTACHMENT A: Attendees

International Government

- Michael Folane, Program Lead, PAYCR, Burkina Faso
- Wend-Panga Herman Ouedraogo, Technical Director, PAYCR, Burkina Faso
- Sekou Ouedraogo, Deputy Director of Intelligence, Burkina Faso
- Josue Toe, Administrative and Financial Head of Intelligence, Burkina Faso
- Mahamady Belem, Public Debt Director, Burkina Faso
- Colonel Pierre Ouedraogo, Head of Cybersecurity Center of Excellence, Burkina Faso
- Marc Andre Loko, CEO of ASIN, Benin
- Mahafous Osseni, Deputy Director, Port of Cotonou, Benin
- Ouanilo Medegan, Director of Security, Benin
- Henri Eyebe Ayissi, Minister of Domains, Cadaster and Land Affairs, Cameroon
- Lejeune Mbella, Minister of Foreign Affairs, Cameroon
- Alamine Ousmane Mey, Minister of Finance, Cameroon
- Mbarga Antagana, Minister of Commerce, Cameroon
- Sassou Nguesso, Minister of International Cooperation, Republic of the Congo
- Ibrahima Guimba, Head of Cybersecurity Agency, Niger
- Ahmat Jidoud, Minister of Finance, Niger

U.S. Government

- Camille Stewart Gloster, DNCD Technology & Ecosystem Security, ONCD, EOP
- Phil Stupak, Director of Federal Cybersecurity, ONCD, EOP
- Anne-Marie Mills, Senior Policy Advisor, CDP, Department of State
- Vanna Lavery, Cybersecurity & Digital Policy Office, CDP, Department of State
- Maurice Kent, Digital APEX Program Lead, USAID, Department of State
- Danica Starks, Head of Multilateral Development Bank Group, Department of Commerce
- Amy Mahn, International Policy Specialist, NIST, Department of Commerce
- Andrew Rollo, Vice President, China and Transformational Exports, Export-Import Bank

Industry

- Dr. Thierry Wandji, President and CEO, Cybastion
- Leila Ndiaye, SVP for Business Strategy & Government Affairs, Cybastion
- Andre Biyong, SVP of Operations, Cybastion
- Emana Shunnom, Senior Manager of Policy, Cybastion
- Alex Botting, Senior Director, Venable
- Tanvi Chopra, Cybersecurity Analyst, Venable
- Ari Schwartz, Coordinator, Cybersecurity Coalition

- Idrissa Nassa, Chairman, Coris Bank
- Stephane Tapsoba, Deputy Director for Burkina, Coris Bank

As of December 21, at 10:00 am

National Cyber Director

Daily Schedule

Thursday, December 22, 2022

Time	Topic	Location	Participants	
9:00-9:15 am	ONCD Daily Stand-Up	Virtual	ONCD Staff	
10:00-10:30 am	Bi-weekly Sync with Legislative Affairs	Virtual	ONCD Leg Affairs Team	1
12:30-1:15 pm	Internal Staff Discussion re: International Portfolio	Virtual	ONCD Staff; Decision Memo Enclosed	2
2:00-4:30 pm	POTUS Holiday Reception	The White House		
5:00-5:30 pm	Chief of Staff Close-out	EEOB 470 Virtual		
	Briefing Materials: Open-Source Software Security Initiative (OS3I)		From TES Team	3
	Briefing Memo: Hackers at the White House (HATWH)		From Stakeholder Engagement and National Cyber Teams	4
	Briefing Memo: Africa Leaders' Summit Readout		From Phil Stupak and Camille Stewart Gloster	5
	Space Executive Forum Participant List & Agenda		From ONCD Space Team	6

As of December 21, at 10:10 am

Principal Deputy National Cyber Director

Daily Schedule

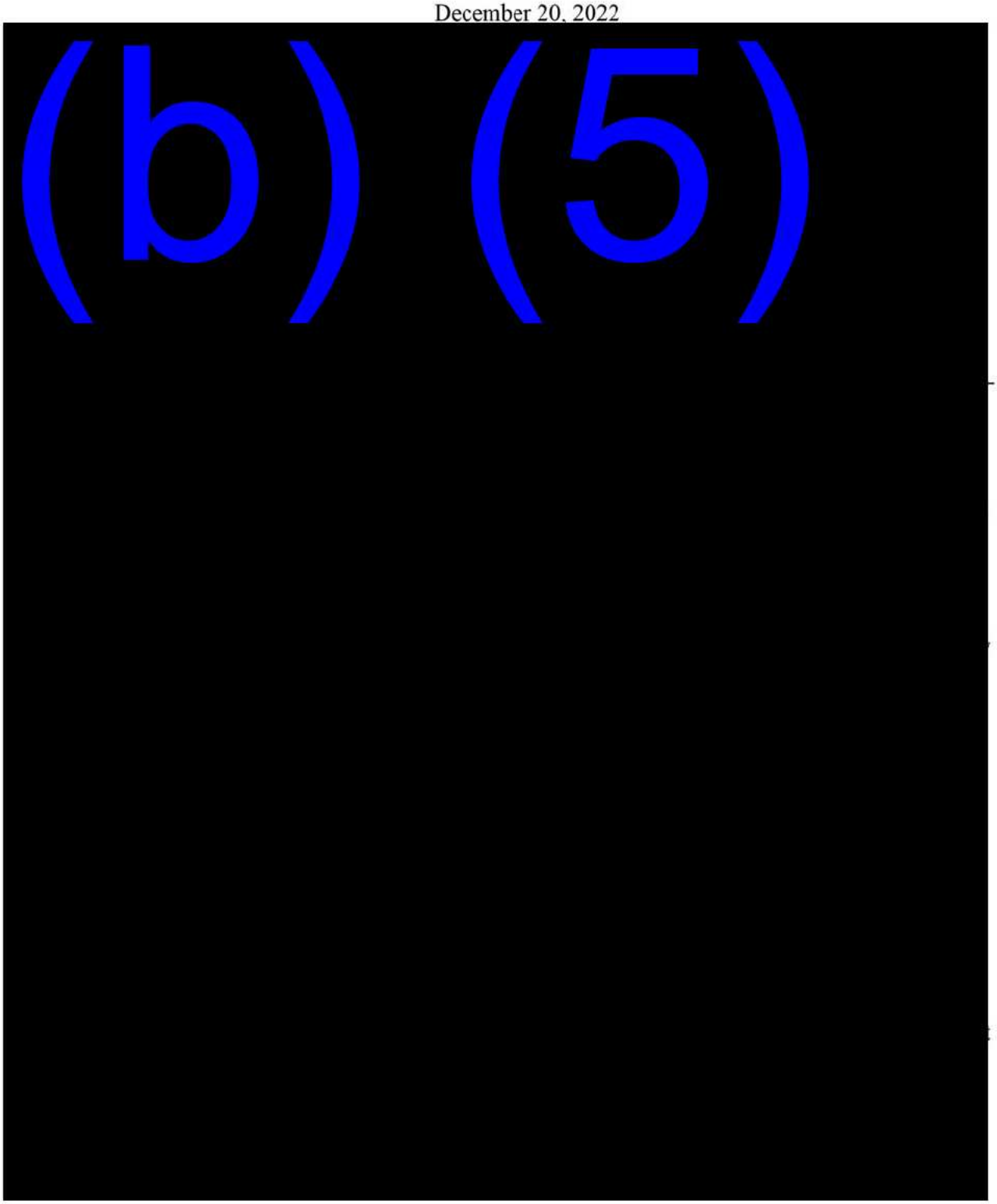
Thursday, December 22, 2022

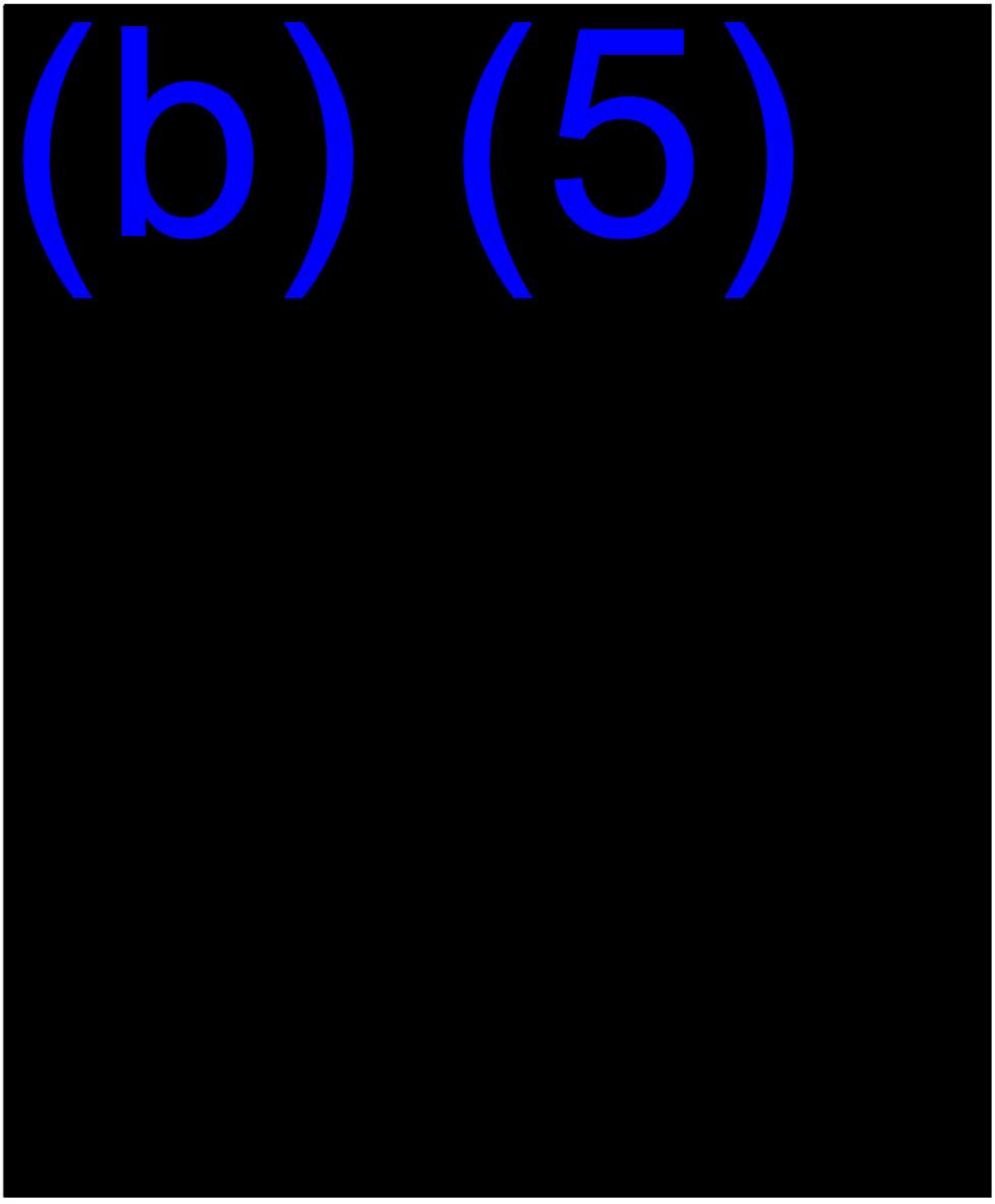
Time	Topic	Location	Participants	
9:00-9:15 am	ONCD Daily Stand-Up	Virtual	ONCD Staff	
10:00-10:30 am	Bi-weekly Sync w/ Legislative Affairs	Virtual	ONCD Leg Affairs Staff	1
12:30-1:15 pm	Internal Staff Discussion re: International Portfolio	Virtual	ONCD Staff; Decision Memo Enclosed	2
5:00-5:30 pm	Chief of Staff Close-out	EEOB 470 Virtual		
	Briefing Materials: Open-Source Software Security Initiative (OS3I)		From TES Team	3
	Briefing Memo: Hackers at the White House (HATWH)		From Stakeholder Engagement and National Cyber Teams	4
	Briefing Memo: Africa Leaders' Summit Readout		From Phil Stupak and Camille Stewart Gloster	5
	Space Executive Forum Participant List & Agenda		From ONCD Space Team	6

NCD008FY23023_000000164

BRIEFING MEMORANDUM

December 20, 2022




(b) (5)

December 20, 2022

OFFICE OF THE NATIONAL CYBER DIRECTOR
EXECUTIVE SECRETARY

Tracking

NUMBER:	**121922-002**
VERSION:	**v (1.2)**
DATE:	**20 Dec 2022**

Coordination and Approval

PREPARED BY:	Jen Berlin, Assistant National Cyber Director for Stakeholder Engagement Caitlin Clark, Assistant National Cyber Director Planning Nick Leiserson, Assistant National Cyber Director Cyber Policy Michael Morris, Assistant National Cyber Director Public Affairs Jonathan Ring, Director, National Cybersecurity
CLEARED BY:	Caroline Chang, Senior Advisor, ExecSec Joe Scheidler, Special Advisor, ExecSec

Documents

ATTACHMENTS: N/A

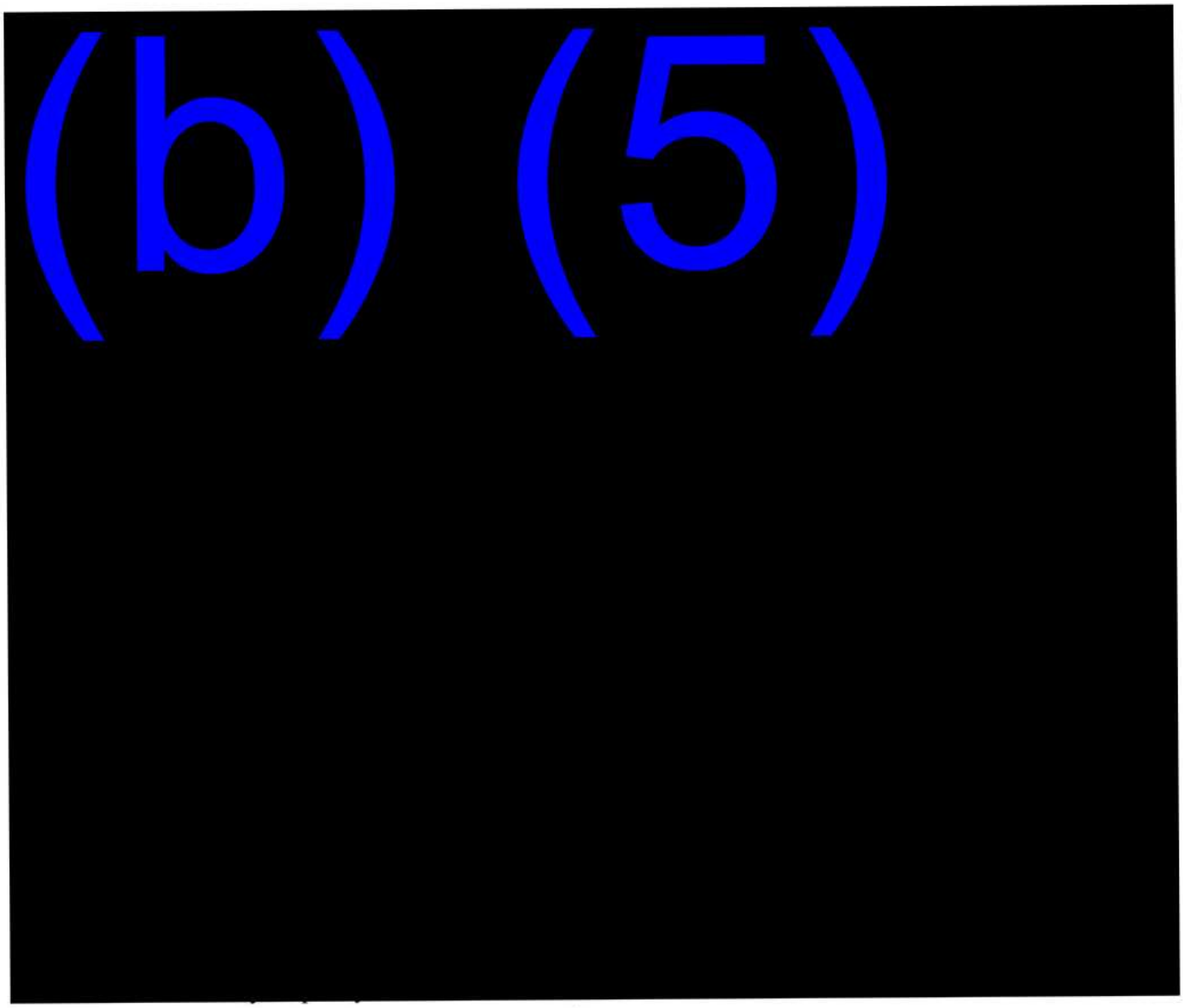
December 15, 2022

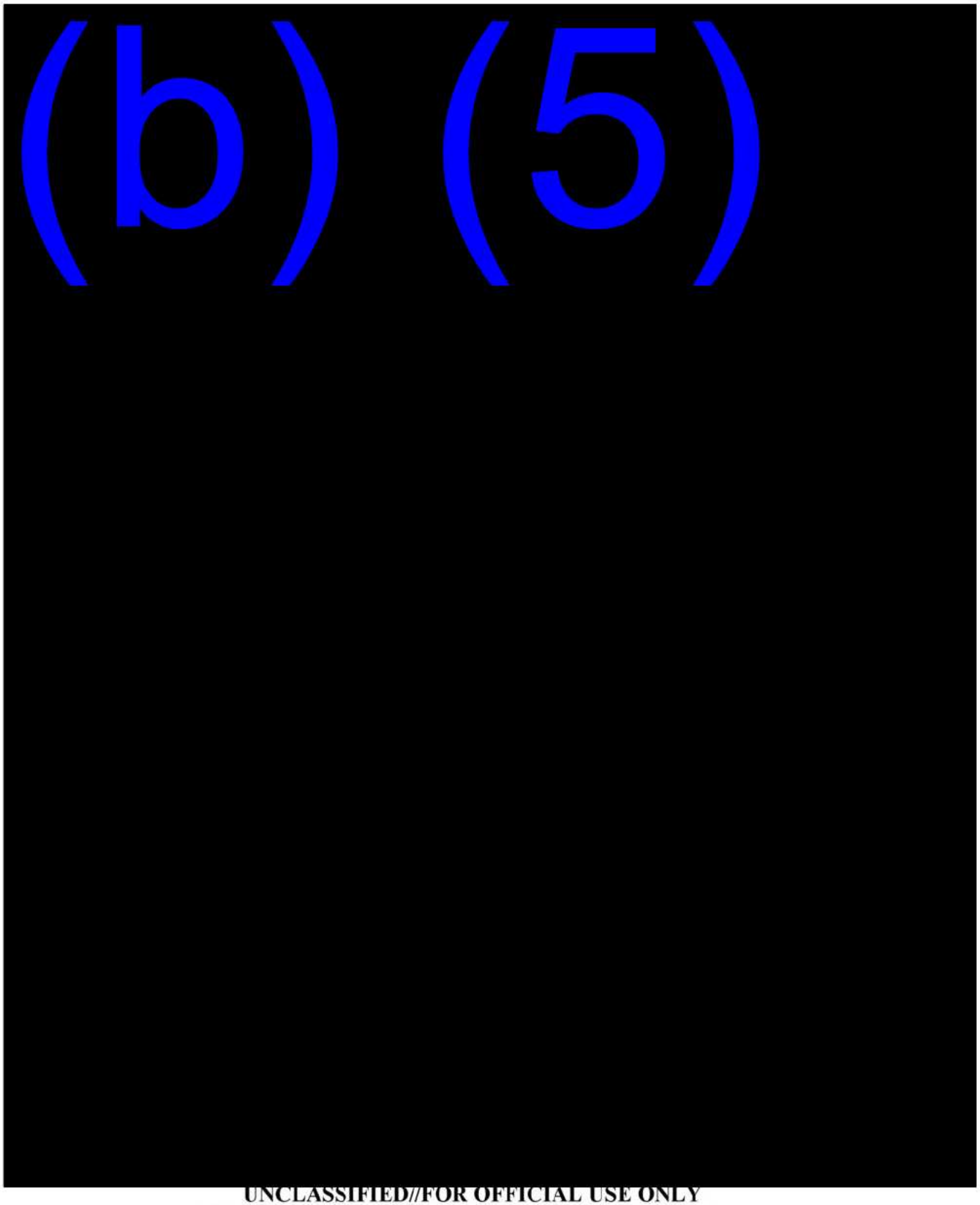
DECISION MEMORANDUM FOR THE NATIONAL CYBER DIRECTOR AND PRINCIPAL DEPUTY NATIONAL CYBER DIRECTOR

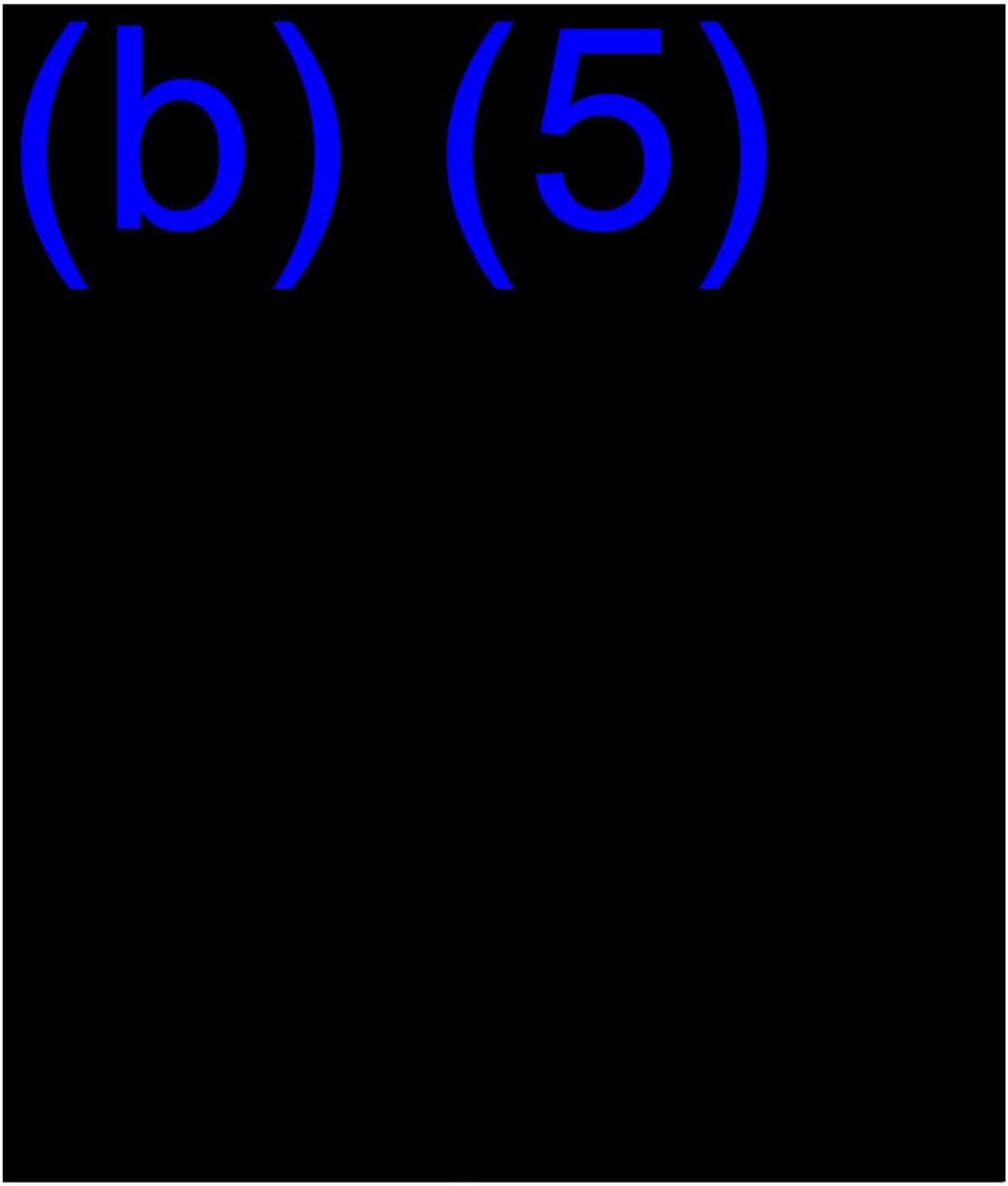
FROM: Harry Krejsa, ANCD Strategy and Research
Hannah Suh, Special Advisor

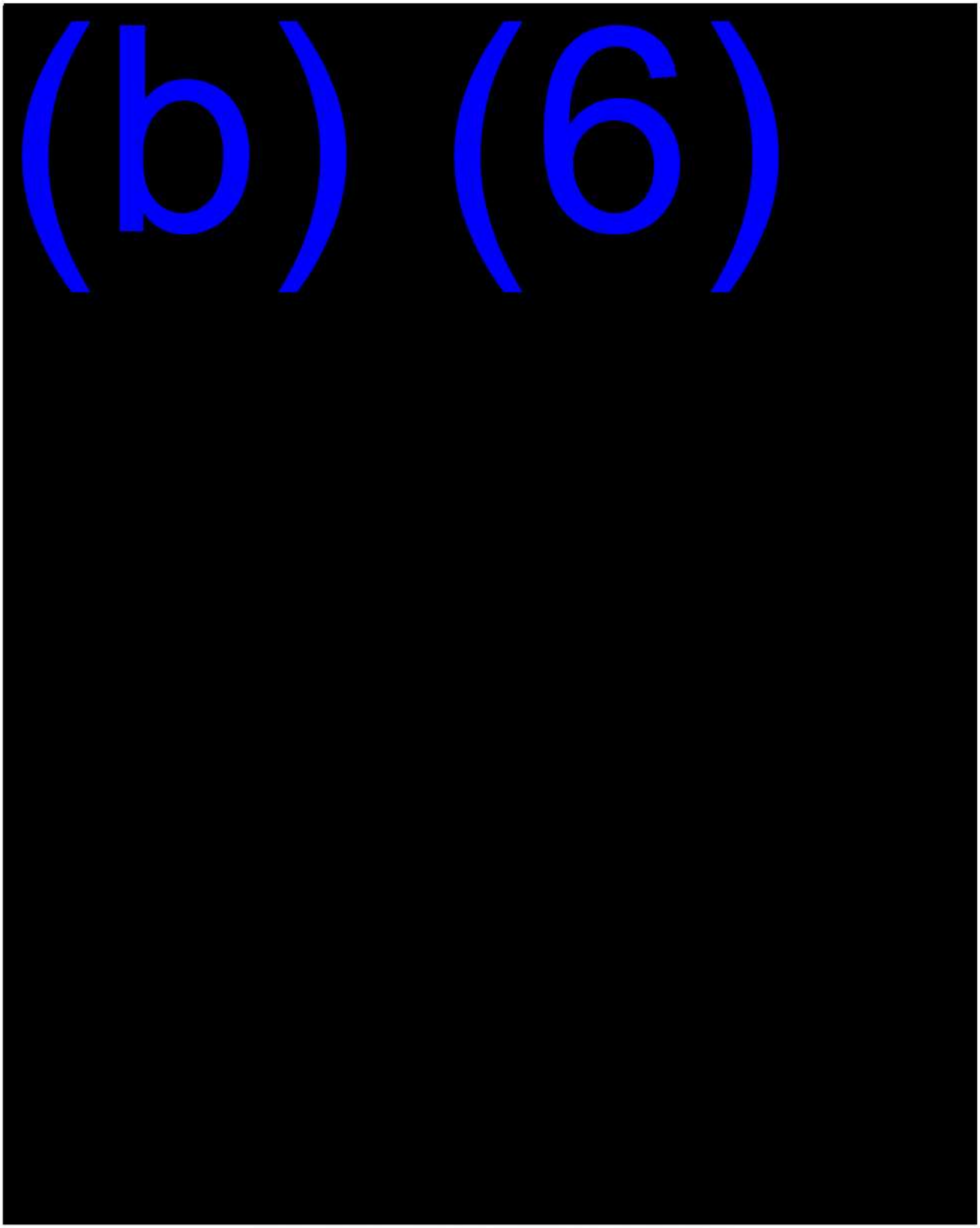
THROUGH: Michael Hochman, Chief of Staff

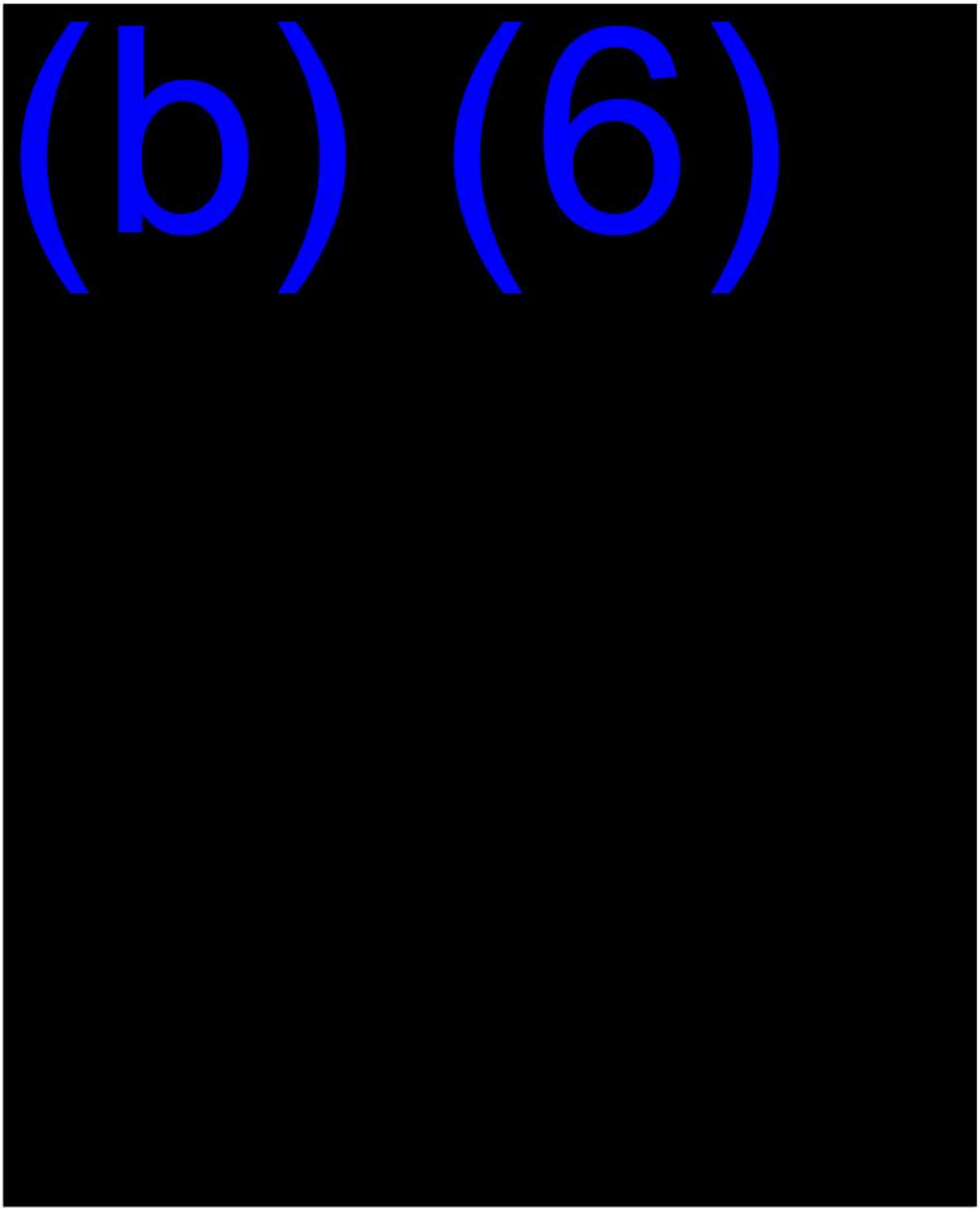
SUBJECT: ONCD International Engagements

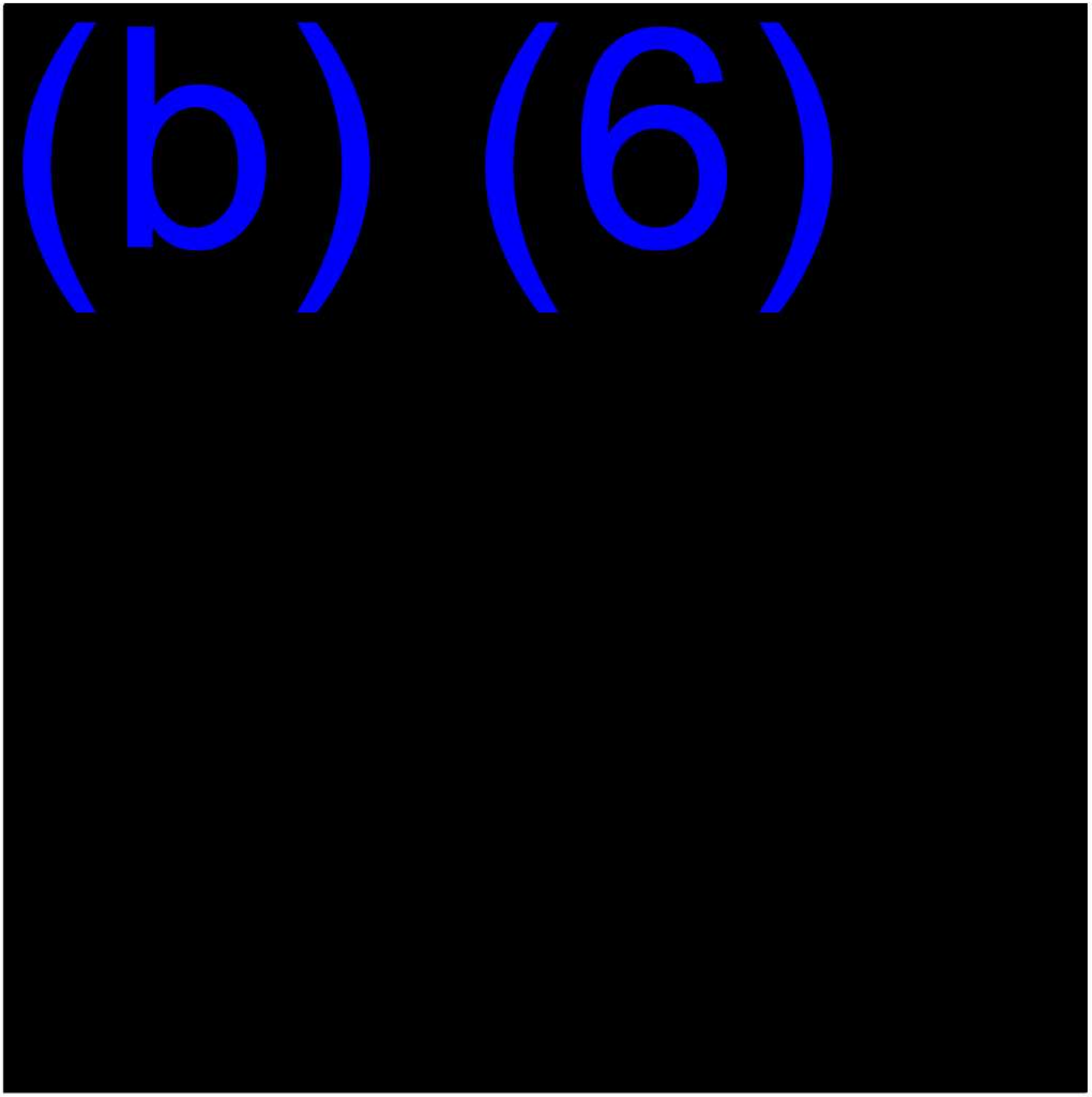



(b) (5)


(b) (5)


(b) (6)


(b) (6)


(b) (6)

December 15, 2022

OFFICE OF THE NATIONAL CYBER DIRECTOR DECISION

Approval and Coordination

1. **Scope and Impact.** ONCD and the interagency

2. **Coordinated and Approved.** This proposal was developed with all line divisions and has received clearance from the Deputies.

   This decision memo was cleared by:

   Caroline Chang, Senior Advisor, ExecSec
   Michael Hochman, Chief of Staff

3. **Consulted.** N/A

Decision

Approve:	_____	Approve as Amended:	_____
Reject:	_____	Discuss:	_____

_____ _____
JOHN C. INGLIS DATE
National Cyber Director
Office of the National Cyber Director
Executive Office of the President

Attachment A: Selections of Relevant Statutory Authorities

6 USC 1500 (*National Cyber Director Act*)

…

(c) Duties of the National Cyber Director

(1) In general

Subject to the authority, direction, and control of the President, the Director shall-

(A) serve as the principal advisor to the President on cybersecurity policy and strategy relating to the coordination of-

(i) information security and data protection;

(ii) programs and policies intended to improve the cybersecurity posture of the United States;

(iii) efforts to understand and deter malicious cyber activity;

(iv) efforts to increase the security of information and communications technology and services and to promote national supply chain risk management and vendor security;

(v) diplomatic and other efforts to develop norms and international consensus around responsible state behavior in cyberspace;

(vi) awareness and adoption of emerging technology that may enhance, augment, or degrade the cybersecurity posture of the United States; and

(vii) such other cybersecurity matters as the President considers appropriate;…

(2) Delegation of authority

(A) The Director may-

(i) serve as the senior representative to any organization that the President may establish for the purpose of providing the President advice on cybersecurity;

(ii) subject to subparagraph (B), be included as a participant in preparations for and, when appropriate, the execution of domestic and international summits and other international meetings at which cybersecurity is a major topic;

(iii) delegate any of the Director's functions, powers, and duties to such officers and employees of the Office as the Director considers appropriate; and

(iv) authorize such successive re-delegations of such functions, powers, and duties to such officers and employees of the Office as the Director considers appropriate.

(B) In acting under subparagraph (A)(ii) in the case of a summit or a meeting with an international partner, the Director shall act in coordination with the Secretary of State…

FY23 NDAA Section 9502 (*Cyber Diplomacy Act*)

(a) In General.--Section 1 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2651a), is amended--

(1) by redesignating subsections (i) and (j) as subsection (j) and (k), respectively;

(2) by redesignating subsection (h) (as added by section 361(a)(1) of division FF of the Consolidated Appropriations Act, 2021 (Public Law 116-260)) as subsection (l); and

(3) by inserting after subsection (h) the following:

``(i) Bureau of Cyberspace and Digital Policy.--

``(1) In general.--There is established, within the Department of State, the Bureau of Cyberspace and Digital Policy (referred to in this subsection as the `Bureau'). The head of the Bureau shall have the rank and status of ambassador and shall be appointed by the President, by and with the advice and consent of the Senate.

``(2) Duties.--
``(A) In general.--The head of the Bureau shall perform such duties and exercise such powers as the Secretary of State shall prescribe, including implementing the diplomatic and foreign policy aspects of the policy described in section 9501(a) of the Department of State Authorization Act of 2022.
``(B) Duties described.--The principal duties and responsibilities of the head of the Bureau shall, in furtherance of the diplomatic and foreign policy mission of the Department of State, be--
``(i) to serve as the principal cyberspace policy official within the senior management of the Department of State and as the advisor to the Secretary of State for cyberspace and digital issues;
``(ii) to lead, coordinate, and execute, in coordination with other relevant bureaus and offices, the Department of State's diplomatic cyberspace, and cybersecurity efforts (including efforts related to data privacy, data flows, internet governance, information and communications technology standards, and other issues that the Secretary has assigned to the Bureau);
``(iii) to coordinate with relevant Federal agencies and the Office of the National Cyber Director to ensure the diplomatic and foreign policy aspects of the cyber strategy in section 9501 of the Department of State Authorization Act of 2022 and any other subsequent strategy are implemented in a manner that is fully integrated with the broader strategy;
``(iv) to promote an open, interoperable, reliable, and secure information and communications technology infrastructure globally;
``(v) to represent the Secretary of State in interagency efforts to develop and advance Federal Government cyber priorities and activities, including efforts to develop credible national capabilities, strategies, and policies to deter and counter cyber adversaries, and carry out the purposes of title V of the Department of State Authorization Act of 2022;
``(vi) to engage civil society, the private sector, academia, and other public and private entities on relevant international cyberspace and international information and communications technology issues;
``(vii) to support United States Government efforts to uphold and further develop global deterrence frameworks for malicious cyber activity;
``(viii) to advise the Secretary of State and coordinate with foreign governments regarding responses to national security-level cyber incidents, including coordination on diplomatic response efforts to support allies and partners threatened by malicious cyber activity, in conjunction with members of the North Atlantic Treaty Organization and like-minded countries;
``(ix) to promote the building of foreign capacity relating to cyberspace policy priorities;
``(x) to promote an open, interoperable, reliable, and secure information and communications technology infrastructure globally and an open, interoperable, secure, and reliable internet governed by the multi-stakeholder model;
``(xi) to promote an international environment for technology investments and the internet that benefits

United States economic and national security interests;

``(xii) to promote cross-border flow of data and combat international initiatives seeking to impose unreasonable requirements on United States businesses;

``(xiii) to promote international policies to protect the integrity of United States and international telecommunications infrastructure from foreign-based threats, including cyber-enabled threats;

``(xiv) to lead engagement, in coordination with relevant executive branch agencies, with foreign governments on relevant international cyberspace, cybersecurity, cybercrime, and digital economy issues described in title V of the Department of State Authorization Act of 2022;

``(xv) to promote international policies, in coordination with the Department of Commerce, to secure radio frequency spectrum in the best interests of the United States;

``(xvi) to promote and protect the exercise of human rights, including freedom of speech and religion, through the internet;

``(xvii) to build capacity of United States diplomatic officials to engage on cyberspace issues;

``(xviii) to encourage the development and adoption by foreign countries of internationally recognized standards, policies, and best practices;

``(xix) to support efforts by the Global Engagement Center to counter cyber-enabled information operations against the United States or its allies and partners; and

``(xx) to conduct such other matters as the Secretary of State may assign…

``(6) Coordination.--In implementing the duties prescribed under paragraph (2), the head of the Bureau shall coordinate with the heads of other Federal agencies, including the Department of Commerce, the Department of Homeland Security, and other Federal agencies that the National Cyber Director deems appropriate…

[*Briefer's note on FY23 NDAA – The language referenced above passed the House on December 8, 2022, as part of the final NDAA negotiated between the House and Senate. The Senate is expected to take it up on or before December 16, 2022, after which it will go to the President for his signature. ONCD staff have very high confidence that this language will become law before the end of the calendar year.*]

2022-12-22 NCD and PDNCD Briefing Book

From: "Chang, Caroline EOP/NCD" <(b) (6)>
To: "Inglis, Chris C. EOP/NCD" <(b) (6)>, "Walden, Kemba E. EOP/NCD" (b) (6)
Cc: DL ExecSec <(b) (6)>, "Hochman, Michael C. EOP/NCD" <(b) (6)>
Date: Wed, 21 Dec 2022 11:11:04 -0500
Attachments: 1. Mtg. Agenda Leg Affairs Bi-weekly.pdf (569.81 kB); 2. Decision Memo_Intl Engagement Strategy (Clean).pdf (345.35 kB); 3. Open Source Software Security Initiative.pdf (805.15 kB); 4. Briefing Memo - HATWH Event Concept.pdf (112.44 kB); 5. Briefing Memo - Africa Leaders Summit Readout.pdf (94.93 kB); 6. Space Executive Forum - Participant List and Agenda.pdf (268.56 kB); NCD - Daily Schedule.docx (91.45 kB); PDNCD - Daily Schedule.docx (91.09 kB)

Dear Chris and Kemba,

Please see attached your briefing book for tomorrow and the weekend. We are including a few of the papers we transmitted to you yesterday so you have all your holiday reading in one place. Please let us know if you have any questions.

1. Bi weekly Leg Affairs Sync Agenda + Read Ahead Materials
2. Decision Memo on International Strategy
3. Briefing Memo on Open Source Software Security Initiative
4. Briefing Memo on Hackers at the White House Event
5. Briefing Memo on Africa Leaders Summit Readout
6. Draft participant list and agenda for the Space Executive Forum
    - Please see the accompanying cover paragraph in the email enclosed

Best,
Caroline

Caroline Chang
Senior Advisor to NCD and ExecSec
Office of the National Cyber Director
Executive Office of the President
(b) (6)

Open Source Software Security Initiative (OS3I)

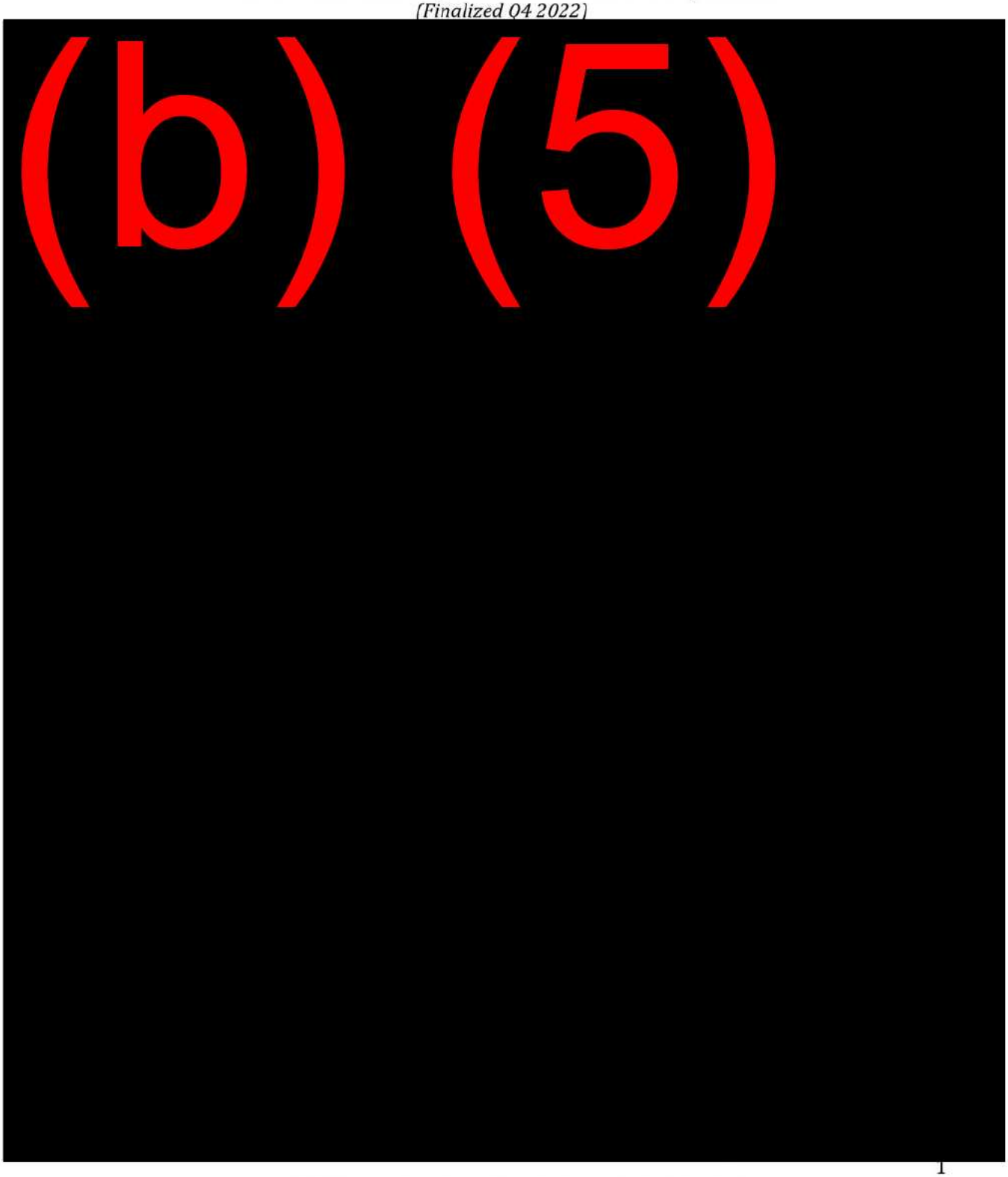
OS3I, an interagency working group, spent 2022 identifying risks and proposing strategic recommendations on securing the open-source software ecosystem. In 2023, OS3I will pursue a bold and ambitious implementation strategy that secures the software supply chain upstream and at scale. ONCD specifically will champion memory safety as its flagship open-source security issue in alignment with the National Cybersecurity Strategy.

(b) (5)

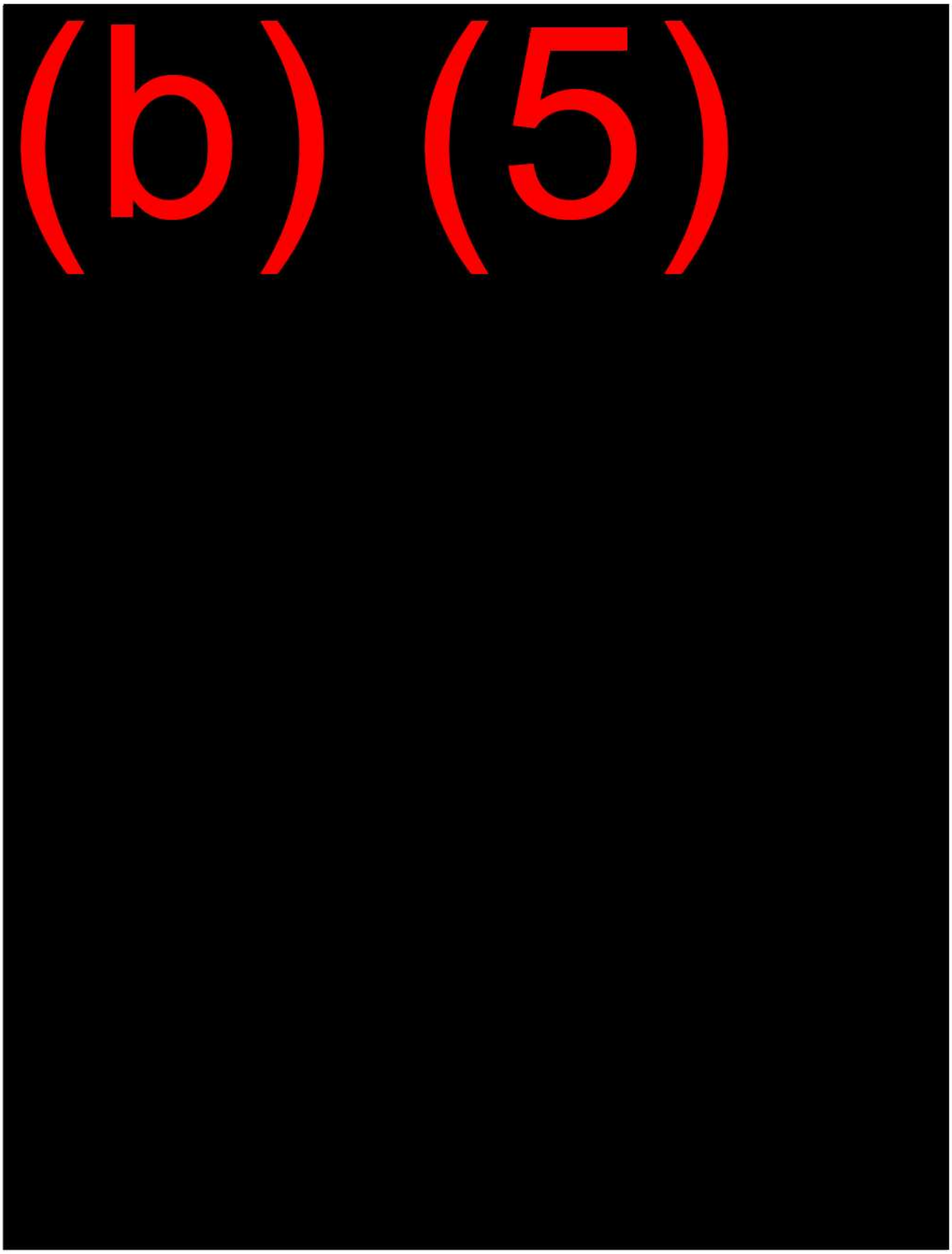
Recommendations to Secure the Open-Source Software Ecosystem

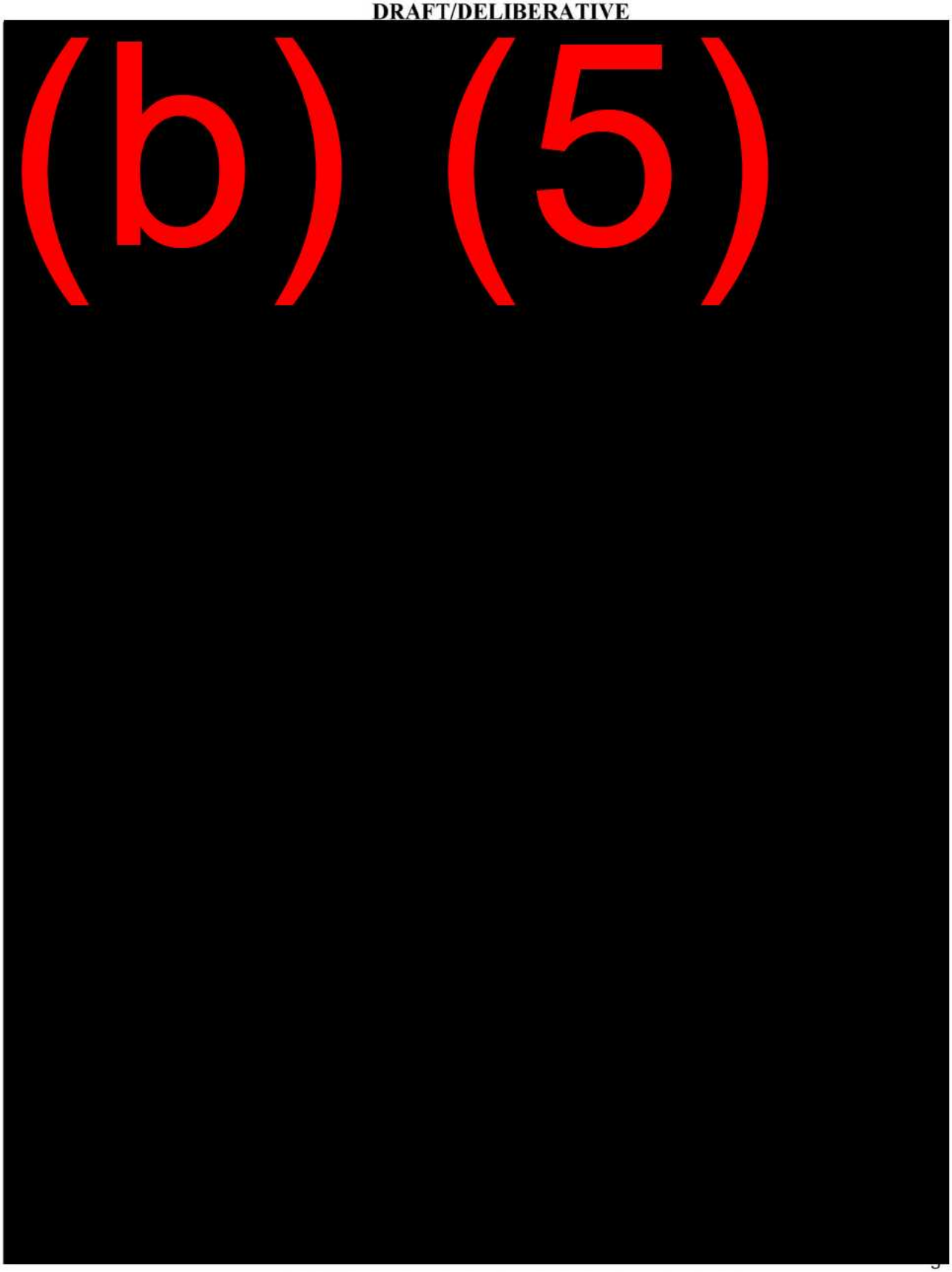
From the White House Open-Source Software Security Initiative

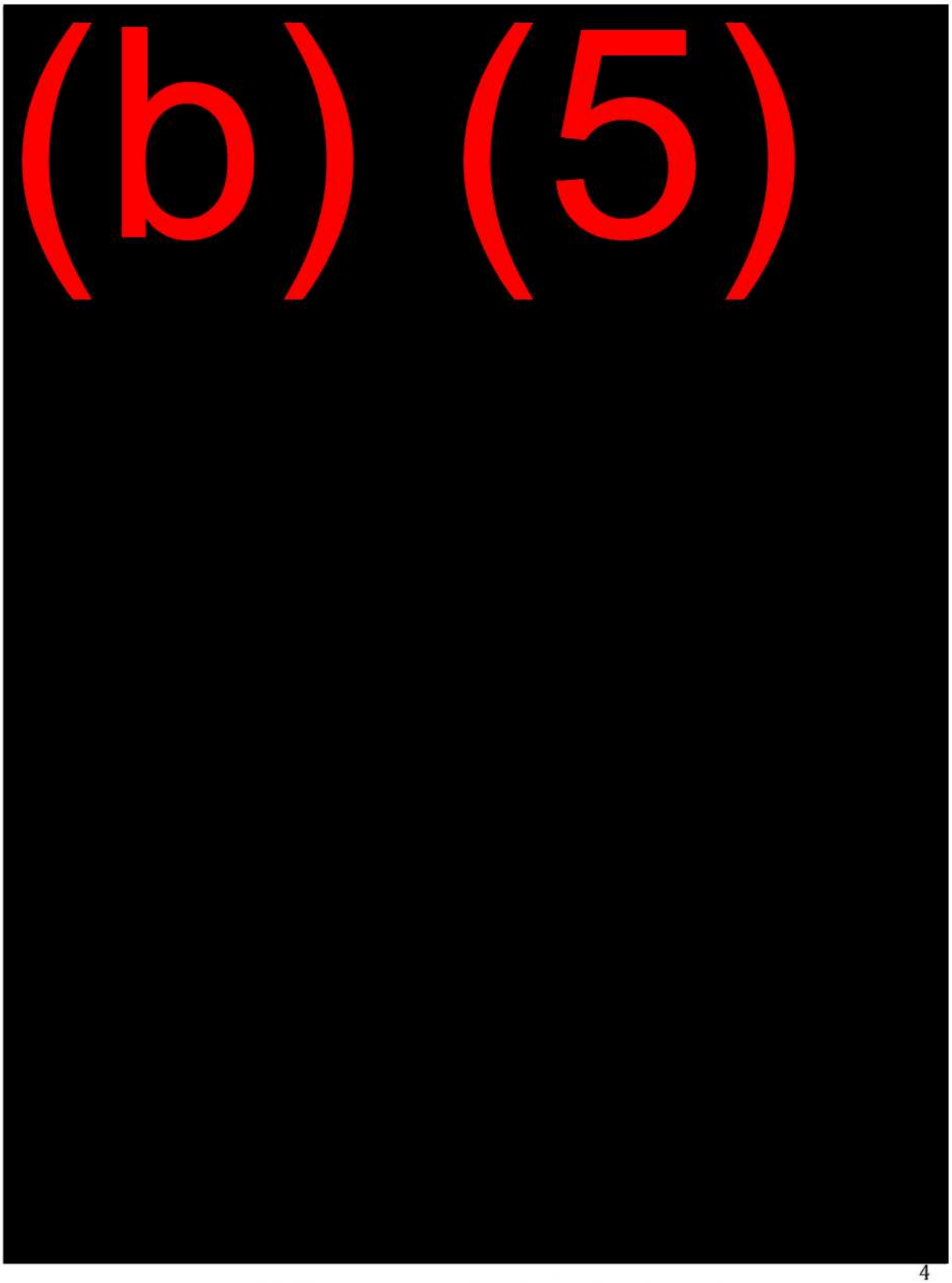
(Finalized Q4 2022)

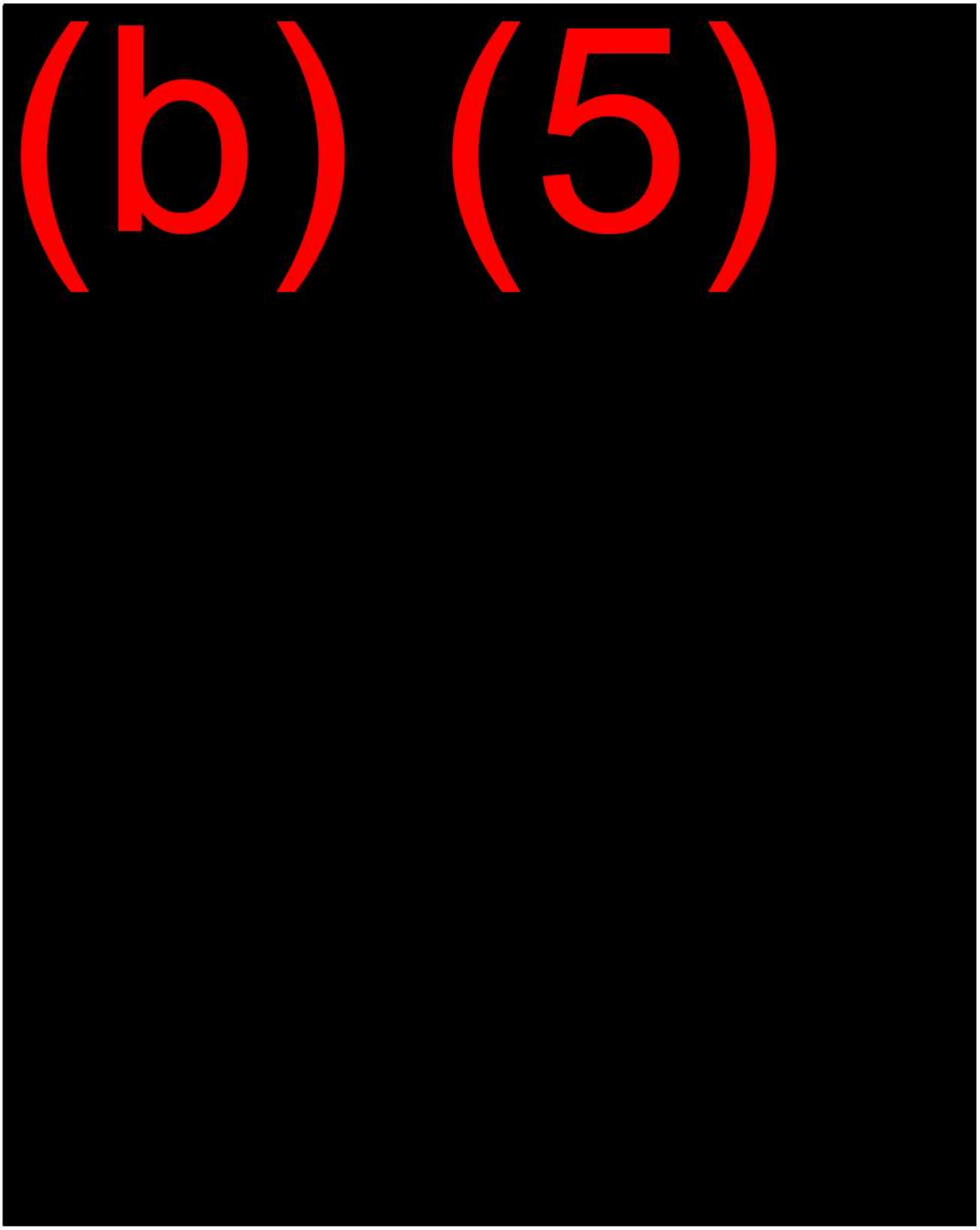


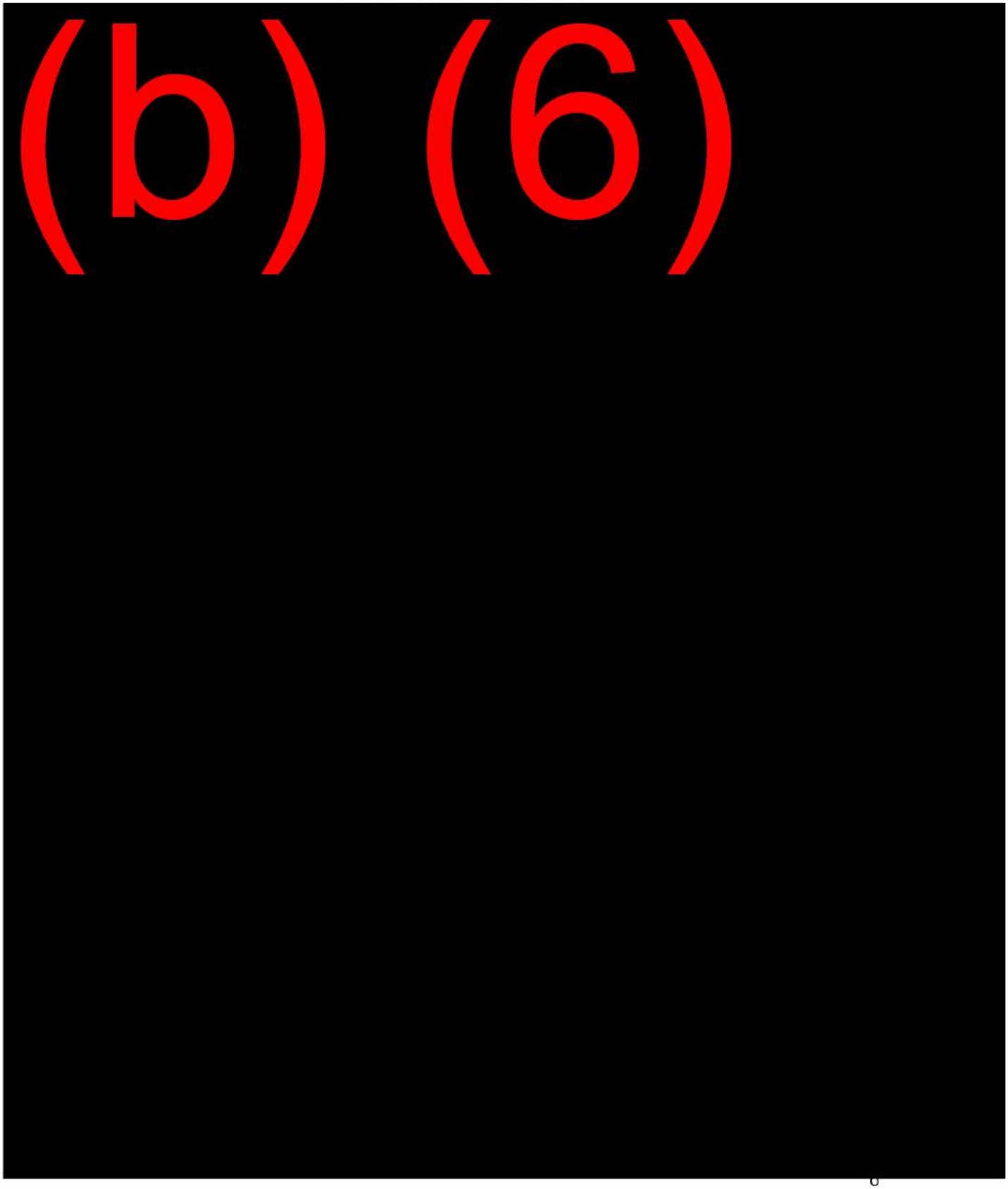
1

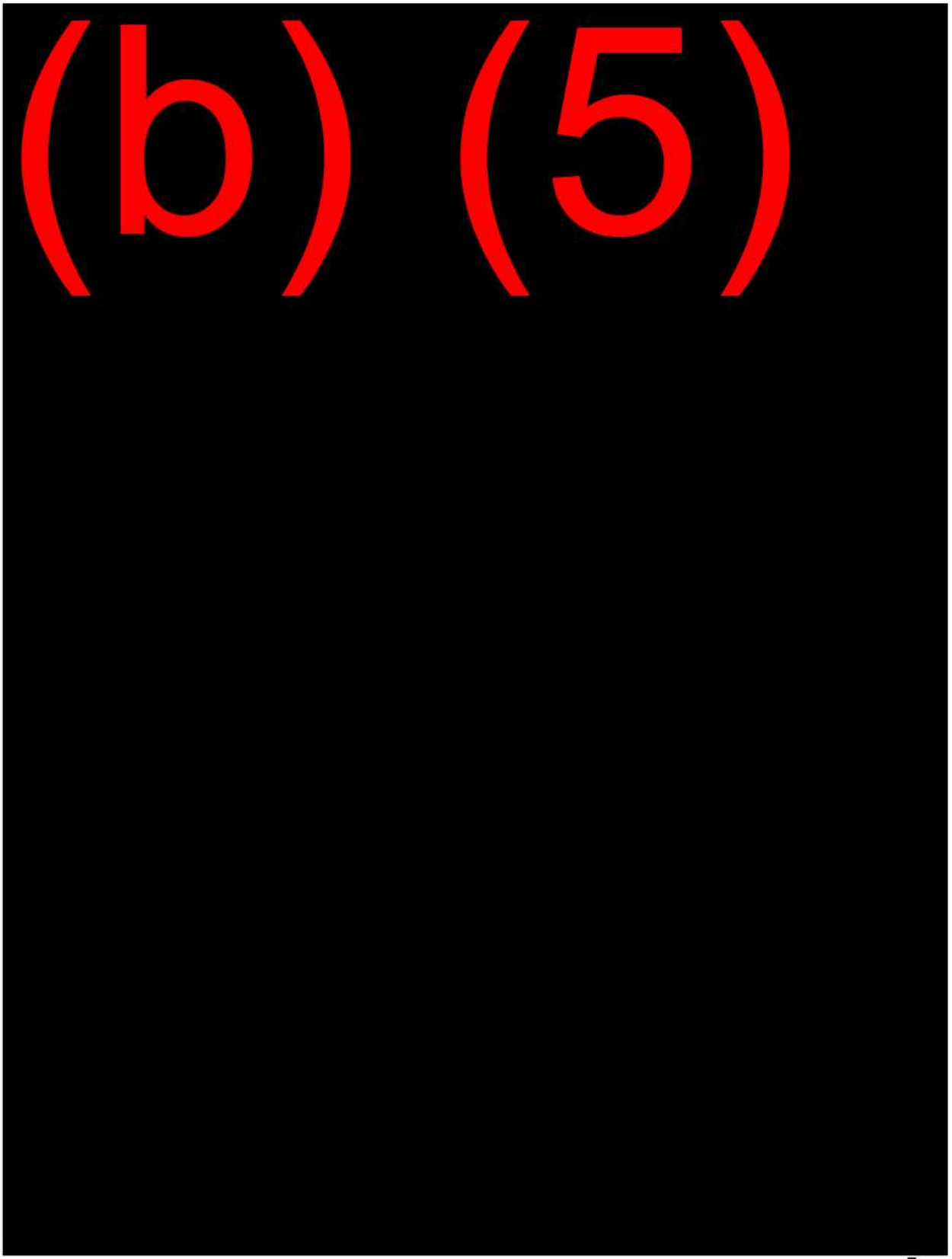

(b) (5)

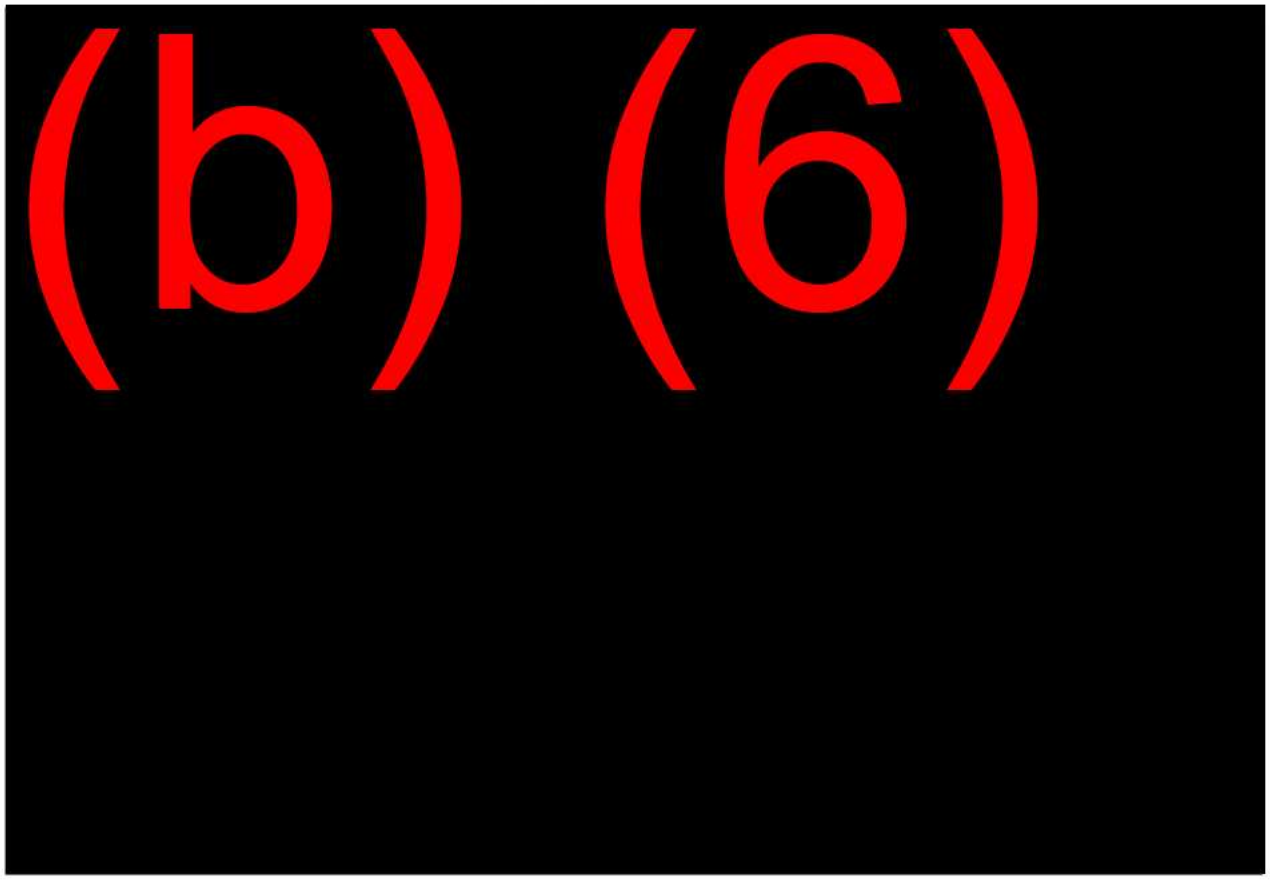

(b) (5)


(b) (5)


(b) (5)


(b) (6)


(b) (5)



8

MEMORANDUM FOR THE DEPUTY NATIONAL CYBER DIRECTOR
FOR TECHNOLOGY & ECOSYSTEM SECURITY

FROM: Anjana Rajan
Assistant National Cyber Director
Technology Security

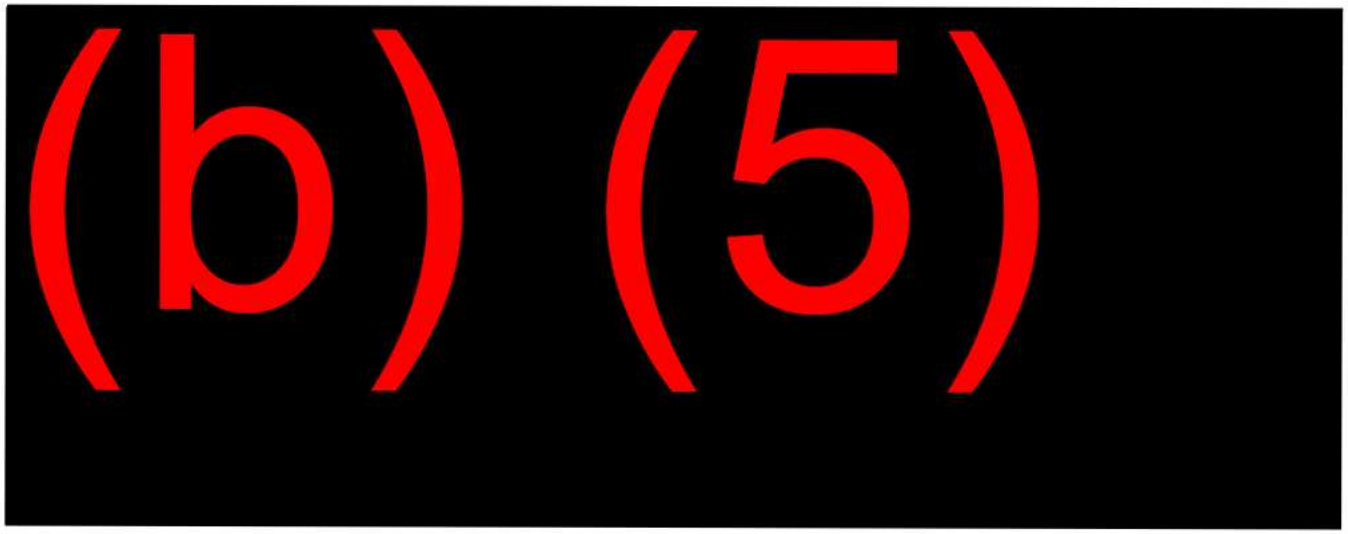
Seeyew Mo
Assistant National Cyber Director
Cyber Workforce

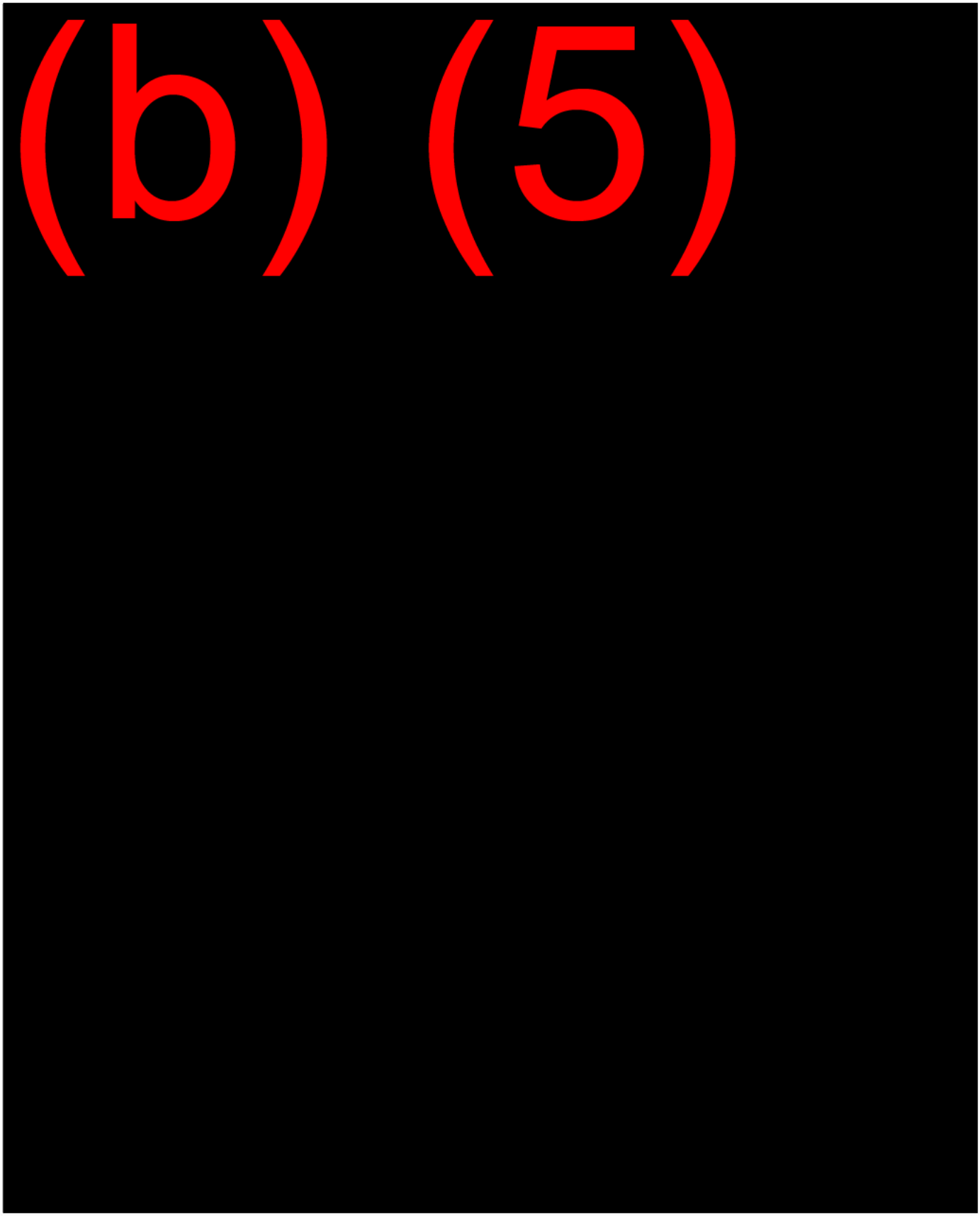
Eric Mill
Senior Advisor
Office of the Federal Chief Information Officer

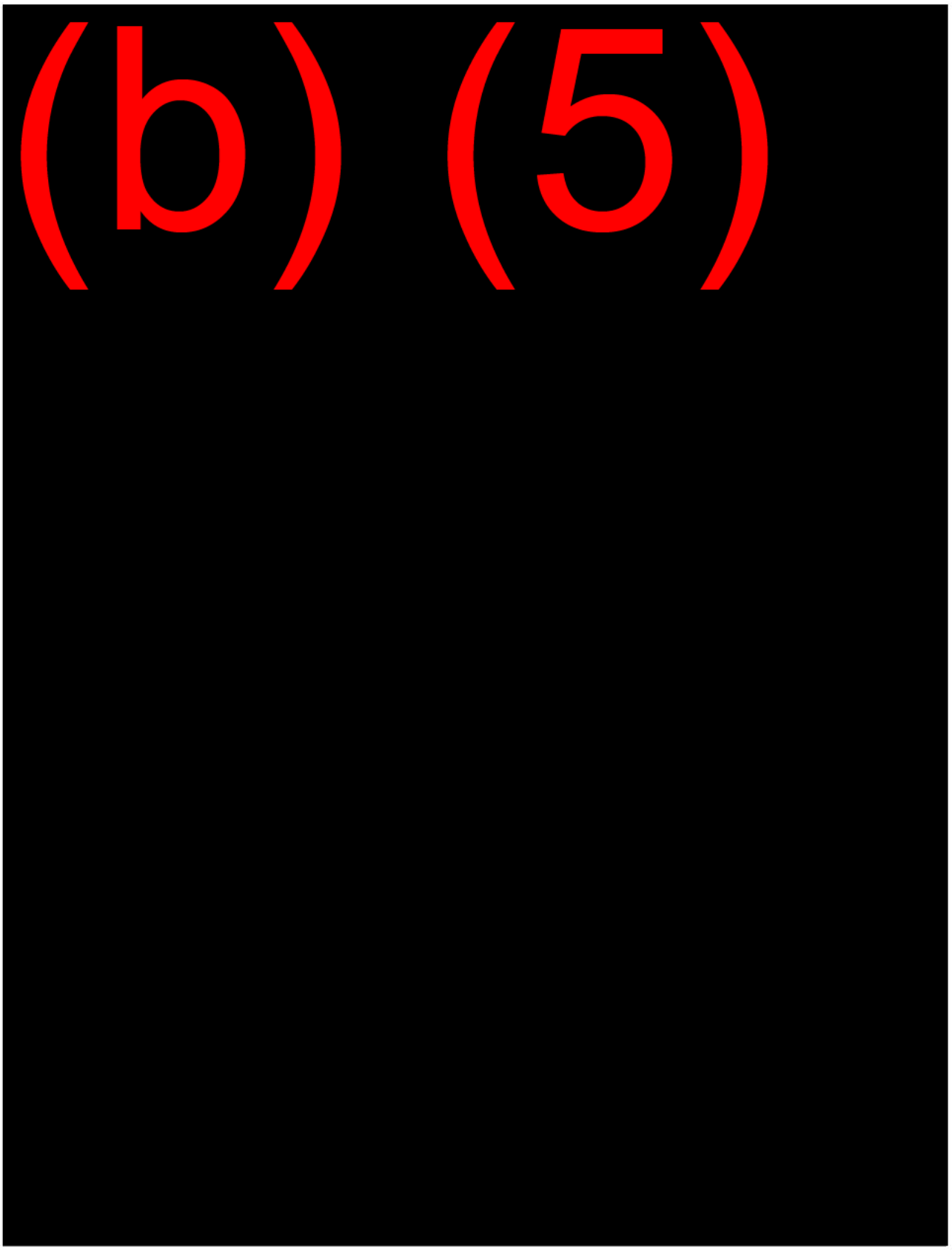
Conrad Stosz
Policy Advisor
Office of the Federal Chief Information Officer

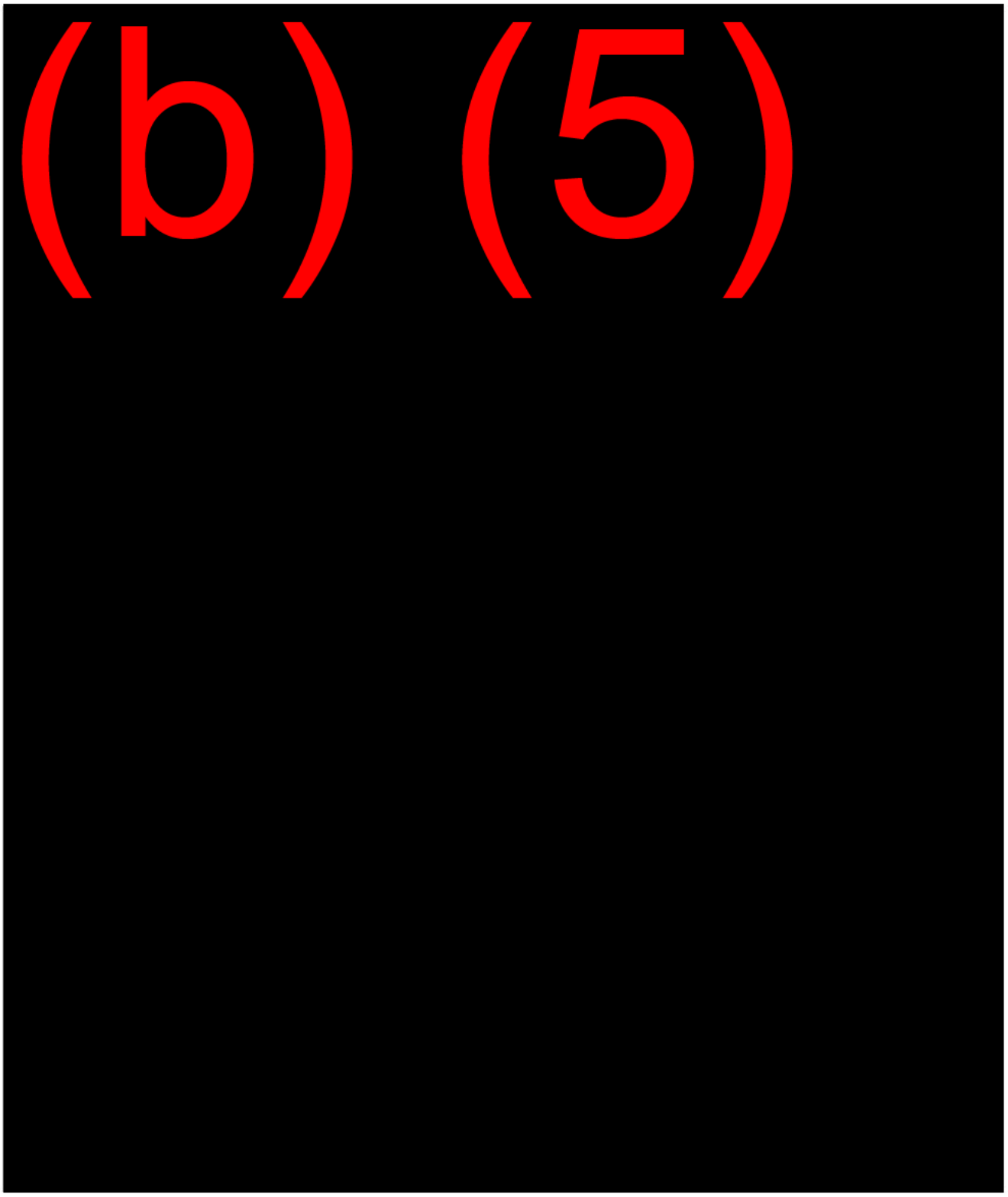
DATE: December 7, 2022

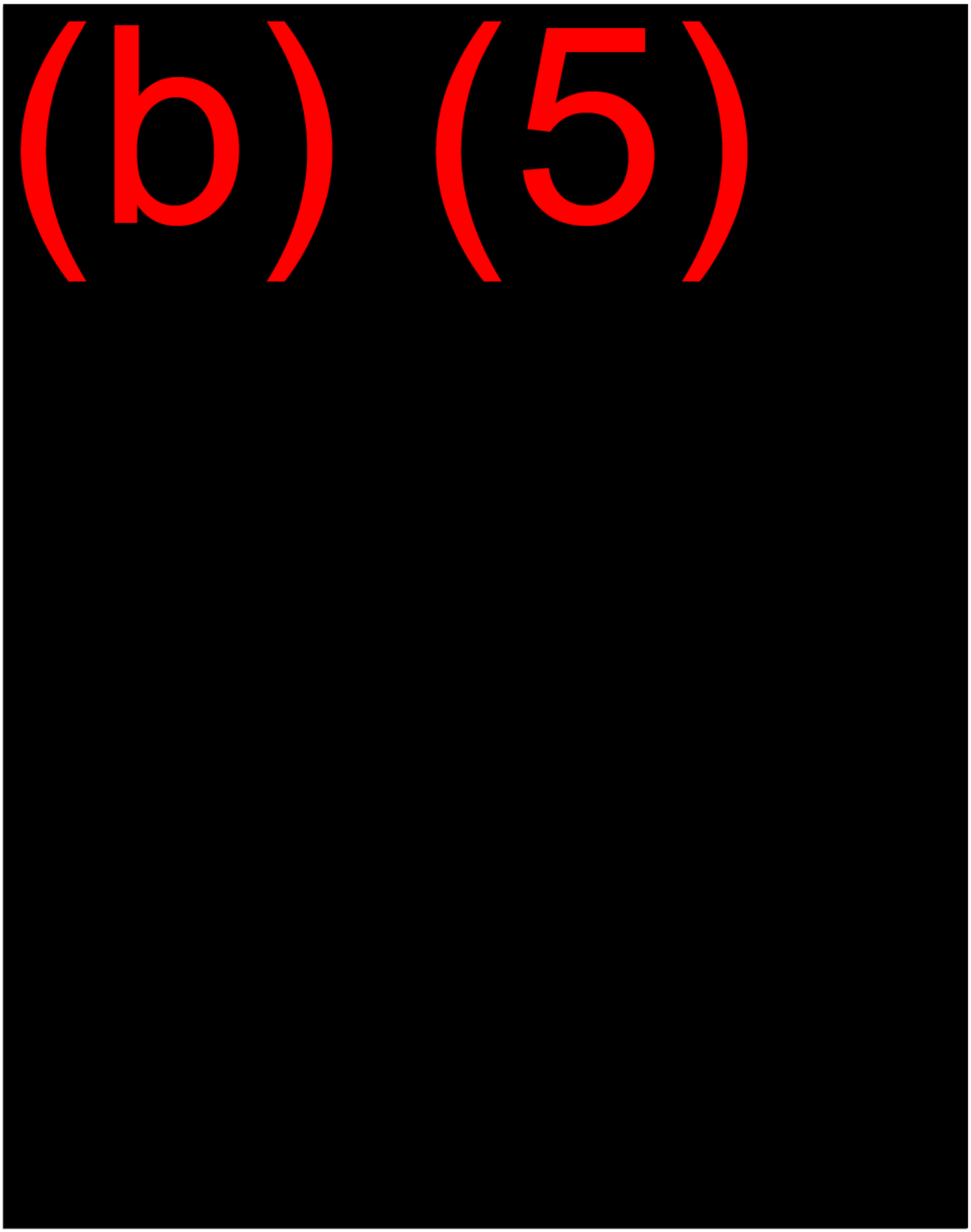
SUBJECT: Open-Source Software Security Initiative (OS3I):
2022 Strategic Recommendations (Phase I) & 2023 Implementation Initiatives (Phase II)

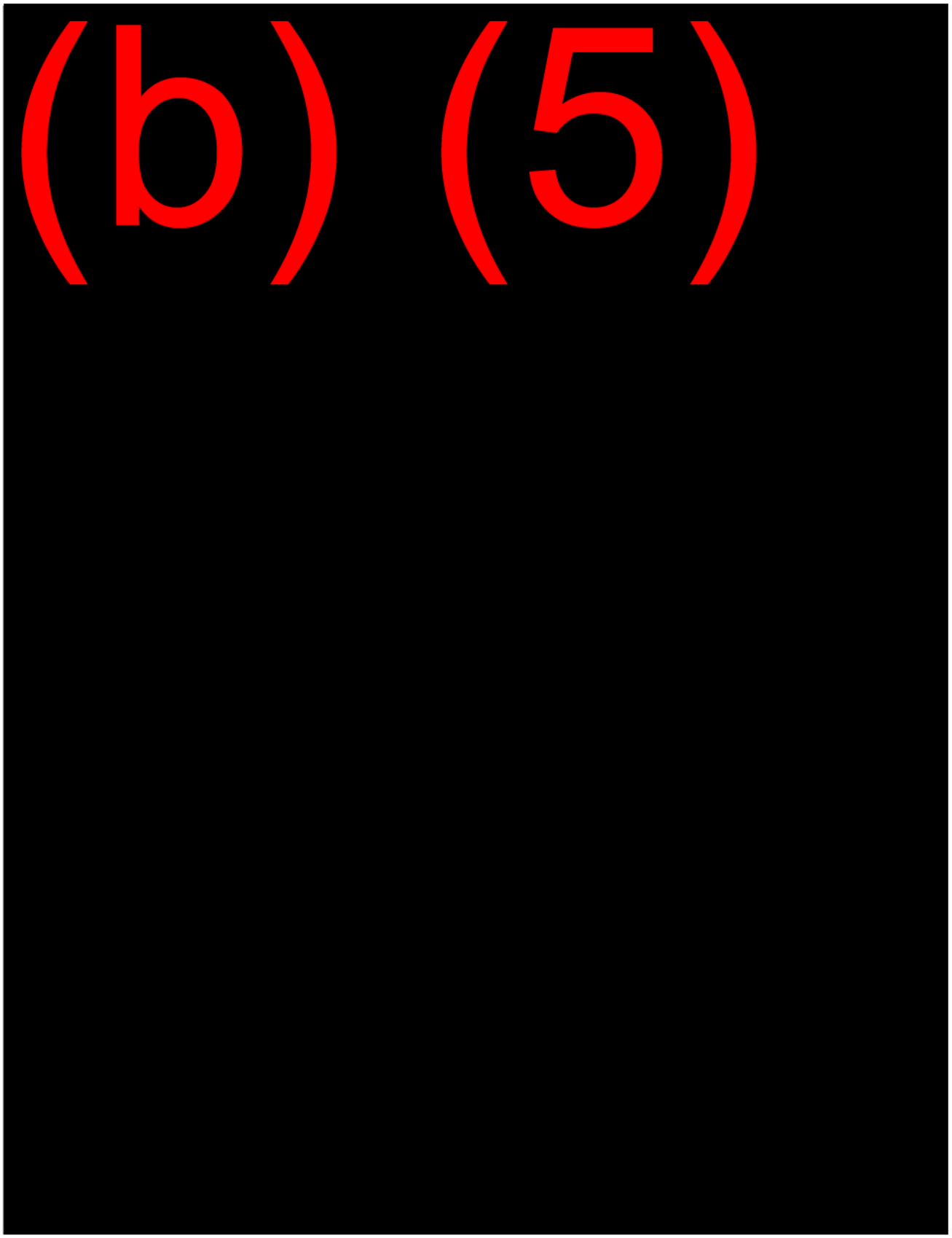



(b) (5)

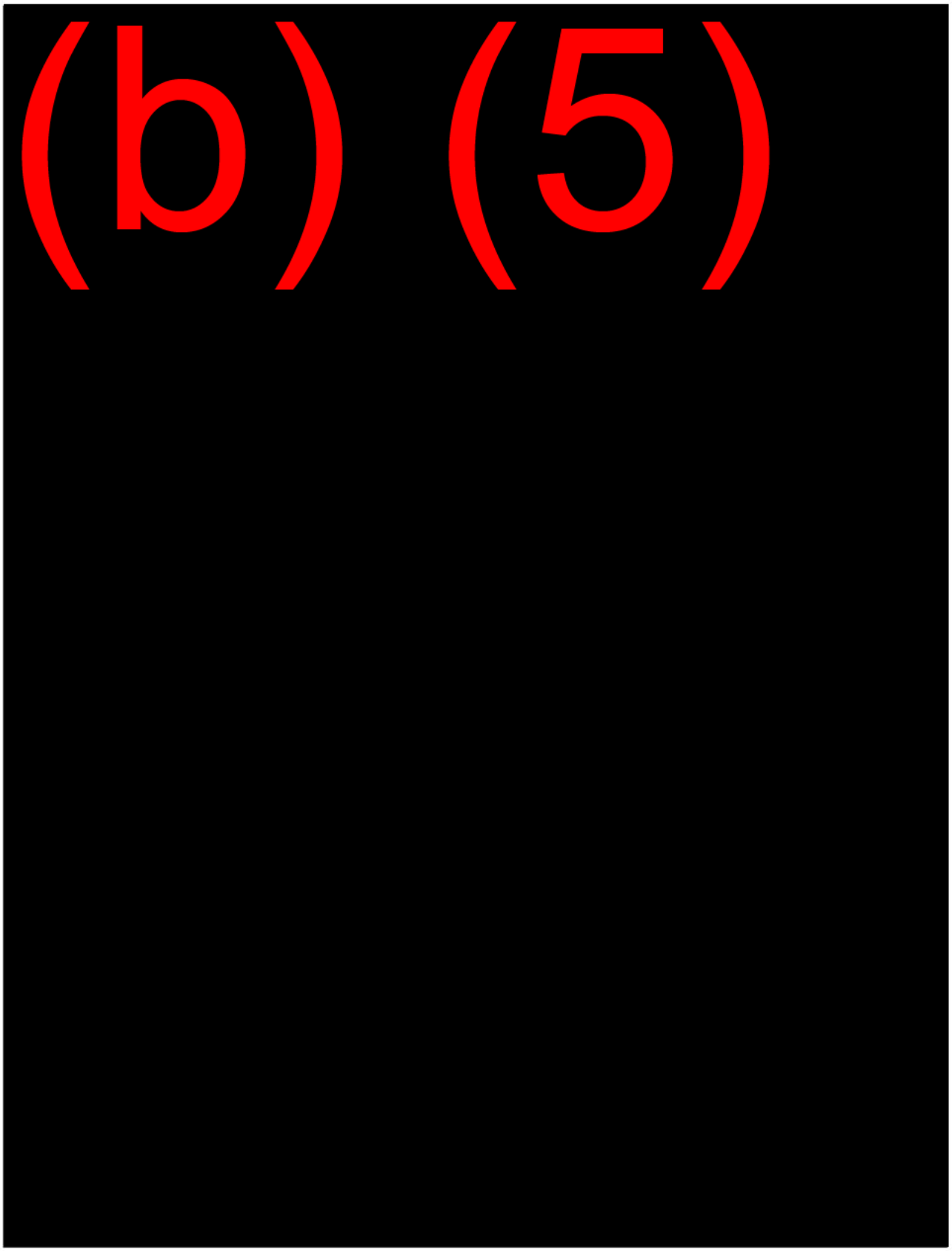

(b) (5)


(b) (5)

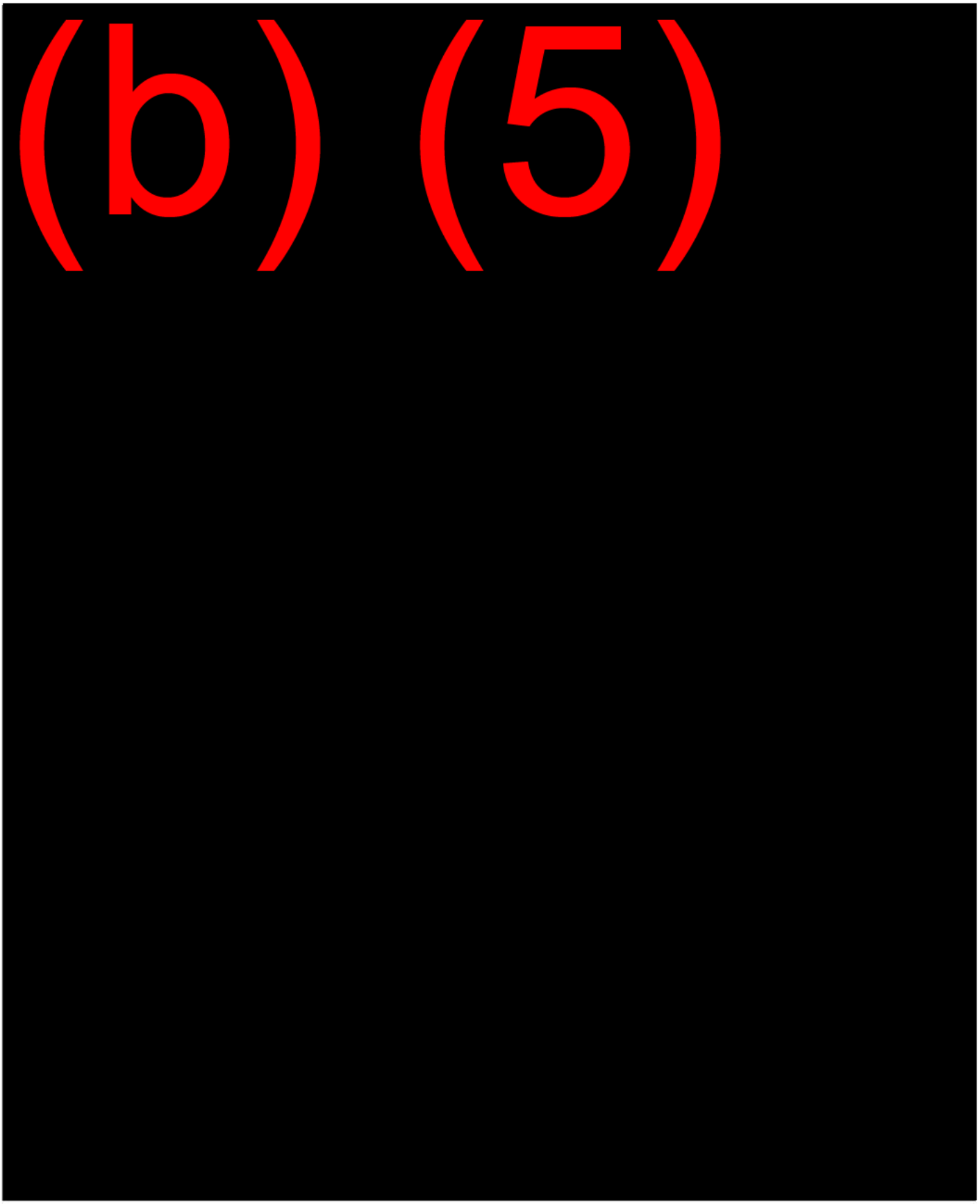

(b) (5)

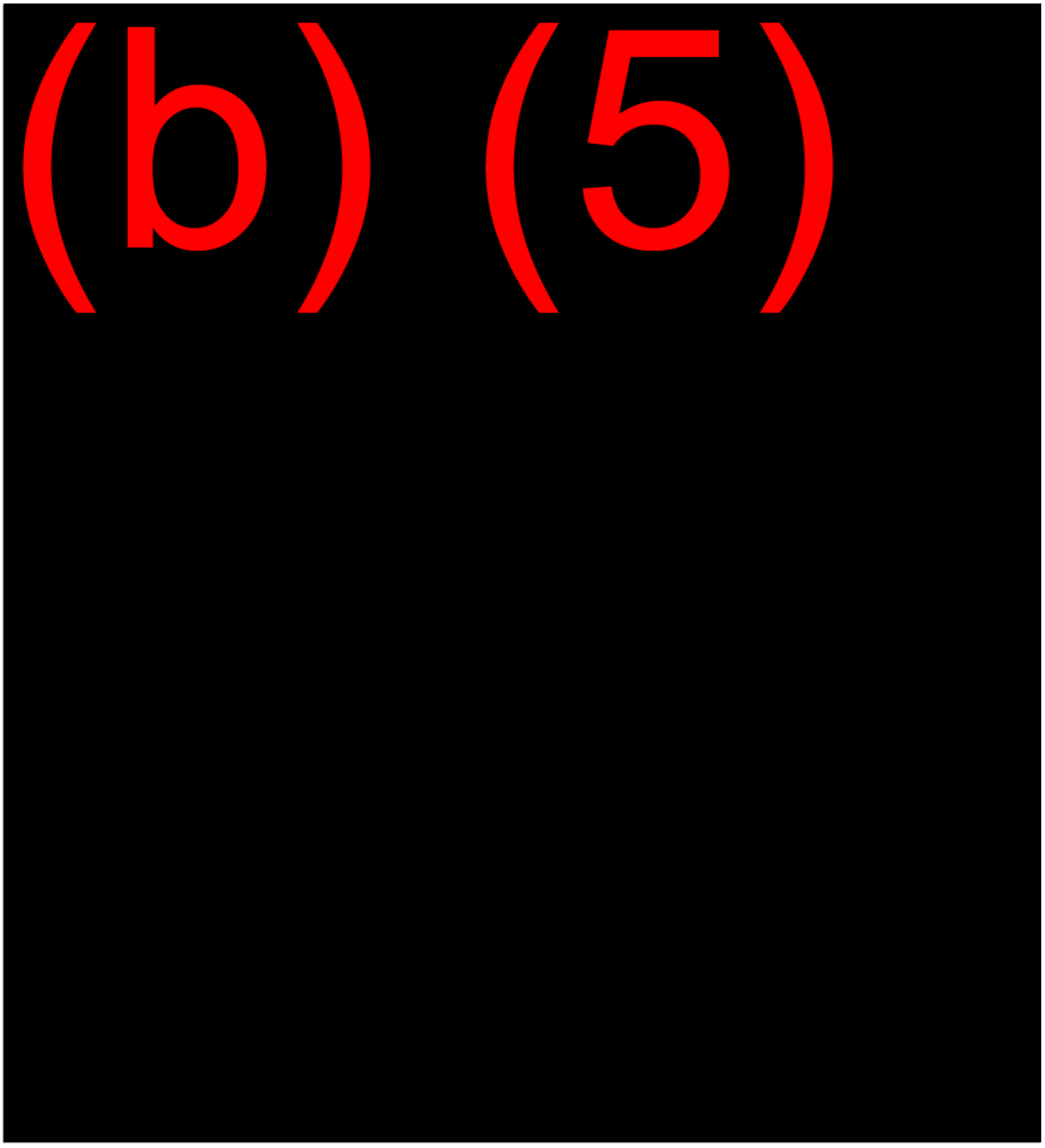


6



7


(b) (5)


(b) (5)

OFFICE OF THE NATIONAL CYBER DIRECTOR DECISION

December 18, 2022

Approval and Coordination Decision

PREPARED BY: Anjana Rajan, (b) (6), (b) (6)

IN COORDINATION WITH: Eric Mill ((b) (6)), Conrad Stosz ((b) (6)), Seeyew Mo ((b) (6)) and other members across ONCD

CLEARED BY: Joyce Corell ((b) (6))

ATTACHMENTS:

Attachment A: OS3I Phase I Strategic Recommendations (FINAL)

Attachment B: Open-Source Software Security Initiative – Executive Summary

Approve:	X	Approve as Amended:	
Reject:		Discuss:	

CAMILLE STEWART
Digitally signed by CAMILLE STEWART
Date: 2022.12.19 10:36:17 -05'00'

CAMILLE STEWART GLOSTER
Deputy National Cyber Director, TES
Office of the National Cyber Director
Executive Office of the President

DATE

As of December 21, at 10:10 am

Principal Deputy National Cyber Director

Daily Schedule

Thursday, December 22, 2022

Time	Topic	Location	Participants	
9:00-9:15 am	ONCD Daily Stand-Up	Virtual	ONCD Staff	
10:00-10:30 am	Bi-weekly Sync w/ Legislative Affairs	Virtual	ONCD Leg Affairs Staff	1
12:30-1:15 pm	Internal Staff Discussion re: International Portfolio	Virtual	ONCD Staff; Decision Memo Enclosed	2
5:00-5:30 pm	Chief of Staff Close-out	EEOB 470 Virtual		
	Briefing Materials: Open-Source Software Security Initiative (OS3I)		From TES Team	3
	Briefing Memo: Hackers at the White House (HATWH)		From Stakeholder Engagement and National Cyber Teams	4
	Briefing Memo: Africa Leaders' Summit Readout		From Phil Stupak and Camille Stewart Gloster	5
	Space Executive Forum Participant List & Agenda		From ONCD Space Team	6

NCD008FY23023_000000231

As of December 21, at 10:00 am

National Cyber Director

Daily Schedule

Thursday, December 22, 2022

Time	Topic	Location	Participants	
9:00-9:15 am	ONCD Daily Stand-Up	Virtual	ONCD Staff	
10:00-10:30 am	Bi-weekly Sync with Legislative Affairs	Virtual	ONCD Leg Affairs Team	1
12:30-1:15 pm	Internal Staff Discussion re: International Portfolio	Virtual	ONCD Staff; Decision Memo Enclosed	2
2:00-4:30 pm	POTUS Holiday Reception	The White House		
5:00-5:30 pm	Chief of Staff Close-out	EEOB 470 Virtual		
	Briefing Materials: Open-Source Software Security Initiative (OS3I)		From TES Team	3
	Briefing Memo: Hackers at the White House (HATWH)		From Stakeholder Engagement and National Cyber Teams	4
	Briefing Memo: Africa Leaders' Summit Readout		From Phil Stupak and Camille Stewart Gloster	5
	Space Executive Forum Participant List & Agenda		From ONCD Space Team	6

Legislative Affairs Bi-Weekly Meeting Agenda

December 22, 2022

10:00 – 10:30 am

Agenda

1. **118th Congress Leadership Update**

2. **Hill Engagement**
   a. Recap - COR Hearing FITARA/ Fed Cyber - December 15th

3. **Legislation**
   a. FY '23 Omnibus Recap
      i. ONCD funded at FY '23 PBR of $21.9 M (~4% increase over IIJA amount)
      ii. New Authorities
         1. TikTok on government devices ban
         2. FDA cyber requirements for medical devices
         3. EBT Card fraud security requirements
   b. 118th Congress ONCD Legislative Priorities

4. **Staff Engagements**
   a. Sen. Manchin & Workforce Team
   b. Sen. Wyden - VEP

5. **Other**
   a. CISA Letter – Force Structure Assessment

FY '23 NDAA - Cyber Provisions of Interest

(b) (5)

FY '23 NDAA - Cyber Provisions of Interest

(b) (5)

FY '23 NDAA - Cyber Provisions of Interest

(b) (5)

Congress of the United States
House of Representatives
Washington, DC 20515–3202

December 16, 2022

The Honorable Alejandro Mayorkas
Secretary of Department of Homeland Security
Washington, DC 20528

Dear Secretary Mayorkas:

We write to convey our concern over the Department's failure to submit the Cybersecurity and Infrastructure Security Agency (CISA) review and force structure assessment as required by law. The legislation requiring this review stemmed from a recommendation from the Cyberspace Solarium Commission[1] to strengthen CISA and received bipartisan support in Congress. We aim to better understand CISA's current efforts to execute its mission, and how the Agency applies its personnel and resources to safeguard the American people from physical and cyber risk to the critical infrastructure that underpins our way of life.

As you know, the Department was mandated to conduct this comprehensive review of the ability of the Agency to fulfill its mission obligations, as well as a completion of a force structure assessment in the National Defense Authorization Act for Fiscal Year 2021 (FY21 NDAA).[2] The law states, "not later than one year after the date of the enactment of this Act, the Secretary of Homeland Security shall submit to Congress a report detailing the results of the assessment". The deadline for submission to Congress was nearly a year ago – January 2022.

CISA's mission is to lead the national effort to understand, manage, and reduce risk to our cyber and physical infrastructure.[3] As the nation's risk advisor and lead federal civilian cybersecurity agency, CISA's work is critically important to our country. Additionally, as the Department's newest component agency, it is both appropriate and fundamental that you provide oversight over the growth, development, and execution of CISA's relatively nascent authority in this space. As the Department overseeing CISA, submitting a baseline understanding of the ability of the Agency to fulfill "the missions of the Agency" and a "comprehensive force structure assessment of CISA" should be one of your highest priorities. These review efforts reflect back on the ability of the Department to effectively manage its components and are crucial to understanding CISA's current ability to conduct its mission effectively, as well as its current and future resource needs.

Please detail the Department's efforts to conduct this review and force assessment and the timeline for transmittal to Congress as soon as possible, but no later than January 3, 2023. Understanding CISA's current ability to fulfill its mission and receiving a comprehensive review of the personnel and resources required to do so are absolutely paramount for Congressional oversight and the security of our Nation.

[1] Cyberspace Solarium Commission Report: https://www.solarium.gov/report
[2] William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021: https://www.congress.gov/116/bills/hr6395/BILLS-116hr6395enr.pdf
[3] About CISA: https://www.cisa.gov/about-cisa

NCD008FY23023_000000234

Sincerely,

John M. Katko
Ranking Member

Andrew R. Garbarino
Member of Congress

Mike Gallagher
Member of Congress

cc:
The Honorable Jennifer Easterly
Director of the Cybersecurity and Infrastructure Security Agency

The Honorable Robert Silvers
Undersecretary for Strategy, Policy, and Plans, DHS

The Honorable Iranga Kahangama
Assistant Secretary for Cyber, Infrastructure, Risk, and Resilience, DHS

The Honorable Christopher Inglis
National Cyber Director

Ms. Anne Neuberger
Deputy National Security Advisor for Cyber and Emerging Technology

Ms. Shalanda Young
Director of the Office of Management and Budget

SEC. 1745. CYBERSECURITY AND INFRASTRUCTURE SECURITY AGENCY REVIEW.

(a) DHS REVIEW.—

(1) IN GENERAL.—In order to strengthen the Cybersecurity and Infrastructure Security Agency of the Department of Homeland Security, the Secretary of Homeland Security shall conduct a comprehensive review of the ability of the Agency to fulfill—

(A) the missions of the Agency; and

(B) the recommendations detailed in the report issued by the Cyberspace Solarium Commission under section 1652(k) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232).

Assessments.

(2) ELEMENTS OF REVIEW.—The review conducted under paragraph (1) shall include the following elements:

(A) An assessment of how additional budget resources could be used by the Cybersecurity and Infrastructure Security Agency for projects and programs that—

(i) support the national risk management mission;

(ii) support public and private-sector cybersecurity;

(iii) promote public-private integration; and

(iv) provide situational awareness of cybersecurity threats.

(B) A comprehensive force structure assessment of the Cybersecurity and Infrastructure Security Agency, including—

Determination.

(i) a determination of the appropriate size and composition of personnel to accomplish the mission of the Agency, as well as the recommendations detailed in the report issued by the Cyberspace Solarium Commission under section 1652(k) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Public Law 115–232);

(ii) an assessment of whether existing personnel are appropriately matched to the prioritization of threats in the cyber domain and risks in critical infrastructure;

(iii) an assessment of whether the Agency has the appropriate personnel and resources to—

(I) perform risk assessments, threat hunting, incident response to support both private and public cybersecurity;

(II) carry out the responsibilities of the Agency related to the security of Federal information and Federal information systems; and

(III) carry out the critical infrastructure responsibilities of the Agency, including national risk management; and

(iv) an assessment of whether current structure, personnel, and resources of regional field offices are sufficient in fulfilling agency responsibilities and mission requirements.

Deadline. Recommendations.

(3) SUBMISSION OF REVIEW.—Not later than one year after the date of the enactment of this Act, the Secretary of Homeland Security shall submit to Congress a report detailing the results of the assessments required under paragraph (1), including recommendations to address any identified gaps.

(b) GENERAL SERVICES ADMINISTRATION REVIEW.—

(1) IN GENERAL.—The Administrator of the General Services Administration shall—

(A) conduct a review of current Cybersecurity and Infrastructure Security Agency facilities and assess the suitability of such facilities to fully support current and projected mission requirements nationally and regionally; and

(B) make recommendations regarding resources needed to procure or build a new facility or augment existing facilities to ensure sufficient size and accommodations to fully support current and projected mission requirements, including the integration of personnel from the private sector and other departments and agencies. Recommendations.

(2) SUBMISSION OF REVIEW.—Not later than one year after the date of the enactment of this Act, the Administrator of the General Services Administration shall submit the review required under subsection (a) to— Deadline.

(A) the President;

(B) the Secretary of Homeland Security; and

(C) the Committee on Homeland Security and Governmental Affairs, the Committee on Appropriations, and the Committee on Environment and Public Work of the Senate, and the Committee on Homeland Security, the Committee on Appropriations, the Committee on Oversight and Reform, and the Committee on Transportation and Infrastructure of the House of Representatives.

SEC. 1746. REPORT ON ENABLING UNITED STATES CYBER COMMAND RESOURCE ALLOCATION.

(a) IN GENERAL.—Not later than April 15, 2021, the Secretary of Defense shall submit to the congressional defense committees a report detailing the actions the Secretary will undertake to implement clauses (ii) and (iii) of section 167b(d)(2) of title 10, United States Code, including actions to ensure that the Commander of United States Cyber Command has enhanced authority, direction, and control of the Cyber Operations Forces and the equipment budget that enables Cyber Operations Forces' operations and readiness, beginning with the budget to be submitted to Congress by the President under section 1105(a) of title 31, United States Code, for fiscal year 2024, and the budget justification materials for the Department of Defense to be submitted to Congress in support of such budget.

(b) ELEMENTS.—The report required by subsection (a) shall address the following items: Procedures.

(1) The procedures by which the Principal Cyber Advisor (PCA) will exercise authority, direction, and oversight over the Commander of United States Cyber Command, with respect to Cyber Operations Forces-peculiar equipment and resources.

(2) The procedures by which the Commander of United States Cyber Command will—

(A) prepare and submit to the Secretary program recommendations and budget proposals for Cyber Operations Forces and for other forces assigned to United States Cyber Command; and Recommendations. Budget proposals.

(B) exercise authority, direction, and control over the expenditure of funds for—

Chang, Caroline EOP/NCD

From: Rajan, Anjana EOP/NCD
Sent: Tuesday, December 20, 2022 4:15 PM
To: Chang, Caroline EOP/NCD
Cc: Leiserson, Nick J. EOP/NCD; Williams, Lauryn D. EOP/NCD; Simms, Tanya L. EOP/NCD; Krejsa, Harry H. EOP/NCD; Scott, Brian C. EOP/NCD; Corell, Joyce E. EOP/NCD; Berlin, Jen S. EOP/NCD
Subject: [for NCD/PDNCD] Space Forum - Proposed Attendee List and Agenda
Attachments: Space Executive Forum - Participant List & Agenda.docx

Hi Caroline,

Linked and attached is our due out for Chris and Kemba on the proposed attendees and agenda for the Space Forum. I've included a paragraph to include with this deliverable. Please let us know if you need anything from us on this!

Warmly,
Anjana

--
Dear Chris and Kemba,

Pursuant to our meeting last Tuesday, we have put together a draft attendee list and draft agenda. We look forward to hearing your comments. Our next step will be to begin socializing this with our interagency partners. We look forward to briefing you in the new year about our SPD-5 implementation plan and our progress on the Space Forum.

Thanks,
Space Team

--
Anjana Rajan
Assistant National Cyber Director, Technology Security
Office of the National Cyber Director
(b) (6) | (b) (6)

Space Executive Forum
Proposed Participant List & Agenda

Government		
At the table	• Chris Inglis • Kemba Walden • Kamala Harris • Bill Nelson • Chirag Parikh • Lloyd Austin/Kathleen Hicks • Avril Haines/Dr. Stacey Dixon • Gina Raimondo/Don Graves* • Alejandro Mayorkas/Jen Easterly • Anne Neuberger • Cara Abercrombie • Rob Joyce	• National Cyber Director • Principal Deputy National Cyber Director • VPOTUS, Chair, National Space Council • Administrator, NASA • Executive Secretary, National Space Council • Secretary/Deputy Secretary of Defense • Director for National Intelligence/PDDNI • Secretary/Deputy Secretary of Commerce • Secretary of DHS/CISA Director • NSC Deputy National Security Advisor for Cyber and Emerging Technology • Deputy Assistant to POTUS and defense/arms control policy coordinator • NSA
Observers		• Office of Space Commerce • USAF • USD(P)/ASD(Space Policy) • Made in America Office • FCC • NIST
Industry		
At the table	• Gwynne Shotwell* • Mark Dankberg* • Rob Meyerson* • Tory Bruno* • Roy Azevedo* • Kathy Warden* • Alex Karp* • Andy Jassy* • Tim Ellis * • David Ulevitch* • Trae Stephens*	• SpaceX, President & COO • ViaSat, CEO • Blue Origin, President • ULA, CEO • Raytheon Intel & Space, President • Northrup Grumman, President & CEO • Palantir, CEO • AWS, President & CEO • Relativity Space, CEO • a16z, GP American Dynamism • Founders Fund, GP
Observers		• Space ISAC • ACM/IEEE • JPL

* Threat Briefing Participant

Draft Agenda

- Intelligence Threat Briefing (1'50")
- Transition (0'10")
- Opening Remarks – USG (0'20")
- Discussion – all (1'05")
    - SPD-5 Implementation Plan Pillars
- Closing remarks/summary – NCD/VPOTUS (0'05")
- [Press gaggle – VPOTUS/NCD (0'15")]
- [Reception (1'15")]

Total Time: 3'30" (sans press gaggle and reception.) Can be hosted in a morning or afternoon time slot.

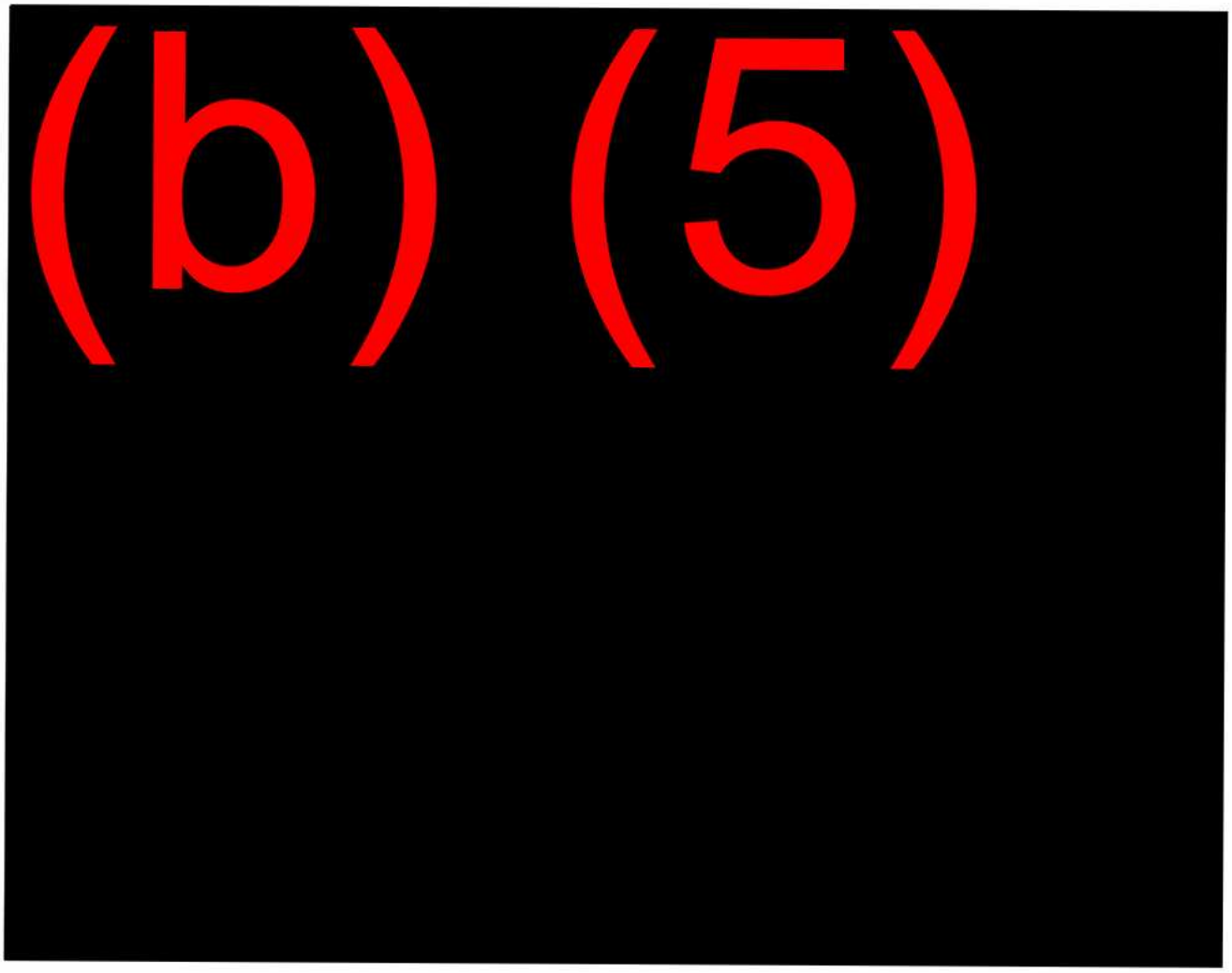
BRIEFING MEMORANDUM

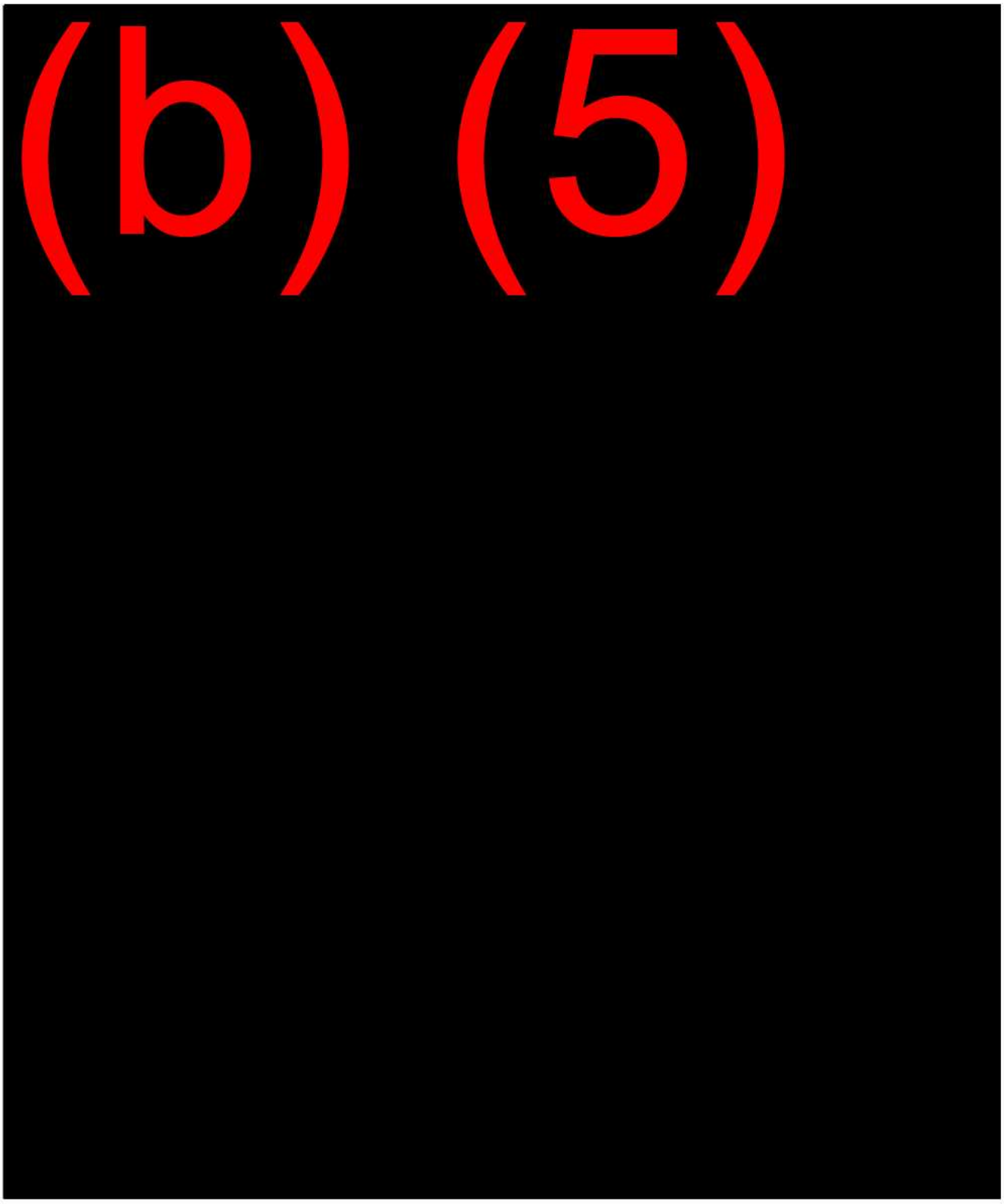
December 20, 2022

MEMORANDUM FOR THE NATIONAL CYBER DIRECTOR AND THE PRINCIPAL DEPUTY NATIONAL CYBER DIRECTOR

FROM: Jen Berlin, Assistant National Cyber Director Stakeholder Engagement
Caitlin Clark, Assistant National Cyber Director Planning
Nick Leiserson, Assistant National Cyber Director Cyber Policy
Michael Morris, Assistant National Cyber Director Public Affairs
Jonathan Ring, Director, National Cybersecurity

SUBJECT: Hackers at The White House (HATWH) Concept




(b) (5)

December 20, 2022

OFFICE OF THE NATIONAL CYBER DIRECTOR
EXECUTIVE SECRETARY

Tracking

NUMBER:	**121922-002**
VERSION:	**v (1.2)**
DATE:	**20 Dec 2022**

Coordination and Approval

PREPARED BY:	Jen Berlin, Assistant National Cyber Director for Stakeholder Engagement Caitlin Clark, Assistant National Cyber Director Planning Nick Leiserson, Assistant National Cyber Director Cyber Policy Michael Morris, Assistant National Cyber Director Public Affairs Jonathan Ring, Director, National Cybersecurity
CLEARED BY:	Caroline Chang, Senior Advisor, ExecSec Joe Scheidler, Special Advisor, ExecSec

Documents

ATTACHMENTS: N/A

BRIEFING MEMORANDUM

December 20, 2022

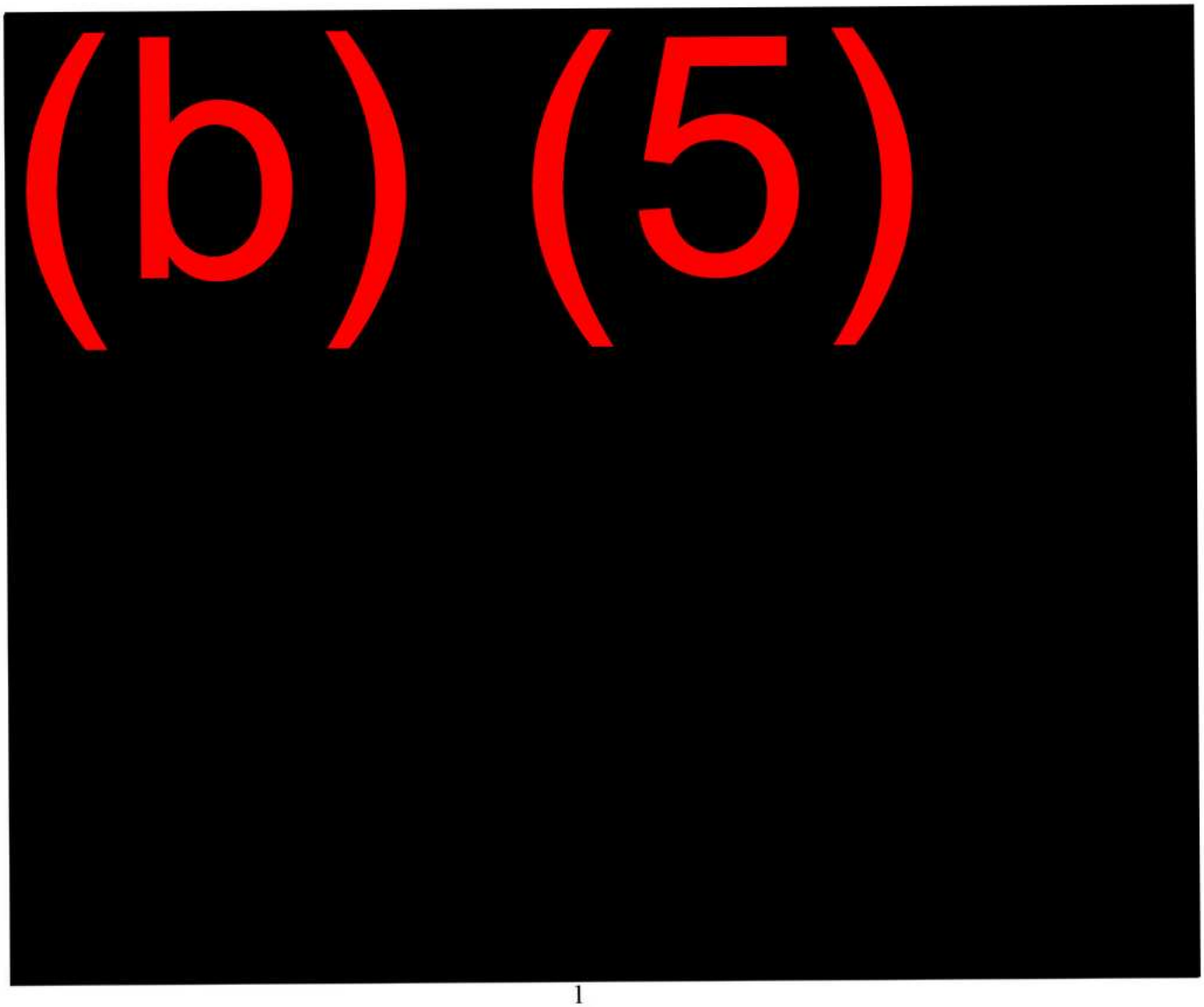
MEMORANDUM FOR THE NATIONAL CYBER DIRECTOR AND PRINCIPAL DEPUTY NATIONAL CYBER DIRECTOR

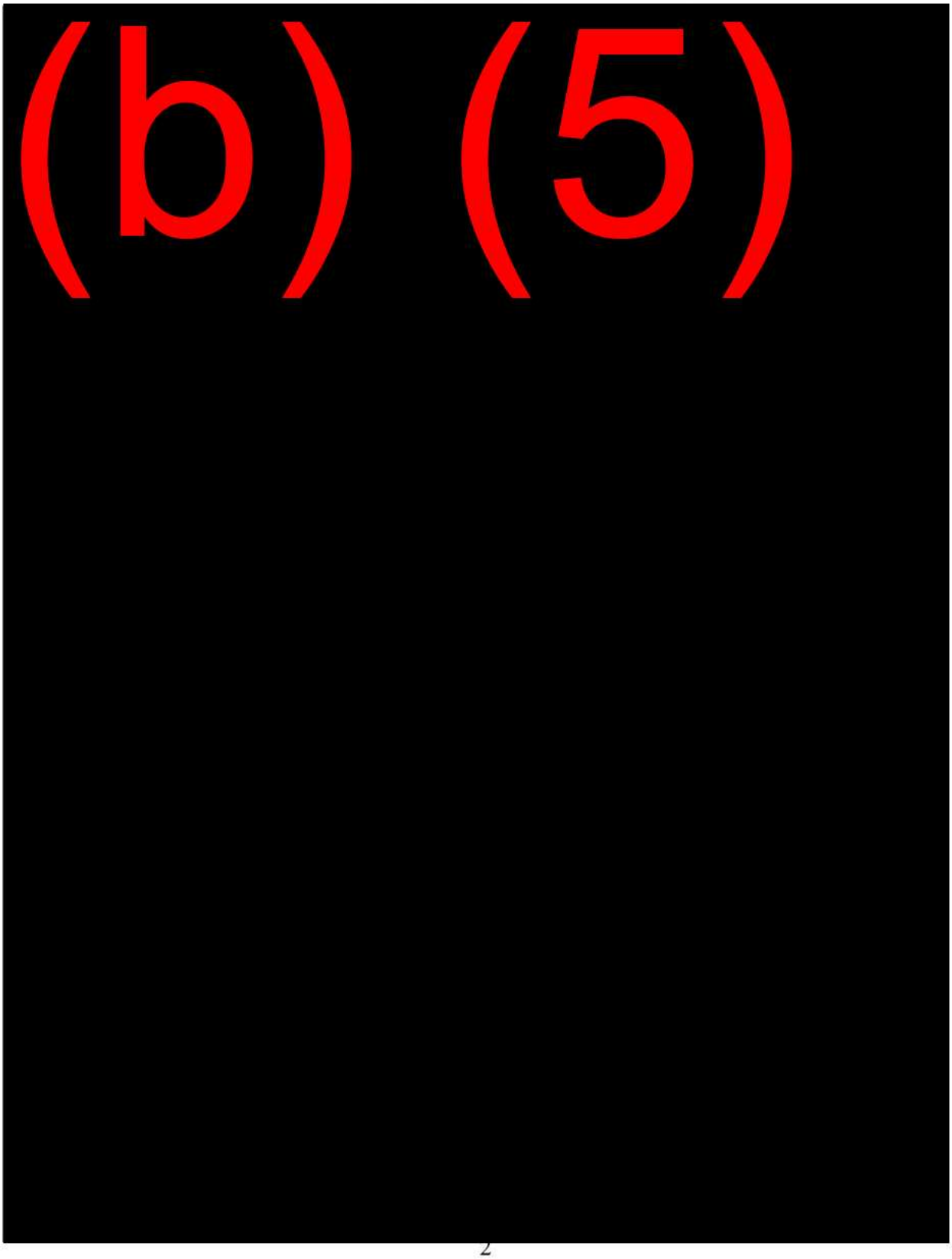
FROM: Philip Stupak, Director, Federal Cybersecurity

THROUGH: Camille Stewart Gloster, Deputy National Cyber Director, Technology & Ecosystem

SUBJECT: Africa Leaders' Summit Readout – Cybersecurity Meeting

---




(b) (5)

Summary

December 20, 2022

OFFICE OF THE NATIONAL CYBER DIRECTOR
EXECUTIVE SECRETARY

Tracking

NUMBER:	**N/A**
VERSION:	**v(1.2)**
DATE:	**15 December 2022**

Coordination and Approval

PREPARED BY:	Philip Stupak, (b) (6) , (b) (6)
CLEARED BY:	Camille Stewart Gloster, DNCD Technology and Ecosystem Caroline Chang, Senior Advisor, ExecSec Joe Scheidler, Special Advisor, ExecSec

Documents

ATTACHMENTS: Attendees

ATTACHMENT A: Attendees

International Government

- Michael Folane, Program Lead, PAYCR, Burkina Faso
- Wend-Panga Herman Ouedraogo, Technical Director, PAYCR, Burkina Faso
- Sekou Ouedraogo, Deputy Director of Intelligence, Burkina Faso
- Josue Toe, Administrative and Financial Head of Intelligence, Burkina Faso
- Mahamady Belem, Public Debt Director, Burkina Faso
- Colonel Pierre Ouedraogo, Head of Cybersecurity Center of Excellence, Burkina Faso
- Marc Andre Loko, CEO of ASIN, Benin
- Mahafous Osseni, Deputy Director, Port of Cotonou, Benin
- Ouanilo Medegan, Director of Security, Benin
- Henri Eyebe Ayissi, Minister of Domains, Cadaster and Land Affairs, Cameroon
- Lejeune Mbella, Minister of Foreign Affairs, Cameroon
- Alamine Ousmane Mey, Minister of Finance, Cameroon
- Mbarga Antagana, Minister of Commerce, Cameroon
- Sassou Nguesso, Minister of International Cooperation, Republic of the Congo
- Ibrahima Guimba, Head of Cybersecurity Agency, Niger
- Ahmat Jidoud, Minister of Finance, Niger

U.S. Government

- Camille Stewart Gloster, DNCD Technology & Ecosystem Security, ONCD, EOP
- Phil Stupak, Director of Federal Cybersecurity, ONCD, EOP
- Anne-Marie Mills, Senior Policy Advisor, CDP, Department of State
- Vanna Lavery, Cybersecurity & Digital Policy Office, CDP, Department of State
- Maurice Kent, Digital APEX Program Lead, USAID, Department of State
- Danica Starks, Head of Multilateral Development Bank Group, Department of Commerce
- Amy Mahn, International Policy Specialist, NIST, Department of Commerce
- Andrew Rollo, Vice President, China and Transformational Exports, Export-Import Bank

Industry

- Dr. Thierry Wandji, President and CEO, Cybastion
- Leila Ndiaye, SVP for Business Strategy & Government Affairs, Cybastion
- Andre Biyong, SVP of Operations, Cybastion
- Emana Shunnom, Senior Manager of Policy, Cybastion
- Alex Botting, Senior Director, Venable
- Tanvi Chopra, Cybersecurity Analyst, Venable
- Ari Schwartz, Coordinator, Cybersecurity Coalition

- Idrissa Nassa, Chairman, Coris Bank
- Stephane Tapsoba, Deputy Director for Burkina, Coris Bank

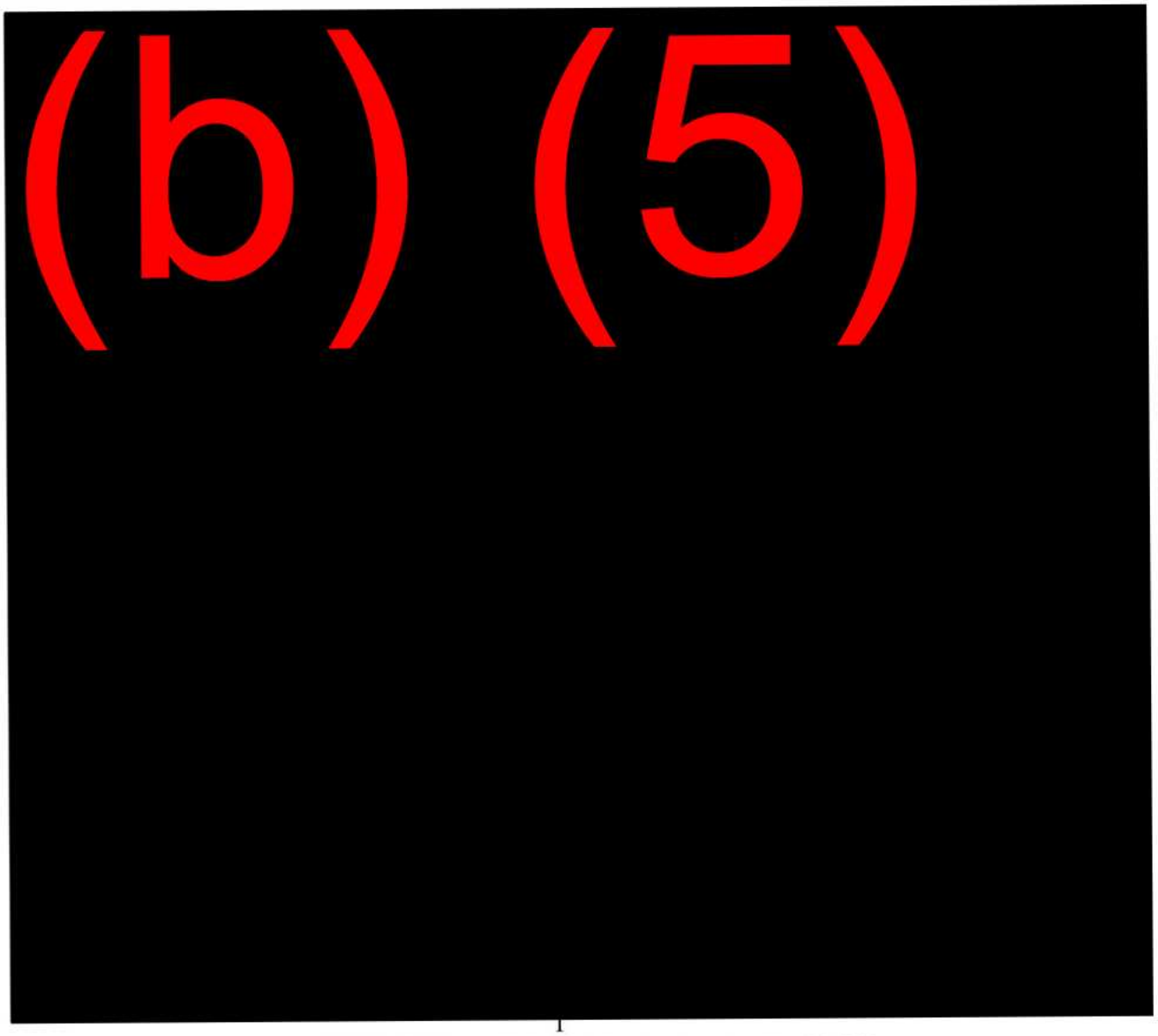
December 15, 2022

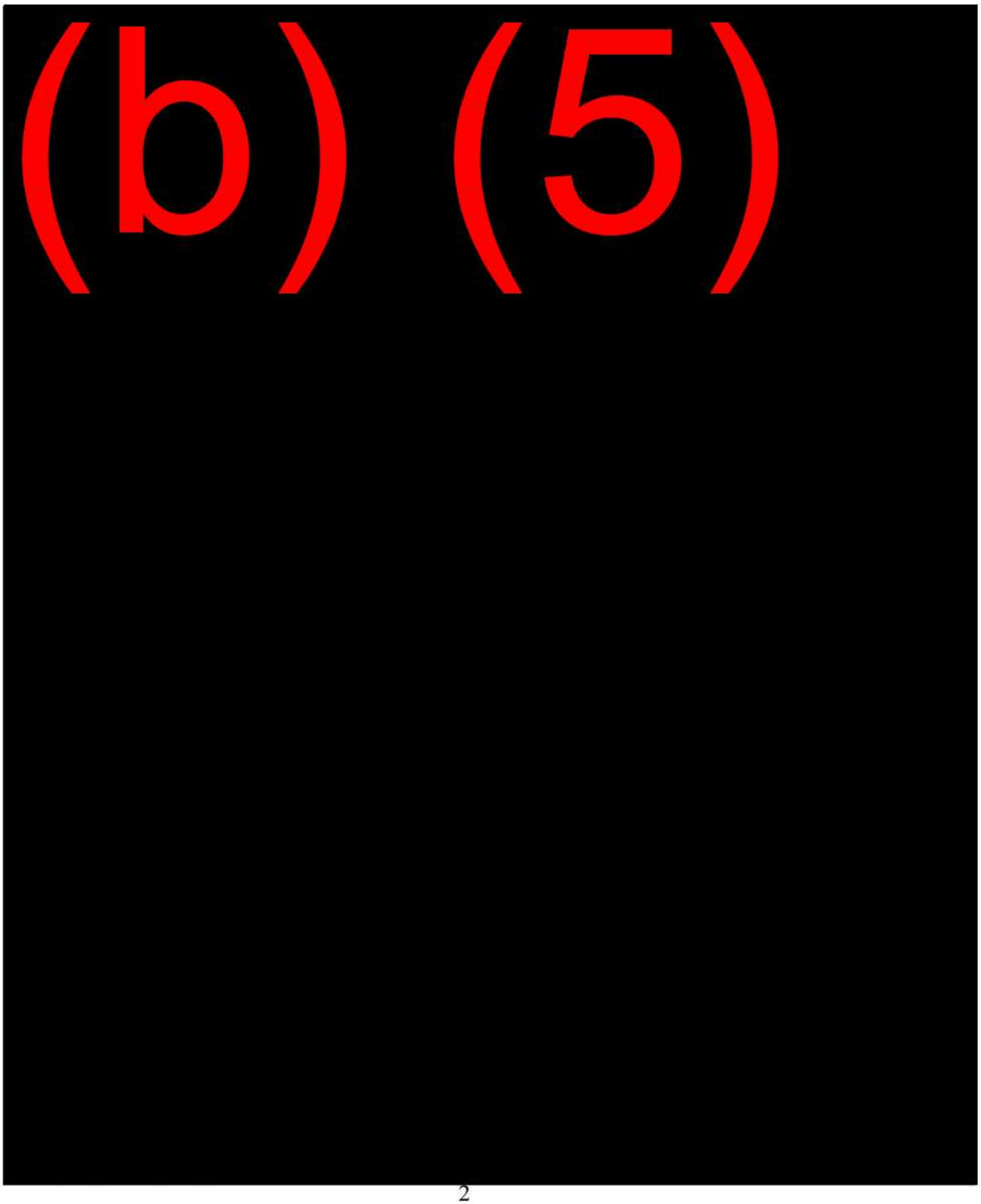
DECISION MEMORANDUM FOR THE NATIONAL CYBER DIRECTOR AND PRINCIPAL DEPUTY NATIONAL CYBER DIRECTOR

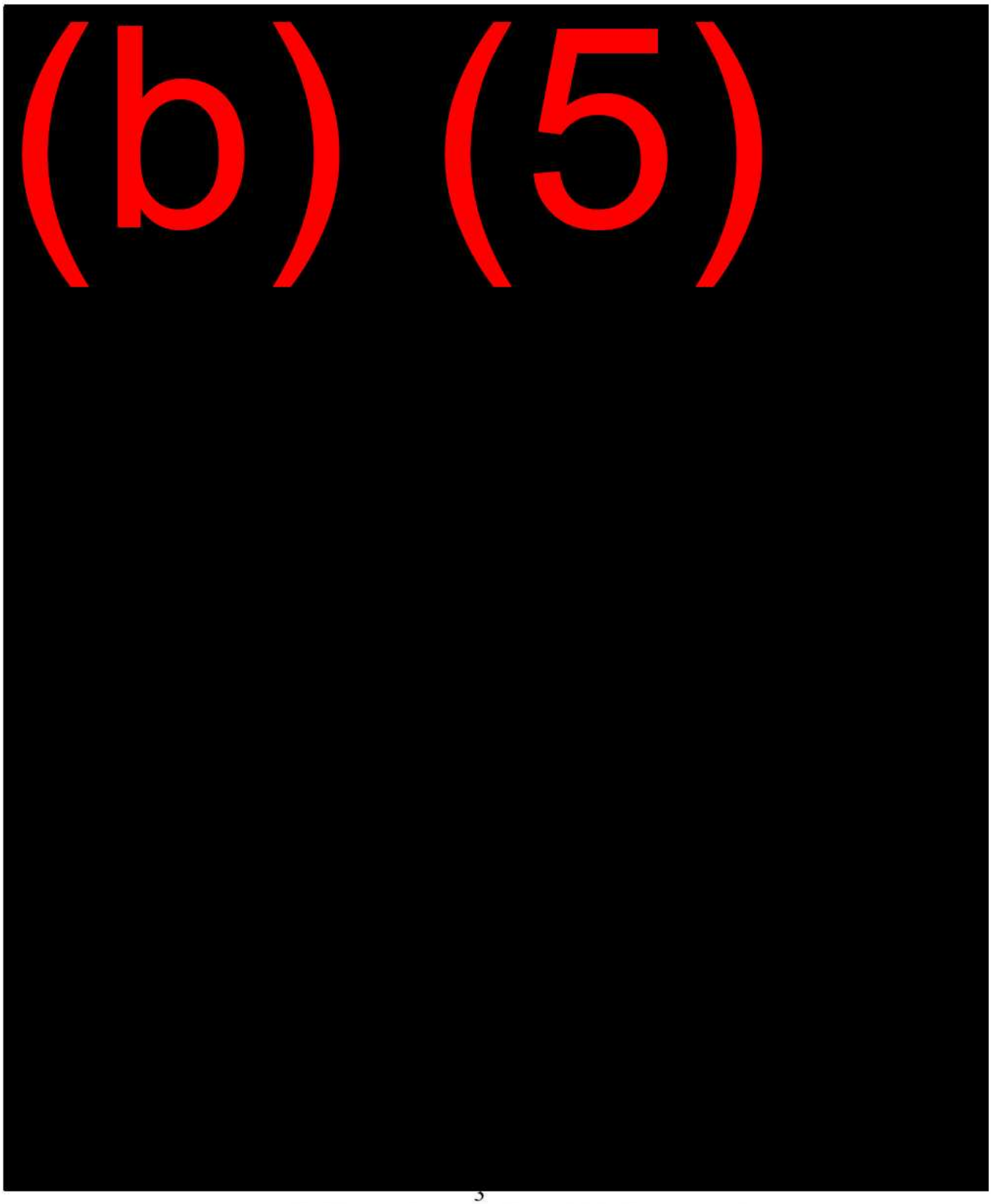
FROM: Harry Krejsa, ANCD Strategy and Research
Hannah Suh, Special Advisor

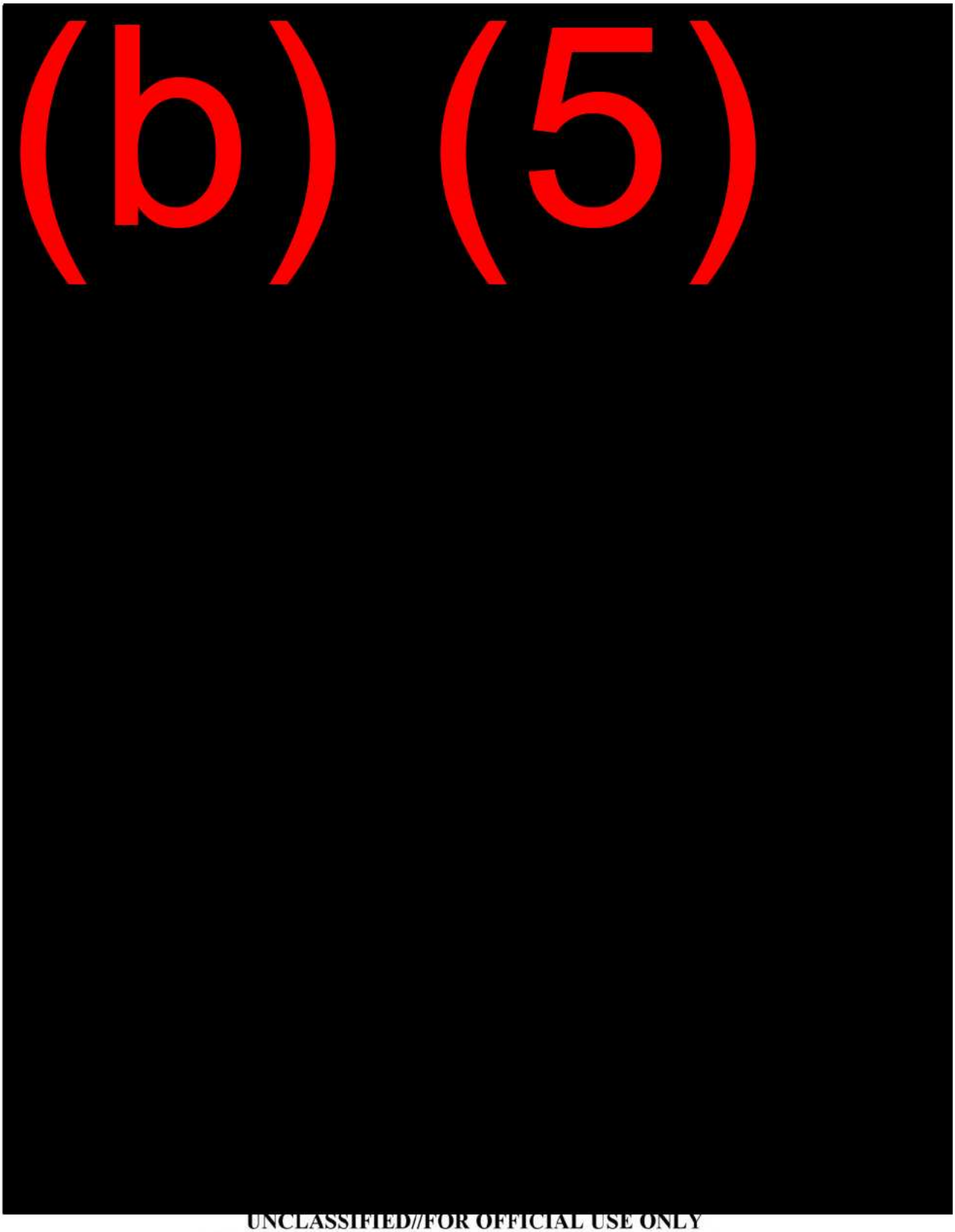
THROUGH: Michael Hochman, Chief of Staff

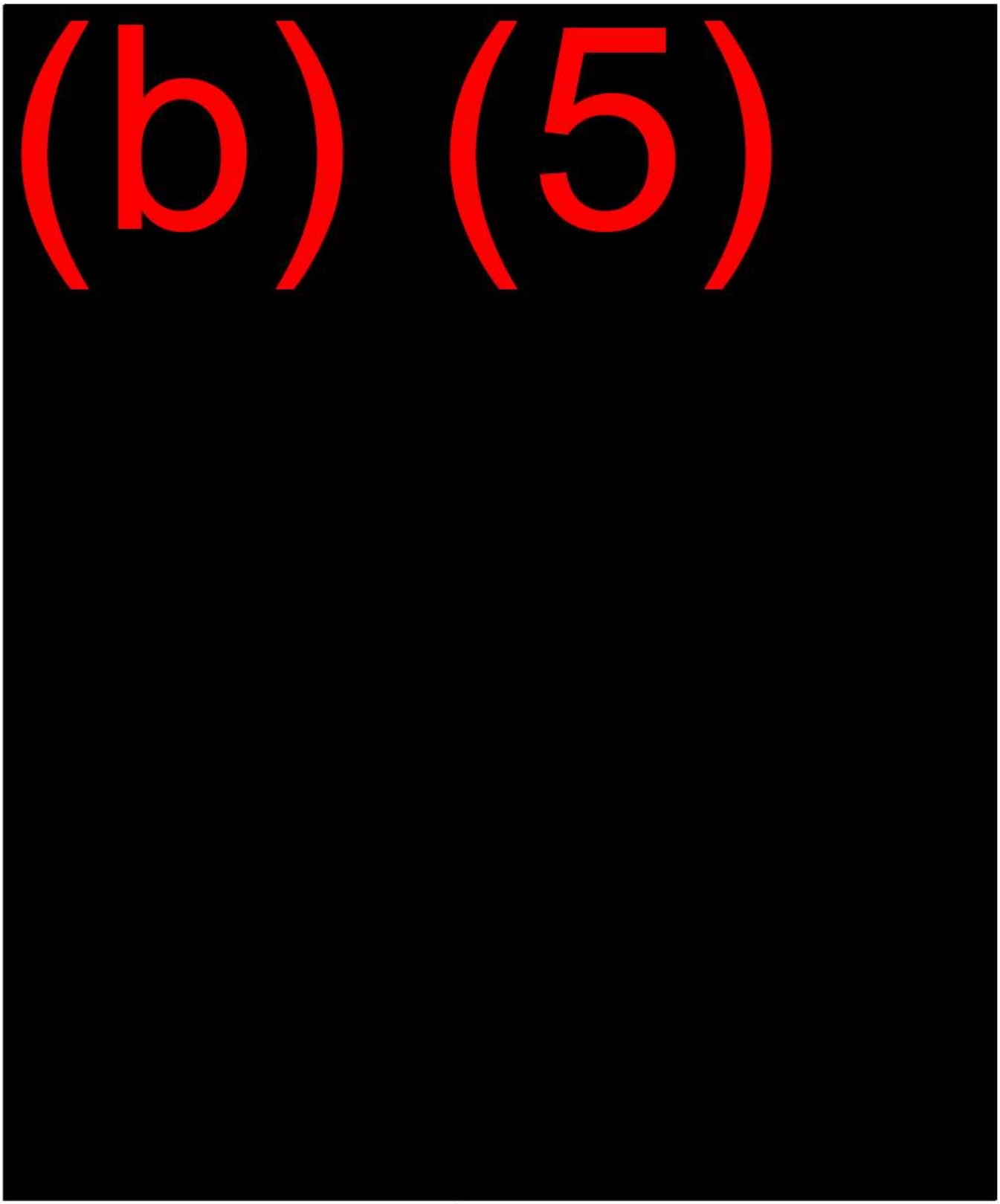
SUBJECT: ONCD International Engagements

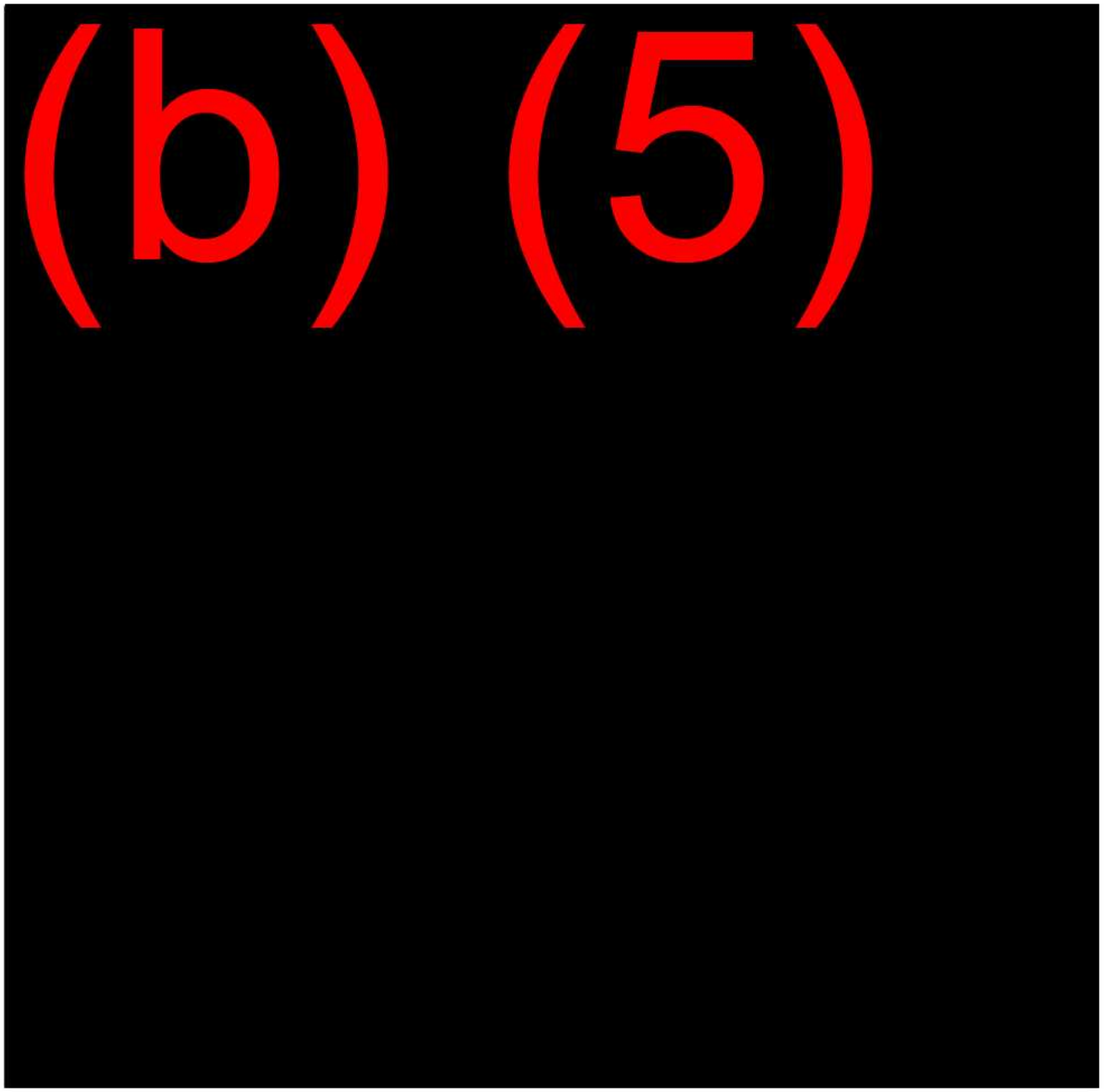



(b) (5)


(b) (5)


(b) (5)


(b) (5)


(b) (5)

December 15, 2022

OFFICE OF THE NATIONAL CYBER DIRECTOR DECISION

Approval and Coordination

1. **Scope and Impact.** ONCD and the interagency

2. **Coordinated and Approved.** This proposal was developed with all line divisions and has received clearance from the Deputies.

   This decision memo was cleared by:

   Caroline Chang, Senior Advisor, ExecSec
   Michael Hochman, Chief of Staff

3. **Consulted.** N/A

Decision

Approve:	_____	Approve as Amended:	_____
Reject:	_____	Discuss:	_____

_____ _____
JOHN C. INGLIS DATE
National Cyber Director
Office of the National Cyber Director
Executive Office of the President

Attachment A: Selections of Relevant Statutory Authorities

6 USC 1500 (*National Cyber Director Act*)

…

(c) Duties of the National Cyber Director

(1) In general

Subject to the authority, direction, and control of the President, the Director shall-

(A) serve as the principal advisor to the President on cybersecurity policy and strategy relating to the coordination of-

(i) information security and data protection;

(ii) programs and policies intended to improve the cybersecurity posture of the United States;

(iii) efforts to understand and deter malicious cyber activity;

(iv) efforts to increase the security of information and communications technology and services and to promote national supply chain risk management and vendor security;

(v) diplomatic and other efforts to develop norms and international consensus around responsible state behavior in cyberspace;

(vi) awareness and adoption of emerging technology that may enhance, augment, or degrade the cybersecurity posture of the United States; and

(vii) such other cybersecurity matters as the President considers appropriate;…

(2) Delegation of authority

(A) The Director may-

(i) serve as the senior representative to any organization that the President may establish for the purpose of providing the President advice on cybersecurity;

(ii) subject to subparagraph (B), be included as a participant in preparations for and, when appropriate, the execution of domestic and international summits and other international meetings at which cybersecurity is a major topic;

(iii) delegate any of the Director's functions, powers, and duties to such officers and employees of the Office as the Director considers appropriate; and

(iv) authorize such successive re-delegations of such functions, powers, and duties to such officers and employees of the Office as the Director considers appropriate.

(B) In acting under subparagraph (A)(ii) in the case of a summit or a meeting with an international partner, the Director shall act in coordination with the Secretary of State…

FY23 NDAA Section 9502 (*Cyber Diplomacy Act*)

(a) In General.--Section 1 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2651a), is amended--

(1) by redesignating subsections (i) and (j) as subsection (j) and (k), respectively;

(2) by redesignating subsection (h) (as added by section 361(a)(1) of division FF of the Consolidated Appropriations Act, 2021 (Public Law 116-260)) as subsection (l); and

(3) by inserting after subsection (h) the following:

``(i) Bureau of Cyberspace and Digital Policy.--

``(1) In general.--There is established, within the Department of State, the Bureau of Cyberspace and Digital Policy (referred to in this subsection as the `Bureau'). The head of the Bureau shall have the rank and status of ambassador and shall be appointed by the President, by and with the advice and consent of the Senate.

``(2) Duties.--
``(A) In general.--The head of the Bureau shall perform such duties and exercise such powers as the Secretary of State shall prescribe, including implementing the diplomatic and foreign policy aspects of the policy described in section 9501(a) of the Department of State Authorization Act of 2022.
``(B) Duties described.--The principal duties and responsibilities of the head of the Bureau shall, in furtherance of the diplomatic and foreign policy mission of the Department of State, be--
``(i) to serve as the principal cyberspace policy official within the senior management of the Department of State and as the advisor to the Secretary of State for cyberspace and digital issues;
``(ii) to lead, coordinate, and execute, in coordination with other relevant bureaus and offices, the Department of State's diplomatic cyberspace, and cybersecurity efforts (including efforts related to data privacy, data flows, internet governance, information and communications technology standards, and other issues that the Secretary has assigned to the Bureau);
``(iii) to coordinate with relevant Federal agencies and the Office of the National Cyber Director to ensure the diplomatic and foreign policy aspects of the cyber strategy in section 9501 of the Department of State Authorization Act of 2022 and any other subsequent strategy are implemented in a manner that is fully integrated with the broader strategy;
``(iv) to promote an open, interoperable, reliable, and secure information and communications technology infrastructure globally;
``(v) to represent the Secretary of State in interagency efforts to develop and advance Federal Government cyber priorities and activities, including efforts to develop credible national capabilities, strategies, and policies to deter and counter cyber adversaries, and carry out the purposes of title V of the Department of State Authorization Act of 2022;
``(vi) to engage civil society, the private sector, academia, and other public and private entities on relevant international cyberspace and international information and communications technology issues;
``(vii) to support United States Government efforts to uphold and further develop global deterrence frameworks for malicious cyber activity;
``(viii) to advise the Secretary of State and coordinate with foreign governments regarding responses to national security-level cyber incidents, including coordination on diplomatic response efforts to support allies and partners threatened by malicious cyber activity, in conjunction with members of the North Atlantic Treaty Organization and like-minded countries;
``(ix) to promote the building of foreign capacity relating to cyberspace policy priorities;
``(x) to promote an open, interoperable, reliable, and secure information and communications technology infrastructure globally and an open, interoperable, secure, and reliable internet governed by the multi-stakeholder model;
``(xi) to promote an international environment for technology investments and the internet that benefits

United States economic and national security interests;

``(xii) to promote cross-border flow of data and combat international initiatives seeking to impose unreasonable requirements on United States businesses;

``(xiii) to promote international policies to protect the integrity of United States and international telecommunications infrastructure from foreign-based threats, including cyber-enabled threats;

``(xiv) to lead engagement, in coordination with relevant executive branch agencies, with foreign governments on relevant international cyberspace, cybersecurity, cybercrime, and digital economy issues described in title V of the Department of State Authorization Act of 2022;

``(xv) to promote international policies, in coordination with the Department of Commerce, to secure radio frequency spectrum in the best interests of the United States;

``(xvi) to promote and protect the exercise of human rights, including freedom of speech and religion, through the internet;

``(xvii) to build capacity of United States diplomatic officials to engage on cyberspace issues;

``(xviii) to encourage the development and adoption by foreign countries of internationally recognized standards, policies, and best practices;

``(xix) to support efforts by the Global Engagement Center to counter cyber-enabled information operations against the United States or its allies and partners; and

``(xx) to conduct such other matters as the Secretary of State may assign…

``(6) Coordination.--In implementing the duties prescribed under paragraph (2), the head of the Bureau shall coordinate with the heads of other Federal agencies, including the Department of Commerce, the Department of Homeland Security, and other Federal agencies that the National Cyber Director deems appropriate…

[*Briefer's note on FY23 NDAA – The language referenced above passed the House on December 8, 2022, as part of the final NDAA negotiated between the House and Senate. The Senate is expected to take it up on or before December 16, 2022, after which it will go to the President for his signature. ONCD staff have very high confidence that this language will become law before the end of the calendar year.*]

RE: FY '23 Omnibus Cyber Tracker

From: "Arnold, Alison B. EOP/OMB" (b) (6)
To: "Phaup, Elliott R. EOP/NCD" (b) (6), "Herckis, Mitch D. EOP/OMB" <(b) (6)>, "Polk, Nick J. EOP/OMB" <(b) (6)>, "Lam, Kristine V. EOP/OMB" <(b) (6)>, "Jang, Yejin EOP/OMB" <(b) (6)>, "Nsor, Janice M. EOP/OMB" <(b) (6)>, "Mill, Eric R. EOP/OMB" <(b) (6)>
Cc: ONCD Legislative Affairs <(b) (6)>, "Barr, Lisa N. EOP/NCD" (b) (6), "Stupak, Philip M. EOP/NCD" <(b) (6)>, "Gibson, Carolyn T. EOP/OMB" <(b) (6)>
Date: Tue, 10 Jan 2023 09:40:15 -0500
Attachments: External Tracker - 117th - FY 23 Omnibus.pdf (1.52 MB)

Thanks, Elliott. Very helpful to cross reference with our quick list!

From: Phaup, Elliott R. EOP/NCD (b) (6)
Sent: Monday, January 9, 2023 4:42 PM
To: Herckis, Mitch D. EOP/OMB <(b) (6)>; Arnold, Alison B. EOP/OMB <(b) (6)>; Polk, Nick J. EOP/OMB <(b) (6)>; Lam, Kristine V. EOP/OMB <(b) (6)>; Jang, Yejin EOP/OMB <(b) (6)>; Nsor, Janice M. EOP/OMB (b) (6)>; Mill, Eric R. EOP/OMB (b) (6)>
Cc: ONCD Legislative Affairs <(b) (6)>; Barr, Lisa N. EOP/NCD <(b) (6)>; Stupak, Philip M. EOP/NCD <(b) (6)>
Subject: RE: FY '23 Omnibus Cyber Tracker

Classic. Attaching the tracker this time. 😊

Best,

ERP

From: Phaup, Elliott R. EOP/NCD
Sent: Monday, January 9, 2023 4:40 PM
To: Herckis, Mitch D. EOP/OMB <(b) (6)>; Arnold, Alison B. EOP/OMB <(b) (6)>; Polk, Nick J. EOP/OMB <(b) (6)>; Lam, Kristine V. EOP/OMB (b) (6)>; Jang, Yejin EOP/OMB <(b) (6)>; Nsor, Janice M. EOP/OMB <(b) (6)>; Mill, Eric R. EOP/OMB <(b) (6)>
Cc: ONCD Legislative Affairs <(b) (6)>; Barr, Lisa N. EOP/NCD <(b) (6)>; Stupak, Philip M. EOP/NCD (b) (6)>
Subject: FY '23 Omnibus Cyber Tracker

OMB Colleagues:

Sharing a tracker we put together on cyber auths and a sampling of reporting requirements from the FY '23 omni. It doesn't include funding levels and isn't exhaustive, but we pulled out some interesting items, some of which you were likely already tracking. We've grouped it by category so you can get a sense of some of the themes Congress is interested in. Noteworthy trends identified include: Cloud Security; Critical Infrastructure & Small Business; Cyber Workforce & Education; Federal Cybersecurity Coordination & Improvement.

We thought you might find this helpful, feel free to share with other OMB colleagues, as needed.

Best,

Elliott Phaup
Special Advisor for Legislative Affairs
Office of the National Cyber Director
Executive Office of the President
(b) (6) (U)
(b) (6) (JWICS)
Mobile: (b) (6)

FY '23 Omnibus Cyber Authorities & Reports

*Unless otherwise stated, the JES for the FY 23 Omnibus (P.L. 117-328) also incorporates reporting requirements from House Appropriations Committee Reports. This tracker provides a large sampling of cyber reports and is not an exhaustive list.

(b) (5)

FY '23 Omnibus Cyber Authorities & Reports

*Unless otherwise stated, the JES for the FY 23 Omnibus (P.L. 117-328) also incorporates reporting requirements from House Appropriations Committee Reports. This tracker provides a large sampling of cyber reports and is not an exhaustive list.

(b) (5)

FY '23 Omnibus Cyber Authorities & Reports

*Unless otherwise stated, the JES for the FY 23 Omnibus (P.L. 117-328) also incorporates reporting requirements from House Appropriations Committee Reports. This tracker provides a large sampling of cyber reports and is not an exhaustive list.

(b) (5)

FY '23 Omnibus Cyber Authorities & Reports

*Unless otherwise stated, the JES for the FY 23 Omnibus (P.L. 117-328) also incorporates reporting requirements from House Appropriations Committee Reports. This tracker provides a large sampling of cyber reports and is not an exhaustive list.

(b) (5)

FY '23 Omnibus Cyber Authorities & Reports

*Unless otherwise stated, the JES for the FY 23 Omnibus (P.L. 117-328) also incorporates reporting requirements from House Appropriations Committee Reports. This tracker provides a large sampling of cyber reports and is not an exhaustive list.

(b) (5)

FY '23 Omnibus Cyber Authorities & Reports

*Unless otherwise stated, the JES for the FY 23 Omnibus (P.L. 117-328) also incorporates reporting requirements from House Appropriations Committee Reports. This tracker provides a large sampling of cyber reports and is not an exhaustive list.

(b) (6)

FY '23 Omnibus Cyber Authorities & Reports

*Unless otherwise stated, the JES for the FY 23 Omnibus (P.L. 117-328) also incorporates reporting requirements from House Appropriations Committee Reports. This tracker provides a large sampling of cyber reports and is not an exhaustive list.

(b) (5)

FY '23 Omnibus Cyber Authorities & Reports

*Unless otherwise stated, the JES for the FY 23 Omnibus (P.L. 117-328) also incorporates reporting requirements from House Appropriations Committee Reports. This tracker provides a large sampling of cyber reports and is not an exhaustive list.

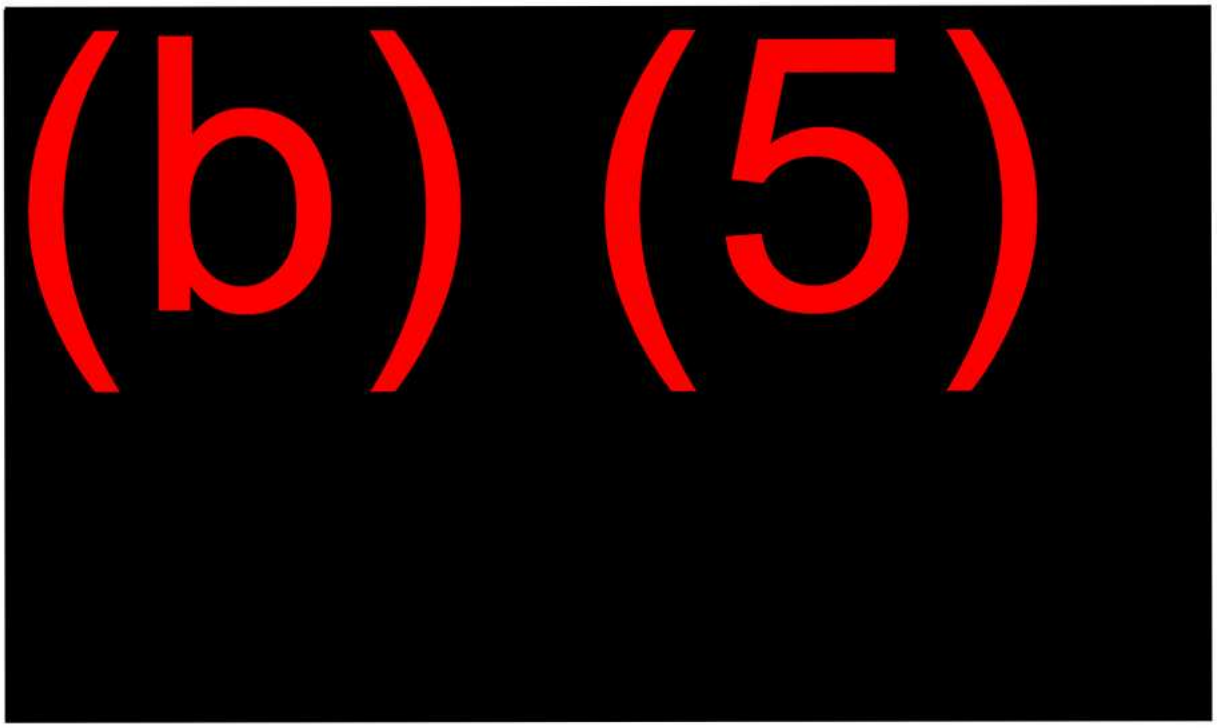
(b) (5)

RE: TPs on Privacy and KYC EO

From: "Klein, Julie G. EOP/NCD" (b) (6)
To: "Halpert, James J. EOP/NCD" (b) (6) >, "Vina, Stephen R. EOP/NCD" <(b) (6) >, "Laskai, Lorand C. EOP/NCD" (b) (6) >, "Lee, Michaela A. EOP/NCD" (b) (6) , "Scott, Brian C. EOP/NCD" <(b) (6) >, "Cummings, John E. EOP/NCD" <(b) (6) >
Cc: "Phaup, Elliott R. EOP/NCD" (b) (6) , "Tiao, Paul M. EOP/NCD" <(b) (6) >
Date: Mon, 06 Feb 2023 10:56:27 -0500

(b) (5)

Any edits to this privacy leg background info:



From: Halpert, James J. EOP/NCD <(b) (6) >
Sent: Monday, February 6, 2023 9:28 AM
To: Vina, Stephen R. EOP/NCD <(b) (6) >; Laskai, Lorand C. EOP/NCD (b) (6) >; Klein, Julie G. EOP/NCD <(b) (6) >; Lee, Michaela A. EOP/NCD (b) (6) >; Scott, Brian C. EOP/NCD (b) (6) >; Cummings, John E. EOP/NCD <(b) (6) >
Cc: Phaup, Elliott R. EOP/NCD <(b) (6) >; Tiao, Paul M. EOP/NCD

<(b) (6)>
Subject: RE: TPs on Privacy and KYC EO

(b) (5)

If you could share the op-ed, I'd be happy to review. Thanks -- Jim

From: Vina, Stephen R. EOP/NCD <(b) (6)>
Sent: Monday, February 6, 2023 9:20 AM
To: Laskai, Lorand C. EOP/NCD <(b) (6)>; Klein, Julie G. EOP/NCD <(b) (6)>; Lee, Michaela A. EOP/NCD <(b) (6)>; Scott, Brian C. EOP/NCD <(b) (6)>; Cummings, John E. EOP/NCD <(b) (6)>
Cc: Phaup, Elliott R. EOP/NCD (b) (6); Tiao, Paul M. EOP/NCD <(b) (6)>; Halpert, James J. EOP/NCD (b) (6)
Subject: RE: TPs on Privacy and KYC EO

+OGC

I do not believe ONCD has taken a position on a private right of action. (b) (5)

(b) (5)

From: Laskai, Lorand C. EOP/NCD (b) (6)>
Sent: Monday, February 6, 2023 8:45 AM
To: Klein, Julie G. EOP/NCD (b) (6)>; Lee, Michaela A. EOP/NCD <(b) (6)>; Scott, Brian C. EOP/NCD (b) (6)>; Cummings, John E. EOP/NCD <(b) (6)>
Cc: Vina, Stephen R. EOP/NCD <(b) (6)>; Phaup, Elliott R. EOP/NCD <(b) (6)>
Subject: RE: TPs on Privacy and KYC EO

Nothing new. It's in the NCS + Biden's WSJ op-ed.

I'll leave the private right of action to Leg Affairs.

From: Klein, Julie G. EOP/NCD <(b) (6)
Sent: Monday, February 6, 2023 8:36 AM
To: Laskai, Lorand C. EOP/NCD (b) (6) >; Lee, Michaela A. EOP/NCD (b) (6) >; Scott, Brian C. EOP/NCD <(b) (6) ; Cummings, John E. EOP/NCD <(b) (6) >
Cc: Vina, Stephen R. EOP/NCD (b) (6) >; Phaup, Elliott R. EOP/NCD <(b) (6) >; Klein, Julie G. EOP/NCD <(b) (6) >
Subject: RE: TPs on Privacy and KYC EO

+ Leg

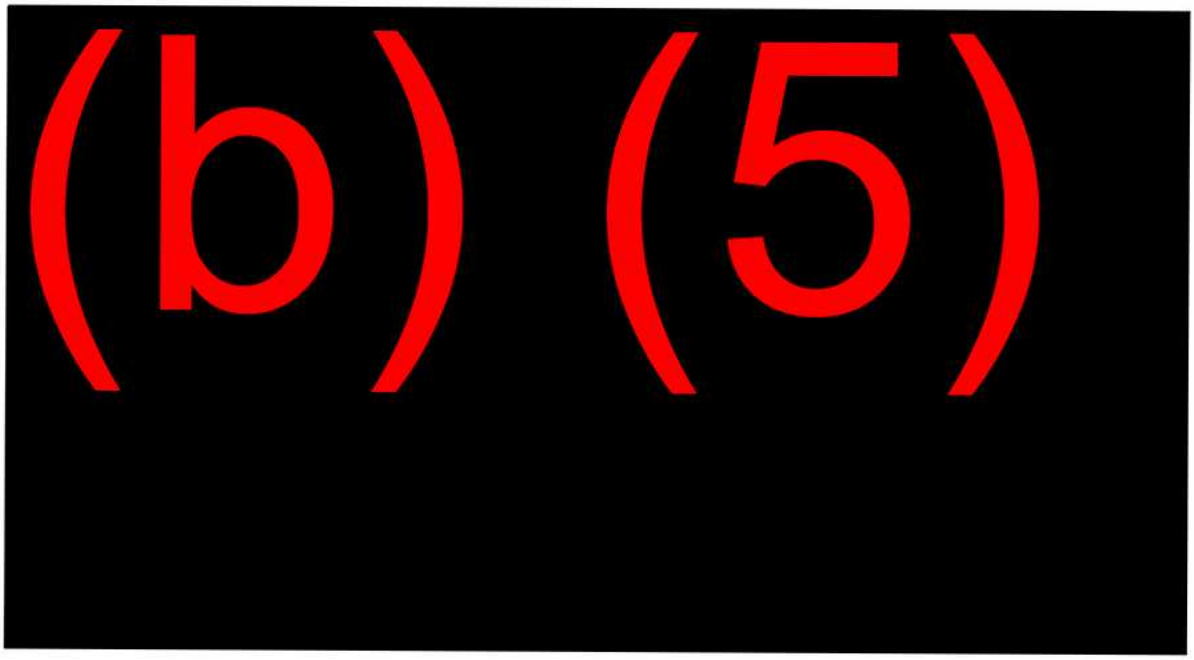
Lorand,

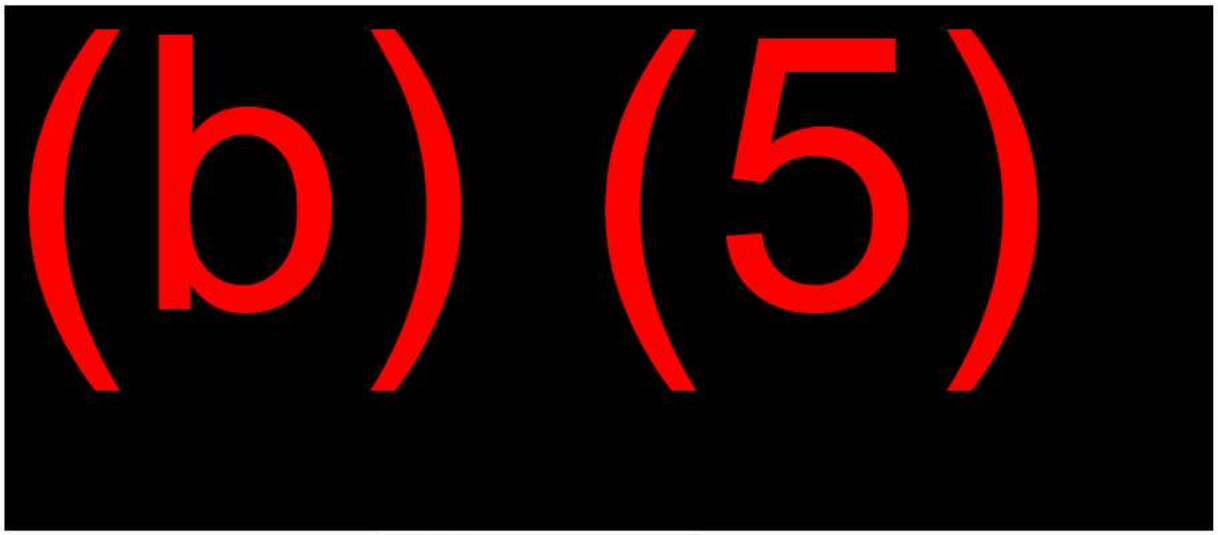
Has this privacy position been said out loud before or would Kemba be the first ONCD person opining on it?

Also, the two big sticking points in legislation are preemption and private right of action. Seems clear the federal government supports preemption. Does ONCD have a position on private right of action? (*likely a Leg Affairs question*)

From: Laskai, Lorand C. EOP/NCD <(b) (6) >
Sent: Friday, February 3, 2023 11:55 PM
To: Klein, Julie G. EOP/NCD <(b) (6) >; Lee, Michaela A. EOP/NCD <(b) (6) >; Scott, Brian C. EOP/NCD <(b) (6) >; Cummings, John E. EOP/NCD <(b) (6) >
Subject: RE: TPs on Privacy and KYC EO

Julie, apologies for the delay. Below are the TPs. If @Scott, Brian C. EOP/NCD has any thoughts on the TPs for KYC, he will follow up.





From: Klein, Julie G. EOP/NCD (b) (6)
Sent: Thursday, February 2, 2023 10:20 AM
To: Laskai, Lorand C. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD (b) (6); Scott, Brian C. EOP/NCD (b) (6); Cummings, John E. EOP/NCD (b) (6)
Subject: RE: TPs on Privacy and KYC EO

Ok... I haven't actually compiled any of this yet... but will share when I do

Also, graph = paragraph/TPs (I'm apparently a 13 year old who abbreviates everything)

From: Laskai, Lorand C. EOP/NCD (b) (6)
Sent: Thursday, February 2, 2023 10:08 AM
To: Klein, Julie G. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD (b) (6); Scott, Brian C. EOP/NCD (b) (6); Cummings, John E. EOP/NCD (b) (6)
Subject: RE: TPs on Privacy and KYC EO

I can take a look at the NCS TPs and make sure they're right.

@Scott, Brian C. EOP/NCD I'll pass some text on KYC by you.

From: Klein, Julie G. EOP/NCD (b) (6)
Sent: Thursday, February 2, 2023 10:06 AM
To: Laskai, Lorand C. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD (b) (6); Scott, Brian C. EOP/NCD (b) (6); Cummings, John E. EOP/NCD (b) (6)
Subject: RE: TPs on Privacy and KYC EO

THANK YOU!

Since we have a brain trust here, these are the topics I'm planning – let me know if I'm missing anything. (I have most of these TPs already)

From: Laskai, Lorand C. EOP/NCD <(b) (6)>
Sent: Thursday, February 2, 2023 10:01 AM
To: Klein, Julie G. EOP/NCD <(b) (6)>; Lee, Michaela A. EOP/NCD <(b) (6)>; Scott, Brian C. EOP/NCD(b) (6)>; Cummings, John E. EOP/NCD <(b) (6)>
Subject: RE: TPs on Privacy and KYC EO

Of course! I'm adding a few crucial folks who we'll coordinate w on the TPS.

@Scott, Brian C. EOP/NCD for KYC
@Cummings, John E. EOP/NCD for privacy

From: Klein, Julie G. EOP/NCD <(b) (6)>
Sent: Thursday, February 2, 2023 9:51 AM
To: Laskai, Lorand C. EOP/NCD <(b) (6)>; Lee, Michaela A. EOP/NCD <(b) (6)>
Subject: TPs on Privacy and KYC EO

Morning!

Next week Kemba is participating in a small salon dinner at the Chamber. Other participants are the CEO of CrowdStrike, Eric Goldstein, and someone (whose name is escaping me) from the FBI. (b) (5)

(b) (5)

Would it be possible to get it to me by COB tomorrow?

Also, who should I ask for an ONCD position on encryption/going dark?

Thank you!!

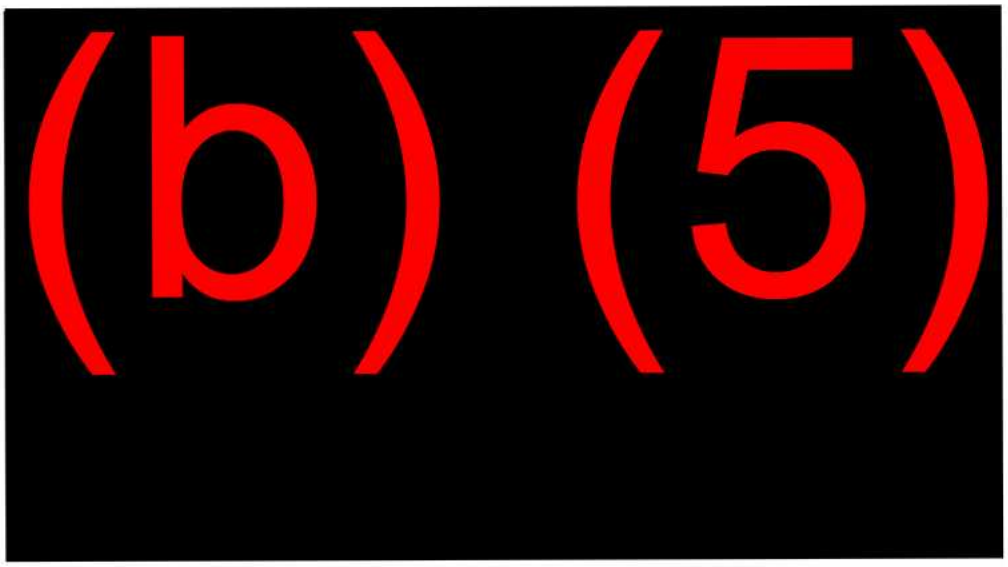
jk

Re: TPs on Privacy and KYC EO

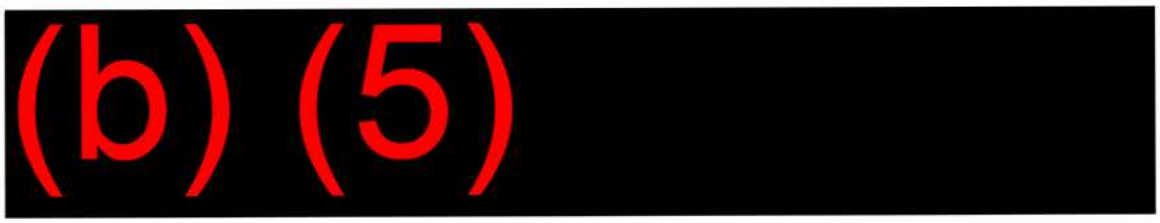
From: "Klein, Julie G. EOP/NCD" (b) (6)
To: "Laskai, Lorand C. EOP/NCD" (b) (6)
Cc: "Halpert, James J. EOP/NCD" <(b) (6)>, "Vina, Stephen R. EOP/NCD" <(b) (6)>, "Lee, Michaela A. EOP/NCD" <(b) (6)>, "Scott, Brian C. EOP/NCD" <(b) (6)>, "Cummings, John E. EOP/NCD" <(b) (6)>, "Phaup, Elliott R. EOP/NCD" (b) (6), "Tiao, Paul M. EOP/NCD" (b) (6)
Date: Mon, 06 Feb 2023 11:00:30 -0500

Julie Klein
Principal Senior Advisor to the Principal Deputy National Cyber Director
Office of the National Cyber Director
Executive Office of the President
Mobile: (b) (6)

> On Feb 6, 2023, at 10:58 AM, Laskai, Lorand C. EOP/NCD <(b) (6)> wrote:
>
> No, it is not public. Kemba should not address it.
>
> **From:** Klein, Julie G. EOP/NCD (b) (6)
> **Sent:** Monday, February 6, 2023 10:56 AM
> **To:** Halpert, James J. EOP/NCD <(b) (6)>; Vina, Stephen R. EOP/NCD (b) (6); Laskai, Lorand C. EOP/NCD <(b) (6)>; Lee, Michaela A. EOP/NCD <(b) (6)>; Scott, Brian C. EOP/NCD <(b) (6)>; Cummings, John E. EOP/NCD <(b) (6)>
> **Cc:** Phaup, Elliott R. EOP/NCD (b) (6); Tiao, Paul M. EOP/NCD (b) (6)
> **Subject:** RE: TPs on Privacy and KYC EO
>
> (b) (5)
>
> Any edits to this privacy leg background info:
>
> (b) (5)



From: Halpert, James J. EOP/NCD (b) (6)
Sent: Monday, February 6, 2023 9:28 AM
To: Vina, Stephen R. EOP/NCD (b) (6); Laskai, Lorand C. EOP/NCD (b) (6); Klein, Julie G. EOP/NCD <(b) (6); Lee, Michaela A. EOP/NCD <(b) (6); Scott, Brian C. EOP/NCD <(b) (6); Cummings, John E. EOP/NCD (b) (6)
Cc: Phaup, Elliott R. EOP/NCD (b) (6); Tiao, Paul M. EOP/NCD <(b) (6)
Subject: RE: TPs on Privacy and KYC EO



If you could share the op-ed, I'd be happy to review. Thanks -- Jim

From: Vina, Stephen R. EOP/NCD <(b) (6)
Sent: Monday, February 6, 2023 9:20 AM
To: Laskai, Lorand C. EOP/NCD (b) (6); Klein, Julie G. EOP/NCD <(b) (6); Lee, Michaela A. EOP/NCD <(b) (6); Scott, Brian C. EOP/NCD (b) (6); Cummings, John E. EOP/NCD <(b) (6)
Cc: Phaup, Elliott R. EOP/NCD <(b) (6); Tiao, Paul M. EOP/NCD <(b) (6); Halpert, James J. EOP/NCD (b) (6)
Subject: RE: TPs on Privacy and KYC EO

+OGC

I do not believe ONCD has taken a position on a private right of action. (b) (5)

(b) (5)

From: Laskai, Lorand C. EOP/NCD (b) (6)
Sent: Monday, February 6, 2023 8:45 AM
To: Klein, Julie G. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD (b) (6); Scott, Brian C. EOP/NCD (b) (6); Cummings, John E. EOP/NCD (b) (6)
Cc: Vina, Stephen R. EOP/NCD (b) (6); Phaup, Elliott R. EOP/NCD (b) (6)
Subject: RE: TPs on Privacy and KYC EO

Nothing new. It's in the NCS + Biden's WSJ op-ed.

I'll leave the private right of action to Leg Affairs.

From: Klein, Julie G. EOP/NCD (b) (6)
Sent: Monday, February 6, 2023 8:36 AM
To: Laskai, Lorand C. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD (b) (6); Scott, Brian C. EOP/NCD (b) (6); Cummings, John E. EOP/NCD (b) (6)
Cc: Vina, Stephen R. EOP/NCD (b) (6); Phaup, Elliott R. EOP/NCD (b) (6); Klein, Julie G. EOP/NCD (b) (6)
Subject: RE: TPs on Privacy and KYC EO

+ Leg

Lorand,

Has this privacy position been said out loud before or would Kemba be the first ONCD person opining on it?

Also, the two big sticking points in legislation are preemption and private right of action. Seems clear the federal government supports preemption. Does ONCD have a position on private right of action? (*likely a Leg Affairs question*)

From: Laskai, Lorand C. EOP/NCD (b) (6)
Sent: Friday, February 3, 2023 11:55 PM
To: Klein, Julie G. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD

<(b) (6) >; Scott, Brian C. EOP/NCD (b) (6) >;
Cummings, John E. EOP/NCD <(b) (6) >
Subject: RE: TPs on Privacy and KYC EO

Julie, apologies for the delay. Below are the TPs. If @Scott, Brian C. EOP/NCD has any thoughts on the TPs for KYC, he will follow up.

(b) (5)

(b) (5)

From: Klein, Julie G. EOP/NCD (b) (6) >
Sent: Thursday, February 2, 2023 10:20 AM
To: Laskai, Lorand C. EOP/NCD (b) (6) >; Lee, Michaela A. EOP/NCD (b) (6) >; Scott, Brian C. EOP/NCD (b) (6) >;
Cummings, John E. EOP/NCD <(b) (6) >
Subject: RE: TPs on Privacy and KYC EO

Ok... I haven't actually compiled any of this yet... but will share when I do

Also, graph = paragraph/TPs (I'm apparently a 13 year old who abbreviates everything)

From: Laskai, Lorand C. EOP/NCD <(b) (6)>
Sent: Thursday, February 2, 2023 10:08 AM
To: Klein, Julie G. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD <(b) (6)>; Scott, Brian C. EOP/NCD <(b) (6)>; Cummings, John E. EOP/NCD <(b) (6)>
Subject: RE: TPs on Privacy and KYC EO

I can take a look at the NCS TPs and make sure they're right.

@Scott, Brian C. EOP/NCD I'll pass some text on KYC by you.

From: Klein, Julie G. EOP/NCD (b) (6)
Sent: Thursday, February 2, 2023 10:06 AM
To: Laskai, Lorand C. EOP/NCD <(b) (6)>; Lee, Michaela A. EOP/NCD <(b) (6); Scott, Brian C. EOP/NCD (b) (6) Cummings, John E. EOP/NCD <(b) (6)>
Subject: RE: TPs on Privacy and KYC EO

THANK YOU!

Since we have a brain trust here, these are the topics I'm planning – let me know if I'm missing anything. (I have most of these TPs already)

From: Laskai, Lorand C. EOP/NCD (b) (6)>
Sent: Thursday, February 2, 2023 10:01 AM
To: Klein, Julie G. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD <(b) (6)>; Scott, Brian C. EOP/NCD <(b) (6);

Cummings, John E. EOP/NCD <(b) (6) >
Subject: RE: TPs on Privacy and KYC EO

Of course! I'm adding a few crucial folks who we'll coordinate w on the TPS.

@Scott, Brian C. EOP/NCD for KYC
@Cummings, John E. EOP/NCD for privacy

From: Klein, Julie G. EOP/NCD (b) (6) >
Sent: Thursday, February 2, 2023 9:51 AM
To: Laskai, Lorand C. EOP/NCD (b) (6) >; Lee, Michaela A. EOP/NCD <(b) (6) >
Subject: TPs on Privacy and KYC EO

Morning!

Next week Kemba is participating in a small salon dinner at the Chamber. Other participants are the CEO of CrowdStrike, Eric Goldstein, and someone (whose name is escaping me) from the FBI. I'm working on the memo, which is largely just TPs so she prepped on our cyber priorities and anything else that might come up.

(b) (5)

Would it be possible to get it to me by COB tomorrow?

Also, who should I ask for an ONCD position on encryption/going dark?

Thank you!!
jk

RE: TPs on Privacy and KYC EO

From: "Vina, Stephen R. EOP/NCD" <(b) (6)
To: "Laskai, Lorand C. EOP/NCD" (b) (6) >, "Klein, Julie G. EOP/NCD" <julie.g.klein@ncd.eop.gov>, "Lee, Michaela A. EOP/NCD" (b) (6) , "Scott, Brian C. EOP/NCD" (b) (6) >, "Cummings, John E. EOP/NCD" (b) (6) >
Cc: "Phaup, Elliott R. EOP/NCD" (b) (6) >, "Tiao, Paul M. EOP/NCD" <(b) (6) "Halpert, James J. EOP/NCD" (b) (6) >
Date: Mon, 06 Feb 2023 09:20:07 -0500

+OGC

(b) (5)

From: Laskai, Lorand C. EOP/NCD (b) (6)
Sent: Monday, February 6, 2023 8:45 AM
To: Klein, Julie G. EOP/NCD <(b) (6) >; Lee, Michaela A. EOP/NCD <(b) (6) >; Scott, Brian C. EOP/NCD <(b) (6) >; Cummings, John E. EOP/NCD <(b) (6) >
Cc: Vina, Stephen R. EOP/NCD (b) (6) >; Phaup, Elliott R. EOP/NCD (b) (6)
Subject: RE: TPs on Privacy and KYC EO

Nothing new. It's in the NCS + Biden's WSJ op-ed.

I'll leave the private right of action to Leg Affairs.

From: Klein, Julie G. EOP/NCD <(b) (6) >
Sent: Monday, February 6, 2023 8:36 AM
To: Laskai, Lorand C. EOP/NCD (b) (6) >; Lee, Michaela A. EOP/NCD <(b) (6) ; Scott, Brian C. EOP/NCD (b) (6) >; Cummings, John E. EOP/NCD <(b) (6)
Cc: Vina, Stephen R. EOP/NCD (b) (6) >; Phaup, Elliott R. EOP/NCD (b) (6) >; Klein, Julie G. EOP/NCD <(b) (6) >
Subject: RE: TPs on Privacy and KYC EO

+ Leg

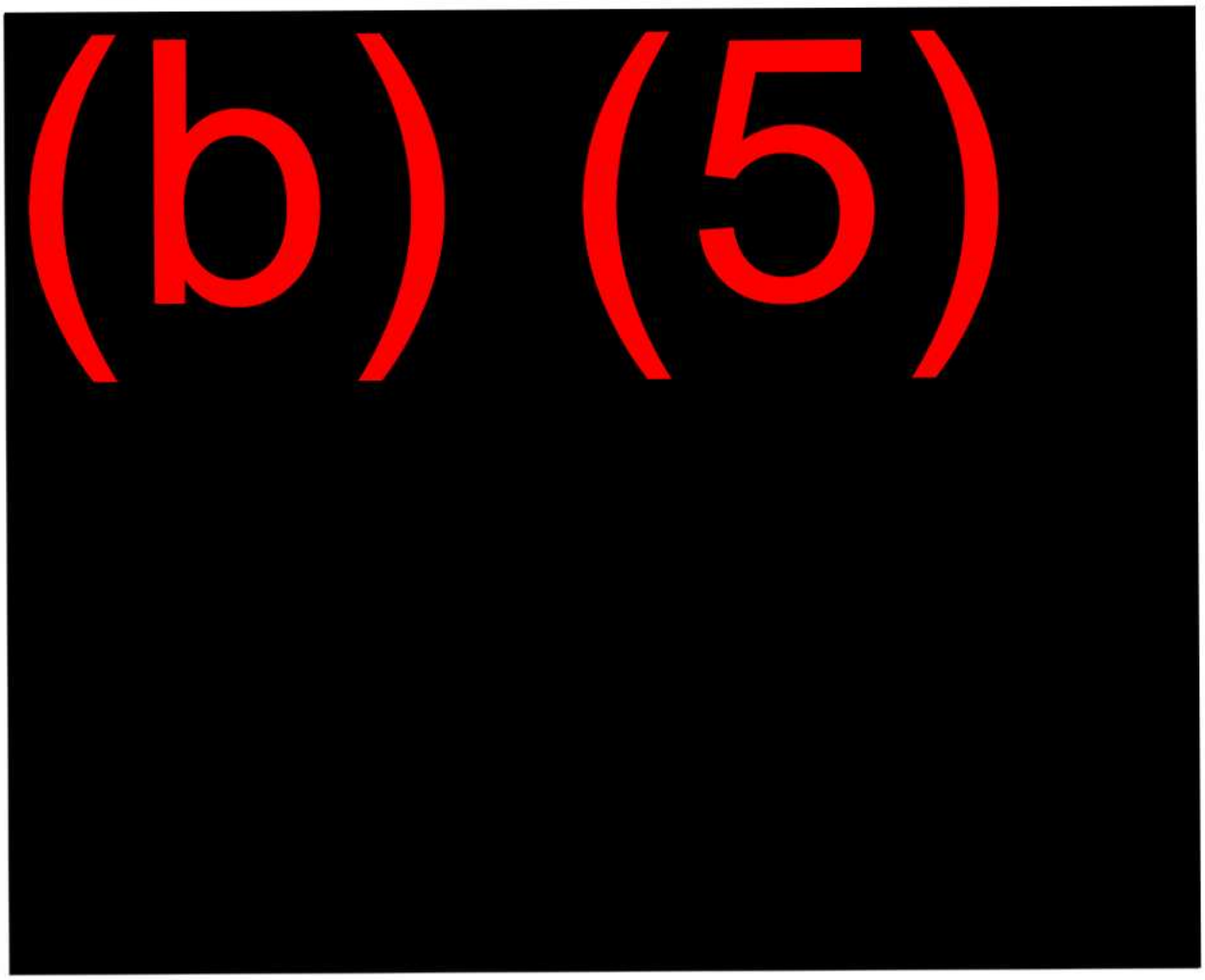
Lorand,

Has this privacy position been said out loud before or would Kemba be the first ONCD person opining on it?

Also, the two big sticking points in legislation are preemption and private right of action. Seems clear the federal government supports preemption. Does ONCD have a position on private right of action? (*likely a Leg Affairs question*)

From: Laskai, Lorand C. EOP/NCD [redacted]
Sent: Friday, February 3, 2023 11:55 PM
To: Klein, Julie G. EOP/NCD [redacted]; Lee, Michaela A. EOP/NCD [redacted]; Scott, Brian C. EOP/NCD [redacted]; Cummings, John E. EOP/NCD [redacted]
Subject: RE: TPs on Privacy and KYC EO

Julie, apologies for the delay. Below are the TPs. If @Scott, Brian C. EOP/NCD has any thoughts on the TPs for KYC, he will follow up.



(b) (5)

From: Klein, Julie G. EOP/NCD <(b) (6)>
Sent: Thursday, February 2, 2023 10:20 AM
To: Laskai, Lorand C. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD <(b) (6)>; Scott, Brian C. EOP/NCD (b) (6); Cummings, John E. EOP/NCD <(b) (6)>
Subject: RE: TPs on Privacy and KYC EO

Ok... I haven't actually compiled any of this yet... but will share when I do

Also, graph = paragraph/TPs (I'm apparently a 13 year old who abbreviates everything)

From: Laskai, Lorand C. EOP/NCD (b) (6)
Sent: Thursday, February 2, 2023 10:08 AM
To: Klein, Julie G. EOP/NCD <(b) (6)>; Lee, Michaela A. EOP/NCD (b) (6); Scott, Brian C. EOP/NCD (b) (6); Cummings, John E. EOP/NCD <(b) (6)>
Subject: RE: TPs on Privacy and KYC EO

I can take a look at the NCS TPs and make sure they're right.

@Scott, Brian C. EOP/NCD I'll pass some text on KYC by you.

From: Klein, Julie G. EOP/NCD <(b) (6)
Sent: Thursday, February 2, 2023 10:06 AM
To: Laskai, Lorand C. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD (b) (6); Scott, Brian C. EOP/NCD <(b) (6)>; Cummings, John E. EOP/NCD <
Subject: RE: TPs on Privacy and KYC EO

THANK YOU!

Since we have a brain trust here, these are the topics I'm planning – let me know if I'm missing anything. (I have most of these TPs already)

(b) (5)

(b) (5)

From: Laskai, Lorand C. EOP/NCD (b) (6)
Sent: Thursday, February 2, 2023 10:01 AM
To: Klein, Julie G. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD (b) (6); Scott, Brian C. EOP/NCD (b) (6); Cummings, John E. EOP/NCD (b) (6)
Subject: RE: TPs on Privacy and KYC EO

Of course! I'm adding a few crucial folks who we'll coordinate w on the TPS.

@Scott, Brian C. EOP/NCD for KYC
@Cummings, John E. EOP/NCD for privacy

From: Klein, Julie G. EOP/NCD (b) (6)
Sent: Thursday, February 2, 2023 9:51 AM
To: Laskai, Lorand C. EOP/NCD (b) (6); Lee, Michaela A. EOP/NCD (b) (6)
Subject: TPs on Privacy and KYC EO

Morning!

Next week Kemba is participating in a small salon dinner at the Chamber. Other participants are the CEO of CrowdStrike, Eric Goldstein, and someone (whose name is escaping me) from the FBI. I'm working on the memo, which is largely just TPs so she prepped on our cyber priorities and anything else that might come up.

(b) (5)

Also, who should I ask for an ONCD position on encryption/going dark?

Thank you!!
jk

Legislative Affairs Weekly (LAW) - 02/06/23

From: "Logan, Julianna I. EOP/NCD" (b) (6)
To: DL NCD ALL (b) (6)
Cc: ONCD Legislative Affairs <(b) (6)
Bcc: "Clarke, Caitlin M. EOP/NCD" <(b) (6)
Date: Mon, 06 Feb 2023 17:16:53 -0500
Attachments: LegAffairs_Weekly_02.06.23.pdf (276.78 kB)

Good Afternoon,

This week's Legislative Affairs Weekly (LAW) is attached & linked for your convenience. Intext hyperlinks can be accessed via the attachment or sharepoint.

Have a nice evening!

Julianna Logan
Special Advisor for Legislative Affairs
Office of the National Cyber Director
Executive Office of the President
(b) (6)
Mobile: (b) (6)

Legislative Affairs Weekly

6 February 2023

On Deck for ONCD

2/6	Meeting	Sen. Gary Peters (D-MI)	NCD Inglis; PDNCD Walden

Of Interest

2/8	Organizational Meeting	House Committee on Homeland Security (CHS)
2/8	Organizational Meeting	House Committee on Appropriations
2/9	Organizational Meeting	Senate Homeland Security & Governmental Affairs (HSGAC)

News of Note

- **Rep. Nancy Mace (R-SC-01) was appointed Chairwoman of the COA Subcommittee on Cybersecurity,** Information Technology, and Government Innovation. Upon her appointment, Rep. Mace stated "*Securing our nation's data, protecting our cyber infrastructure, and studying emerging technologies of the future like artificial intelligence, quantum computing, and blockchain integration is more important today than ever." (Mace,* Press Release*, 02/01/2023).* "Since coming to Congress in 2021, Rep. Mace has amassed a robust profile of cyber and IT legislative efforts, including work on the Quantum Computing Cybersecurity Preparedness Act." (*C. Burgan, Meritalk; 2/3/23*)
- **Rep. Gerry Connolly (D-VA-11) will serve as Ranking Member on COA's Subcommittee on Cybersecurity**, Information Technology, and Government Innovation.
- Senator Roger Marshall (KS) joined HSGAC.
- New Members announced for ONCD oversight committees/subcommittees, see rosters below.

Legislation*

Under Suspension[1] in the House:

- H.R. 302 - *Energy Cybersecurity University Leadership Act of 2023* | Rep. Ross, Deborah K. [D-NC] | Referred to House Science
  - Direct the Sec. of Energy to establish a program to provide financial assistance to graduate students and postdoctoral researchers pursuing certain courses relating to cybersecurity and energy infrastructure

Introduced:

- S. 85 - *No TikTok on United States Devices Act* | Sen. Hawley (R-MO) | Referred to Committee on Banking, Housing, and Urban Affairs
  - Requires President to exercise all powers granted to prevent the commercial operation of TikTok in the U.S.

- H.R. 503 - *No TikTok on United States Devices Act* | Rep. Buck, Ken (R-CO) | Referred to HFAC and HPSCI
  - *Note*: See Senate companion bill above.

[1] Under suspension, floor debate is limited, all floor amendments are prohibited, points of order against the bill are waived, and final passage requires a two-thirds majority vote.

**Not exhaustive*

Committee Membership		
	Majority	Minority
Senate Committee on Homeland Security & Governmental Affairs (**HSGAC**)	**Chairman Gary Peters (MI)** Thomas R. Carper (DE) Margaret Hassan (NH) Kyrsten Sinema (AZ) Jacky Rosen (NV) Alex Padilla (CA) Jon Ossoff (GA) Richard Blumenthal (CT)	**Ranking Member Rand Paul (KY)** Ron Johnson (WI) James Lankford (OK) Mitt Romney (UT) Rick Scott (FL) Josh Hawley (MO) Roger Marshall (KS)
House Committee on Oversight & Accountability (**COA**)	**Chairman James Comer (KY)** Jim Jordan (OH) Mike Turner (OH) Paul Gosar (AZ) Virginia Foxx (NC) Glenn Grothman (WI) Gary Palmer (AL) Clay Higgins (LA) Andy Biggs (AZ) Nancy Mace (SC) Jake LaTurner (KS) Pat Fallon (TX) Byron Donalds (FL) Pete Sessions (TX) Kelly Armstrong (ND) Scott Perry (PA) William Timmons (SC) Tim Burchett (TN) Marjorie Taylor Greene (GA) Lisa McClain (MI) Lauren Boebert (CO) Russell Fry (SC) Anna Paulina Luna (FL) Chuck Edwards (NC) Nick Langworthy (NY) Eric Burlison (MO)	**Ranking Member Jamie Raskin (MD)** Eleanor Holmes Norton (DC) Stephen Lynch (MA) Gerald Connolly (VA) Raja Krishnamoorthi (IL) Ro Khanna (CA) Kweisi Mfume (MD) Alexandria Ocasio-Cortez (NY) Katie Porter (CA) Cori Bush (MO) Shontel M. Brown (OH) Jimmy Gomez (CA) Melanie Stansbury (NM) Robert Garcia (CA) Maxwell Frost (FL) Becca Balint (VT) Summer Lee (PA) Greg Casar (TX) Jasmine Crockett (TX) Dan Goldman (NY) Jared Moskowitz (FL)
House Committee on Homeland Security (**CHS**)	**Chairman Mark E. Green, MD (R-TN)** Michael McCaul (TX) Clay Higgins (LA) Michael Guest (MS) Dan Bishop (NC) Carlos Gimenez (FL) August Pfluger (TX) Andrew Garbarino (NY) Marjorie Taylor Greene (GA) Tony Gonzales (TX) Nick LaLota (NY) Mike Ezell (MS) Anthony D'Esposito (NY) Laurel Lee (FL) Morgan Luttrell (TX) Dale Strong (AL) Josh Brecheen (OK) Eli Crane (AZ)	**Ranking Member Bennie Thompson (MS)** Sheila Jackson Lee (TX) Donald M. Payne, Jr. (NJ) Eric Swalwell (CA) Lou Correa (CA) Troy Carter (LA) Shri Thanedar (MI) Seth Magaziner (RI) Glenn Ivey (MD) Dan Goldman (NY) Robert Garcia (CA) Delia Ramirez (IL) Rob Menendez (NJ) Yvette Clarke (NY) Dina Titus (NV)

**Not exhaustive*

	Majority	Minority
House Committee on Appropriations - Financial Services and General Government Sub Committee **(FSGG)**	**Steve Womack (AR) – Subcommittee Chair** Mark Amodei (NV) Dave Joyce (OH) John Moolenaar (MI) Ashley Hinson (IA) Michael Cloud (TX) Jerry Carl (AL) Juan Ciscomani (AZ) Kay Granger (TX) – Ex Officio	**Ranking Member Steny Hoyer (MD)** Matt Cartwright (PA) Mark Pocan (WI) Sanford Bishop, Jr. (GA) Norma Torres (CA) Rosa DeLauro (CT) — Ex Officio
House Financial Services: Subcommittee on Digital Assets, Financial Technology and Inclusion	**French Hill, (AR) Subcommittee Chair** Frank D. Lucas (OK) Tom Emmer (MN) Warren Davidson (OH) John Rose (TN) Bryan Steil (WI) William Timmons (SC) Byron Donalds (FL) Mike Flood (NE) Erin Houchin (IN)	**Ranking Member Stephen Lynch (MA)** Bill Foster (IL) Josh Gottheimer (NJ) Ritchie Torres (NY) Brad Sherman (CA) Al Green (TX) Sean Casten (IL) Wiley Nickel (NC)

**Not exhaustive*

RE: PDNCD-013023-002 Due by Feb 6 at 2:00 pm - Chamber Cyber Salon Dinner

From: "Scheidler, Joe W. EOP/NCD" (b) (6)
To: "Klein, Julie G. EOP/NCD" (b) (6), "Chang, Caroline EOP/NCD" (b) (6), "Berlin, Jen S. EOP/NCD" <(b) (6)
Cc: "Ring, Haley A. EOP/NCD" (b) (6), "Leiserson, Nick J. EOP/NCD" <(b) (6), "Krejsa, Harry H. EOP/NCD" <(b) (6), DL ExecSec (b) (6), ONCD Stakeholder Engagement (b) (6)
Bcc: "Hochman, Michael C. EOP/NCD" <(b) (6)
Date: Tue, 07 Feb 2023 12:06:10 -0500
Attachments: Event Memo - Commerce Cyber Salon Dinner - redlines.docx (78.78 kB)

HI team,

Thanks for the nice prep on this one – attaching minor cosmetic redlines and will include a clean copy in the PDNCD book tonight.

VR,
Joe

From: Klein, Julie G. EOP/NCD <(b) (6)
Sent: Monday, January 30, 2023 6:12 PM
To: Chang, Caroline EOP/NCD (b) (6); Berlin, Jen S. EOP/NCD (b) (6)
Cc: Ring, Haley A. EOP/NCD <(b) (6); Leiserson, Nick J. EOP/NCD (b) (6); Krejsa, Harry H. EOP/NCD <(b) (6); DL ExecSec (b) (6); ONCD Stakeholder Engagement <(b) (6)
Subject: RE: PDNCD-013023-002 Due by Feb 6 at 2:00 pm - Chamber Cyber Salon Dinner

Yes, thanks.

Jen, let's connect and discuss topics that need TPs. Is there a theme to the dinner?

From: Chang, Caroline EOP/NCD <(b) (6)
Sent: Monday, January 30, 2023 12:38 PM
To: Berlin, Jen S. EOP/NCD (b) (6); Klein, Julie G. EOP/NCD <(b) (6)
Cc: Ring, Haley A. EOP/NCD (b) (6); Leiserson, Nick J. EOP/NCD (b) (6); Krejsa, Harry H. EOP/NCD <(b) (6); DL ExecSec (b) (6); ONCD Stakeholder Engagement (b) (6)
Subject: PDNCD-013023-002 Due by Feb 6 at 2:00 pm - Chamber Cyber Salon Dinner

Dear Jen and Julie,

As discussed, in advance of PDNCD's Chamber of Commerce Cyber Salon Dinner, can you please work with Nick and Harry's team to prepare an event memo? Email traffic is included in the link.

Best,
Caroline

GENERAL INFORMATION

Name:	Chamber of Commerce Cyber Salon Dinner		
Int. Due Date:	2:00 pm, Feb 6	**ID:**	013023-002
Event Date:	Feb 8	**Routing:**	PDNCD Book
Assigned to:	Jen, Julie	**Type:**	Event Memo

NOTES AND DOCUMENT DETAILS

Document(s):	Document Location

COORDINATION AND REVIEW

Req. Coord:	Harry, Nick
FO Clearance:	N/A
Legal Review:	N/A
Clearance:	ExecSec

Caroline Chang
Senior Advisor to NCD and ExecSec
Office of the National Cyber Director
Executive Office of the President
(b) (6) [redacted]

UNCLASSIFIED//FOR OFFICIAL USE ONLY

EVENT MEMORANDUM

PRINCIPAL DEPUTY NATIONAL CYBER DIRECTOR
REMARKS AT U.S. CHAMBER OF COMMERCE CYBER SALON DINNER

DATE: February 8, 2023

EVENT TIME: 6:00-8:00pm

DEPARTURE: 5:55pm

LOCATION: U.S. Chamber of Commerce, Meeting Room 3/4, 1615 H Street, NW

EVENT TYPE: Off-the-record, cyber salon dinner

ROLE: Featured Guest

HOST: U.S. Chamber of Commerce

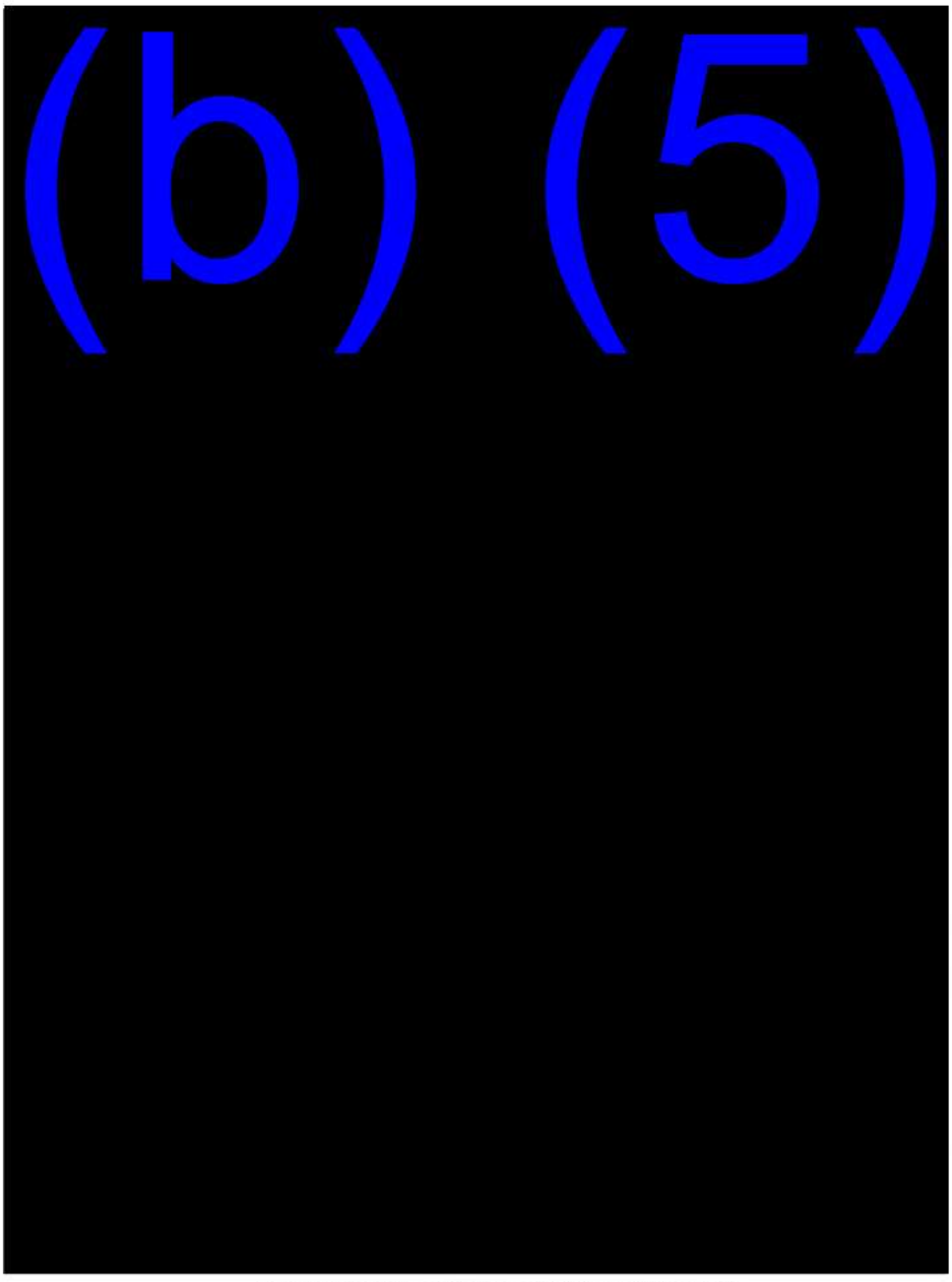
ONCD STAFF: Jen Berlin, ANCD Stakeholder Engagement (not attending)

EVENT POCs:

Chris Roberti, senior vice president, (b) (6)
Vince Voci, vice president, (b) (6)
Lauren Anderson, coordinator, (b) (6)

[APG]

UNCLASSIFIED//FOR OFFICIAL USE ONLY


(b) (5)

Chris the invitation to be a part of this new event, give a nod to our USG counterparts who are also participating, and thank the many members of the audience whose feedback and ideas were essential to the development of the strategy.

The following discussion topics were provided to all dinner participants. These issues are meant to inform the discussion—but it will not be scripted and the conversation will likely end up covering only a few topics (and participants may organically inject issues not listed).

Chamber's suggested topics:

- NCS
    - Critical infrastructure cybersecurity
        - Regulatory framework (between federal and states and between the U.S. and its allies)
        - Regulatory harmonization
        - Public private partnerships and operational collaboration
    - Risk and consequence operations
        - Defend forward, persistent engagement, and law enforcement collaboration
    - IoT security and software liability
    - International cybersecurity and critical emerging technology
        - International cyber assistant fund
- Cyber incident reporting and public disclosure
- Corporate cyber sustainability
- Cyber investment workforce
- EO 14028 implementation/zero trust
- Privacy
- Supply chain security

V. DISCUSSION POINTS [OR QUESTIONS]:

ONCD's Top Cyber Priorities:

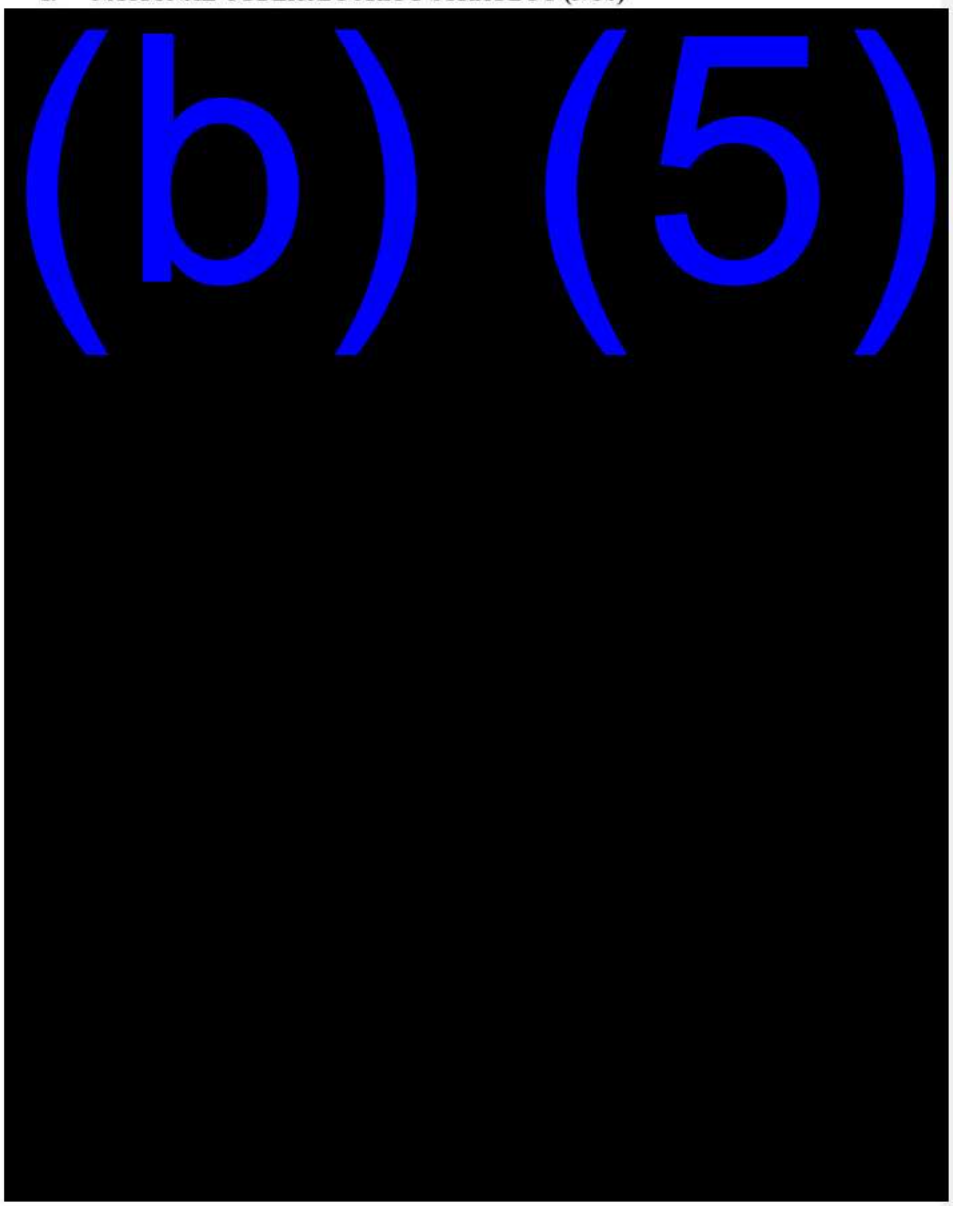
1. National Cybersecurity Strategy
2. Cyber Investment
3. Regulation Harmonization
4. Workforce
5. EO 14028 Implementation and Zero Trust

Additional Cyber topics that participants might raise:

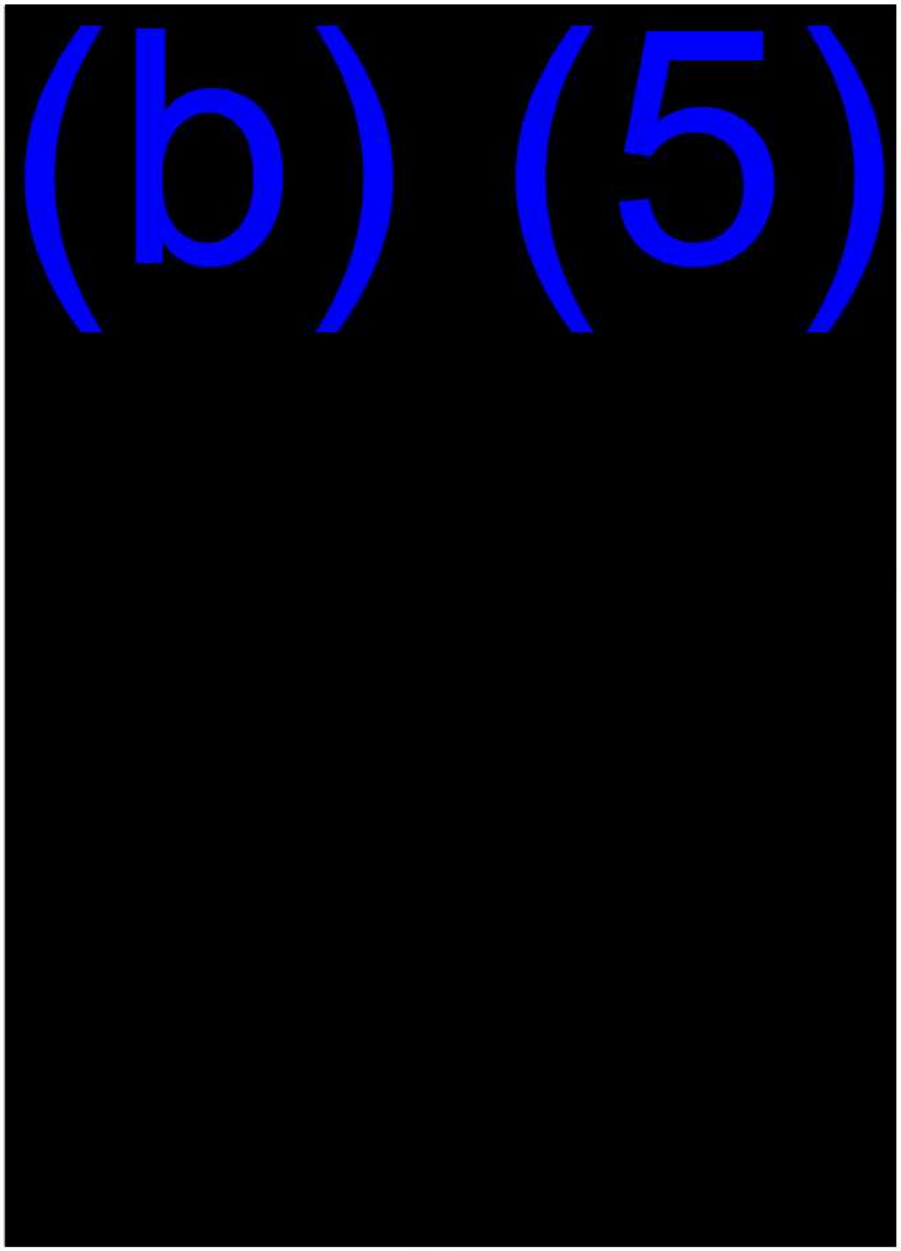
- Regulation
- Privacy
- Know Your Customer (KYC) EO
- Encryption/Going Dark
- TikTok

[APG]

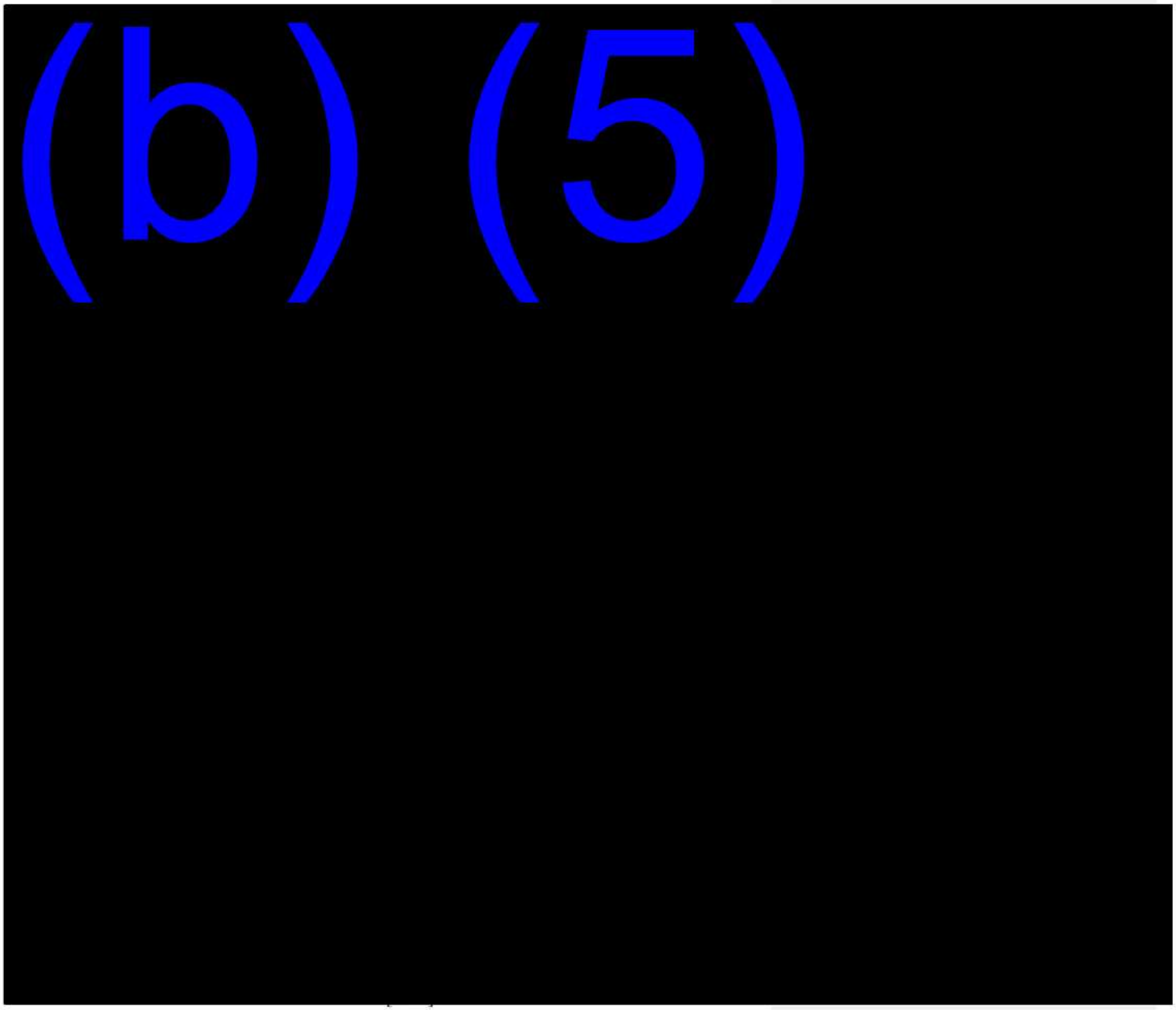
I. NATIONAL CYBERSECURITY STRATEGY (NCS)

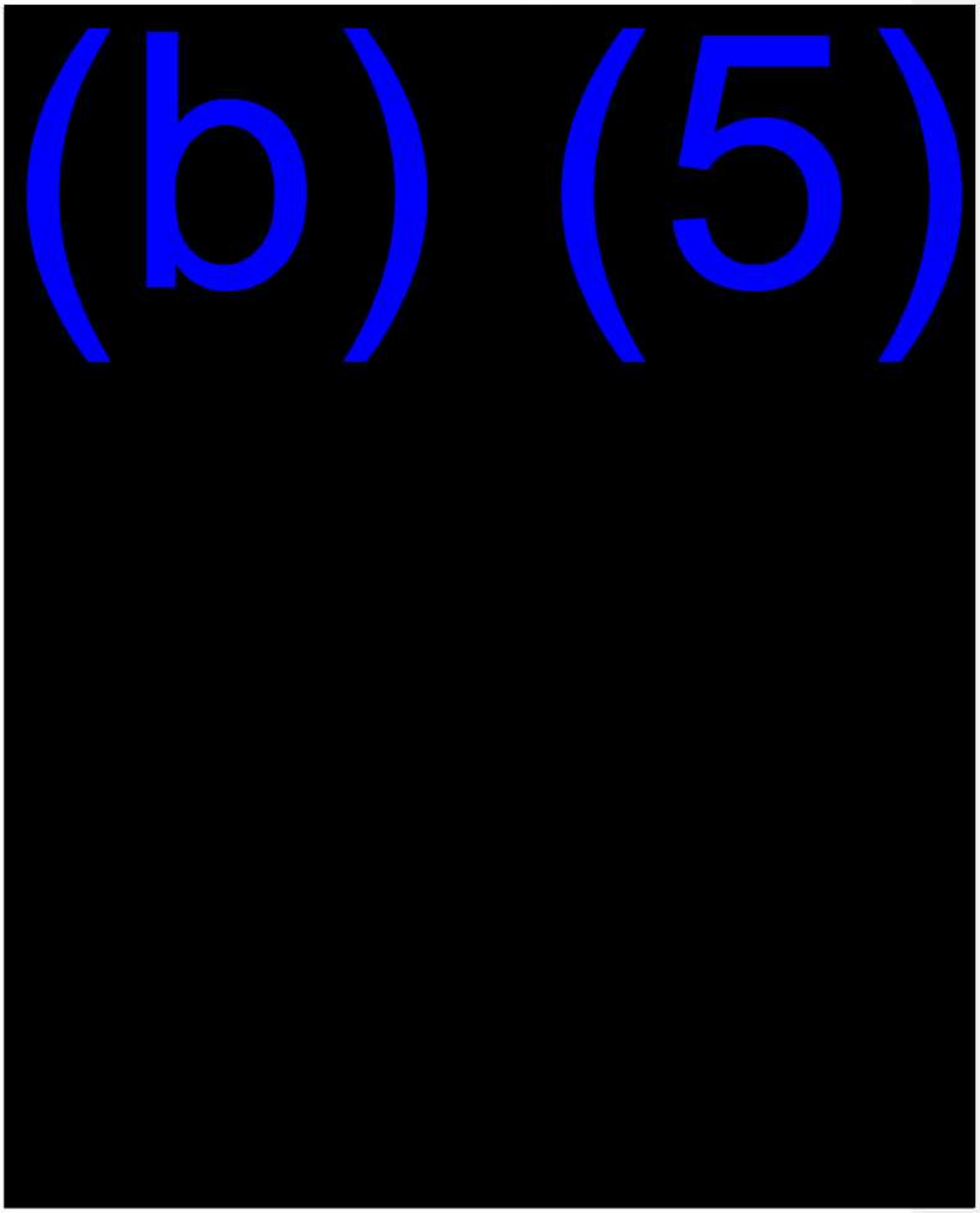


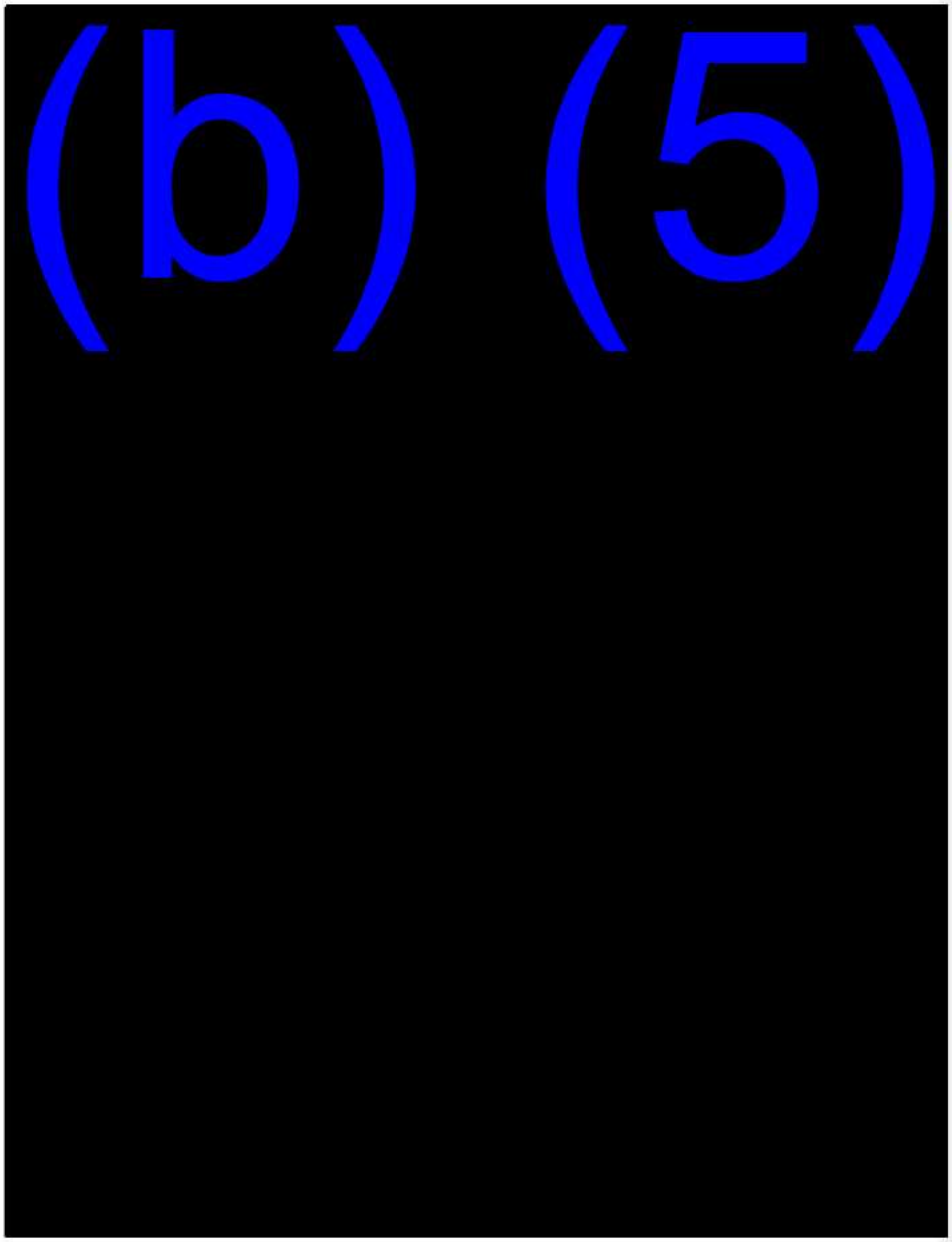
[APG]



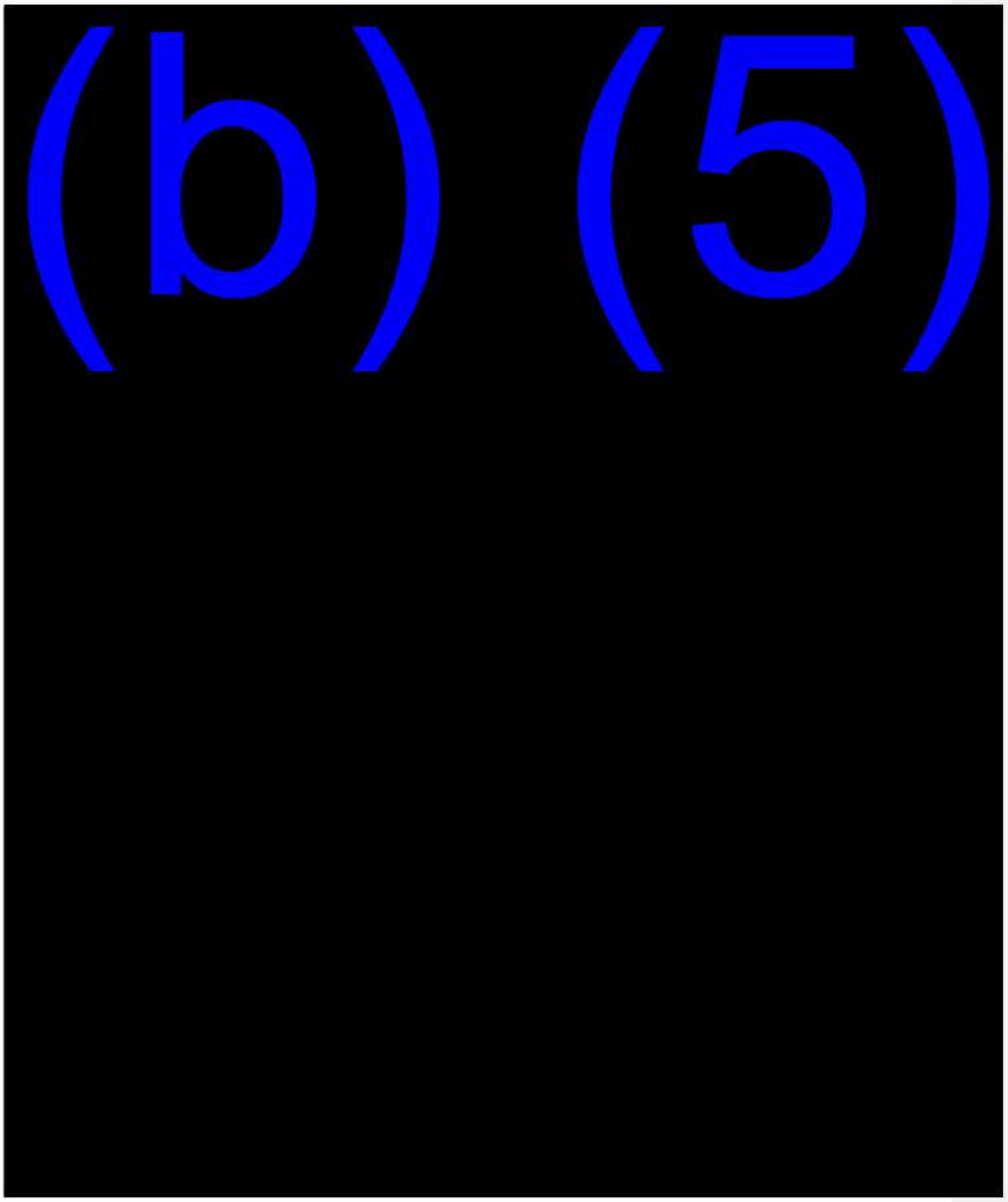
[APG]


(b) (5)

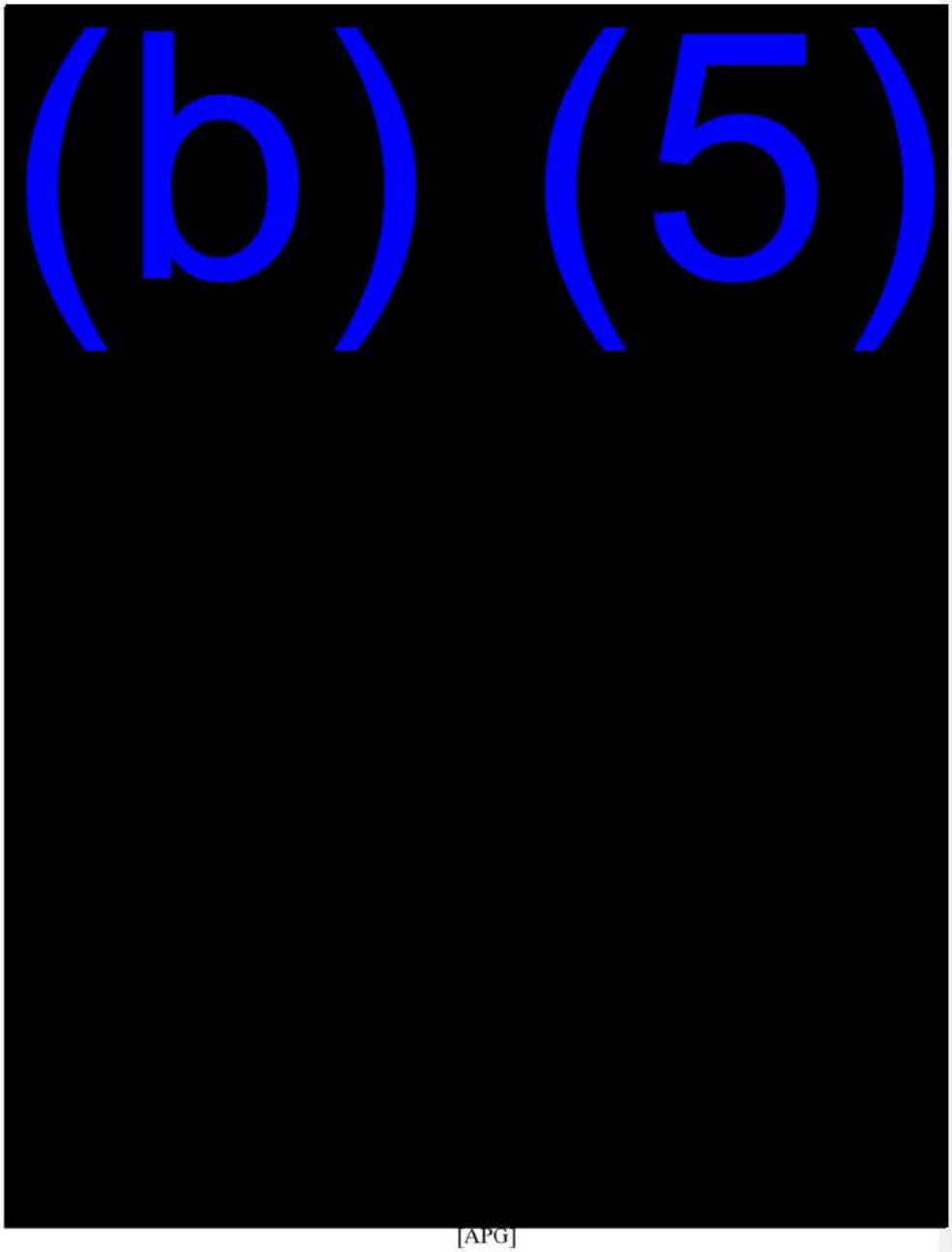

(b) (5)



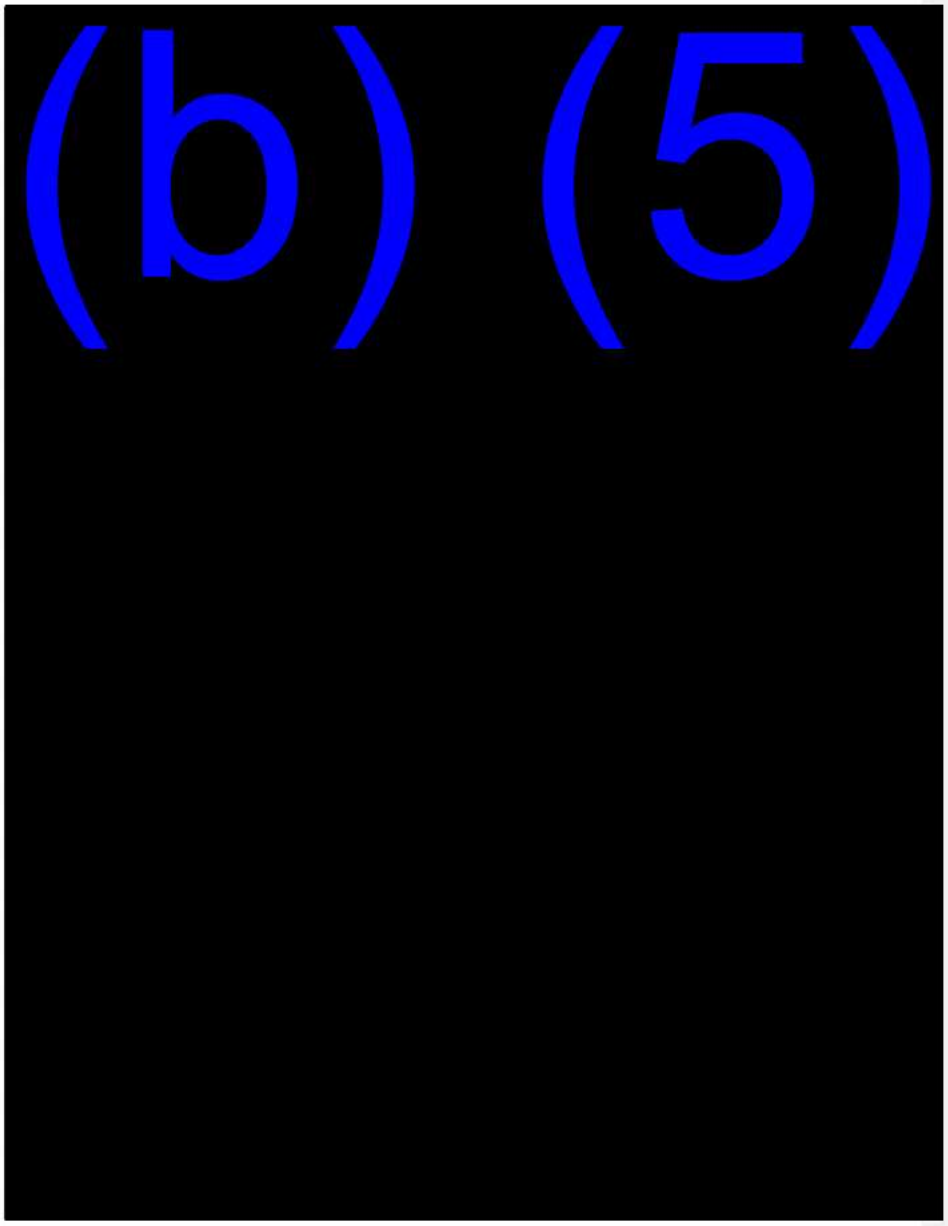
[APG]



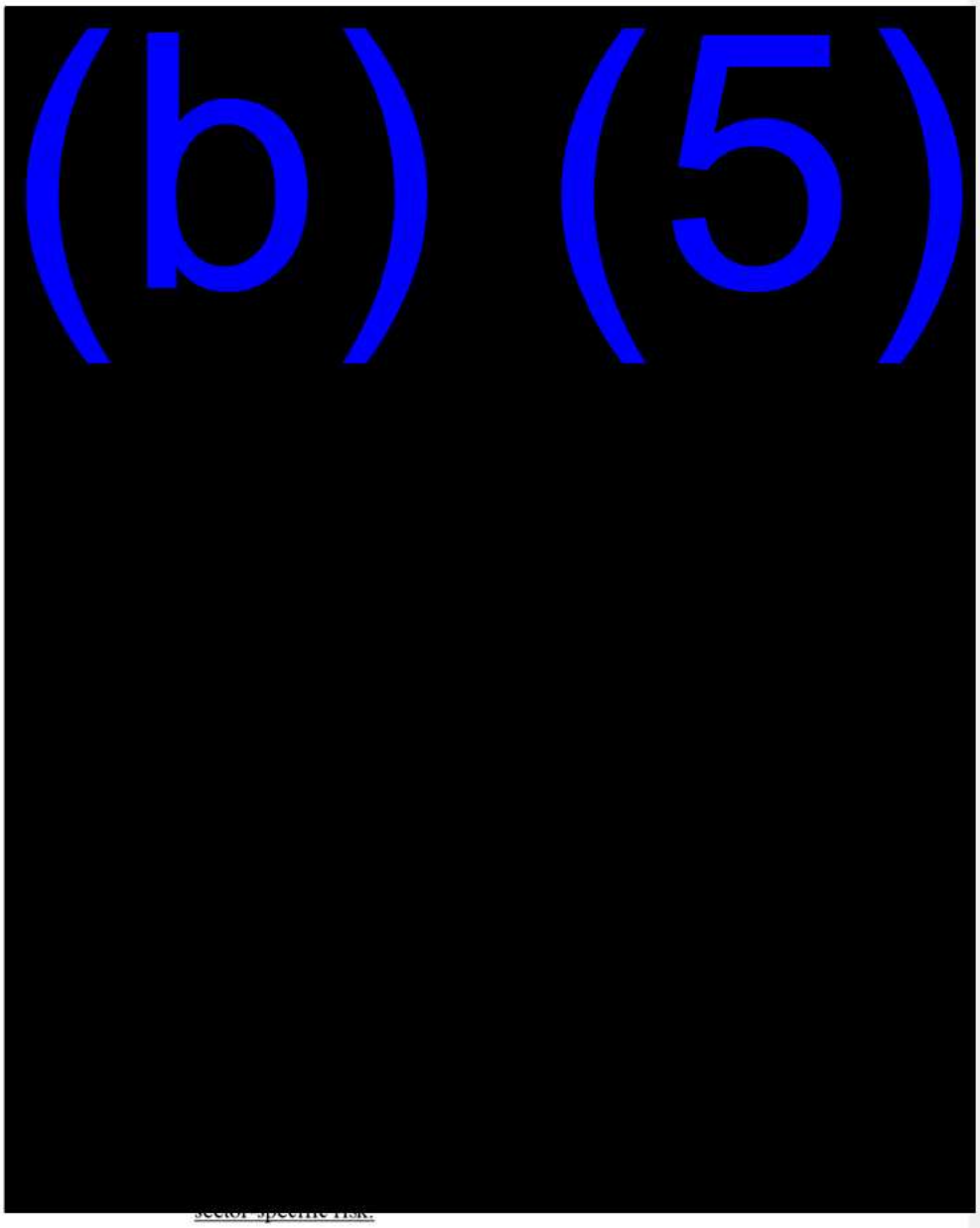
[APG]



[APG]

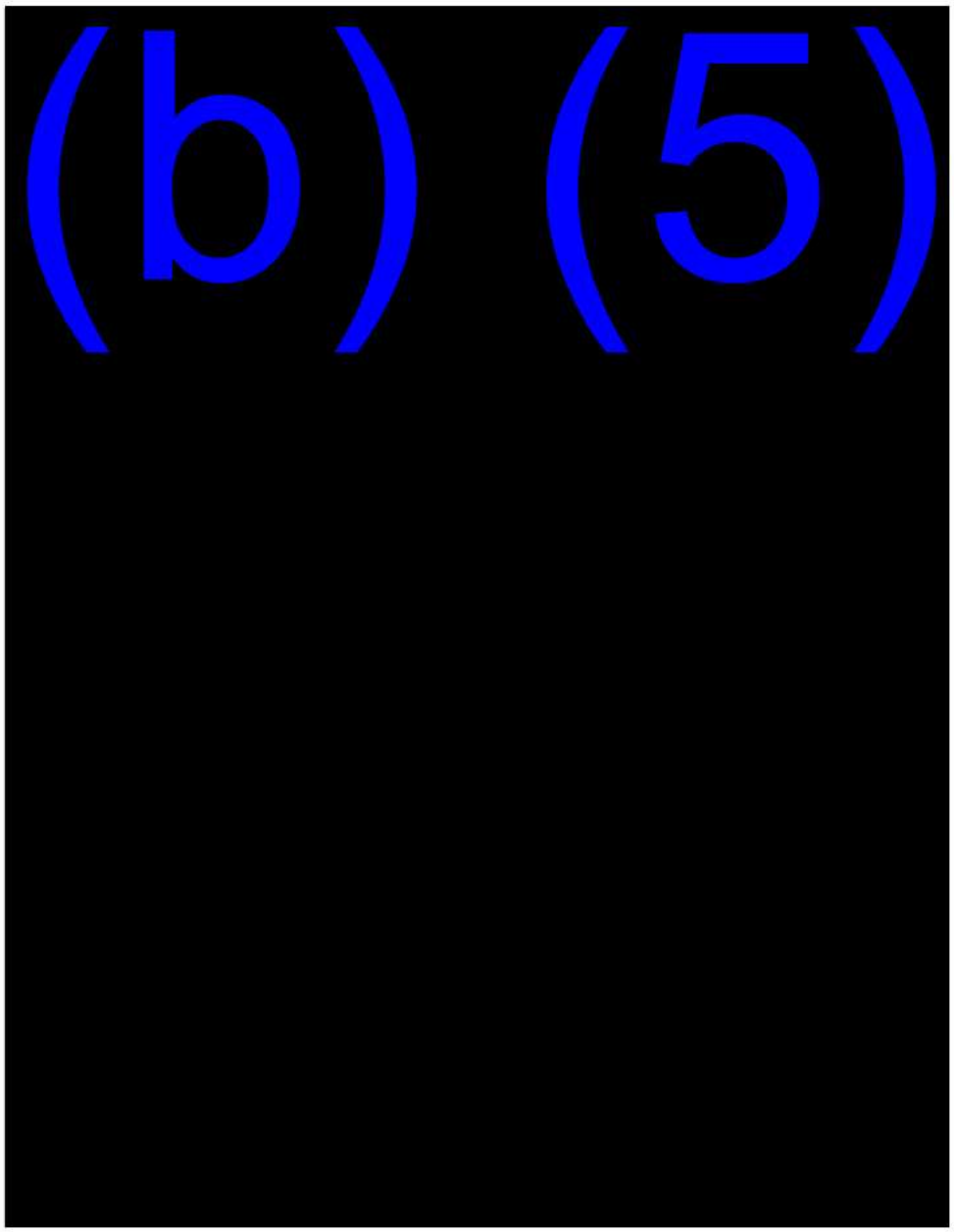


[APG]

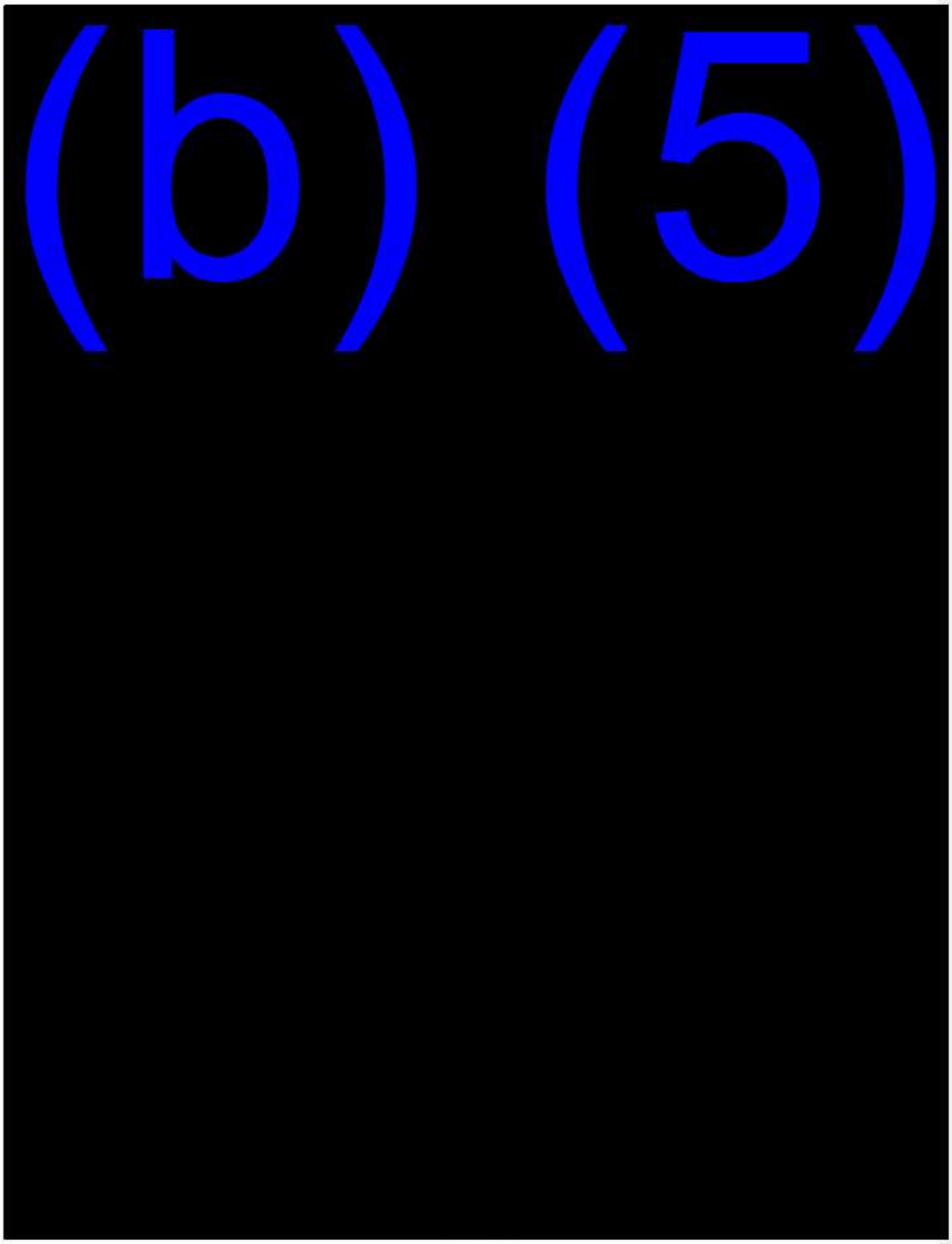


sector-specific risk.

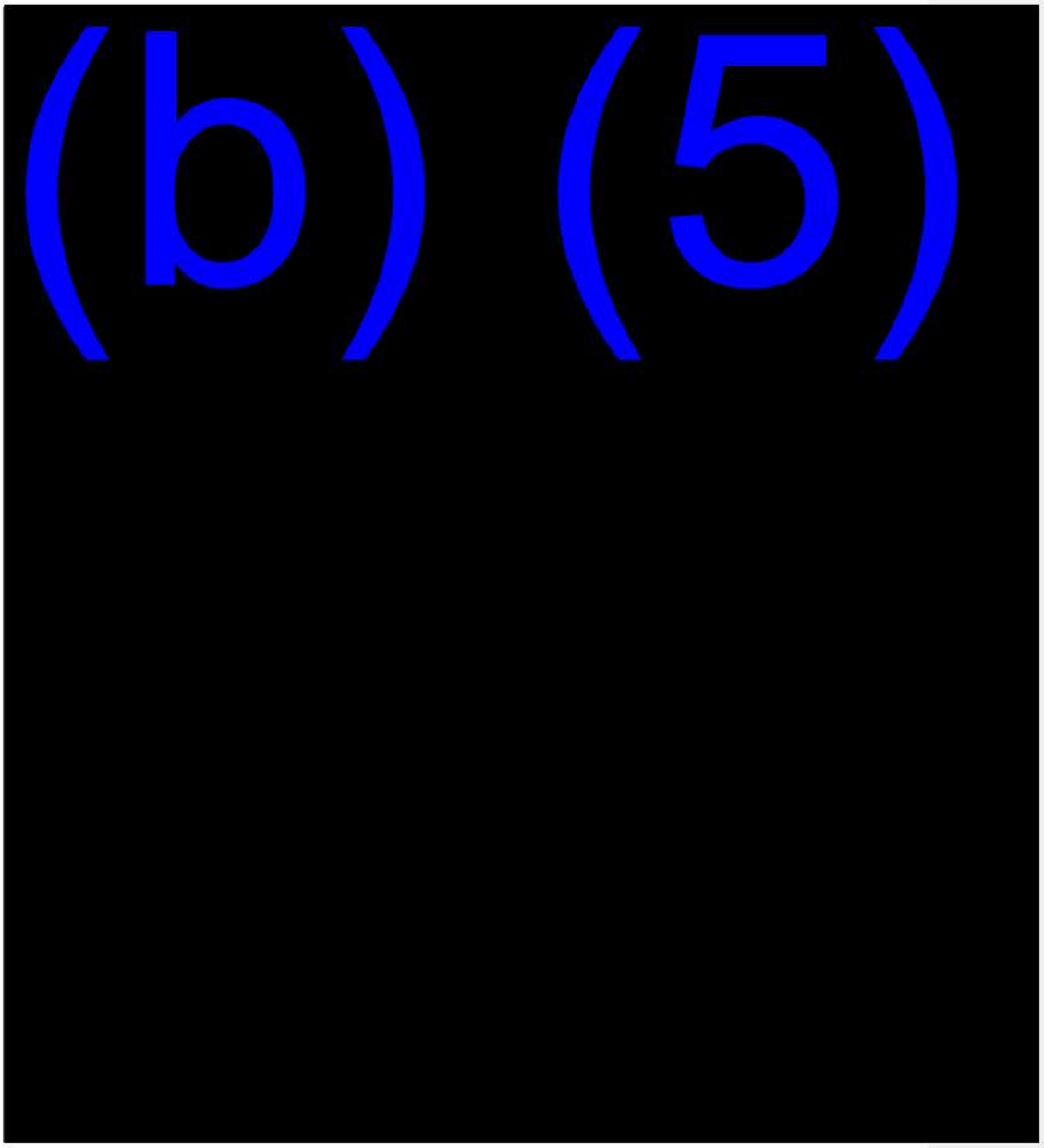
[APG]



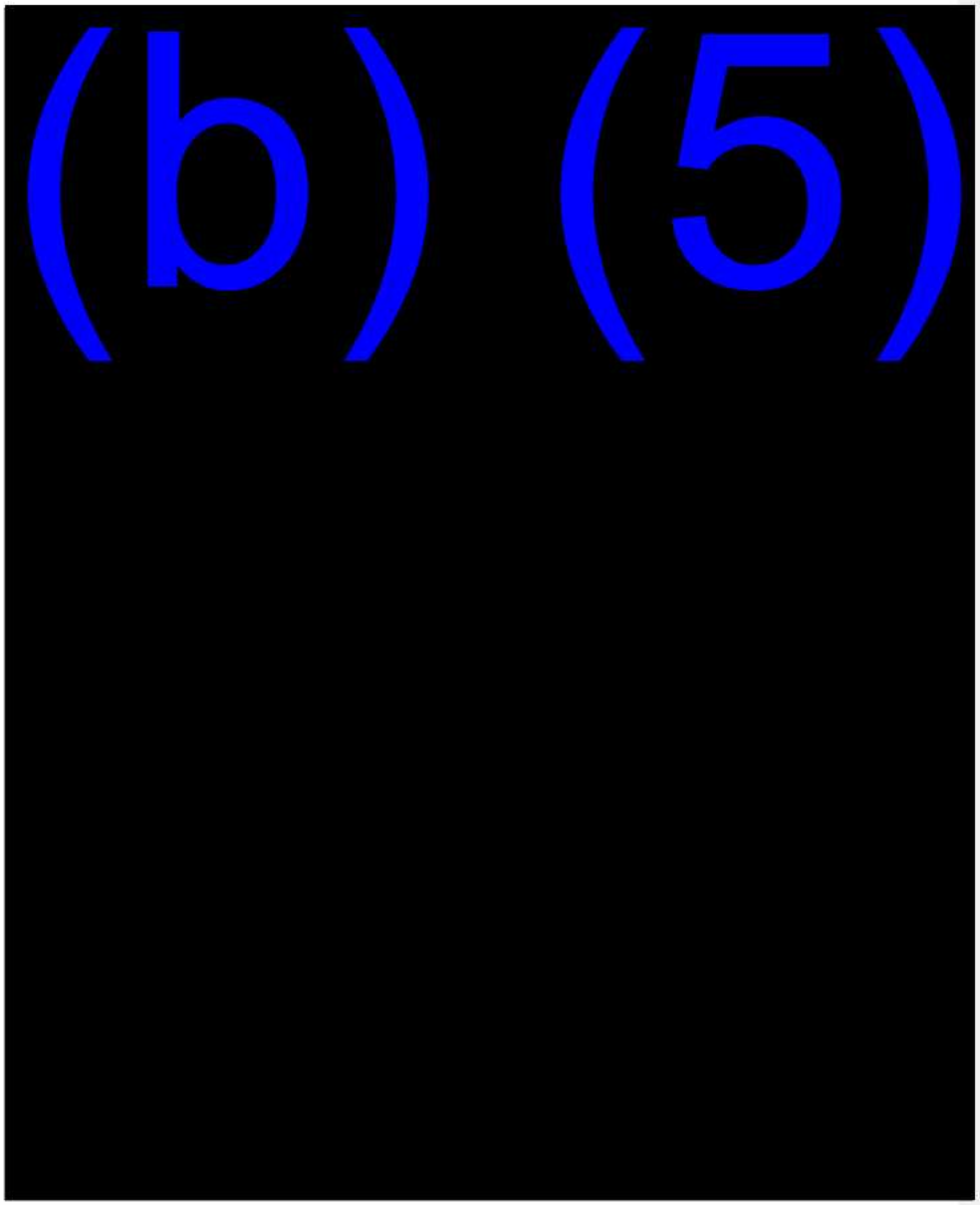
[APG]



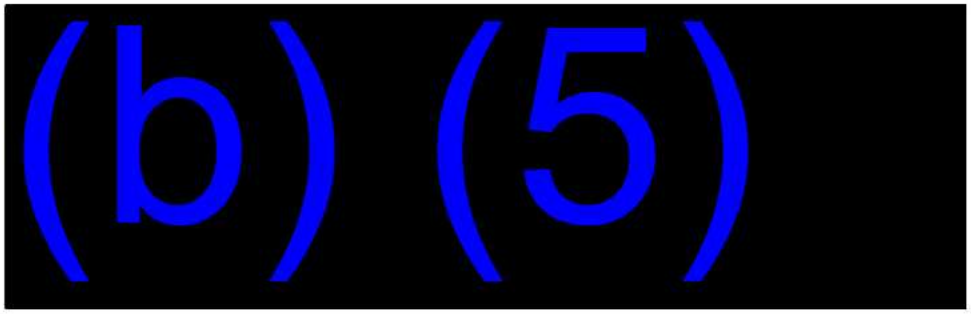
[APG]



[APG]



[APG]



[APG]

[AD]

OFFICE OF THE NATIONAL CYBER DIRECTOR
EXECUTIVE SECRETARY

Tracking

NUMBER: **013023-002**
VERSION: **v(1.2)**
DATE: **07 February 2023**

Coordination and Approval

PREPARED BY: Jen Berlin, (b) (6)
Julie Klein, (b) (6)

CLEARED BY: Joe Scheidler, Special Advisor, ExecSec

Documents

APPENDICES: Appendix A: Read-ahead Material from the U.S. Chamber of Commerce
Appendix B: Printouts of Referenced Articles

[APG]

RE: CISA/ONCD/OMB Monthly Sync

From: "Barr, Lisa N. EOP/NCD" (b) (6)

To: CSD Executive Assistant Director Scheduler (b) (6), "Dudley, Drenan E. EOP/NCD" <(b) (6), "Goldstein, Eric (He/Him)" (b) (6), "Hartman, Matthew (He/Him)" (b) (6), "Duffy, Michael" <(b) (6), "Herckis, Mitch D. EOP/OMB" <(b) (6), "Higgins, Neal L. EOP/NCD" (b) (6), "DeRusha, Chris J. EOP/OMB" <(b) (6), "Mill, Eric R. EOP/OMB" (b) (6), "Beckel, Sarah" <(b) (6), "Romans, Clayton" (b) (6), "Roebuck, Jermaine (He/Him)" <, "Gross, Martin" <(b) (6), "Yuhasz, Amy" (b) (6), "Conley, Alyson (She/Her)" <(b) (6), "Hartsook, Shelly" <(b) (6), "Mergen, Margaret C. EOP/OMB" (b) (6), "Abrams, Andrew D. EOP/OMB" <(b) (6), "Butera, Christopher (He/Him)" (b) (6), "Polk, Nick J. EOP/OMB" (b) (6), "Muniz Rodriguez, Christian A. EOP/NCD" (b) (6), "Radesky, Sandra (She/Her)" (b) (6), "Thompson, Robert" (b) (6), "Gazlay, Jay (He/Him)" (b) (6), "LYUBLANOVITS, SHONDREA" (b) (6), "Shaw, Robert" (b) (6), "Bokan, Branko" <, "Isaac, Kim" (b) (6), "Bowen, Ethan" <(b) (6), "Petrianni, Peter" <(b) (6), "Cohen, Natasha" (b) (6)

Cc: "Olamide, Simisola (CTR)" <(b) (6), "Mireles-Beuze, Analia J. EOP/OMB" (b) (6), "Rodriguez, Drew J. EOP/OMB" <(b) (6), "Croce, Joseph A. EOP/NCD" (b) (6), "Stupak, Philip M. EOP/NCD" (b) (6), CSD Front Office Scheduling <(b) (6), "Presman, Dylan T. EOP/NCD" <(b) (6), "RUSCHMAN, ALEXANDRIA" <(b) (6), "Sardo, Valerie (CTR)" (b) (6), "Smith, Jazmine (CTR)" (b) (6), "Dasher, Grant" <(b) (6), "Lee, Michaela A. EOP/NCD" (b) (6), "Jang, Yejin EOP/OMB" <(b) (6)

Date: Fri, 10 Feb 2023 09:00:49 -0500

Attachments: 26 January 2023_Meeting SOC_OMB-ONCD-CISA Monthly.pdf (193.29 kB)

Hi All,

My apologies for the delay in sending the meeting summary of conclusions. Please find the document attached. We'll look to scheduling the next monthly in the end of February/early March.

V/r,
-Lisa N. Barr

-----Original Appointment-----
From: CSD Executive Assistant Director Scheduler
<(b) (6)
Sent: Friday, January 13, 2023 9:53 AM
To: CSD Executive Assistant Director Scheduler; Dudley, Drenan E. EOP/NCD; Goldstein, Eric (He/Him); Hartman, Matthew (He/Him); Duffy, Michael; Herckis, Mitch D. EOP/OMB; Barr, Lisa N. EOP/NCD; Higgins, Neal L. EOP/NCD; DeRusha, Chris J. EOP/OMB; Mill, Eric R. EOP/OMB; Beckel, Sarah; Romans, Clayton; Roebuck, Jermaine (He/Him); Gross, Martin; Yuhasz, Amy; Conley, Alyson (She/Her); Hartsook, Shelly; Mergen, Margaret C. EOP/OMB; Abrams, Andrew D. EOP/OMB; Butera, Christopher (He/Him); Polk, Nick J. EOP/OMB; Muniz Rodriguez, Christian A. EOP/NCD; Radesky, Sandra (She/Her); Thompson, Robert; Gazlay, Jay (He/Him); LYUBLANOVITS, SHONDREA; Shaw, Robert; Bokan, Branko; Isaac, Kim; Bowen, Ethan; Petrianni, Peter; Cohen, Natasha
Cc: Olamide, Simisola (CTR); Mireles-Beuze, Analia J. EOP/OMB; Rodriguez, Drew J. EOP/OMB; Croce, Joseph A. EOP/NCD; Stupak, Philip M. EOP/NCD; CSD Front Office Scheduling; Presman, Dylan T. EOP/NCD; RUSCHMAN, ALEXANDRIA; Sardo, Valerie (CTR); Smith, Jazmine (CTR); Dasher, Grant; Lee, Michaela A. EOP/NCD; Jang, Yejin EOP/OMB
Subject: CISA/ONCD/OMB Monthly Sync
When: Thursday, January 26, 2023 11:00 AM-12:00 PM (UTC-05:00) Eastern Time (US & Canada).
Where: Microsoft Teams Meeting

DO NOT FORWARD OR COPY THIS INVITATION
If there are any questions, please contact (b) (6)

Attendees:

- Eric Goldstein, CISA
- Matt Hartman, CISA
- Sandy Radesky, CISA
- Jay Gazlay, CISA
- Mike Duffy, CISA
- Shelly Hartsook, CISA
- Chris Butera, CISA
- Sarah Beckel, CISA
- Clayton Romans, CISA
- Jermaine Roebuck, CISA
- Bobby Thompson, CISA
- Martin Gross, CISA
- Amy Yuhasz, CISA
- Alyson Conley, CISA
- Shondrea Lyublanovits, CISA
- Robert Shaw, CISA
- Branko Bokan, CISA
- Kim Isaac, CISA
- Peter Petrianni, CISA
- Ethan Bowen, CISA
- Natasha Cohen, CISA
- Chris J. DeRusha, EOP/OMB
- Mitchel D. Herckis, EOP/OMB

- Eric Mill, EOP/OMB Senior Advisor
- Lisa N. Barr, EOP/NCD
- Neal L. Higgins, EOP/NCD
- Maggie Mergen, OMB
- Andrew Abrams, EOP/OMB
- Nick Polk, EOP/OMB
- Drenan Dudley, EOP/NCD
- Christian Muniz, EOP/NCD

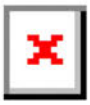
Objective: Monthly recurring meeting with CISA, ONCD, and OMB leadership teams.

Briefing Materials: N/A

Microsoft Teams meeting

Join on your computer, mobile app or room device
Click here to join the meeting

Meeting ID: 215 200 166 196
Passcode: SuKvgA
Download Teams | Join on the web



* * * * * U.S. Department of Homeland Security * * * * *

Learn More | Meeting options

Monthly Meeting: OMB, ONCD and CISA
Summary of Conclusions

DATE: Thursday, January 26, 2023
TIME: 11:00am – Noon ET
LOCATION: MS Teams
ATTENDEES: OMB, ONCD, CISA

BOTTOM LINE UP FRONT (BLUF)

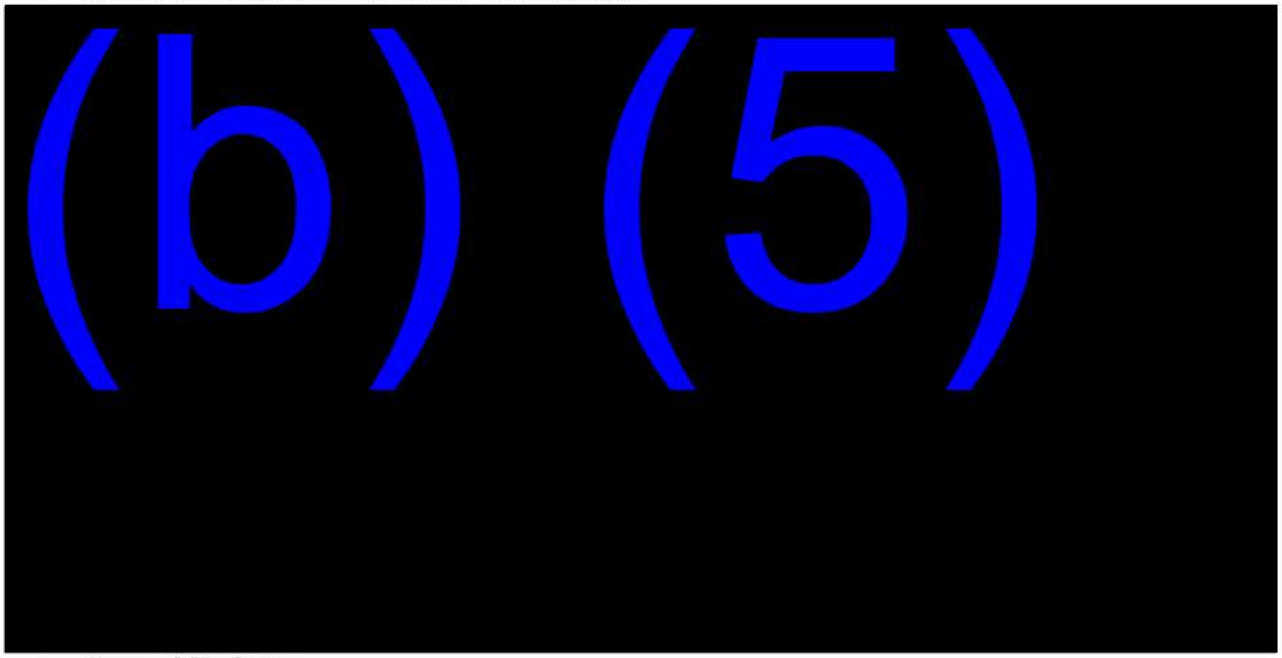
Monthly sync to coordinate shared initiative(s) and elevate decisions, risks, and issues for OMB, ONCD, and CISA leadership

OBJECTIVES/DESIRED OUTCOME OF MEETING:

- Agreement on priorities and upcoming activities
- Shared knowledge and visibility of initiatives
- Cohesive leadership decision-making

DISCUSSION POINTS:

- Priority/Hot Topics – 10 Minutes
  -
- Areas for Cross-collaboration – 20 Minutes



- General Updates:
  - National Cybersecurity Strategy Rollout/update – Brief update/overview provided on the current state of NCD.

  - TikTok prohibition and implications across government – Brief update provided on the status of the TikTock memo.
  - WH Summit Spring 2023– Beyond PIV/Identity management – Brief update provided on an upcoming/planning WH summit in May 2023 focusing on moving beyond PIV and working with industry on alternate phishing resistant MFA mechanisms.
- Key Decision Points, Risks and Issues – N/A
- Walk-through Cross-Coordination Tracker – N/A
- Close out

ACTION ITEMS

CISA to convene small group to work on developing a plan to address logging challenges with M-21-31 [Action: CISA to report status and updates at next Monthly.]

Next Monthly Meeting: February 2023

[MSC] Intel Update - 14 February 2023

From: "Manteghi, Amir D. EOP/NCD" (b) (6)
To: "Walden, Kemba E. EOP/NCD" <(b) (6) >, "Leiserson, Nick J. EOP/NCD" <(b) (6) >, "Suarez, Amanda R. EOP/NCD" <(b) (6) >
Cc: "Ring, Haley A. EOP/NCD" <(b) (6) >, "Chang, Caroline EOP/NCD" (b) (6) >, "Stupak, Philip M. EOP/NCD" <(b) (6) >, "Higgins, Neal L. EOP/NCD" (b) (6) >, "Todoroff, Joel D. EOP/NCD" (b) (6) , "Krejsa, Harry H. EOP/NCD" <(b) (6) >
Date: Tue, 14 Feb 2023 01:30:21 -0500
Attachments: 1. ONCD Intelligence_Update_MSC_02.14.23.pdf (371.48 kB); 2. REUTERS Chinese mobile masts loom over the Munich Security Conference.pdf (223.29 kB); 3. EFIS_ENG-report_2023_reduced.pdf (5.81 MB); 4. FA_commercial_spyware.pdf (1.47 MB)

Kemba, Nick, Amanda,

Starting a rhythm to provide unclassified "intelligence and analysis" updates that should sustain you in various MSC conversations. As you know, many of your counterparts will have dedicated intel staff with them to perform this function; driving morning updates via feedback from evening team debriefs. However, Joel and I will do our best to flag appropriate material remotely to hopefully ensure the team's success. And, since the team will not have secure comms, unclass will be the best we can do this time around, which I think, for the most part, is sufficient.

Attached is the first version, with additional referenced attachments for deeper reading, as time permits, given your first day is a travel day with more time to read. Updates should land in your queues around 7AM, (late evenings EST) FWIW. If you have additional information needs, as we move forward, send them over.

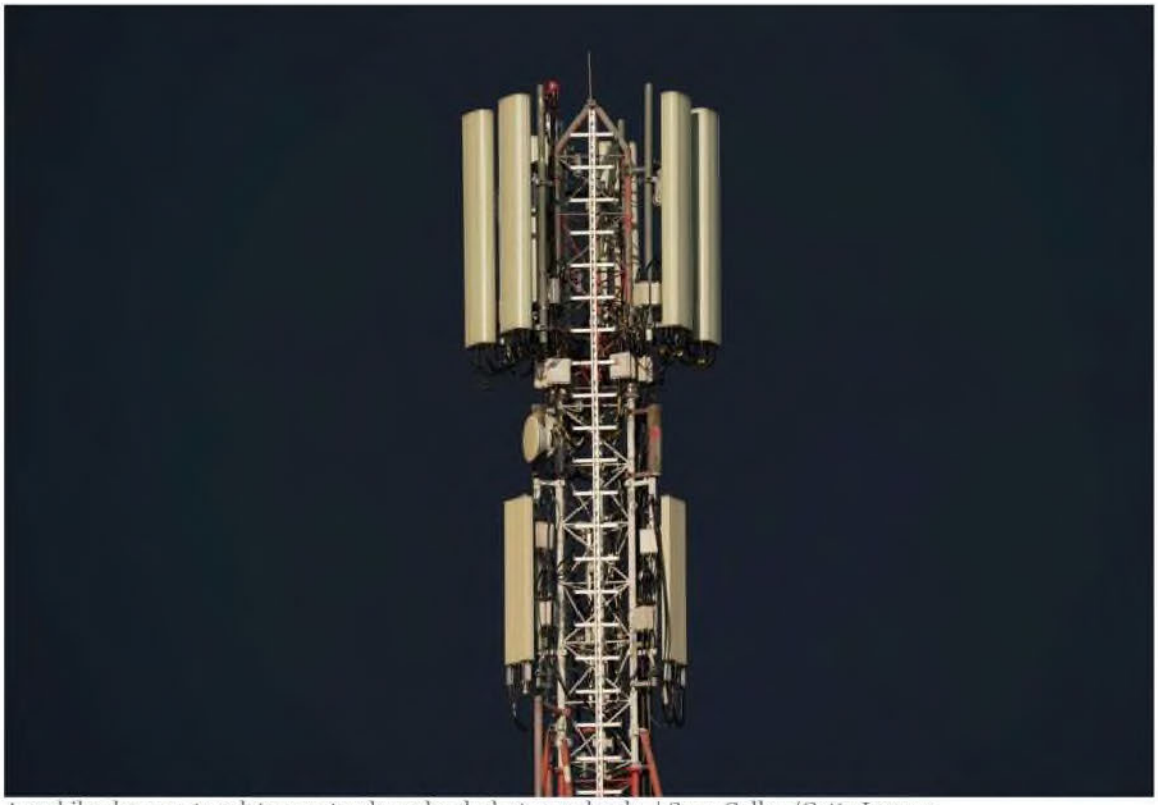
Safe travels,
Amir + Joel

Amir Manteghi
Director for Intelligence Support
Office of the National Cyber Director
(b) (6)
(b) (6)

POLITICOPRO

Chinese mobile masts loom over the Munich Security Conference

BY LOUIS WESTENDARP, ANTOANETA ROUSSI, LAURENS CERULUS
02/13/2023 04:39 PM EST



A mobile phone network tower stands under dark storm clouds. | Sean Gallup/Getty Images

MUNICH — As the world's security elite gathers in Munich this week, they'll be connecting their mobile phones to Chinese telecoms equipment surrounding the venue.

Heads of state, security chiefs, spooks and intelligence officials head to Germany on Friday for their blue-riband annual gathering, the Munich Security Conference. On the event's VIP list are U.S. Vice President Kamala Harris, German President Olaf

NCD008FY23023_000000389

Scholz, French President Emmanuel Macron and hundreds more heads of state and government, ministers and foreign dignitaries.

The gathering takes place at the five-star Hotel Bayerischer Hof. From its ice-themed Polar Bar on the hotel's rooftop, you can overlook the city's skyline, spotting multiple telecommunications antennas poking between church steeples. Some of these antennas, within 300 meters of the hotel, are equipped with hardware supplied by controversial Chinese telecoms giant Huawei, POLITICO has learnt through visual confirmation, talks with several equipment experts and information from industry insiders with knowledge of the area's networks.

One mast, on top of the Hotel Bayerischer Hof building itself, is also potentially equipped with Huawei gear, talks with two industry insiders suggested.

The question of whether to allow Chinese 5G suppliers into Western countries in past years became a bone of contention between Berlin on the one hand and Washington and like-minded partners on the other. This week's gathering also comes as the U.S. continues to call out Germany's economic reliance on Beijing, with a new report showing the German trade deficit with China exploded in 2022, and amid sky-high tensions between Washington and Beijing over surveillance balloons hovering over the U.S., Canada and elsewhere.

"The dependence on Huawei components in our 5G network continues to pose an incalculable security risk," said Maximilian Funke-Kaiser, liberal member of the German Bundestag and digital policy speaker for the government party Free Democratic Party (FDP).

"The use of Huawei technology in the mobile network here runs counter to Germany's security policy goals," Funke-Kaiser said, calling the vendor's involvement in German 4G and 5G "a mistake in view of the Chinese company's closeness to the state."

Huawei has consistently denied posing a security risk to European countries.

Delving into data

Despite extensive reporting, POLITICO was unable to gather on-the-record confirmation of which vendor's telecoms equipment was used for which masts. Operators and vendors refused to disclose the information, citing contractual obligations, and local authorities said they didn't have the information available.

The security risks associated with Huawei equipment also vary, and differ even among close allies in the West. Some capitals argue the real risk of Chinese telecoms equipment is the overreliance on a Chinese firm in an unstable geopolitical situation — much like Europe relied on Russian gas for its energy needs.

But others argue that the risk runs deeper and that China could use Huawei's access to equipment and data in European mobile networks — especially in areas of critical importance and high sensitivity — to put the West's security at risk. Huawei has been implicated in a number of high-profile espionage cases, including at the African Union Headquarters.

When asked about Huawei's presence in Munich, Mike Gallagher, a Republican and Chairman of the U.S. House select committee on China, said POLITICO's findings were "troubling" and "should concern every individual attending the conference."

The chair of the U.S. Senate intelligence committee, Mark Warner, a Democrat who's attending the conference, said it was "a timely reminder that we must continue to work with like-minded allies to promote secure and competitively priced alternatives to Huawei equipment."

U.S. Senate intelligence committee Vice Chair Marco Rubio (Republican, Florida) said U.S. diplomats "should be aware of the risks and take necessary precautions."

Munich networking

From a 2007 speech by Russia's Vladimir Putin to U.S. President Joe Biden's virtual address at the start of his mandate in February 2021, the conference strives to set the global diplomatic and international relations agenda. Its organizers see it as an open space for debating geopolitics and world affairs, with attendees ranging from across the world and an advisory board where Chinese state officials sit alongside Western diplomats and titans of industry.

The conference's guest list reveals something else too: The gathering is seen as critical by U.S. government officials. This year, the U.S. is sending its largest delegation yet, with Harris flanked by dozens of government officials, security chiefs and congresspeople, including Democrat leader Chuck Schumer, Republican leader Mitch McConnell and others.

For these U.S. attendees — and the Western partners that see eye to eye with the U.S. position on China's telecoms giant Huawei — the networks around the premises prove troublesome.

An online map on the website of Germany's telecoms agency, the Bundesnetzagentur, shows 13 locations for masts and antennas surrounding the Hotel Bayerischer Hof. The agency also provides information about which of the country's three main operators — Deutsche Telekom, Vodafone and Telefónica — use which locations.

POLITICO shared photos of seven masts near the hotel with four experts specialized in telecoms radio access network (RAN) equipment. These experts established that at least two were equipped with gear of Chinese telecoms giant Huawei.

If a network operator has one mast equipped with Huawei in Munich, it likely equips all masts in the area with the same vendor, two industry insiders said. Operators usually use one provider for larger areas. This means at least one other location is also likely equipped with Huawei gear, the insiders said. Three other locations, including the mast on the roof of the conference venue, are used by an operator using Huawei equipment but those locations are part of infrastructure that is shared by several operators, meaning there's a chance these are equipped with Huawei gear but it's unconfirmed.

The findings are in line with recent reports on Germany's telecoms infrastructure.

Europe's largest economy is a stronghold for Huawei in the West. A report by boutique telecoms intelligence firm Strand Consult estimated that Germany relies on Chinese technology for 59 percent of its ongoing 5G network deployment. The country already had a massive reliance on Chinese equipment in its 4G network, where Strand estimated Huawei accounts for 57 percent.

"If you look at the percentage of Chinese equipment in Germany, you could say it is the most unsafe country in Europe," said John Strand, founder of Strand Consult. "Welcome to the Munich Security Conference: We can't guarantee your security," he quipped.

Black hole of telecoms intelligence

Establishing with certainty just how many of the 13 masts are equipped with Chinese telecoms gear is extremely difficult. Both German operators and their vendors have a policy to not communicate what equipment they're using in which locations, citing contractual obligations on confidentiality.

Deutsche Telekom and Vodafone confirmed that they use Huawei in their German antenna networks. Telefónica said they use "a mix of European and international network suppliers" in Germany. Yet, all declined to comment on whether they use Huawei in Munich.

Ericsson, Nokia and Huawei all declined to comment on whether they were providing gear in the greater Munich area, referring questions to the local operators.

Government regulators, too, divulge no details of which suppliers provide gear for certain locations. The Federal Network Agency and the Federal Office for Information Security admitted they don't know which equipment is fitted to which mast; both referred to the interior ministry for answers. The interior ministry said it "does not usually know which critical components are installed on which radio mast in detail."

The Hotel Bayerischer Hof forwarded questions about mobile infrastructure on its roof to the security conference's organizers.

The Munich Security Conference itself said in a statement: "As a matter of principle, we do not comment on the exact details of the infrastructure used for the main conference in Munich. We are in close contact with all relevant authorities in order to secure the conference venue, the participants and the digital space accordingly."

The Federal Office for Information Security (BSI) does provide its own security networks for official events, but the Munich Security Conference is "outside the responsibility of the BSI," the BSI said in an email.

Germany's telecoms ambiguity

Through its 5G equipment it is feasible for Huawei to spy on users of a network or to disrupt communications as the very design of 5G makes it harder to monitor security, the head of the U.K.'s intelligence service MI6, Alex Younger, said to an audience in his second public speech.

But John Lee, director of the consultancy East-West Futures and an expert on Chinese digital policy, said it's "not a clear cut technical case" as to whether Huawei equipment in current telecoms networks represents a material security risk.

"Some non-Western countries are proceeding to upgrade their telecoms infrastructure with Huawei as a key partner," Lee said. "This is still mainly a political issue of how much suspicion is placed on the ambitions of the Chinese state and its relationship with Chinese companies."

In an effort to coordinate a common approach to vendors, the EU developed "5G security toolbox" guidelines in 2019 and 2020 to mitigate security risks in networks. Some major European countries, including France, have imposed hard restrictions for their operators, including by limiting the use of "high-risk vendors" — a term widely understood across Europe to be Chinese vendors Huawei and ZTE — in certain strategic geographic areas.

In Germany, however, policymakers took years to agree on their framework for 5G security. In April 2021 — more than a year after the EU's joint plan came out — it passed measures that allowed the government to intervene on operators' contracts with Chinese vendors.

But those interventions haven't barred the use of Huawei in certain geographical areas yet.

And the interior ministry — which has veto power to ban or recall certain components if they see them as an "impairment of public order or safety" — hasn't intervened much either, a ministry spokesperson said via email.

Up till now, the spokesperson said, specific orders to cut Huawei from German networks "have not been issued."

Alex Ward, Maggie Miller and Tristan Fiedler contributed reporting.

INTERNATIONAL SECURITY AND ESTONIA 2023

Estonian Foreign Intelligence Service

NCD008FY23023_000000388

INTERNATIONAL SECURITY AND ESTONIA 2023

Estonian Foreign Intelligence Service

NCD008FY23023_000000388

FOREWORD

DEAR READER,

You are holding the eighth edition of the Foreign Intelligence Service's annual report, the first I have the honour to present as Director General. At a time when Europe is witnessing its biggest war since 1945, the thirst for intelligence services' situation reports and analyses has grown. We seek to fulfil our role to the best of our ability.

In last year's report, we wrote that Russia would create the conditions and capabilities necessary to launch a large-scale military offensive against Ukraine in the second half of February 2022. Unfortunately, that is what happened.

Russia has so far failed in its war of aggression. It attacked Ukraine with a plan for a quick coup based on absurd assumptions and a manipulated intelligence picture. In the first months of the war, the Ukrainians destroyed a significant part of the best units of the Russian army, which, as the war drags on, has led to Russia's critical need for mobilised troops, private military companies and arms from pariah states. The war strangles the Russian economy and raises the temperature in otherwise apolitical Russian society. The Russian elite is increasingly discussing whether "the First Person has gone mad", but most of them lack the courage to take real steps towards change. Russia's stubbornly imperialist stance towards its neighbours persists, and Russians' fear of mobilisation surpasses their sense of responsibility for the genocide committed by their compatriots.

Despite setbacks and risks, Vladimir Putin's goal in Ukraine has not changed by early 2023. For now, there is still enough fuel to keep the war machine going – Russia will not run out of cannon fodder, Soviet-era armaments or propaganda-induced imperialism any time soon. However, a quality leap in Russia's war-fighting capability is very unlikely. Putin is playing for time, believing that Ukraine and the West will wear out before Russia. Putin thinks he can "bomb" Ukraine to the negotiating table.

Internally, Russia has become Soviet Union 2.0, drawing inspiration from Stalinist repression, Khrushchevian sloganeering and Brezhnevian stagnation. Paradoxically, in Russia today, Putin's regime is simultaneously the strongest and the weakest it has ever been. But there seems to be no new Gorbachev, not to mention Yeltsin, on the horizon. The democratic world should not harbour illusions that post-Putin Russia will embrace democratic values any time soon.

This year's report also discusses the course change in Russian foreign policy. Russian diplomats, led by Foreign Minister Sergei Lavrov, were caught off guard by the war in Ukraine. Realising that it lacks influence on strategic issues has led the Russian foreign ministry's morale to decline. Russia has given up on the West for the foreseeable future and is seeking new friends, mainly in Africa and Asia.

Once again, we will also look at China. Under the leadership of Xi Jinping, who started his third term and secured absolute power, China is moving towards deepening authoritarianism and confrontation with the West. Russia plays an important role in China's global ambitions, and the two countries agree on many points. Therefore, it would be a mistake to take Xi's restrained support for Putin's war in Ukraine as a sign that China is distancing itself from Russia.

The Foreign Intelligence Service celebrated its 30th anniversary a few months ago. With our domestic and international partners, we continue to work to ensure that the Estonian leadership and our allies have the best information on the security situation and sufficient advance warning. And to ensure that Ukraine wins.

Bravely onward and *Sláva Ukrayíni*!

Kaupo Rosin
Director General, Estonian Foreign Intelligence Service
31 January 2023

TABLE OF CONTENTS

1. CHAPTER: RUSSIAN ARMED FORCES AND THE WAR IN UKRAINE 9

- Russia's War Against Ukraine 10
- Russian Armed Forces Near The Estonian Border 12
- Russia Continues To Look For A Weak Link In Ukrainian Cyberspace 14
- Belarus As A Foothold In The Ukrainian Conflict 18
- Russian Administration In The Occupied Territories Of Ukraine 21

2. CHAPTER: RUSSIAN FOREIGN POLICY 25

- 'Regrouping' Of Russian Foreign Policy 26
- A Paper Tiger In The Caucasus 30
- Russia's African Policy 32

3. CHAPTER: RUSSIAN DOMESTIC POLITICS AND ECONOMY 37

- Russia's Domestic Political Situation 38
- The Russian Economy 42

4. CHAPTER: RUSSIAN SPECIAL SERVICES 47

- Covers Used By Russian Intelligence Services 48
- The Russian Special Services' Support To President Putin 52

5. CHAPTER: RUSSIAN INFLUENCE 55

- The Candle Of The 'Russian World' Is Burning Out 56

6. CHAPTER: CHINA 61

- China's Global Embrace 62
- China's Calculations On Attacking Taiwan 64
- Chinese-Russian Relations In The Context Of The War In Ukraine 66

EXECUTIVE SUMMARY

1. The Ukrainians' will to defend, the capabilities of their Armed Forces, and Western unity in supporting Ukraine surprised the Kremlin. Despite this, Russia's strategic goal remains the same: subjugating Ukraine and changing the European security architecture. *Read more in chapters 1.1, 2.1*

2. Russia believes that time is on its side. To keep the war machine going, Russia is ready raise the stakes. Russia seems to believe it can "bomb" Ukraine to the negotiating table. *Read more in chapter 1.1*

3. Russia's belligerence has significantly increased the security risks for Estonia, and the large-scale exercise Zapad 23 may further strain the situation in the Baltic Sea region. Russia still has enough strength to exert credible military pressure in our region. *Read more in chapter 1.2*

4. Russia supports its military efforts in Ukraine by using cyber tools against Ukraine and the countries that support it. Its activities in cyberspace have not yielded the results Russia had hoped for, but we must remain vigilant. *Read more in chapter 1.3*

5. The Russian special services officers hide behind various "covers". A tried-and-tested cover organisation used abroad is the Russian Orthodox Church, which the Kremlin also operates as an instrument of influence against Ukraine and the West. *Read more in chapters 4, 5*

6. Belarus has provided logistical and material support to Russia in the war against Ukraine, but the Belarusian Armed Forces have not yet intervened in the military operations in Ukraine and do not wish to do so in the future. *Read more in chapter 1.4*

7. Russia is moving towards a total dictatorship. The prospects for the current regime collapsing and the country democratising are slim despite the problems caused by the war and Western sanctions. On the contrary, an even more radical faction is rising to the fore in Russia's ruling elite. *Read more in chapter 3.1*

8. In foreign policy, Russia has its stakes on creating a geopolitical coalition of authoritarian regimes opposed to the West who share a mistrust of Western policies and values. Diplomatic resources are being diverted from the West to other regions. *Read more in chapter 2.1*

9. Russia's military credibility in former Soviet territories has weakened because Russia has failed to provide the security guarantees promised within the CSTO framework, and its Armed Forces have been unsuccessful in Ukraine. In Africa, however, Russia sees its best opportunities precisely in the field of security. *Read more in chapters 2.2, 2.3*

10. Under Xi Jinping, China is moving towards deepening authoritarianism and no longer hides its ambition to become a global superpower. China's efforts to build a community of like-minded countries opposed to the West under the banner of the Global Security Initiative – which would also include Russia – undermines Estonia's security. *Read more in chapter 6*

CHAPTER 1

RUSSIAN ARMED FORCES AND THE WAR IN UKRAINE

8

NCD008FY23023_000000388

RUSSIA'S WAR AGAINST UKRAINE

Subjugating Ukraine and reshaping European security architecture remains Russia's strategic objective.

Russia believes time is on its side in the war as Ukraine and its partners are less prepared to sustain a drawn-out conflict.

Russia plans to mobilise additional resources to support its military action, continuing the war into 2023.

The invasion of Ukraine, which began in the early hours of 24 February 2022, is a continuation of Russia's almost nine-year-old aggression against Ukraine. Russia's strategic objective – to subjugate Ukraine and thereby decisively reshape European security architecture – has not changed over time.

Russia is ready to continue raising the stakes in Ukraine through further mobilisation or expanding terror tactics against the civilian population.

As with the covert invasion of 2014, Russia's plan to subjugate Ukraine in early 2022 was based on false assumptions and biased intelligence: Ukrainians' will to defend, the combat capabilities of the Armed Forces and the widespread Western support for Kyiv were completely unexpected for Russia. A lack of alternative courses of action also aggravated the situation for the Russian Armed Forces. This was probably due to unusually rigid operational security requirements, which meant the headquarters of some of the units of the Russian Armed Forces deployed close to the Ukrainian border were unaware of the imminent invasion and did not prepare appropriate plans for combat support and combat service support for the invasion. The Russian Armed Forces' plan to occupy Kyiv, overthrow the Ukrainian government and take control of the territory proved unfeasible, at least within the expected timeframe and with the units available.

Since realising the impracticability of the initial course of action, Russia has decisively adjusted its plans twice to avoid defeat and try to regain the initiative: first, in March and April 2022, by withdrawing from northern Ukraine and focusing on invading eastern and southern Ukraine, and second, in September, when Russia announced mobilisation. Both actions exemplify Russia's readiness to escalate and, if necessary, change its plans. Russia is ready to continue raising the stakes in Ukraine through further mobilisation or expanding terror tactics against the civilian population. Whilst the use of tactical nuclear weapons in Ukraine is unlikely due to international opposition and low military effectiveness, Russia continues to keep the "nuclear card" on the table as an instrument of anti-Western leverage to instil fear of war and to dissuade Western nations from helping Ukraine.

Russia was much more ambitious in 2013-14 than the Kremlin officially admitted. According to EFIS' information, Russia planned for the occupation of 11 Ukrainian regions.

The continued readiness of Western countries to support Ukraine is, therefore, crucial to raise the cost of continuing the war for Russia.

Russia believes that time is on its side in the war in Ukraine – the Kremlin's mobilised reserves are being trained, lost military equipment is being replaced by weaponry stored in the mobilisation depots, and, at the same time, Russia is systematically destroying Ukraine's critical civilian infrastructure, hoping to break the Ukrainians' will to defend. Russia probably plans to deploy its mobilised reserves at the end of their training in the first half of 2023 in a new offensive. Despite the losses suffered and problems in producing war materials and new weapon systems, Russia intends to continue its military action against Ukraine in 2023. To this end, the Kremlin plans to mobilise additional human and industrial resources to support the military action, looking for opportunities to source arms and ammunition from other countries, such as Iran, Belarus and North Korea.

Russia's strategic objectives remain unchanged despite military defeats; the subjugation of Ukraine, the erosion of Western unity and the transformation of European security remain at the core of Russia's geopolitical ambitions. The Russia-Ukraine war will continue in 2023, given that Russia has so far lacked sincere interest in peace talks, as these would not ensure the fulfilment of the Kremlin's strategic objectives. While Putin still seems to believe that time will play in Russia's favour and he will be able to "bomb" Ukraine to the negotiating table, reality will dawn on the Kremlin sooner or later. The continued readiness of Western countries to support Ukraine is, therefore, crucial to raise the cost of continuing the war for Russia.

RUSSIAN ARMED FORCES NEAR THE ESTONIAN BORDER

A military attack against Estonia is unlikely in 2023 because Russia's military capabilities are engaged in Ukraine. However, in the mid-to-long term, Russia's belligerence and foreign policy ambitions have significantly increased the security risks for Estonia.

Mobilisation and large-scale exercises planned by Russia could further strain the security situation in the Baltic Sea region in 2023.

From the Baltic states' perspective, Russia still has enough military capability to exert credible military pressure in our region. The capabilities of the Russian Armed Forces in the immediate vicinity of the Estonian border can be quantitatively reconstituted in up to four years.

The only existential threat to the security of our region, including Estonia's sovereignty, stems from Russia. A military attack against Estonia is unlikely in 2023, as the Russian Armed Forces units based near the Estonian border are engaged in hostilities in Ukraine. At the same time, Russia's foreign policy ambitions driven by the Kremlin's belligerence and imperialism have significantly increased the security threat. If Russia were diplomatically or militarily successful in Ukraine, it would increase the risk of the Kremlin's political and military pressure on the Baltic states in the mid-2020s.

If Russia were diplomatically or militarily successful in Ukraine, it would increase the risk of the Kremlin's political and military pressure on the Baltic states in the mid-2020s.

From the first day of the war, the 76th Guards Air Assault Division and elements of the 6th Army of the Russian Armed Forces, which are responsible for covering the Estonian operational direction, have been involved in battles in Ukraine and suffered heavy losses. The mobilisation launched in September 2022 has also affected Pskov and Leningrad oblasts, with reservists mobilised in both regions and sent to combat units in Ukraine to compensate for losses. The training areas and training centres in both oblasts have also been used to train new reservist units. Although Russia's mobilisation reserves have enough equipment to form new units, finding competent personnel for the units' headquarters may be unrealistic. Many Russian Armed Forces instructors have been transferred away from the training centres to join combat units in Ukraine, which has led to a declined level of training and reduced cohesion of the mobilised units.

Due to heavy losses, the Russian Armed Forces face a significant shortage of junior and senior officers. The shortage of junior officers has been compensated for by accelerating the graduation process in military schools, which has a negative impact on the officers' qualifications. However, there are no quick fixes to make up for the shortage of senior officers.

The Russian Armed Forces plan to carry out the Zapad 2023 manoeuvres this year. The term "manoeuvre" is Russian military jargon typically used to describe a large-scale strategic exercise, that takes place in more than one strategic direction. In Russia, the Armed Forces' annual training cycle culminates with a joint strategic exercise, which rotates from year to year between the four military districts (e.g., Kavkaz 2020, Zapad 2021, and Vostok 2022), but these do not always qualify as manoeuvres in terms of scale. Zapad 2023 is not a regular part of the rotation of strategic exercises, which should have seen Tsentr 2023 taking place instead. A departure from the expected training cycle with a large-scale joint strategic exercise in the western strategic direction at the same time as the military action in Ukraine can be seen as a deterrent and threat to the West and as an incitement to patriotism among the Russian population.

From Estonia's point of view, it is important to demonstrate NATO's military readiness to dissuade Russia's temptation to test the Alliance's security guarantees.

Russia considers the Baltic states to be the most vulnerable part of NATO, which would make them a focus of military pressure in the event of a NATO-Russia conflict. Therefore, Russia is highly likely to give priority to reconstituting its military capabilities, weakened in the war in Ukraine, in the immediate vicinity of the Estonian border. The quantitative reconstitution of these units' capabilities will take up to four years. From the Baltic states' perspective, Russia still has enough strength to exert credible military pressure in our region.

From Estonia's point of view, it is important to demonstrate NATO's military readiness to dissuade Russia's temptation to test the Alliance's security guarantees. The probability of a military conflict between NATO and Russia would increase if Russia were to achieve its strategic objectives in Ukraine. Therefore, Ukraine's victory in the war against Russia would also improve regional security.

Russian Armed Forces destroy critical infrastructure and use terror tactics against the civilian population.

Source: Roman Pilipey / EPA

NCD008FY23023_000000388

RUSSIA CONTINUES TO LOOK FOR A WEAK LINK IN UKRAINIAN CYBERSPACE

Russia uses cyberattacks to support its general goals in Ukraine: to break Ukrainian resistance, undermine the government's image and disrupt the functioning of the state. Cyber espionage is likely the biggest threat stemming from cyberspace.

Russia underestimated the resilience of Ukraine's cyberspace and the help it receives from Western countries and cybersecurity companies.

Threats posted on social media and cyberattacks continue as part of the influence operations against countries that actively support Ukraine, including Estonia.

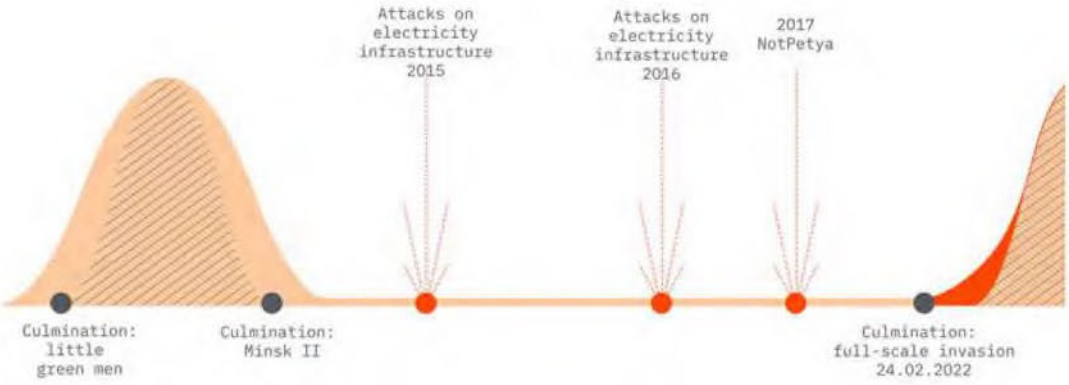
At least since the start of the Russo-Ukrainian war in 2014, Ukraine has been a constant target of cyberattacks by Russian special services.[1] Attacks intensified immediately before kinetic warfare began and continued throughout the active phase of the war. Russia mainly organised cyberattacks as part of influence operations, such as denial-of-service and defacement attacks and data leaks. One of the goals of these activities is to prevent the Ukrainian government from sharing information with its citizens, to cause fear and distrust in the state's leadership, to weaken society's resistance and to create information noise that makes it difficult to distinguish reality from disinformation. After the most active phase of kinetic warfare, Russia tried to keep the Ukrainian state weak and organised cyberattacks to disrupt critical services.[2] Low-intensity cyberattacks, mainly for intelligence purposes, were conducted until Russia again stepped up its aggressive rhetoric towards Ukraine. In January and February 2022, Russia's cyberattacks against Ukraine seemed to be aimed at supporting its general goals: to break the resistance of the Ukrainian population and create an impression of Russia's vast superiority, the hopelessness of the situation for Ukraine and the weakness of the Ukrainian state.

> From 13 to 14 January 2022, cyberattackers broke into the websites of Ukrainian state institutions and made these inaccessible to the public. During the same period, cyberattackers spread the WhisperKill/WhisperGate malware in Ukrainian computer networks.[3]

1 At least since 2014, the FSB's 18th Centre has been directing cyberattacks against Ukraine, including stealing information, https://ssu.gov.ua/en/novyny/sbu-vstanovyla-khakeriv-fsb-yaki-zdiisnyly-ponad-5-tys -kiberatak-na-derzhavni-orhany-ukrainy.

2 In December 2015 and 2016, the GRU carried out cyberattacks on Ukraine's energy sector, which led to several-hour power outages in Western Ukraine. In 2017, the GRU organised the NotPetya cyber operation to make Ukrainian government agencies' data unusable. https://www.wired.com/story/sandworm-kremlin-most-dangerous-hackers

3 https://cert.gov.ua/article/18101; https://ssu.gov.ua/en/novyny/sbu-rozsliduie-prychetnist-rosiiskykh-spetssluzhb-do-sohodnishnoi-kiberataky-na-orhany-derzhavnoi-vlady-ukrainy; https://www.ncsc.gov.uk/news/russia-behind-cyber-attack-with-europe-wide-impact-hour-before-ukraine-invasion; 27 April 2022, Microsoft, Special Report: Ukraine. An overview of Russia's cyberattack activity in Ukraine.



From 15 to 16 February 2022, denial-of-service attacks took place against the websites of Ukrainian state institutions and banks.[4]

A few hours before the reactivation of kinetic warfare, cyberattacks against Ukraine suddenly increased even more.

On 23 February 2022, denial-of-service attacks took place against the websites of Ukrainian state institutions and banks.

From 23 to 25 February 2022, cyberattackers installed several types of malware in Ukrainian information systems, which can disrupt computer use or make data on the computer inaccessible. For example, on 23 February, the GRU installed the destructive HermeticWiper malware in the information systems of Ukrainian government agencies, the IT sector, and the energy and financial sectors. On 24 February, it conducted a cyberattack on Viasat's subsidiary KA-SAT by installing the AcidRain malware in the latter's information system.[5]

While the West distinguishes between cyberattacks and influence operations, Russia interprets them as a single concept – information confrontation (*информационное противоборство*). This Russian Armed Forces' doctrine consists of three main components: exerting informational, technological and psychological influence on another country, and protecting Russia itself from such influences.

It is possible that specific cyberattacks against energy, water supply or other similar critical infrastructure,[6] which would lead to long-term service interruptions, were not organised early on because Russia expected to achieve its military objectives quicker and wanted to maintain the support of the local population.

4 An overview of Russia's cyberattack activity in Ukraine. 27 April 2022, Microsoft, Special Report: Ukraine.
5 https://www.sentinelone.com/labs/acidrain-a-modem-wiper-rains-down-oneurope/
6 An attack on the specific industrial control information systems, which are used for vital services such as energy and water supply, is somewhat different from attacking ordinary information systems. Simply put, these information systems are built differently. The Industroyer2 malware was specially developed to attack industrial control information systems, and the GRU probably used it on 8 April 2022 against the Ukrainian energy sector. https://www.welivesecurity.com/2022/04/12/industroyer2-industroyer-reloaded/

Despite failing to occupy Ukraine in a few days as originally intended, Russia continued its cyberattacks against Ukraine. These were more frequent during certain periods. For example, Ukrainian cyber defenders working with cybersecurity companies repeatedly detected destructive malware over a period of about 30 days from the second half of March. Cyberattacks started to gain momentum again in the autumn.[7] Cyberattacks to obtain information have continued.[8] Cyber espionage is likely the biggest threat stemming from cyberspace. Stolen information can effectively be used as input to Russian special services' operations and influence activities.

> During the war, Russia has used several destructive malware repeatedly. On 11 October 2022, Microsoft detected the CaddyWiper malware in the critical infrastructure of the Mykolaiv and Kyiv regions. The cybersecurity company ESET detected this malware for the first time on 14 March 2022 in the information system of a Ukrainian bank.[9]
>
> On 14 October 2022, Microsoft identified the Prestige ransomware in the information system of Ukrainian and Polish logistics and transport companies.

In 2022, cybersecurity researchers identified at least nine types of destructive malware in Ukrainian cyberspace that have attempted to disrupt services (ENISA Threat Landscape 2022, p. 25; Recorded Future, 2022). Destructive malware makes a computer unusable by corrupting programs or data. Ransomware that encrypts data without the possibility of decrypting, such as Prestige, can be used to the same end. Such an amount of destructive malware has never been observed anywhere in such a short period of time. This shows that Russia is capable of quickly developing new malware.

Russian cyberattacks, like the actions of its armed forces, are likely aimed at wearing down Ukraine's cyber defenders and then finding the weakest link that would help achieve Russia's overall military goal – to wear down Ukraine, damage the international image and credibility of the Ukrainian leadership, reduce aid from allies, and undermine the society's morale. Therefore, a cyberattack need not actually disrupt an information system, as with each attack, investigators have to spend human and time resources to check whether and how extensively the information system has been attacked, how to improve defence, etc.

Russia underestimated the resilience of Ukraine's cyberspace and the help it receives from Western countries and cybersecurity companies. Despite denial-of-service attacks on the websites of state institutions to disrupt the flow of information, among other things, the Ukrainian government has found alternative ways of communication, for example, using social media. Using Starlink devices also plays an important role in maintaining civilian and military communications. Cybersecurity companies have been helping Ukraine defend its cyberspace since 2014. Aid intensified during the full-scale Russian invasion and, with allied support, was likely instrumental in ensuring the resilience of Ukraine's cyberspace. Russia's influence operations in cyberspace have not had the expected effect. Ukrainian society remains united and trusts its government despite threats posted on social media and data leaks.

7 On detected cyberattacks, see e.g. https://blogs.microsoft.com/on-the-issues/2022/12/03/preparing-russian-cyber-offensive-ukraine/
8 https://www.wired.com/story/russia-ukraine-cyberattacks-mandiant/
9 https://twitter.com/ESETresearch/status/1503436420886712321

Russian cyberattacks go beyond the territory of Ukraine. Pro-Kremlin cyberattackers threaten the cyberspace of countries that support Ukraine, including Estonia, Latvia, Lithuania and Poland. In the active phase of kinetic warfare, they have attempted to intimidate societies with threats on social media, denial-of-service attacks and data leaks. Their activities support Russian special services' influence operations.

> From 16 to 17 August 2022, denial-of-service attacks took place on the information systems of Estonian companies and state institutions.[10] Pro-Russian hacktivists took responsibility for these cyberattacks and claimed to have attacked 207 targets in Estonia.[11] In fact, they just copied a list of services where the Smart-ID app can be used, and actual attacks were not carried out against all these targets.

Russia uses cyberattacks to support its strategic objectives (e.g., causing fear and weakening society's resistance to the aggressor, disrupting the functioning of the state, and creating information noise to make it difficult to distinguish reality from disinformation). The Russo-Ukrainian war confirms that cybersecurity measures[12] make it possible to withstand cyber espionage, cyber sabotage and influence operations.

Instrument of Attack	Purpose	Protective Measure
defacement attacks	• intimidation/threatening • creating confusion • disrupting information flow	Website software update. When outsourcing a website, make sure the provider diligently implements cybersecurity measures. If defaced, use alternative information channels if possible, such as social media. Main targets: media, state institutions (mediators of crisis information), website providers
denial-of-service attacks	• disrupting information flow • intimidation	Protection against denial-of-service attacks (see RIA suggestions)[13]
social media posts	• intimidation/threatening	Check the information against reliable sources and be critical of sources. See advice on the conduct of information warfare from the website kriis.ee
data leaks	• damage to reputation (reduce help from allies and intelligence sharing)	Think carefully about what information you share and with whom. Make sure your shared information is kept secure, and the recipient keeps the shared information in an environment where cybersecurity best practices are implemented.
data encrypting malware	• disrupting the functioning of the state • intimidation	Back up data properly
destructive malware	• disrupting the functioning of the state • intimidation	Keep your software updated. Implement cybersecurity best practices. Back up data properly
cyber intelligence (phishing, brute force attacks, exploitation of security vulnerabilities)	• information gathering • leaking stolen information out of context, combined with fabricated information	Keep your software updated. Implement cybersecurity best practices. Get cyber hygiene training

10 https://www.ria.ee/en/news/ddos-attacks-16th-and-17th-august-targeted-around-20-websites
11 https://www.runews24.ru/society/17/08/2022/a66e4f36646d32e3bb459604947b3390?
12 See recommendations for cybersecurity measures on the Estonian Information System Authority (RIA) website at https://www.ria.ee
13 https://www.ria.ee/kuberturbe-nouanded/nouanded-asutusele-ja-ettevottele/teenusetokestusrunde-ennetus

BELARUS AS A FOOTHOLD IN THE UKRAINIAN CONFLICT

Contrary to Russia's wishes, Belarus has not sent its army units to Ukraine.

By supporting Russia morally, materially and logistically, including by allowing the free use of its territory for manoeuvres and strikes against Ukraine by Russian forces, Belarus hopes to reduce Russian pressure to intervene militarily in the war in Ukraine.

The Belarusian Army's direct involvement in the Ukrainian conflict would be a political gesture with no significant strategic impact on the course of the war.

In January and February of 2022, units of Russia's Eastern Military District arrived on the territory of Belarus as part of the Union Resolve exercise, which was an unexpected and unusual step in the context of Russian-Belarusian military cooperation. The large-scale Zapad exercise had ended in the autumn of 2021. While units of the Russian 1st Guards Tank Army have previously been in Belarus as part of the Russian-Belarusian combined Zapad and Union Shield exercises (they form the Regional Grouping of Forces with the Belarusian army in times of crisis or war), units of the Eastern Military District had no previous contact or cooperation experience with the Belarusian Armed Forces. Also, no one had heard of the Union Resolve exercise.

Since the Kyiv operation, the Russian army has enjoyed complete freedom of action and movement on the territory of Belarus.

All this took place while Russia was massing strike units along the Ukrainian border amidst a general atmosphere of preparing for war. Belarusian representatives promised the exercise posed no threat to Ukraine and that all Russian units would leave Belarus after its end. However, the exercise was just a smokescreen – in the early hours of 24 February, Russian manoeuvre units entered Ukraine from Belarus and launched an attack on Kyiv. This probably came as a surprise even to the Belarusian leadership, as the Kremlin kept Alyaksandr Lukashenka in the dark about its real plans until the very last moment. The attack on Kyiv stalled and ended with the retreat of Russian units to Belarus and their relocation to a new operational area in eastern Ukraine in April. After the Russian manoeuvre units left, some military aircraft and air defence systems stayed in Belarus.

Since the Kyiv operation, the Russian army has enjoyed complete freedom of action and movement on the territory of Belarus. The Gomel region of Belarus, bordering Ukraine, essentially became a large Russian logistics and supply base during the operation. In addition, Belarus provided extensive logistical support to Russia: it allowed the use of its railways and airfields, repaired damaged equipment, treated the wounded, and supplied fuel and food. At the same time, the export of ammunition from Belarusian arsenals to Russia began in March and continues even now. In the autumn of 2022, Belarus also began to supply Russia with T-72 tanks. According to our information, Russia's Defence Ministry also demanded that Belarusian experts be sent to Russia to repair equipment damaged in the war in Ukraine.

Belarus as a foothold in the conflict in Ukraine as of January 2023.

Alongside materiel and logistics, Belarus also supports Russia's activities in Ukraine in the public information space. This is an inexpensive way for Lukashenka to demonstrate his loyalty to Vladimir Putin. The Belarusian leader's speeches contain aggressive anti-Western rhetoric and constantly draw attention to the country's contribution to protecting the border of the Union State of Russia and Belarus. The Belarusian media borrows news reports on the war in Ukraine from the Russian media and broadcasts these unchanged.

Despite pressure from Putin, the Belarusian Armed Forces have not intervened in the military operations in Ukraine and do not wish to do so in the future. The war is unpopular in Belarusian society, and reports of high casualties at the front reinforce this attitude. Belarusian Armed Forces largely rely on conscripts, and sending them to war would threaten the regime's stability. The proportion of professional (contract) soldiers is smaller than in the Russian Armed Forces; the training and equipment are rather poor. Lukashenka cannot be sure that, if sent to Ukraine, his contract soldiers would not desert or join the Belarusian volunteers fighting on the Ukrainian side. Announcing a mobilisation in Belarus carries even greater risks for the regime's security – those called to arms may turn against Lukashenka.

Putin can put pressure on the Belarusian leadership up to a point, but the collapse of Lukashenka's regime would also threaten the Kremlin. Given Russia's engagement in Ukraine, Putin is probably not interested in creating political chaos in Belarus. However, it is possible that Lukashenka will eventually be forced to send troops into Ukraine if the pressure from the Kremlin becomes too strong to withstand.

Putin can put pressure on the Belarusian leadership up to a point, but the collapse of Lukashenka's regime would also threaten the Kremlin.

In October 2022, Russian mobilised troops arrived in Belarus for training. Lukashenka can present this to the Kremlin as another contribution to the war effort while avoiding direct involvement. At the time of compiling this report, the Russian mobilised units in Belarus do not pose a direct threat to Kyiv; however, their presence in Belarus forces Ukraine to deploy some of its units to the north, pulling them away from other fronts.

The use of Russian mobilised units for a new attack on Ukraine from the north would result in heavy losses for the Russian forces. Their progress would be hindered by the mobilised troops' low motivation and training, as well as the Ukrainians' preparedness for an attack from the north. The Belarusian army's involvement in the Ukrainian conflict would be a political gesture without significant strategic impact on the developments on the ground. However, it would still tie up some of Ukraine's forces.

RUSSIAN ADMINISTRATION IN THE OCCUPIED TERRITORIES OF UKRAINE

Russia's annexation of the occupied territories in October 2022 indicates that it has no intention of voluntarily returning them to Ukraine in the future and is ready for a prolonged confrontation with Ukraine and the West.

The fake referendums on joining Russia were passed off as the will of the people remaining in the occupied territories, although the results were known well in advance.

The Russian-occupied areas are undergoing severe regression – they are being Russified and stripped of local resources. The new authorities take no interest in local life and people.

In the spring of 2022, Russia captured a large part of the Kherson Oblast and more than half of the Zaporizhzhia Oblast. With this, Russia secured a land connection with Crimea and moved closer to the goal of gaining control over the entire northern shore of the Black Sea. The quickly appointed occupation authorities, either local or sent in from Russia, began to establish what is known as the "Russian world" (*Russkiy mir*) in the conquered territories, destroying everything representing Ukraine. Preparations started for holding referendums on joining Russia, but this was not considered urgent in the first half of September.

The Russian special services, especially the FSB, play an essential role in establishing and maintaining occupation regimes.

However, the Ukrainians' successful counteroffensive in the Kharkiv region in mid-September changed the calculus for the Russians. They realised the need to quickly incorporate the territories in southern Ukraine to avoid similar failures repeating. After fake referendums staged in late September, Kherson and Zaporizhzhia oblasts and the so-called Donetsk and Luhansk people's republics were incorporated into Russia. Russia did not clearly define the borders of the annexed regions, probably in a deliberate move to retain some leeway for deciding when to declare that Russian territory has been attacked.

A "referendum" carried out the Russian way on 25 September 2022.

Source: Stringer / EPA

The Russian special services, especially the FSB, play an essential role in establishing and maintaining occupation regimes. FSB officers placed in leadership positions in the "military-civilian administrations" organise the occupied territories' integration into Russia according to Moscow's instructions. They curate local collaborators and have a significant say in personnel decisions. In the long term, the plan is to transfer power to civilian authorities loyal to Moscow, but the problem is the scarcity of suitable and reliable collaborators and the Kremlin's distrust of them. Therefore, many positions are filled with Russians or locals who are completely unknown to the residents.

Operative groups of Russian special services officers are also deployed in the occupied territories, among other things, to hunt down Ukrainian patriots and agents and gather intelligence. The same methods were used in the Ukrainian territories that came under Russian control after 2014 when the Donbas authorities and security agencies were managed through curators and special services operative groups appointed by Moscow.

The Russians are experiencing difficulties finding officials willing to work in occupied territories amidst or near hostilities. Personal safety is likely the primary concern. Specialists for reconstruction work are hard to come by, and companies that have started working in the area fear sanctions. Higher wages than usual are offered to attract people to the occupied areas.

The situation of the local leadership and residents is a secondary concern for Russia. The occupation authorities complain that applying for Russian passports is difficult, banks do not work, there is a lack of teachers, and only "Ukrainian propaganda" is broadcast on television. There is also a shortage of medicines and fears about coping in the winter.

Russia's ability to assert itself in the occupied territories has proven to be as deficient as its overall capability to threaten Ukraine.

The Kremlin has long planned the illegal annexation of the territories conquered from Ukraine. The Ukrainians' fierce resistance has stopped Russia from occupying all the desired territory. Moreover, the occupiers did not find the expected support among the local population. On the contrary, the Ukrainians living in the occupied territories have defiantly continued to resist or are looking for ways to leave. Not much effort was made to simulate the legality of the fake referendums organised in haste to legitimise the Russian occupation authorities. Russia's ability to assert itself in the occupied territories has proven to be as deficient as its overall capability to threaten Ukraine.

CHAPTER 2

RUSSIAN FOREIGN POLICY

24

NCD008FY23023_000000388

‘REGROUPING’ OF RUSSIAN FOREIGN POLICY

The demands Russia presented to NATO and the US on 17 December 2021 indicated its long-term goal of changing the fundamentals of European security. Defeating Ukraine is an essential prerequisite for this.

Putin is focusing on creating a geopolitical coalition of authoritarian regimes whose common ground is to oppose the West, democracy and the rule of law.

The invasion of Ukraine ended the Russian foreign ministry’s hopes of playing a meaningful strategic role in the country’s foreign policy planning.

THE WAR IN UKRAINE AND THE EUROPEAN SECURITY ARCHITECTURE

Russia’s full-scale war of conquest in Ukraine, which started in the early morning of 24 February 2022, shook the status quo of European security and is part of Putin’s broader goal of reshaping the European security architecture.

Putin revealed his real objectives on 17 December 2021 when Russia submitted a draft security agreement to NATO and the US, listing demands to change the fundamentals of European security, which also included Ukraine. The most important points were:

1. ending NATO’s “open door” policy
2. rolling NATO’s military deployment back to the 1997 line

On 24 February 2022, Putin began implementing his objectives with a full-scale military attack against Ukraine. Putin likely sees defeating Ukraine as a prerequisite for achieving his broader goals. Russia expected to defeat Ukraine in a matter of days. Things turned out differently because Russia had miscalculated. Russia’s systemic weaknesses – constant lying and stealing within the state apparatus – painted a false picture of the situation in Ukraine for the Russian leadership.

The demands presented to NATO and the US indicate Russia’s long-term goal of reshaping the European security environment into one where NATO would not have a leading role. With this in mind, the military pre-positioning of NATO allies in Eastern Europe, their immediate combat readiness, logistics and supply continuity is of utmost importance.

By now, Putin has made it very complicated for Russia to exit the war – from a foreign policy perspective, by illegally annexing regions of Ukraine, and in domestic policy terms, by declaring mobilisation in the country. Ukraine’s political and military capitulation remains Putin’s objective, and he will go as far as he is allowed to achieve it.

But the time frame has changed: a quick regime change has turned into a long war of attrition, with possible periods of low-intensity military action. In our assessment, Putin believes that Ukraine's resilience and Western support will break before Russia will. Still, in Putin's opinion, Ukraine has not yet currently suffered enough to reach breaking point. Part of Putin's defeat strategy is to systematically damage Ukraine's energy infrastructure during winter, and the goal is to destroy it. Continued military and economic aid from the West to Ukraine is therefore vital to avoid a humanitarian disaster for the civilian population, prevent new crimes against humanity, and ensure Ukraine's survival as a democratic state. European security in the medium term directly depends on the Ukrainians' will to determine their own future and Western unity in supporting Ukraine with all necessary means.

Ukraine's political and military capitulation remains Putin's objective, and he will go as far as he is allowed to achieve it.

According to our information, Russia is not ready to give up the territories it has occupied. It expects an exhausted Ukraine to sit at the negotiating table eventually. Once there, Russia expects to be able to present its conditions and, as a strong negotiator, come out of the situation on the winning side.

The 'Russian world' arrives in Mariupol. A theatre building in the city, where hundreds of civilians had taken refuge from the fighting, was hit by an aerial bomb.

Source: Satellite image ©2022 Maxar Technologies / AFP

According to our sources, Western unity in imposing sanctions has been an unpleasant surprise to the Russian leadership. Those under sanctions seek to use their connections in the West to get off the list, while those threatened with sanctions try to stay off the list. Russia wants the sanctions to end. The sanctions imposed on Russia are not inconsequential but directly affect Russia's ability to maintain its war machine and keep its economy functioning.

REGROUPING OF RUSSIAN FOREIGN POLICY

Russia's losses in the war with Ukraine and its course for a long-term confrontation with the West will force Russia to accelerate a reorientation of its foreign policy. Putin is at war not only with Ukraine but with the entire Western value system as he is convinced that the future of international relations belongs to authoritarian regimes that divide global spheres of influence between themselves, including by using military power. According to the information available to EFIS, Russia is diverting its diplomatic resources from the West to focus its activities on other parts of the world. Undermining Western unity, including unity in imposing sanctions, remains Russia's main goal towards the West.

RUSSIAN FOREIGN MINISTRY'S DRESS CODE

The Ministry of Foreign Affairs of Russia has established rules on the proper appearance of its officials and on "creating a harmonious look".

Impeccably dressed but distracted by journalists, Sergey Lavrov has put his hands in his pockets.

Source: Russian Foreign Ministry Press Service via AP

The requirements for men are conservative - a dark blue or grey suit, with combinations of different jackets and trousers allowed, but only as long as the colours match. Pockets are purely decorative and not to be used for hands. Perfume must be used in moderation; hands and nails must be well groomed. No visible tattoos or piercings are allowed.

Breaking the rules: Maria Zakharova's dress appears to be shorter than allowed.

Source: Russian Foreign Ministry

The requirements for women are also conservative but more detailed. A female employee must have a conservative hairstyle appropriate for her age and position; longer than shoulder-length hair must be neatly styled, and dyeing in unnatural shades is prohibited. Daytime make-up must be understated, foundation must be applied in moderation, and bright make-up at work is inappropriate. Excessive mascara is prohibited, and skirt hems must be 5 cm above or below the knee.

Putin has his stakes on creating a geopolitical coalition of authoritarian regimes opposed to the West who mistrust Western policies and may take a stance against democracy and the rule of law. Russia sees the BRICS nations, the Shanghai Cooperation Organisation members, and several Persian Gulf countries as promising partners. Its focus is on Iran and China, but anyone with historical, ideological or other conflicts

with the West is welcome to join. Russia's goal is to shift the common ground from political declarations and economic cooperation to military cooperation. Moderate success has been achieved – for example, cooperation between Russia and Iran for the weapons used against Ukraine. Russia will probably succeed in bringing other countries on board in 2023. Still, the expansion of Russian cooperation is hampered by the economic ties of the rest of the world with Western countries and their wider geopolitical and economic interests. Nikolai Patrushev, the secretary of the Security Council of Russia, plays a leading role in expanding Russia's security political ties, and he actively travels around Asia and the Middle East for this purpose. Russian officials and politicians also work daily, both bilaterally and in international organisations, to undermine the West, fight against Russia's isolation and sanctions, and expand and deepen global cooperation.

Nikolai Patrushev on a visit to Iran, 8 to 10 November 2022. Russia negotiates an arms deal with Iran that includes weapons to attack critical infrastructure in Ukraine.

Source: IRANIAN PRESIDENCY / AFP

'CANCELLATION' OF RUSSIAN DIPLOMACY

Russian diplomats' role in the West is reduced to a monotonous repetition of propaganda lies.

EFIS has witnessed how the invasion of Ukraine ended the Russian foreign ministry's hopes of playing a meaningful strategic role in the country's foreign policy planning. At least as much as the international community, Russian diplomats were also kept in the dark about Putin's plans to attack Ukraine. According to our information, they found out about it on the morning of 24 February through the media. Confusion and bewilderment ensued, with no one having prepared any talking points in advance. Some decided to switch sides, but the vast majority succumbed to mental resignation and then acceptance, which in some cases turned into angry outbursts of patriotism. Russian diplomats' role in the West is reduced to a monotonous repetition of propaganda lies. Russian ambassadors, finding themselves in an information blackout, are regularly forced to improvise at international meetings. Since 24 February, Russian diplomats' new daily concerns include the anxiety of not knowing whether they will receive their monthly salary in their bank account or, if not, which colleague to borrow money from. Considering the shift of Russian foreign policy towards the Global South, Russia's diplomacy efforts may gain some new impetus in the near future but are likely to end in disappointment. In our assessment, the South and East cannot replace the West for Russia.

A PAPER TIGER IN THE CAUCASUS

Moscow and the Collective Security Treaty Organisation (CSTO) ignored appeals for help from an official ally.

The credibility of Russia's military deterrence in former Soviet territory has weakened.

The reason is the engagement and inefficiency of the Russian Armed Forces in Ukraine.

In September 2022, intense fighting broke out in the South Caucasus between Armenia and Azerbaijan. For almost two days, from 12 to 14 September, the Azerbaijani armed forces launched indirect fire attacks on targets deep inside Armenian territory, including towns and small settlements. Meanwhile, Azerbaijani units crossed Armenia's internationally recognised border and moved several kilometres into the country's territory.

In the September 2022 clashes, Azerbaijan openly attacked Armenian sovereign territory for the first time.

Since the late spring of 2021, numerous armed clashes have occurred between Armenia and Azerbaijan. But the conflict of September 2022 differed from previous clashes in one important aspect: for the first time, Azerbaijan openly attacked Armenian sovereign territory. Both during the Second Nagorno-Karabakh War (from September to November 2020) and since, Azerbaijan has always denied attacking targets in Armenia and claimed that its armed forces had not crossed the internationally recognised state border.

The main reason for Azerbaijan's caution was most probably Armenia's strategic alliance with Russia and its CSTO membership. Formed in 2002, the CSTO, in its current format, is a Russia-led organisation that has been touted for years by Moscow as one of the main security guarantors on the territory of the former Soviet Union. As a kind of "NATO of the East", CSTO security guarantees are triggered if any of its member states are attacked, which is when the other member states – primarily Russia, of course – should come to the aid of the victim of the attack.[1]

During the Second Nagorno-Karabakh War, Russia and the CSTO rejected Armenia's official appeals for help specifically on the grounds that Armenian sovereign territory had not been attacked – the hostilities took place on Azerbaijan's internationally recognised territory.

1 CSTO members are Russia, Belarus, Armenia, Kazakhstan, Kyrgyzstan and Tajikistan.

Russia alone fits under the "umbrella" of Russia's security guarantees. Vladimir Putin is waiting to meet Armenian Prime Minister Nikol Pashinyan on the steps of his residence in Sochi on 31 October 2022.

Source: Sergei Bobylev / AP

During the Second Nagorno-Karabakh War in 2020, Russia and the CSTO rejected Armenia's requests for assistance specifically on the grounds that Armenian sovereign territory had not been attacked.

In September 2022, Armenia also submitted a formal request for assistance to the CSTO. This time, the violation of Armenia's internationally recognised borders was obvious. In response, the organisation did not send weapons or troops to Armenia but dispatched a commission of inquiry. Neither did Russia conduct a military intervention on its own to defend its official ally.

The Armenian government then openly acknowledged that the security guarantees offered by Russia bilaterally and the CSTO had proven to be an illusion and ceased to exist. Participants at the CSTO summit in Yerevan in November 2022 were "greeted" by hundreds of Armenian demonstrators in the city streets, with placards calling Russia an enemy and demanding Armenia's withdrawal from the CSTO.

The Armenian government has openly acknowledged that the security guarantees so far have been an illusion and have ceased to exist.

Two main conclusions can be drawn from the reaction of Russia and the CSTO to the September 2022 clashes in Armenia.

First, the credibility of Russia's military deterrence in the South Caucasus and in the wider area of the former Soviet Union has significantly reduced, at least for the time being. The reasons for this are: (1) the Russian armed forces and military capabilities' engagement in Ukraine and (2) Russia's failure to achieve convincing military success in its aggression against Ukraine.

Second, the security guarantees offered by Russia bilaterally and within the framework of the CSTO have proved to be merely declarative. Russia intervenes militarily to defend its "allies" only when it is in its interest. But not when the alleged allies need help or when a treaty would require to do so. However, the CSTO has turned out to be a "paper tiger": a chatroom, not a serious defence organisation.

These two conclusions have very likely been drawn not only among Armenian leaders but also in the capitals of all other CSTO member states.

RUSSIA'S AFRICAN POLICY

Increasingly affected by the sanctions imposed by Western countries, Russia has intensified its efforts in Africa to project itself as a geopolitically active great power.

Russia hopes to achieve rapid diplomatic and economic success with the cheapest possible means; however, in reality, it lacks the capacity to fully implement its plans in Africa.

Russia sees itself as having the greatest potential as a provider of security services in Africa and focuses on politically unstable countries that provide Russia with opportunities to profit from local natural resources.

RUSSIA'S AFRICAN EFFORTS

Increasingly affected by the sanctions imposed by Western countries in response to starting full-scale hostilities in Ukraine, Russia has intensified its efforts in Africa to project itself as a geopolitically active great power. While Russia's actions aim to sustain that image, its increased efforts in Africa are also due to the matter of fact need to avoid essentially being alone in United Nations votes on matters concerning Russia's aggression against Ukraine. In this latter goal, Russia has not succeeded. Nevertheless, Russia continues to try to reduce Western influence and redefine the balance of power in Africa. Russia is looking to Africa for a success story, for allies and for support for its anti-Western activities and narratives. It hopes to achieve quick diplomatic success in African countries with the cheapest possible means by providing security services to them to gain control over them and make them dependent on Russia to profit from the rising opportunities down the line.

Russia is looking to Africa for a success story, for allies and for support for its anti-Western activities and narratives.

Russia's interest in Africa increased several years before the full-scale military attack on Ukraine. The first Russia-Africa summit in Sochi in 2019 falls into this context. The event received extensive media coverage as Russia promised to double its trade with African countries in five years. However, since then, the volume of Russian trade with African countries has decreased from 20 billion US dollars in 2018 to 17.6 billion dollars in 2021. Russia overestimates its role and influence and lacks the capacity to implement its plans in Africa fully. Although Russia's endeavours were probably somewhat hampered by the coronavirus pandemic that started at the end of 2019, they are mainly set back due to intense competition. China meanwhile managed to increase trade with African countries by 35 per cent, to a record 254 billion dollars in 2021.

Despite the setbacks, the Russian leadership sees the situation in Africa as favourable for Russia and tries to expand its foreign policy levers by developing cooperation with African countries in multilateral and bilateral formats. Russian representatives in Africa are looking for opportunities to gain popularity by presenting themselves as a helpful and reliable partner with friendly rhetoric. According to the information available to us, Russia plans to expand its network of diplomatic missions in Africa, increase its diplomatic staff, simplify currency transactions with African countries and diversify payment methods. To implement these plans more efficiently, Russia plans to expand its membership in organisations. For example, it has expressed interest in obtaining observer status in the African Parliamentary Union.

IN ANTICIPATION OF THE NEXT RUSSIA-AFRICA SUMMIT

The next summit between Russia and Africa is planned to occur in Saint Petersburg in the summer of 2023. Organising the summit has not been without problems, and the event has been postponed several times. Originally scheduled to take place in 2022 in Addis Ababa, then in Sochi, and even as a video conference, the summit will finally take place in Russia, as sanctions make it difficult for the Russian delegation to travel to Africa. Coordinated by the Russian foreign ministry, the preparations for the summit were not particularly productive. The organising committee has been working under the direct authority of President Vladimir Putin to avoid further setbacks, led by his adviser Yuri Ushakov, since July 2022.

Since the beginning of the full-scale attack on Ukraine, Russia, which intends to treat food security as a priority topic at the summit, has systematically spread and exploited false claims about the critical situation of world food security and Western sanctions' negative impact on it. With the help of this narrative, Russia amplifies the international community's fears and props up its proposals for at least a partial lifting of the sanctions. Accusing the West of damaging Africa with sanctions, the Russian leadership, including President Putin and Foreign Minister Sergei Lavrov, call on African countries to put more pressure on Western countries to ease sanctions that inhibit trade (e.g., fertilisers) and push them to spread rhetoric that suits Russian interests.

Shipments of fertiliser and grain are promised in return and, if necessary, credit to pay for these. However, according to information available to us, the communication between Russian representatives, who present themselves as a helpful partner, gives a more vivid picture of their real attitude towards the representatives of African countries. If negotiations do not proceed quickly enough, Russian representatives humiliate their supposed partners, use racist language and complain that "your hair will turn grey or you might die before you beat a contract out of them".

RUSSIAN SECURITY COOPERATION FOCUSES ON THE SAHEL, ESPECIALLY MALI

Competing with Western countries, Russia sees Africa's greatest potential in the security sector. Russia focuses on politically unstable countries that need help to guarantee their security and simultaneously provide Russia with opportunities to profit from local natural resources. The Sahel is one such region where the security situation is complicated and military coups have taken place in several countries (Guinea, Burkina Faso). Mali has asked Russia for help to step up the fight against terrorism. Due to political instability and

a difficult security situation in Mali, Russia has managed to intensify cooperation with the country. Mali is offered security expertise with the support of private contractors, thus enhancing Russia's image as a crisis solver and gathering support for anti-Western activities and narratives.

Russia's focus is on politically unstable countries that need help to guarantee their security and, at the same time, provide Russia with opportunities to profit from local natural resources.

Mali and other countries in the Sahel region can expect little real benefit from security cooperation with Russia. So far, the security situation in Mali has worsened significantly during its intensified cooperation with Russia. Being engaged in Ukraine, Russia lacks the capacity to increase its financial, military and political contribution to Africa and sustainably conduct counter-terrorism operations in Mali or elsewhere in the Sahel. To improve the security situation and sustain the fight against terrorism, Russia should support the Malian army with large forces at a wider regional level, also bringing in civilian staff. Despite its limited capability, Russia will likely continue to take advantage of opportunities opening up in Mali and elsewhere in Africa to discredit the activities of Western countries on the continent. By amplifying the anti-Western narrative, Russia further tenses up the situation, both in specific African countries and on the continent as a whole, without offering real solutions or helping to improve the security situation.

WAGNER: AN INSTRUMENT OF RUSSIAN STATE POWER IN AFRICA

Russian private military companies are an increasingly important tool for Russia in pursuing its geopolitical goals. Among them, Wagner has received the most public attention. Associated with Russian oligarch Yevgeny Prigozhin, Wagner has been active in many different parts of the world, from Venezuela to Ukraine, where the group is currently actively involved in military operations. Wagner has focused on Africa since 2015. Its presence has been observed in Libya, Madagascar, Mozambique, the Central African Republic, Sudan and, since 2021, Mali – a country to whose security Estonia has also directly contributed.

Wagner is a useful geopolitical tool for Russia in two ways. On the one hand, using private military companies allows the Kremlin to pursue its policies without demonstrating too much official involvement. On the other hand, Wagner's operations bring economic opportunities for companies connected to various Russian oligarchs.

According to our information, the equipment delivered from Russia to Mali broke down within a year; only one out of eight attack helicopters (Mi-35M, Mi-171) was operational at the end of 2022. According to the Russian representatives, the equipment broke down due to the incompetence of Malian personnel.

Source: French Armed Forces via AP

Despite the seemingly warm relations between the foreign ministers, cooperation with Russia and Wagner has not brought Mali the expected results.

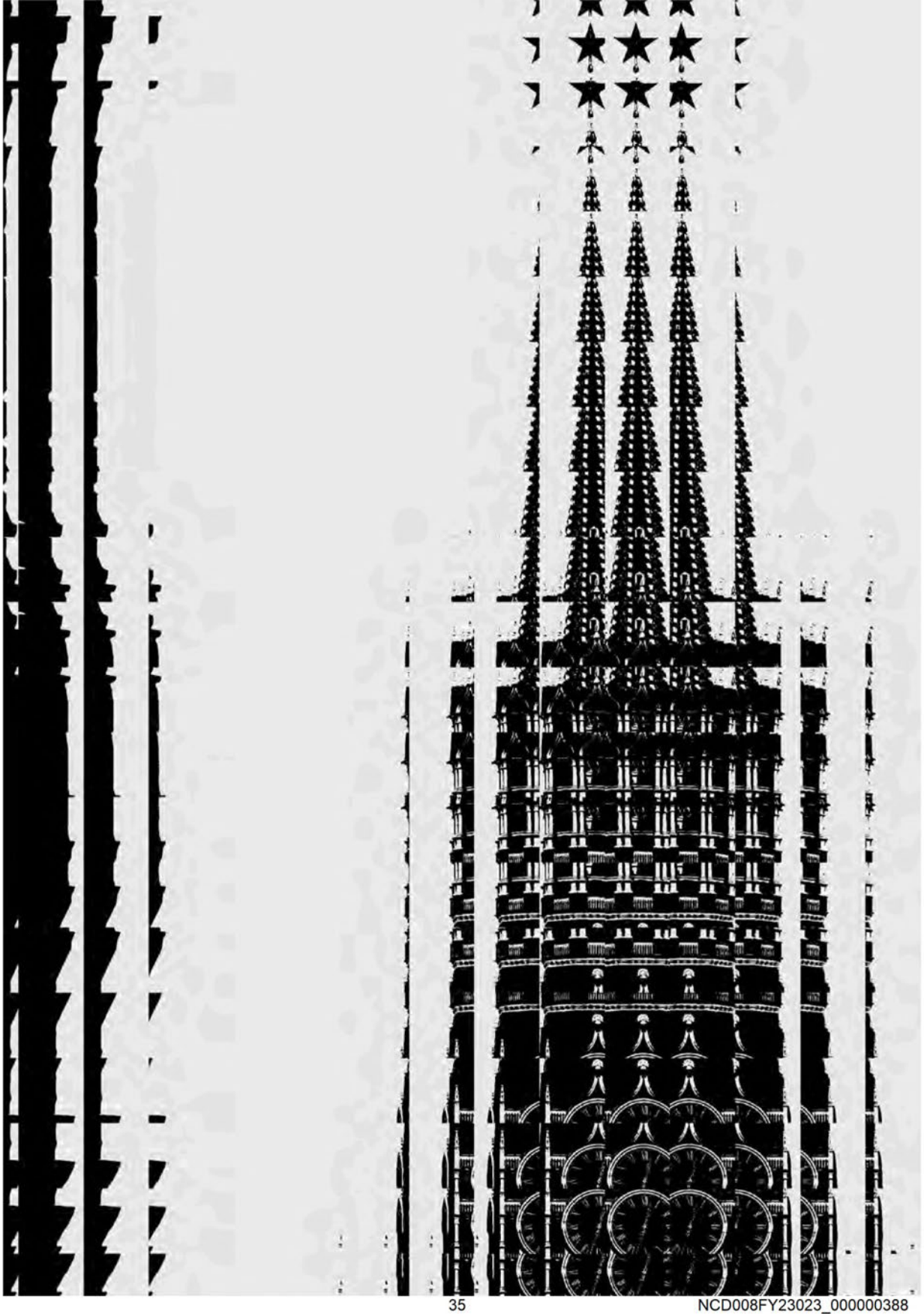
Source: Russian Foreign Ministry via Reuters

Wagner generally uses the same modus operandi. As the first step, diplomatic and military cooperation is strengthened between Russia and the target country. This is followed by agreements on the export of military equipment and, finally, the hiring of Wagner. Mercenaries often arrive in the country under the guise of military advisers or instructors. At the same time, a suitable environment is prepared through information operations discrediting previous security partners and glorifying Russia's ability to ensure stability in the country; potential funding sources are mapped, such as mineral deposits.

Wagner mercenaries arrived in Mali at the end of 2021. Wagner's activities in Mali have not improved the security situation in the country. On the contrary, terrorist attacks and violence against civilians have increased, especially in central Mali, where Wagner and the Malian armed forces have mainly conducted their operations. Wagner's mercenaries have been repeatedly accused of human rights violations and crimes against humanity. In addition, Wagner members have tried to falsify evidence to suggest that French troops have committed mass murder in Mali. French and other Western troops have left Mali. This has left a security vacuum, which Wagner has not been able to fill and almost certainly will fail to fill in the future. The fate of Mali is likely to be the same as the other African countries where Wagner has arrived to ensure security: the promised stability will not be achieved, and the situation will only worsen.

Kremlin will very likely want to continue using private military companies to pursue its geopolitical ambitions in Africa.

Russia's full-scale attack on Ukraine has also left its mark on Wagner's activities. The war has not gone in the direction the Kremlin wanted. This has led to a situation where Wagner's former veil of secrecy has fallen. Fighters are recruited publicly through advertisements, and Prigozhin, who personally visits Russian detention facilities to recruit personnel, has finally confirmed his links to Wagner. Kremlin will very likely want to continue using private military companies to pursue its geopolitical ambitions in Africa. Russia's lack of military personnel in Ukraine has led Wagner to withdraw its fighters from Libya, the Central African Republic and even Syria. As the situation worsens, Wagner may also leave Mali. In this way, Russia leaves others to resolve the problems and further deepens instability in the entire region.



CHAPTER 3

RUSSIAN DOMESTIC POLITICS AND ECONOMY

36

NCD008FY23023_000000388

RUSSIA'S DOMESTIC POLITICAL SITUATION

Putin's regime is rapidly moving towards an open dictatorship. As the country is at war, the last vestiges of democratic government have been abandoned, and any dissent qualifies as a crime.

In the coming years, the current regime led by Putin, or a slightly modified but equally undemocratic and coercive updated version, will most likely continue to hold power in Russia.

Russia's transformation into a stable democracy is unlikely in the coming years.

THE DOMESTIC POLITICAL SITUATION AND THE FUTURE OF THE REGIME

Even if a rather unlikely scenario were to materialise and see the Russian regime collapse, paving the way for democratic elections, any attempts at democratisation would very likely be short-lived.

The events of 2022 convincingly demonstrated the autocratic and undemocratic regimes' great potential for aggression and their negative impact on regional stability and general security. Unfortunately, the trends in Russia's operating principles and domestic political situation are unlikely to lead to the country's transformation into a stable democracy in the near future. Even if a rather unlikely scenario were to materialise and see the Russian regime collapse, paving the way for democratic elections, any attempts at democratisation would very likely be short-lived, similar to previous such attempts in Russia. It must be taken into account that the official ideology, which stokes Soviet nostalgia and neo-imperialist ambitions, obstructing the objective treatment and reassessment of Soviet history, has left a strong mark on Russian society. At the same time, society's expectations and attitudes are largely shaped by a lack of democratic experience and the negative experience of the 1990s.

In the coming years, the current regime led by Putin, or a slightly modified but equally undemocratic and coercive updated version, will most likely continue to hold power in Russia. However, the continuation of a Putinist regime will not guarantee domestic political stability – internal tensions will inevitably intensify, and the power struggle among the Russian elite will deepen in the near future. Putin's age is one factor driving the internal struggle for power as the question of a successor becomes increasingly

urgent. The situation in the government is even more strained with the unsuccessful war against Ukraine. The prospect of losing the war prompts those in power to look for scapegoats in their ranks to point fingers and save their own skin. A sudden power transition in Russia is possible in case a military defeat in Ukraine becomes inevitable – the likelihood of this scenario, however, is very low.

The economic situation, which is becoming more and more complicated due to sanctions, and the mobilisation, which has received a largely negative response among the population, aggravate the situation on the home front. The country's economic resources are shrinking, and the struggle between different interest groups for funds redistributed from the state budget is intensifying. Those who have proven themselves to the Kremlin as efficient and loyal managers and are better at divining the leader's intentions have been more successful in this struggle.

ATTEMPTS TO CREATE A NEW RUSSIAN STATE IDEOLOGY

Putin's regime is rapidly moving towards an open dictatorship. As the country is at war, the last vestiges of democratic government have been abandoned and any dissent qualifies as a crime. At the same time, the Kremlin has realised that the lies used to justify the war in Ukraine rest on shaky foundations and it is very difficult to explain the increasingly radical methods to the Russian public. Although laws have been passed to ensure that "true" information is issued from a single state-controlled source, it is unrealistic to impose a complete information blockade on the population in today's world. The Kremlin launches propaganda campaigns, clearly modelled on those used in the Soviet Union, to justify the war and deepening dictatorship. Starting from September 2022, a mandatory patriotic education programme, known as "Conversations About What Is Important", has been launched at all levels of education in Russian schools. The purpose, according to the brief, is "to develop students' understanding of Russian history, traditional patriotic values and their duties as citizens of a united, multi-ethnic country". But this is just the beginning. The Kremlin has announced that in 2023 a new special ideological course, "Foundations of Russian Statehood", will be launched in universities, curated by the Presidential Administration's domestic policy directorate. According to the Russian media, the course materials are prepared by well-known anti-Western and nationalist conservative researchers and lecturers who are extremely loyal to Putin. The main goal is to explain Russia's special development path and historical mission in establishing a new "multipolar world order".

THE RISE OF RADICALS

Russia's elite seems to be no stranger to the idea that the increasingly irremediable situation could be resolved by a "rebranding" of the regime, presenting a liberalised system domestically and internationally after making certain changes. However, this could only work at the price of replacing Putin, even if any other changes are insignificant. Given the threat of such scenarios, it is crucial from a Western perspective to clearly distinguish between an actual and apparent liberalisation of the system.

Ramzan Kadyrov, Head of the Chechen Republic, represents the radical faction of Russia's ruling elite.

Source: Chingis Kondarov / Reuters

Currently, an even more radical faction is rising to the fore in Russia's ruling elite, and some previously more moderate members of the elite have started to stand out with rather extreme statements. Their behaviour may be a sign of panic; they may have realised that the war in Ukraine was a huge mistake that can no longer be corrected, and the only way forward is to struggle on, using increasingly radical methods. It is also possible that allowing the radicals to take centre stage is part of Putin's tactics to show that his disappearance would bring an even more extreme group to the helm.

Currently, an even more radical faction is rising to the fore in Russia's ruling elite.

The fear of the regime's image change scenario is a possible reason why Putin relies more and more on radicals like Yevgeny Prigozhin and Ramzan Kadyrov. The reputation of these people (unlike several other members of the Russian ruling elite) would not allow them to be in a leadership role in a regime projecting itself as more liberal. The same kind of reasoning can motivate Putin to arrange for power figures with a previously moderate image to completely discredit themselves with radical statements.

But even if the radicals' rise to dominance in the ruling elite is part of Putin's calculus, it will still have consequences for the regime's present and future. At some point, Putin himself may have difficulty taming people increasingly emboldened by their growing influence, especially if Putin has authorised them to settle scores with their opponents. Prigozhin and Kadyrov are particularly dangerous in this context because each of them essentially has their own private army, from which their usefulness to the Kremlin and an important part of their influence derive.

RELATIONS BETWEEN THE PRESIDENT OF RUSSIA AND KEY AUTHORITIES

Making political decisions in today's Russia is more than ever concentrated in the hands of one person and is, therefore, even more difficult to predict. Decisions made by an ageing autocrat, only considering expert opinions based on personal whims and prejudices, are prone to miscalculation.

The responsibility for implementing Putin's policies and making administrative decisions continues to be centred in the Presidential Administration (PA), whose curating role is even broader in reality than the legal framework stipulates. The PA's top leadership has remained unchanged for years. The chief of staff, Anton Vaino, has apparently proven himself to Putin as a thoroughly loyal and highly efficient administrator. But Putin probably also appreciates Vaino's lack of charm and his ability to stay in the background, so the master of the Kremlin has no reason to fear Vaino might make a play for his chair should favourable circumstances arise. Sergey Kiriyenko, the first deputy chief of staff of the PA responsible for domestic policy, who in 2022 was also entrusted with the civil administration in the occupied territories of Ukraine, is another member of the leadership who has retained the favour of the president. Remarkably, Kiriyenko, who first became known in Russia as a liberal in the 1990s, has taken the regime's increasingly rough politics in stride and seemingly has no scruples about supporting it wholeheartedly..

On the other hand, the Security Council of the Russian Federation (SC) has lost some of its previous influence. Although there are still people in the SC whose views have weight in Putin's eyes, their importance and position in the power hierarchy derive primarily from personal ties with Putin (and the current status of such ties) rather than SC membership. The SC's devalued role was evident at a public session just before the invasion of Ukraine, where Putin, probably quite intentionally, demonstrated that the SC was no longer a serious venue for discussion and decision-making. Rather, the SC has developed into an institution where important decisions previously made in a narrower circle are only formalised, thereby shifting the responsibility for what is happening to the entire political leadership.

THE RUSSIAN ECONOMY

Oil exports and the high price of oil in 2022 have helped Russia withstand the pressure of sanctions. However, in 2023 the sanctions imposed on Russia's oil exports will begin to have an effect. This will lead to a decrease in Russia's oil revenue.

The self-imposed sanctions by international businesses, such as leaving Russia, have hit the Russian economy faster than the sanctions imposed by national regulations.

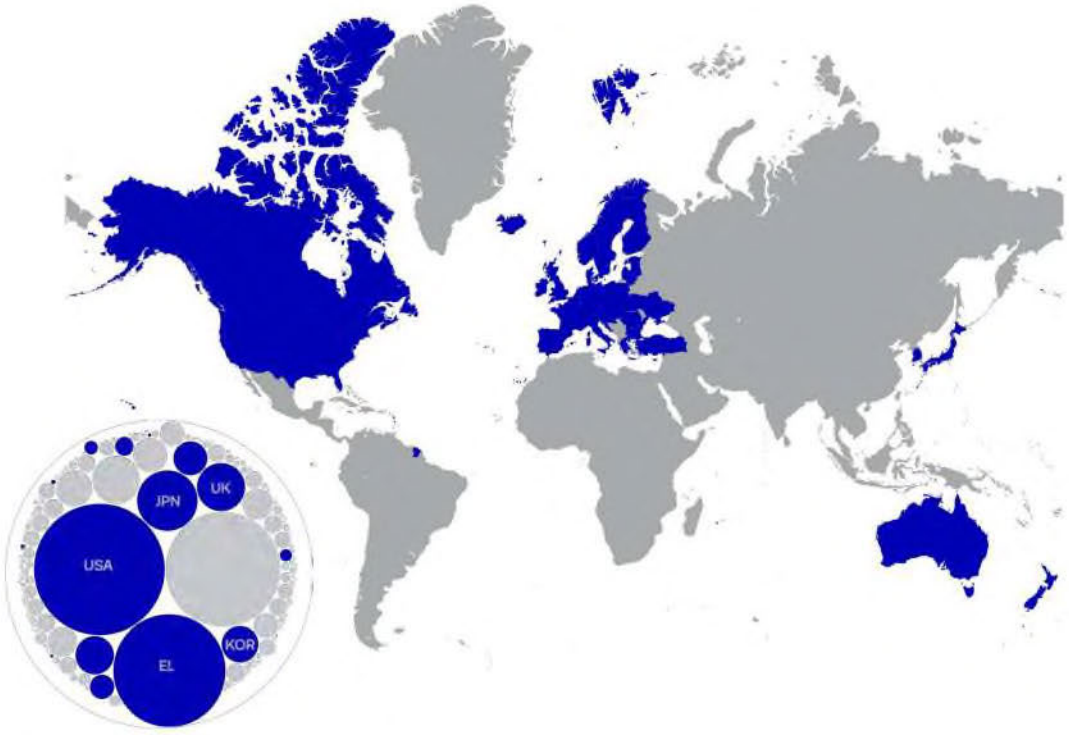
Russia is exploiting the issue of food security to promote the narrative of peace at any price in Ukraine.

From time to time, Western media reports on the state of the Russian economy, citing a slight recession and rather modest inflation. These reports tend to rely uncritically on the estimates of the Bank of Russia or Russia's finance ministry. The sources of these estimates are classified, which makes these forecasts essentially nothing more than propaganda. Making economic assessments is complicated by the fact that due to sanctions, Russia's imports slowed down in the second quarter of 2022, while export volumes were maintained for some time; the combined effect of these two factors has led to a strengthening of the rouble's exchange rate. A paradoxical process occurred when artificial restrictions and measures were combined – the currency gained value while the economy was in recession. Therefore, the macro indicators of the Russian economy should be taken with a grain of salt.

SANCTIONS

Russia's kinetic war in Ukraine, launched on 24 February 2022, has significantly changed the sanctions against Russia. The previous principle of sanctioning *specific persons for specific actions* was replaced by outright sanctions affecting the country's

economy as a whole. Financial sanctions, a ban on the provision of payment services by major banks (or what is known as "exclusion from SWIFT"), a restriction on the purchase of petroleum products and the freezing of foreign reserves are a set of tools with a very strong impact.



Countries that have imposed sanctions against Russia constitute over 60% of the world's economy.

As another important variable, the self-imposed sanctions by international businesses, meaning the avoidance of business with Russia without express legal regulation, have also begun to have an effect. Public opinion has been largely shaped by Ukraine's interpretation of the events, which has been corroborated by the information disclosed by Western intelligence services about Russian attack plans. By the time Russia attacked, Western consumers had a well-developed understanding of who the victim and the aggressor were, that what was happening was a war and not an "operation", and that Ukrainians were fighting for their freedom rather than undergoing an anti-fascist clean-up. The influence of Western consumer sentiment and the realisation of the decline of Russia's business environment has forced businesses to leave, and the consequences of their departure have hit the Russian economy faster than the sanctions imposed by national regulations.

The countries that have imposed sanctions on Russia (EU member states, US, UK, Canada, Australia, Norway, etc.) account for more than half of Russia's current exports and about 60% of the world economy, oil consumption and the global defence budget. Outside the "sanctioning world", there are two major economies – China and India,

representing 18% and 3.3% of the global GDP, respectively – and the remaining 20% consists of many relatively small economies. Although Russian rhetoric strongly addresses the subject of "new markets", no plausible solutions exist for continuing Russia's foreign trade as it was before. The impact of international isolation is deepening, and even in relations with China and India, which are presented as a way out, Russian businesses are being cynically exploited.

The scope of sanctions has changed, and the current modus operandi for avoiding sanctions, which is essentially based on illicit trade, is no longer sufficient, as the number and quantities of goods that need to be hidden have increased. An industrial economy cannot be kept going with ad hoc supply chains and improvised solutions.

FOOD SECURITY AS PART OF AN ANTI-SANCTIONS CAMPAIGN

The war closed the shipping routes out of Ukraine. Before the war, Ukraine was a major grain exporter, supplying corn and wheat mainly to Mediterranean and Middle East countries. Marine transport allows for the cheap and fast export of large quantities of grain (up to 100,000 tonnes per vessel, compared with 60 tonnes in a rail wagon). Ukrainian ports – Odesa, Chornomorsk and Mykolaiv – had the modern infrastructure for receiving grain from rail wagons and quickly transferring the cargo to ships.

Within a few months of the start of the war and the imposition of sanctions, alarming opinions began to spread in the world media, stating that because grain was held up in Ukrainian warehouses due to blocked shipping routes, African and Asian countries would soon starve. Parallels were repeatedly drawn with the Arab Spring riots, which were also allegedly sparked by high grain prices. It is true that the prices of grain, as well as many other commodities, rose sharply after Russia invaded Ukraine, but the world market prices of grain did not remain at the peak level reached at the beginning of the war.

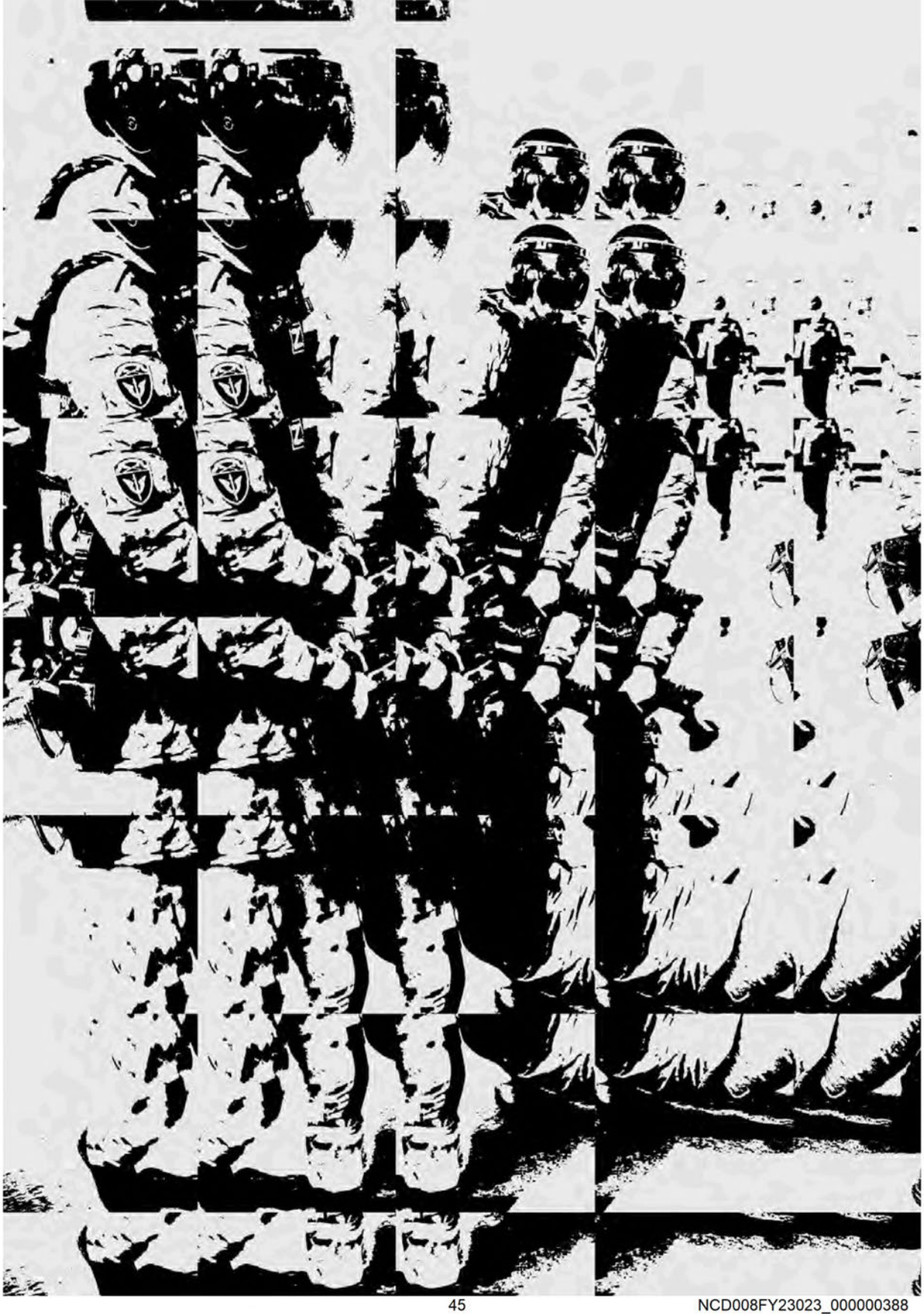
Russia attempted to take advantage of the public concern about food security and to spread an exaggerated narrative about a food shortage.

It should be noted that Russia attempted to take advantage of the public concern about food security and to maximise the spread of an exaggerated narrative about a food shortage. On the one hand, Russia wanted to use this topic to influence the international community. This was probably done in the hope that the prospect of the global socioeconomic effects of a drawn-out conflict would push the West to support peace at any price in Ukraine, prioritising a speedy ending of hostilities over achieving a just and sustainable peace from Ukraine's point of view.

On the other hand, Russia attempted to use food security-related fears to criticise and undermine the sanctions policy. For example, according to the Russian narrative, to compensate for the undelivered grain, EU sanctions on Russian food products and fertilisers, which allegedly would have saved the lives of hundreds of millions of people in developing countries, would have to be removed. Russian diplomats, Western-oriented propaganda channels and several current and former politicians with good connections in EU institutions worked to amplify this narrative. In doing so, they were not distracted by the fact that the EU sanctions do not actually concern

Russian grain or fertilisers. Russia has enough resources and infrastructure to export these goods to third countries without using EU ports. However, *personal* sanctions are in place against several oligarchs involved in fertiliser production with close ties to the Kremlin's power circles, whose profits and lifestyle suffer significantly from the sanctions. The dramatic interviews with them in Western media channels confirm this.

In cynically exploiting the issue of food security, the Kremlin did not limit itself to the above activities. Advancing its interests by exploiting a vital concern for many of the world's poorest countries and by inciting fear, Russia tried to present itself as an advocate for these countries, which are the most vulnerable in the event of a global food shortage.



CHAPTER 4

RUSSIAN SPECIAL SERVICES

46

NCD008FY23023_000000388

COVERS USED BY RUSSIAN INTELLIGENCE SERVICES

Russian intelligence services widely use covers to hide the connections between intelligence operatives and their real employer – the intelligence service.

On Russian territory, intelligence services can use almost any institution, company, or organisation as cover.

Anyone communicating with Russian federal or regional authorities, research institutions, or strategic companies should remember that their international relations, especially with Western countries, are largely controlled by Russian intelligence services.

COVERS IN INTELLIGENCE

A cover (Russian *прикрытие*) is used to obscure the true identity of a person or organisation and hide their affiliation with an intelligence agency.

The most common type of cover used by officers of the Russian intelligence services operating abroad is a diplomatic position in an official Russian mission: an embassy, consulate, or trade mission. The Vienna Convention protects intelligence officers operating under diplomatic cover. If caught, they are declared *persona non grata* in the host country and sent back to their home country.

In addition to "diplomats," operatives active abroad also include "illegals" who may pose as citizens of Russia or another country and work under an assumed identity, for example, in business, research, journalism, or the arts. "Illegals" are not protected by international conventions and can be arrested and prosecuted in the host country if discovered.

In addition to diplomats and illegals working abroad, whose activities have been reported quite often in the international media, all three Russian intelligence services – the internal security service FSB, the foreign intelligence service SVR and the military intelligence service GRU – also use undercover intelligence officers on Russian territory. This chapter is about these officers.

COVERS USED BY RUSSIAN INTELLIGENCE SERVICES ON RUSSIAN TERRITORY

The FSB, SVR, and GRU regularly use covers for intelligence activities carried out on Russian territory.

As one of the pillars of the current regime, Russian intelligence services enjoy extensive support from the authorities and considerable freedom of action. The FSB, SVR, and GRU can use almost any state authority, company, or organisation as a cover when necessary. As a rule, a cover is created in one of two ways.

1. The cover organisation does not engage in intelligence work but pursues its statutory activities (governance, research, business, journalism, etc.) and has one or more positions staffed by intelligence services officers. Most undercover officers work in such positions and, to avoid exposure, must at least partly perform the tasks that would normally be prescribed for their job.
2. An entire organisation is established as a cover for an intelligence service. It does not pursue the activities listed in its articles of association or only does so to a minimal extent to avoid suspicion. Since such organisations are largely fictitious, the officers working there can fully focus on intelligence activities.

The Russian intelligence services have a broad scope of activities – they collect intelligence information but also engage in counterintelligence and fight economic crimes, terrorism, extremism, domestic democratic opposition, drug trafficking, etc. Thus, they also use very different cover organisations and positions. The covers described here have a common denominator – they can all be used to establish contact with foreigners.

Russian intelligence officers work undercover in Moscow and elsewhere in Russia; their number depends on the region and how many foreigners visit it. For example, up to half of the officers of the FSB intelligence units can work undercover at any given time, spending a large part of their working time outside the FSB and visiting the agency only episodically to report back and receive instructions. A cover can be permanent or temporary. An officer working under temporary cover will pose as an employee of an organisation for a short time to carry out a specific task, for example, attending an international conference as a member of a think tank or research institution.

On paper, the identity of intelligence officers should be secret. Still, in many cases, the other employees of the cover organisation can identify them because they just show up with an unknown educational and professional background and have different work duties than the rest of the staff. Intelligence officers are also often discovered when a cover position within an organisation is used continuously, regularly rotating officers in and out.

EXAMPLES OF UNDERCOVER WORK

The covers described here are used by undercover intelligence officers who are responsible for recruiting foreigners.

The FSB often uses the Federal Migration Service (FMS) as a cover. This provides a legal opportunity and a plausible pretext to communicate with foreigners arriving and staying in Russia and ask them questions about themselves, their families, and the purpose of their visit to Russia.

Intelligence officers also hold positions in federal institutions that coordinate cooperation with so-called Russian compatriots living abroad. Russian compatriots are under heightened scrutiny by the FSB's main intelligence unit, the Department for Operational Information (DOI) of the Fifth Service. This scrutiny is characterised, among other things, by the fact that the government committee for Russian compatriots living abroad – the body that coordinates the handling of compatriot-related issues in the state institutions – has always included a DOI senior officer, most recently General Dmitry Milyutin, the deputy head of the DOI. What does the FSB have to do with Russian compatriots, and why should an intelligence unit curate this field within the FSB? The answer is obvious: the FSB needs Russian compatriots living abroad to recruit collaborators from among supporters of the "Russian world"

ideology and have them gather intelligence from their host country and spread propaganda glorifying Russia and discrediting their current homeland and other Western countries.[1] Effectively, the DOI coordinates the preservation and renewal of a fifth column, especially in countries bordering Russia with a large Russian-speaking community.

Russian intelligence services play an integral role in developing and implementing Russian foreign policy in the Baltics, including policies pertaining to so-called Russian compatriots.

The Federal Agency for the Commonwealth of Independent States Affairs, Compatriots Living Abroad, and International Humanitarian Cooperation (*Rossotrudnichestvo*) and its representatives abroad – Russian research and cultural centres – are regularly used by the FSB and SVR as cover for their officers. FSB officers "work" at the Moscow House of Compatriots (*Moskovskii Dom Sootechestvennikov*) of the Government of Moscow. In the Presidential Administration of Russia, the country's most important domestic and foreign policy body, Russia's Baltic policy has long been made under the supervision of SVR and FSB officers working undercover.

All three intelligence services use the international cooperation departments of Russia's central and regional authorities (incl. city and oblast governments) as cover for their intelligence officers. However, the intelligence services also use trustees working there to gather information about the authorities' foreign contacts and international cooperation projects. We can say that the intelligence services largely control the international cooperation of Russian federal and regional authorities.

Spot the spies! On 16-19 November 2022, the 10th forum for so-called Russian compatriots living in the Baltic states was held in Roshchino, Leningrad Oblast. The forum participants included several individuals with ties to the Russian intelligence services; however, they all represented some other institution or organisation.

Source: Vyborg TV (screenshot)

Intelligence officers often work undercover at universities and research institutions, usually in the institution's management or international relations unit, in positions allowing them to keep up with the institution's international contacts, including being informed about students and delegations arriving from abroad. They also recruit researchers travelling abroad to carry out intelligence tasks, such as participating in conferences and research projects to establish contacts with foreign researchers or gathering research and technology-related information, including stealing scientific discoveries. Officers of the Russian intelligence services work undercover in the Russian Academy of Sciences and major universities both in Moscow and elsewhere in Russia.

As "employees" of public and private think tanks and "research institutes," intelligence officers can participate in conferences and seminars attended by foreigners. In addition

1 It should be emphasised that the FSB also recruits people who do not have access to classified information. Such persons are mainly used in influence operations against foreign countries and their population.

The badge of the FSB 5th Service DOI. The badge displays common symbols for the FSB – a sword and a shield. The globe on the forefront is a common symbol for Russian intelligence services units that are responsible for gathering information on foreign countries.

Source: forum.faleristika.info

to profiling foreign participants, they have a significant opportunity to spread views aligned with Russia's political interests through the think tank's publications and personal communication with foreign guests. In other words, they conduct influence operations.[2] Here are some examples:

The Institute of Diaspora and Integration (Institute of CIS Countries)[3], founded in 1996 and headed by Konstantin Zatulin, a member of the Russian State Duma, studies Russia's "near abroad" (which also includes the Baltic countries) and spreads views justifying Russia's aggressive foreign policy. The institute has long had close ties with the FSB and especially the DOI, whose officers have regularly served as aides or advisers to Zatulin. Among them is Valery Solokha, described by the *Dossier Center* in October 2022 as the head of the DOI's sub-unit for Moldova.4 Solokha was succeeded as Zatulin's aide by DOI officer Maxim Sapunov, who previously held posts in the Government of Moscow and the Moscow House of Compatriots. Another aide to Zatulin was DOI officer Maxim Lobanov, whose duties included protecting the interests of the Russian Orthodox Church in Ukraine.

The official mission of the Eurasian Cooperation Development Fund,[5] established in 2012, is "spreading the idea of a Eurasian Union formulated by Russian President Vladimir Putin in the post-Soviet space." In addition to residents of the CIS countries, attempts have been made to involve activists from the Baltic states in the organisation's activities. An FSB DOI officer has regularly staffed the position of vice president of the foundation.

The Russian Institute for Strategic Studies (RISI)[6] operated under the SVR until 2009 and was designated as Military Unit 61360. Although it has since been officially subordinated to the Presidential Administration, RISI has always been led by former high-ranking SVR officers, currently by former SVR director Mikhail Fradkov. Among RISI employees, including the director's team, are SVR officers participating in the institute's foreign communication and international cooperation projects. An example is a conference on the relations between the Eurasian Economic Union and China's Belt and Road Initiative, held in Moscow in April 2021 with the participation of SVR officers.

In our public threat assessment in 2021, we described the organisations established by the GRU for intelligence and influence activities, including the Russian Foreign Institute and the Inforos information agency.

The FSB and SVR also use the organisations of Russian industrialists and entrepreneurs as well as industrial and financial companies' foreign relations departments as cover. This provides Russian businessmen with international business contacts and allows them to spread the message about the importance of good relations with Russia and the necessity of "separating business and politics." of "separating business and politics."

2 In Soviet terminology, influence operations involved influencing key figures and ordinary citizens in other countries in the interest of the Soviet Union. Similar to their Soviet predecessors, Russian intelligence agencies consider influence operations as equally important with intelligence gathering.
3 https://i-sng.ru
4 https://fsb.dossier.center/mid/
5 https://fondres.ru
6 https://riss.ru

THE RUSSIAN SPECIAL SERVICES' SUPPORT TO PRESIDENT PUTIN

During the war in Ukraine, the Russian special services have deliberated and concocted messages to help explain Russia's actions to its citizens and show the president in a favourable light.

The messages justify Putin's actions in Ukraine and create an image of him as an astute leader with foresight but, at the same time, lack objectivity and context and are often subject to public ridicule.

The prevailing view in the Russian special services is that by persistently lying and feeding conspiracy theories, sometimes hinting at the involvement of special services to add mystery, they can continue to speak to a certain segment of society.

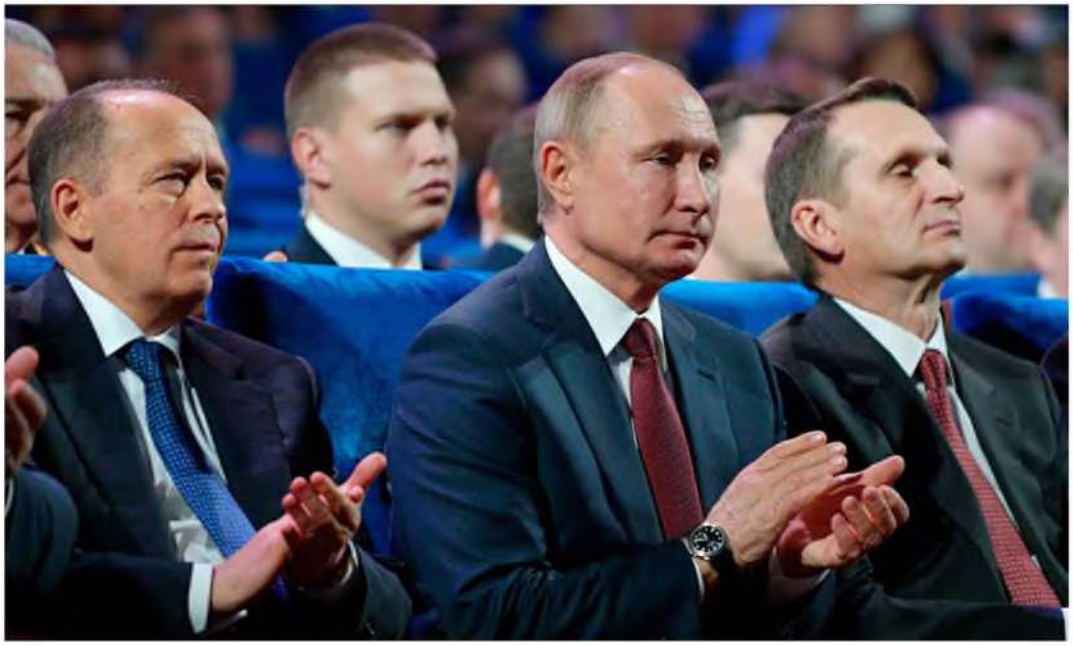
The war in Ukraine has put the Russian special services in an unprecedented situation. The problems they need to address now include the sentiment of Russian citizens. At the same time, they also want to express their loyalty to the country's leadership and President Putin. There was a tense period at the beginning of the war as it became clear that a surprise attack would not succeed. Tensions rose again when a partial mobilisation was announced in September, just a few weeks before the president's 70th birthday..

The intended effect was to convince the audience of Russia's continued great military and economic capabilities and good intentions toward its own people and the Ukrainians.

In September 2022, the Russian special services were still busy gathering ideas for updating the material used to celebrate President Putin's services to Russia. The material includes old talking points praising Putin, previously used in the 2018 presidential election campaign, which have become a laughingstock in the media as they repeat the existing narrative based on questionable statements and outright lies. The intended effect was to convince the audience of Russia's continued great military and economic capabilities and good intentions toward its own people and the Ukrainians.

Here are a couple of examples of the outrageous and unoriginal statements that served as the starting point for the special services' brainstorming:

1. During his rule, Putin has increased Russia's GDP 12-fold.
2. Putin has increased Russia's gold reserves 48-fold.



FSB director Aleksandr Bortnikov (left), President Vladimir Putin, and SVR director Sergey Naryshkin; to Russian special services, a good relationship with the President is of the utmost importance.

Source: Alexei Druzhinin / AP

In 2022, the special services continued to feed the target group with primitive and hackneyed tropes that frame the president's unpopular decisions as a cunning tactic against opposing countries. Let's look at some of the new ideas added during the year:

1. Russia is the world's largest supplier of titanium and palladium, thanks to which the Russians can do without Western cars and planes.
2. Russia imposed a flight ban over its airspace in response to the West's similar actions, which is why Western countries must spend significantly more time and money to fly to Asia.
3. Russia's special operation is destroying laboratories in Ukraine where the United States, Germany, and France developed biological weapons.
4. With the mutual closure of media channels, the West ruined its opportunities to influence the Russian audience.
5. The Western countries' continued solidarity and support for Ukraine are driven by the desire to subjugate Ukraine to gain access to its grain, mineral resources, and cheap labour.

Russian special services' eagerness to invent propaganda points and disseminate them to the public often overstretches their capabilities.

CHAPTER 5

RUSSIAN INFLUENCE 54

THE CANDLE OF THE 'RUSSIAN WORLD' IS BURNING OUT

The Kremlin uses the Russian Orthodox Church (ROC) as an outpost of its struggle against Ukraine and the West.

The Russian special services are trying at all costs to preserve the structures of the ROC as a tried-and-tested cover in foreign countries.

Russian terror in Ukraine irreversibly damages the position and international influence of the ROC.

In our 2019 public threat assessment, we said that in the event of Russian aggression, the Russian Orthodox Church, one of the Kremlin's long-standing tools of influence, would not show solidarity with the victim of the attack but would side with the Kremlin. The support of the ROC leadership for Russia's military activities in Ukraine clearly demonstrates this in word and deed. In his increasingly crude anti-Ukrainian and anti-Western appeals, Patriarch Kirill (secular name Vladimir Gundyayev) expresses the church and state leaders' understanding of the "symphony" of the church and the state. In what follows, we will look at how the Kremlin and the Russian special services continue to use the networks of the ROC, which seeks to establish itself as the only orthodox church in the former territories of the Russian Empire and the Soviet Union.

Since the 1990s, the Russian special services have been using the more radical pro-Kremlin clergy and church members with links to Soviet and Russian special services to undermine Ukraine's statehood. In line with Russia's divisive policy and following in the footsteps of tsarist Russification policy, the Moscow Patriarchate, which established itself in Ukraine in the 17th century (and in Estonia and Latvia in the 18th century) in the wake of a Russian invasion, seeks to present itself as the "mother church" of Ukrainians. It claims to have the exclusive right to unite Russians, Ukrainians and Belarusians into a single "trinity", a great superpower family led by

Moscow, while disparaging the choices Ukrainians make for themselves. In tandem with other Russian propaganda channels, branches of the ROC spread anti-Ukraine propaganda in both sermons and propaganda publications in 2022, right before Russia's full-scale invasion. For example, in January, when the Kremlin needed anti-Ukraine hysteria to create a suitable backdrop for the upcoming military attack, the Estonian Orthodox Church of the Moscow Patriarchate (EOC-MP) published a special issue of its magazine *Pravoslavnyi Sobesednik* that contained slander and false claims against Ukraine and Estonia.

Clergy members recruited by or collaborating with the Russian special services have been tasked with gathering information about the moods in Ukraine, key individuals, and the location and composition of Ukrainian military units. For example, the Russian special services were particularly interested in the information collected by the ROC army chaplains, in violation of the seal of confession, about the health and morale of Ukrainian soldiers. By now, Ukraine has blocked the access of the ROC clergy to the Armed Forces of Ukraine.

ROC's public support for the war in Ukraine accelerates the disintegration of its remaining network in Ukraine.

Source: Alexey Pavlishak / Reuters

While planning military operations against Ukraine, the ROC clergy working with the Russian special services and the trustees of Russian extremists in ROC congregations provided logistical support to Russia. For example, they prepared accommodation and weapons caches for Russian units and stored propaganda materials in congregation houses and convents.

Clergy members have been tasked with gathering information about the moods in Ukraine.

Simultaneously with the Russian attack, ROC representatives curated by the Russian special services were activated. They incited anti-Ukrainian sentiments and supported the occupants near the frontline and in Russian-controlled areas. In Ukrainian-controlled territory, pro-Russian clergy often engaged in "silent resistance", cautiously justifying Russia's motives among their congregations and ambiguously passing judgement on the "fratricidal war".

ROC helped formalise the annexation of Ukrainian territory. While in 2014, Kirill, then also the patriarch of the Ukrainians, preferred to keep a low profile during the annexation of Crimea, fearing damage to the position of the Ukrainian branch of the ROC (estimated at 50 per cent of ROC congregations) after the full-scale invasion in 2022, the ROC leadership helped prepare and even anticipated the formal annexation of four regions of Ukraine by Russia. In June 2022, the Holy Synod of the Moscow Patriarchate decided to separate the territories of Crimea, Donetsk and Horlivka from its formally independent Ukrainian branch (without asking for these regions' consent) and subordinate them directly to the Moscow Patriarchate. ROC representatives participated in the ceremony to declare the territories usurped from Ukraine as part of Russia in the Kremlin on 30 September 2022. The ROC can apply a similar divide-and-rule policy elsewhere if Russian aggression creates favourable conditions for this.

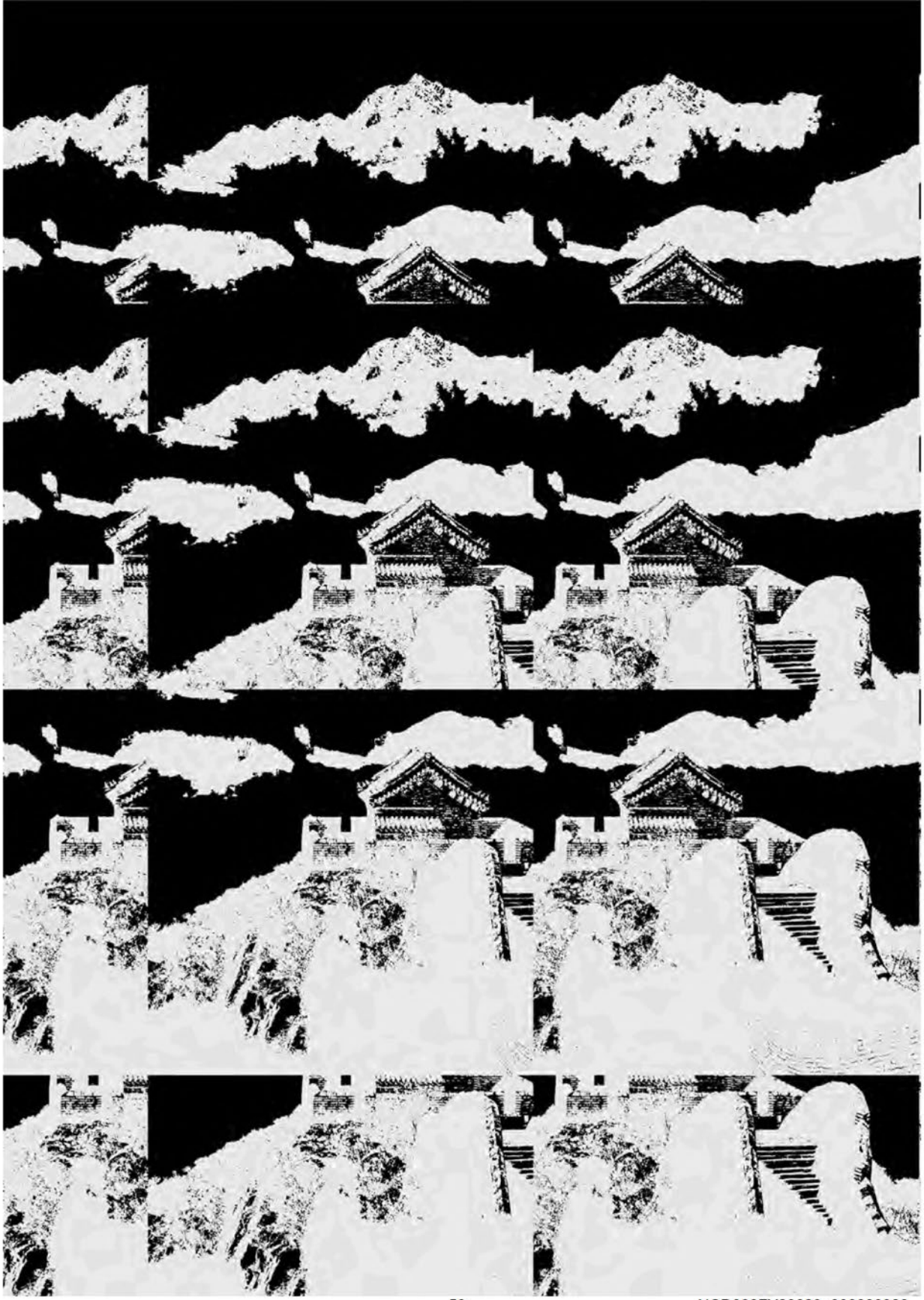
Russia's large-scale terror in Ukraine, which also destroys the ROC's Ukrainian congregations and church buildings, accelerates the disintegration of the remaining ROC network in Ukraine. Disagreements between the Putin-worshipping ROC establishment and its foreign branches have intensified. Russia's war against Kyiv, the cradle of Eastern Slavic Orthodoxy, with the help of Iranian drones and Kadyrovites preaching "Russian Jihad", is also causing increasing resentment among the ROC congregations in Russia, where hundreds of courageous clergy have publicly expressed their opposition on ethical grounds. All this puts the leaders of the ROC branches, especially those in the West, in a difficult situation: they need to remain obedient to their spiritual leader, the Kremlin puppet Patriarch Kirill, while also maintaining normal relations with the host country, which disapproves of the Russian leadership.

The leadership of the Moscow Patriarchate and its curators in the Russian government structures are aware of the ROC's difficulties abroad, especially since the Kremlin itself is undermining the position of the leaders of the ROC and its branches. Maintaining the position of the ROC in foreign countries is crucial to the long-term interests of the Russian special services, which is why the leaders of the ROC branches have been given the liberty to pretend to be a loyal local religious organisation and, if necessary, even criticise the positions of the Kremlin or ROC leadership, or simply criticise the war without clearly pointing out who is responsible. In this way, Russia seeks to create the impression that the local ROC branches are independent, diverting attention away from the fact that they are curated by Russia, which has become a pariah state.

Disagreements between the Putin-worshipping ROC establishment and its foreign branches have intensified.

Russia's aggression and the use of the ROC as a weapon against Ukraine have strengthened the international community's perception that the ROC foreign branches' independence is merely an illusion unless they completely separate themselves from the ROC. The security threat posed by the symbiosis of the Russian special services and the ROC has already called into question the future of the ROC in Latvia, where the Orthodox Church is moving towards independence, and in Lithuania.

However, Russia is trying to prevent the disintegration of the ROC's international network at all costs. In June 2022, Metropolitan Hilarion (Grigory Alfeyev), the head of the Department for External Church Relations of the Moscow Patriarchate, or the "foreign minister of the ROC", was retired, accused of numerous failures, especially his inability to prevent the independence and strengthening of the autocephalous Ukrainian Orthodox Church. Metropolitan Anthony (Anton Sevryuk), a former private secretary to Patriarch Kirill, who has experience in influence operations against the West, was appointed as the new head of the department, which has a tradition of operating as a cover for Soviet and Russian special services. Anthony's task is to save what he can of the ROC's damaged reputation in the international arena, where he tries to continue to promote the Russian regime of terror and the ROC as a bastion of "traditional values". However, it is increasingly difficult to find "useful idiots" in the West who would want to cooperate with the ROC or line up to defend it. Like other instruments of Russia's influence operations, the ROC is on the brink of an inevitably deepening crisis.



CHAPTER 6

CHINA

60

CHINA'S GLOBAL EMBRACE

The absolute power achieved by Xi Jinping at the Communist Party Congress set the tone for China's development over the next 100 years.

Chinese intelligence services plan to use the Global Security Initiative to disrupt the Western security architecture.

Xi Jinping's pledge to open China up to the world means an even more vigorous implementation of the Belt and Road Initiative.

In 2022, Xi Jinping's confirmation for a third term as general secretary of the Chinese Communist Party (CCP) was a landmark event in China's development, which Xi said will usher in the next 100 years of development in China. Xi loyalists hold an unprecedented majority in the new seven-member Standing Committee.

Health permitting, Xi Jinping is very likely to stay in office for a fourth term, continuing to lead the party, the military and the country beyond 2027, as the 20th Congress's reshuffle of the CCP leadership does not clearly point to a successor for Xi Jinping. Twenty years in power, however, would exacerbate tensions within the party and the possibility of a replay of the events of the 1970s, when Mao Zedong's autocracy completely paralysed the party and state leadership, the economy collapsed, and infighting within the party was rife.

During Xi Jinping's third term over the next five years, authoritarianism will likely deepen, and relations with the West will likely continue to deteriorate. Although a marginal part of the overall proceedings, the foreign policy section of the 20th Party Congress was very telling. The wording and context of the congressional report make it very clear that China's goal for the coming years is to build a strong community of like-minded countries opposed to the West, in line with the Cold War bloc mentality. Based on the report, China will focus particularly on developing countries and organisations such as BRICS and the Shanghai Cooperation Organisation (SCO).

China's rhetoric and worldview have clearly changed. Whereas China previously presented itself as a great power with regional ambitions, denying Western allegations of

China's global ambitions while keeping a low profile like Deng Xiaoping, it no longer hides its ambition of becoming a global superpower. At the same time, China has begun to push a vision of universal rights for humanity, constructing what the CCP's rhetoric paints as a new, more just and practicable concept of human rights. In the past, China was a firm denier of universal human rights, claiming the concept was merely a Western instrument for interfering in other countries' domestic affairs.

China's goal is to undermine and reshape the Western security architecture through the Global Security initiative.

Source: Mark Schiefelbein / AP

A major new cooperation initiative in 2022 was the Global Security Initiative (GSI), unveiled by Xi Jinping in April 2022. Chinese intelligence believes that the accession of a critical number of countries (with a focus on developing countries) to the GSI would effectively disrupt the Western security architecture. Throughout 2021, China kept talking at a very high level about the need to reshape the European security architecture considering Russia's interests. According to Chinese vice foreign minister Le Yucheng, NATO should be consigned to the ash heap of history. Such systematic and calculated efforts by China also undermine Estonia's security.

China's rhetoric and worldview have clearly changed. Previously China presented itself as a great power with regional ambitions – now China no longer hides its ambition of becoming a global superpower.

In addition to a political dimension, China's "global embrace" naturally also involves technological integration, trade and scientific cooperation in building an autonomous microcosm with like-minded states. At the CCP's 20th Congress, Xi Jinping stressed China's goal of even greater openness and becoming a technological superpower by 2035. While China's message seemingly invites the world to export its goods to China (as opposed to the protectionist US), in CCP's vocabulary, "opening up the country" means implementing the Belt and Road Initiative even more effectively. This implies an increasingly systematic construction of an autonomous Chinese microcosm.

China's foreign policy of the "new era" is increasingly confrontational with the West. Still, it is also stepping up its efforts to find and engage with like-minded individuals, associations and countries in the West. Chinese intelligence services do not necessarily seek individuals with a similar worldview. They also target high-profile critics of China who would be willing to continue their criticism while spreading the message that China cannot be ignored. This is why not only ordinary citizens but also intelligence officers are waiting for China's Covid restrictions to be relaxed so they can resume organising their ostensibly innocent platform events for recruitment purposes.

CHINA'S CALCULATIONS ON ATTACKING TAIWAN

China's changed rhetoric suggests a desire to constrict the existential space of Taiwan: Taiwan duli versus Taidu.

It is not certain that Western sanctions will deter China, as China has strong countermeasures in place.

China is very unlikely to attack Taiwan in 2023, but the likelihood will increase with time.

The Chinese Communist Party's anti-Taiwan rhetoric has recently undergone a significant change. Whereas China previously used the term *Taiwan duli* to refer to Taiwanese independence, the term used now is *Taidu*. Both mean Taiwanese independence in Chinese, but the shorter version has a broader meaning, describing not only pro-independence forces but anyone who supports building a stronger Taiwanese identity and civil society. This means that China has decidedly broadened its anti-Taiwan spectrum in order to constrict the existential space of Taiwan. The term *Taidu* was included in the revised party constitution presented at the 20th CCP Congress.

Central to the possible attack on Taiwan is Xi Jinping, who feels he personally has a historic mission to unite China by conquering Taiwan. Objectively, China has a number of factors that do not support an attack, but Xi's personal vision is very likely to override these. What factors play a role in China's calculations?

Central to the possible attack on Taiwan is Xi Jinping, who feels he personally has a historic mission to unite China by conquering Taiwan.

First – sanctions. Normally, Western sanctions in the event of an attack on Taiwan should deter China, but sanctions did not discourage it in Hong Kong or Xinjiang. Neither was China deterred by Western sanctions (some of which are still in place) during the 1989 Tiananmen massacre. While it respects the sanctions imposed on Russia, China considers them unlawful. In addition, China would impose counter-sanctions (e.g. on rare earth minerals and supply chains). Xi Jinping believes he has a sufficiently effective response to Western sanctions.

Since 2021, the relationship between Lithuania and China has deteriorated – the opening of the Taiwanese Representative Office in Vilnius alone was enough to anger China; using the name "Taiwanese" added fuel to the fire. The image here displays the name "Taiwan" at the representative office in Brussels.

Source: private collection

Another important factor is restricted access to Western markets. Given the negative outlook for China's real estate sector and the rapid increase in the debt burden, exports will be crucial to generate growth in China. At the same time, China needs to consider the potential of substitute markets. A number of Chinese initiatives with a global reach clearly indicate that China is deliberately focusing on large markets outside the Western countries to improve its ability to operate independently of the West. It is not a question of calculating whether the new markets will be able to match Western markets in terms of export volumes but whether Xi Jinping thinks they will be enough for China to survive.

The third and probably one of the most crucial factors is restricted access to Western technology and know-how. In addition to the industriousness of the Chinese people, China's technological success largely relies on access to cutting-edge Western technology. The CCP has set itself the goal of becoming a technological superpower by 2035, but it will not succeed without using Western technology and recruiting Western scientists.

The fourth factor is the unity and resilience of the West and like-minded countries against China. Western unity regarding Ukraine surprised China, but it believes this unity will crumble. Concerning Russia's aggression, China asked its businesses to assess the prospects for the Russian economy over the course of at least 12 months, which shows that China is prepared to bet on a longer time frame in anticipation of Western unity collapsing.

An attack on Taiwan would create major internal tensions in China from an economic point of view. In this context, Xi Jinping's emphatic message of unity at the 20th CCP Congress and the change in his tone of voice when he emphasised the phrase "dare to fight" (ganyu douzheng) – China must be ready for confrontation – while reading out the report is particularly noteworthy. Xi Jinping probably has at least a decade of political life left. China is very unlikely to attack Taiwan in 2023, but the likelihood will increase with time.

CHINESE-RUSSIAN RELATIONS IN THE CONTEXT OF THE WAR IN UKRAINE

The war started by Russia in Ukraine has not radically changed the relations between China and Russia. But some pre-war trends have strengthened, likely increasing the inequality in their relationship.

With China's support, Russia hopes to reduce the impact of the restrictions imposed on it due to the war, which increases Russia's economic and technological dependence on China and its preparedness to appease China on divisive issues.

Russia still plays a significant role in China's global ambitions, so it is premature to see Xi Jinping's restrained support for Putin's war as a sign of distancing from Russia.

Confrontation with the West has brought China and Russia closer in recent years. On a global scale, the war in Ukraine helps to gauge the degree of polarisation in the relations between democracies and authoritarian regimes.

Russia's claims that the West, led by the United States, initiated the aggression in Ukraine and that Russia's attack on Ukraine was forced self-defence are compatible with China's pragmatic goals arising from its increasing confrontation with the US. Since the beginning of the war, the Chinese media has clearly sided with Russia, spreading Russian narratives and calling the US the real culprit of the war while painting Ukraine and the countries that support it, including the Baltic states, as puppets of the US. When covering the war in Ukraine, the Chinese media often uses propaganda produced in Russia – this also points to the fact that in terms of values, Russia is much closer to China than one might expect based on their diplomatic cooperation.

Aspiring to become a world leader in counterbalancing Western democracy and reduce its vulnerability to economic restrictions, China is intensively cultivating and

strengthening a community of like-minded countries. Russia plays an important role in China's efforts to reach this goal, which should not be underestimated by anyone wanting to see signs of deteriorating relations between the two states. From a political point of view, Russia is almost the only partner for China with a considerable diplomatic position and the ability to exert significant influence on international relations and the balance of power, including in international organisations.

Given China's global ambitions, Russia is much more useful as a friend than an enemy.

Given China's global ambitions, Russia is much more useful as a friend than an enemy, and it is not insignificant that the contrast with an aggressive and unpredictable Russia allows China to maintain the image of a fair and peaceful power while pursuing the same goals as Russia. This may be the reason behind some inconsistencies in China's official statements about the war in Ukraine. For example, last September, Li Zhanshu, the then-chairman of the CCP Politburo Standing Committee, expressed his full support for Russia's military actions in Ukraine when he visited Moscow. However, Xi Jinping, the party's general secretary and head of state, remained quite tongue-tied when he met with Vladimir Putin just a few days later, expressing only China's readiness to cooperate with Russia for world peace and stability.

From an economic point of view, Russia is an energy supplier to China and, thanks to a land connection, would retain this role even if sea routes from other countries were blocked. Supplying energy to China reduces the impact of war-related sanctions on Russia. However, China always puts its own interests first when carrying out its plans, and although the outbreak of the war in Ukraine was probably not good news for China, it tried to quickly adapt and benefit from it, sometimes at the expense of its alleged partner, Russia.

China has a clear advantage in its relations with Russia. Although the two countries agree and work together on many issues, the Russian leadership was concerned about the growing asymmetry even before the start of the war. Russia is most concerned about foreign policy, where China's vigorous activity has begun to undermine Russia's position in international organisations and in regions that the latter considers part of its sphere of influence.

The Shanghai Cooperation Organisation (SCO) summit held in Samarkand in September 2022 vividly demonstrated that the balance of power in Central Asia has begun to shift in China's favour due to the impact of the Covid pandemic and the war. Ceding positions to China in Central Asia, which Russia considers its traditional sphere of influence, is difficult for Russia, especially if it implies an increased Chinese military presence in the region. While China knows Russia may not like the strengthening of China's relations with countries in Central Asia, its goal is neither to please nor to challenge Russia but to promote its own interests.

China and Russia will continue to compete for influence in non-Western organisations such as the SCO and BRICS. The two states are united by their desire to strengthen anti-Western sentiments in the member states of these organisations and involve them in the plan to reduce the dominance of the US dollar. At the same time, Russia is anxiously watching China's bilateral relations with the countries of these organisations and making diplomatic efforts to counter trends that could undermine its position.

China's goal is neither to please nor to challenge Russia but to promote its own interests.

Source: Sergei Bobylev / AP

Technologically lagging behind the West, Russia hopes to improve cooperation with China in the near future to help China achieve independence as a technology producer, thereby reducing Russia's own dependence on Western technology. In the long run, this carries the risk of becoming dependent on Chinese technology.

China was surprised by Western unity and determination in imposing large-scale sanctions against Russia. From the beginning, China has closely monitored the war in Ukraine and its impact on the global balance of power. On the one hand, this helps adapt to rapid changes and new challenges. On the other hand, learning from Russia's mistakes, China can make better choices and pick a more effective strategy if its confrontation with the West becomes significantly sharper and it finds itself in international isolation similar to Russia – for example, should China begin military aggression against Taiwan.

In the near future, China will continue to put its interests first and behave pragmatically in relations with Russia; it will express support for Russia in its rhetoric and use Russian war narratives to undermine transatlantic cooperation. At the same time, China will likely refrain from endorsing the war, violating secondary sanctions or recognising the occupied territories in Ukraine as part of Russia. It will also likely avoid providing military assistance at the government level. However, this does not preclude the supply of goods with dual and military purposes to Russia by private businesses.

China will very likely continue to use its leverage to force Russia to support its agenda. The more Russia is prepared to give in to China to mitigate the impact of Western sanctions, the less leeway it will have for independent decisions where China's goals differ from its own or are detrimental to them.

ISSN: 2461-4459 (print)
ISSN: 2613-3288 (online)
Cover photo: Photographer Priit Mürk/ ERR
Translation by Margus Elings, Refiner Translations OÜ
Editing by Scott Abel, Tekstikoda OÜ

NCD008FY23023_000000388

EXECUTIVE SUMMARY

1. The Ukrainians' will to defend, the capabilities of their Armed Forces, and Western unity in supporting Ukraine surprised the Kremlin. Despite this, Russia's strategic goal remains the same: subjugating Ukraine and changing the European security architecture. Read more in chapters 1.1, 2.1.

2. Russia believes that time is on its side. To keep the war machine going, Russia is ready raise the stakes. Russia seems to believe it can "bomb" Ukraine to the negotiating table. Read more in chapter 1.1.

3. Russia's belligerence has significantly increased the security risks for Estonia, and the large-scale exercise Zapad 23 may further strain the situation in the Baltic Sea region. Russia still has enough strength to exert credible military pressure in our region. Read more in chapter 1.2.

4. Russia supports its military efforts in Ukraine by using cyber tools against Ukraine and the countries that support it. Its activities in cyberspace have not yielded the results Russia had hoped for, but we must remain vigilant. Read more in chapter 1.3.

5. The Russian special services officers hide behind various "covers". A tried-and-tested cover organisation used abroad is the Russian Orthodox Church, which the Kremlin also operates as an instrument of influence against Ukraine and the West. Read more in chapters 4, 5.

6. Belarus has provided logistical and material support to Russia in the war against Ukraine, but the Belarusian Armed Forces have not yet intervened in the military operations in Ukraine and do not wish to do so in the future. Read more in chapter 1.4.

7. Russia is moving towards a total dictatorship. The prospects for the current regime collapsing and the country democratising are slim despite the problems caused by the war and Western sanctions. On the contrary, an even more radical faction is rising to the fore in Russia's ruling elite. Read more in chapter 3.1.

8. In foreign policy, Russia has its stakes on creating a geopolitical coalition of authoritarian regimes opposed to the West who share a mistrust of Western policies and values. Diplomatic resources are being diverted from the West to other regions. Read more in chapter 2.1.

9. Russia's military credibility in former Soviet territories has weakened because Russia has failed to provide the security guarantees promised within the CSTO framework, and its Armed Forces have been unsuccessful in Ukraine. In Africa, however, Russia sees its best opportunities precisely in the field of security. Read more in chapters 2.2, 2.3.

10. Under Xi Jinping, China is moving towards deepening authoritarianism and no longer hides its ambition to become a global superpower. China's efforts to build a community of like-minded countries opposed to the West under the banner of the Global Security Initiative – which would also include Russia – undermines Estonia's security. Read more in chapter 6.

NCD008FY23023_000000388

Intelligence Update

14 February 2023

Munich Security Conference

Chinese mobile masts loom over the Munich Security Conference: Analysis from journalists at the Politico suggests that several locations in Munich, including the venue for the conference (Bayerischer Hof), host 4G/5G antenna masts with Huawei signals processing equipment. The political dissonance is interesting and provides insight into German domestic policy.

- **U.S. Commentary:** When asked about Huawei's presence in Munich, Mike Gallagher, a Republican and Chairman of the U.S. House select committee on China, said POLITICO's findings were "troubling" and "should concern every individual attending the conference." The chair of the U.S. Senate intelligence committee, Mark Warner, a Democrat who's attending the conference, said it was "a timely reminder that we must continue to work with like-minded allies to promote secure and competitively priced alternatives to Huawei equipment." U.S. Senate intelligence committee Vice Chair Marco Rubio (Republican, Florida) said U.S. diplomats "should be aware of the risks and take necessary precautions."

- **German telecommunication infrastructure**: The findings are in line with recent reports on Germany's telecoms infrastructure. Europe's largest economy is a stronghold for Huawei in the West. A report by boutique telecoms intelligence firm Strand Consult estimated that ***Germany relies on Chinese technology for 59 percent of its ongoing 5G network deployment***. The country already had a massive reliance on Chinese equipment in its 4G network, where Strand estimated Huawei accounts for 57 percent. "If you look at the percentage of Chinese equipment in Germany, you could say it is the most unsafe country in Europe," said John Strand, founder of Strand Consult. ***"Welcome to the Munich Security Conference: We can't guarantee your security,"*** he quipped.

International Security and Estonia 2023: Estonian Foreign Intelligence Service published the eighth edition of their annual report on 8 February 2023. Land war in Europe is the focus of the assessment with some light touches on China. The key takeaways in the executive summary are very good and they are included below to support dialogues, as needed.

- The Ukrainians' will to defend, the capabilities of their Armed Forces, and Western unity in supporting Ukraine surprised the Kremlin. Despite this, ***Russia's strategic goal remains the same: subjugating Ukraine and changing the European security architecture***.

- Russia believes that time is on its side. To keep the war machine going, Russia is ready raise the stakes. Russia seems to believe it can "bomb" Ukraine to the negotiating table.

- Russia's belligerence has significantly increased the security risks for Estonia, and the large-scale exercise Zapad 23 may further strain the situation in the Baltic Sea region. Russia still has enough strength to exert credible military pressure in our region.

- Russia supports its military efforts in Ukraine by using cyber tools against Ukraine and the countries that support it. ***Its activities in cyberspace have not yielded the results Russia had hoped for, but we must remain vigilant***.

- The Russian special services officers hide behind various "covers". A tried-and-tested cover organization used abroad is the Russian Orthodox Church, which the Kremlin also operates as an instrument of influence against Ukraine and the West.

- Belarus has provided logistical and material support to Russia in the war against Ukraine, but the Belarusian Armed Forces have not yet intervened in the military operations in Ukraine and do not wish to do so in the future.

- Russia is moving towards a total dictatorship. The prospects for the current regime collapsing and the country democratizing are slim despite the problems caused by the war and Western sanctions. On the contrary, ***an even more radical faction is rising to the fore in Russia's ruling elite***.

- In foreign policy, Russia has its stakes on creating a geopolitical coalition of authoritarian regimes opposed to the West who share a mistrust of Western policies and values. Diplomatic resources are being diverted from the West to other regions.

- Russia's military credibility in former Soviet territories has weakened because Russia has failed to provide the security guarantees promised within the CSTO framework, and its Armed Forces have been unsuccessful in Ukraine***. In Africa, however, Russia sees its best opportunities precisely in the field of security***.

- Under Xi Jinping, China is moving towards deepening authoritarianism and no longer hides its ambition to become a global superpower. ***China's efforts to build a community of like-minded countries opposed to the West under the banner of the Global Security Initiative – which would also include Russia – undermines Estonia's security***.

War in Ukraine

New Russian offensive underway in Ukraine: Eastern Ukrainian city of Bakhmut is facing heavy artillery fire as NATO corroborates local reporting that a major new Russian offensive has begun, days before the first anniversary of Moscow's invasion. "There is not a single square metre in Bakhmut that is safe or that is not in range of enemy fire or drones," Pavlo Kyrylenko, governor of the Donetsk region, told the Ukrainian national broadcaster late on Monday. (Reuters)

Russia's War in Ukraine, Military and Intelligence Aspects: The Congressional Research Service just updated a very robust temporal analysis of the war in Ukraine, which should serve the ONCD delegation with a sound, authoritative reference, with timelines, for what has happened so far. More interestingly, Carnegie's analysis was sourced for the single paragraph of the cyber assessment (yes, cyber made it, but just barely) in the context of poor military coordination during the initial invasion. ***Please note, ONCD does have talking points for Russia's use of cyber in Ukraine.***

- Russia's cyber operations were largely ineffective during the initial invasion, surprising many observers. Some analysts suggest Russian cyber performance possibly indicates the limitations of cyber operations in a kinetic conflict as well as structural limitations of cyber operations in the Russian military

- **Outlook for 2023**: Ultimately, the war remains an artillery battle. Both sides are consuming large quantities of ammunition. Continued supplies will be a key variable in the conflict. While UAF is receiving additional tanks and armored personnel carries to support offensive operations, ***observers remain concerned over the ability of the UAF to maintain and support the various equipment variants it is receiving, each with different maintenance, ammunition, and training requirements***

- **Issues for Congress:** The key takeaways for the legislature include providing further funds (military and economic assistance) to support Ukraine, oversight and accountability for the security assistance, investigations of Russian war crimes, and sanctioning malign Russian actors such as the Wagner group.

Starlink's revised support for Ukraine: SpaceX restored connectivity to Ukraine's disrupted networks in the war's earliest days, and did so to considerable acclaim. The company is now interfering with services to its Ukrainian customer, saying that military uses are outside the scope of what it agreed to.

- CNN reports that SpaceX president explained, "There are things that we can do to limit their ability to do that. There are things that we can do, and have done." Ukraine used the technology too creatively, she said. "It was never intended to be weaponized. However, Ukrainians have leveraged it in ways that were unintentional and not part of any agreement."

- But as Defense One points out, these statements sound like pious malarkey: "But Gwynne Shotwell's explanation is at odds with Starlink's role in recent U.S. Army modernization experiments that seek to fire on targets more quickly." Any loss of Starlink support from SpaceX may be offset by direct targeting information from the US military. The Washington Post reports that US forces provide targeting assistance for HIMARS and other US-supplied weapons: "A senior U.S. official — who, like others, spoke on the condition of anonymity because of the sensitivity of the issue — acknowledged the key American role in the campaign and said the targeting assistance served to ensure accuracy and conserve limited stores of ammunition for maximum effectiveness. The official said Ukraine does not seek approval from the United States on what to strike and routinely targets Russian forces on their own with other weapons. The United States provides coordinates and precise targeting information solely in an advisory role, the official said."

Europe Cyber Policy and Issues

Moldovan president warns of Russian plot to topple leadership: Moldova's president accused Russia on Monday of planning to use foreign saboteurs to bring down her tiny country's leadership, stop it joining the European Union and use it in the war against Ukraine. She said the plan involved citizens of Russia, Montenegro, Belarus and Serbia entering Moldova to try to spark protests in an attempt to "change the legitimate government to an illegal government controlled by the Russian Federation." President Maia Sandu made her comments after Ukrainian President Volodymyr Zelenskiy said last week his country had uncovered a Russian intelligence plan "for the destruction of Moldova", and days later the country's government resigned.

Russian cyberattacks aimed at 'destabilizing' Moldova: In an interview with Euronews on Tuesday, Moldovan Prime Minister Natalia Gavriliță accused Russia of trying to destabilize the country by sponsoring

protests and carrying out cyberattacks. (On Thursday, Gavrilița announced her resignation after 18 months in power.) According to her, last year Moldova suffered from the biggest cyberattacks in its history. The country has also been on the receiving end of frequent bomb threats, receiving fake emails, many of which were sent from Russian and Belarusian IP addresses, warning of bomb threats at more than 50 facilities across the country, including the airport, the capital's City Council, the Parliament, and various ministries. As of September, Moldovan security agencies recorded 148 bomb alerts against 885 state institutions in 2022. Over the past year, Moldova has also witnessed a sharp increase in cyberattacks. In August, the pro-Russian hacker group Killnet announced a week-long hacking campaign against Moldova. In October, hackers targeted 80 Moldovan state computer systems with distributed denial-of-service (DDoS) attacks. In November, a newly-registered website called Moldova Leaks released private Telegram conversations purportedly involving prominent Moldovan political figures, sparking a political scandal. The Moldovan president's office claimed the content of the conversations was fake, but the leak indicates the probable interference of Russian hackers and intelligence services in the country's internal politics. In January, Moldova's government institutions were hit by a wave of phishing attacks — hackers sent more than 1,330 emails to accounts belonging to the country's state services. Its internet connection is also suffering from the war in Ukraine. In November, Russian missile strikes on Ukraine caused internet disruptions in Moldova, as it is connected to Ukraine's power grid. ***Gavrilița said that Russia's invasion put Moldova's economy, energy security, and social stability under great strain***. (Recorded Future)

Disinformation Narratives Related to Sweden and Finland's NATO Applications: Throughout Russia's war on Ukraine, the Kremlin's disinformation efforts have sought to craft and disseminate false narratives that serve several political goals and influence public opinion about the conflict. Since April 2022, Russian-backed information manipulation networks online have sought to seed and amplify a number of false narratives regarding Sweden and Finland's NATO application, which was formally submitted on May 18, 2022. Many of the false or misleading narratives targeting Sweden are centered around sensitive and polarizing topics in the country related to immigration, Islamophobia, and far-right conspiracy theories. ***According to Washington-based think tank monitoring, between September 27 - October 3, 2022, posts alleging that the U.S. was responsible for the sabotage of Nord Stream pipelines increased by 15,000% across 25 social media platforms compared to the week prior.*** (IntelBrief: The Soufan Center)

Twitter under fire in Europe: Wired is reporting that Twitter is blatantly ignoring the EU's GDPR legislation by ignoring requests from users to have their data deleted from the platform. Moreover, The European Commission singled out Twitter as lagging behind Google, Meta, Microsoft, Twitch, and TikTok when it came to efforts to tackle disinformation. (Reuters)

Google to expand misinformation prebunking in Europe: After seeing promising results in Eastern Europe, Google will initiate a new campaign in Germany that aims to make people more resilient to the corrosive effects of online misinformation. The tech giant plans to release a series of short videos highlighting the techniques common to many misleading claims. The videos will appear as advertisements on platforms like Facebook, YouTube or TikTok in Germany. A similar campaign in India is also in the works. It's an approach called prebunking, which involves teaching people how to spot false claims before they encounter them. The strategy is gaining support among researchers and tech companies. (Seattle Times)

EU publishes first Foreign Information Manipulation and Interference report: The European External Action Service (EEAS) says it detected and analyzed 100 FIMI events between October and December 2022. Most of these targeted Russia's invasion of Ukraine. In 60 of the 100 incidents, the threat actors used misinformation and disinformation in an attempt to show support for Russia's invasion. Furthermore, the report found that the Russian government itself and its diplomatic channels were part of the FIMI events, spreading false information and trying to control narratives. In addition, Russian threat actors also used impersonation attacks, either posing as foreign officials or foreign news outlets in an attempt to spread their agenda. Most interestingly, however, is the EEAS aim ***to provide the defender community with a proof-of-concept for a common framework that enables mutual sharing of complex insights in a timely fashion and at scale***. This is done to create a common understanding and formulate a collective, systematic response to FIMI. (EU vs. Disinfo)

Growing Counterintelligence Concerns in Europe: Recent reporting from NBC covers the claims of a mole inside the ranks of Germanys BND and some historical analysis of Russian intelligence operations in Germany. Additionally, for your reference are other more notable events concerning Russian intelligence operations in 2022, specifically GRU illegals uncovered in Italy and Slovakia.

European Aviation Ransomware Snapshot: EUROCONTROL, a European civil-military organization dedicated to supporting European aviation, has published a one-page "data snapshot" that looks at ransomware targeting the aviation supply chain. Globally, EUROCONTROL says "we are aware of approximately 2.5 reported ransomware attacks per week on aviation-related organisations". The good news is that incident reporting is improving and since 2021 EUROCONTROL has a clearer idea of the scale of the problem as information about more incidents are being shared with its CERT. ***Although it looks like there may be a small downward trend, the report cautions that this is likely just a side-effect of the invasion of Ukraine***. EUROCONTROL expect to see an increase in ransomware incidents in 2023.

U.S. Cyber Policy and Issues

The Autocrat in Your iPhone: Attached is great Foreign Affairs article which contextualizes citizen labs technical research on mercenary (or commercial) spyware and its implications to democracy. You'll find a plethora of unclassified examples to reference, as needed.

US and UK sanction Trickbot members: The governments of the United States and the United Kingdom have levied sanctions against seven Russian nationals for their role in the Trickbot cybercrime gang. Both countries said the sanctions are part of a coordinated crackdown against the ransomware ecosystem. The Trickbot gang, also known as Wizard Spider, is primarily known for its eponymous Trickbot malware botnet. The US and UK sanctions announcements also include the first formal statement linking the Trickbot gang with the Russian government. ***Both the US and UK governments say that members of the Trickbot gang are also associated and maintain links to Russian intelligence services, "from whom they have likely received tasking."***

- In the past, Trickbot has rented access to computers infected by its malware to the Ryuk cybercrime group, which deployed its ransomware on corporate or government networks. In addition, Trickbot also developed its own ransomware strains, known as Conti and Diavol, which they also deployed on systems that were previously infected by their botnet. The UK government said that in the UK alone, 149 organizations paid at least £27 million following attacks with the Conti and Ryuk ransomware

strains. "There were 104 UK victims of the Conti strain who paid approximately £10 million and 45 victims of the Ryuk strain who paid approximately £17 million."

- Over the years, the Trickbot botnet has grown to become one of the largest malware operations to date, and the gang's sub-group tasked with carrying out ransomware attacks has become one of the most despised ransomware gangs today after repeatedly targeting medical and healthcare facilities and disrupting their operations—even during the COVID-19 pandemic. ***"Members of the Trickbot Group publicly gloated over the ease of targeting the medical facilities and the speed with which the ransoms were paid to the group."***

- With Trickbot's inclusion on the sanctioned entities list, US and UK companies are now forbidden from paying ransoms to the group, and financial entities are mandated to freeze any of the group's assets. Sanctions have proven very successful against ransomware gangs in the past, with the sanctions imposed against EvilCorp in 2019 effectively destroying their ransomware operation (Bitpaymer, Hades, WastedLocker) and making the group and its members pariahs in the cybercrime underground.

- The US Justice Department has also charged Trickbot's Kovalev with conspiracy to commit bank fraud and eight counts of bank fraud in connection with a series of intrusions into victim bank accounts that occurred in 2009 and 2010.

- In response, according to the Russian outlet Govorit Moskva, which sources its story to TASS, ***the Duma is considering legal immunity for "hackers acting in the interest of Russia."*** Alexander Khinshtein, head of the Duma committee on information policy, said last week, "We are talking about, in general, working out the exemption from liability of those persons who act in the interests of the Russian Federation in the field of computer information both on the territory of our country and abroad." The details will be made public once they're worked out.

East Asia Cyber Policy and Issues

South Korea slaps first independent sanctions on North Korea's cyber activities: South Korea announced on Friday its first independent sanctions on North Korea to counter its illicit cyber activities. Such activities are believed to be used to fund the country's weapons of mass destruction program. ***North Korean hackers stole over $1.2 billion in virtual assets since 2017***, including $626 million in 2022 alone, according to data released by the Foreign Ministry. "As North Korea's annual exports have decreased by about 100 billion won recently, it has been stealing virtual assets from all over the world, including developing countries and countries friendly to North Korea," said Lee. "This measure is an effort to protect not only our national security, but also the assets of people around the globe." (Yonhap, Korea JoonAng)

North Korea extorts hospitals to fund espionage: North Korea is deploying ransomware in the health care sector to supplement cyber ops against the U.S. and South Korean governments, according to a joint alert released Thursday from multiple U.S. and South Korean agencies. Furthermore, the alert from the National Security Agency, FBI, Cybersecurity and Infrastructure Security Agency, Department of Health and Human Services, the Republic of Korea's Defense Security Agency and the National Intelligence Service warns that Pyongyang is using the illicit cryptocurrencies obtained from the attacks to support state-backed espionage operations that target U.S. defense networks and the defense industrial base. ***Separate, but related, a December ransomware attack has led to a massive data breach from California health network***. (Cyberscoop, Recorded Future)

FOREIGN AFFAIRS

JANUARY/FEBRUARY 2023 • VOLUME 102• NUMBER 1

The Autocrat in Your iPhone

How Mercenary Spyware Threatens Democracy

RONALD J. DEIBERT

Copyright © 2023 by the Council on Foreign Relations, Inc. All rights reserved. To request permission to distribute or reprint this article, please visit ForeignAffairs.com/Permissions.

NCD008FY23023_000000391

The Autocrat in Your iPhone

How Mercenary Spyware Threatens Democracy

RONALD J. DEIBERT

In the summer of 2020, a Rwandan plot to capture exiled opposition leader Paul Rusesabagina drew international headlines. Rusesabagina is best known as the human rights defender and U.S. Presidential Medal of Freedom recipient who sheltered more than 1,200 Hutus and Tutsis in a hotel during the 1994 Rwandan genocide. But in the decades after the genocide, he also became a prominent U.S.-based critic of Rwandan President Paul Kagame. In August 2020, during a layover in Dubai, Rusesabagina was lured under false pretenses into boarding a plane bound for Kigali, the Rwandan capital, where government authorities immediately arrested him for his affiliation with an opposition group. The following year, a Rwandan court sentenced him to 25 years in prison, drawing the condemnation of international human rights groups, the European Parliament, and the U.S. Congress.

RONALD J. DEIBERT is Professor of Political Science and Director of the Citizen Lab at the University of Toronto's Munk School of Global Affairs and Public Policy.

NCD008FY23023_000000391

Illustration by Daniel Stolle

NCD008FY23023_000000391

Less noted at the time, however, was that this brazen cross-border operation may also have employed highly sophisticated digital surveillance. After Rusesabagina's sentencing, Amnesty International and the Citizen Lab at the University of Toronto, a digital security research group I founded and direct, discovered that smartphones belonging to several of Rusesabagina's family members who also lived abroad had been hacked by an advanced spyware program called Pegasus. Produced by the Israel-based NSO Group, Pegasus gives an operator near-total access to a target's personal data. Forensic analysis revealed that the phone belonging to Rusesabagina's daughter Carine Kanimba had been infected by the spyware around the time her father was kidnapped and again when she was trying to secure his release and was meeting with high-level officials in Europe and the U.S. State Department, including the U.S. special envoy for hostage affairs. NSO Group does not publicly identify its government clients and the Rwandan government has denied using Pegasus, but strong circumstantial evidence points to the Kagame regime.

In fact, the incident is only one of dozens of cases in which Pegasus or other similar spyware technology has been found on the digital devices of prominent political opposition figures, journalists, and human rights activists in many countries. Providing the ability to clandestinely infiltrate even the most up-to-date smartphones—the latest "zero click" version of the spyware can penetrate a device without any action by the user—Pegasus has become the digital surveillance tool of choice for repressive regimes around the world. It has been used against government critics in the United Arab Emirates (UAE) and pro-democracy protesters in Thailand. It has been deployed by Mohammed bin Salman's Saudi Arabia and Viktor Orban's Hungary.

But the use of spyware is hardly limited to the world's authoritarians. As researchers have revealed, over the past decade many democracies, including Spain and Mexico, have begun using spyware, as well, in ways that violate well-established norms of human rights and public accountability. U.S. government documents disclosed by *The New York Times* in November 2022 show that the FBI not only acquired spyware services from NSO, possibly for counterintelligence purposes, but also contemplated deploying them, including on U.S. targets. (An FBI spokesperson told the *Times* that "there has been no operational use of the NSO product to support any FBI investigation.")

The advent of advanced spyware has transformed the world of espionage and surveillance. Bringing together a largely unregulated

industry with an invasive-by-design digital ecosystem in which smartphones and other personal devices contain the most intimate details of people's lives, the new technology can track almost anyone, anywhere in the world. Governments have taken notice. For Israel, which approves export licenses for NSO Group's Pegasus, the sale of spyware to foreign governments has brought new diplomatic clout in countries as disparate as India and Panama; a *New York Times* investigation found that NSO deals helped Israeli Prime Minister Benjamin Netanyahu seal the Abraham Accords with Bahrain, Morocco, and the UAE. In turn, client states have used Pegasus against not only opposition groups, journalists, and nongovernmental organizations (NGOs) but also geopolitical rivals. In 2020 and 2021, the Citizen Lab discovered that several devices belonging to officials in the United Kingdom's Foreign Commonwealth and Development Office had been hacked with Pegasus, and that a client of NSO Group in the UAE had used the spyware to infiltrate a device located at 10 Downing Street, the residence of the British prime minister. In November 2021, the tech giant Apple notified 11 staff members of the U.S. embassy in Uganda that their iPhones had been hacked with Pegasus.

With spyware, governments can stop protests before they occur.

In response to these revelations, spyware firms have generally denied responsibility for their clients' abuses or have declined to comment. In a statement to *The New Yorker* in April 2022, NSO Group said, "We have repeatedly cooperated with governmental investigations, where credible allegations merit, and have learned from each of these findings and reports and improved the safeguards in our technologies." The Israeli company has also said that its technology is designed to help governments investigate crime and terrorism. But advanced spyware has now been implicated in human rights violations and interstate espionage in dozens of countries, and spyware companies have few legal obligations or incentives for public transparency or accountability. NSO Group has not provided any specific information to counter the Citizen Lab's detailed evidence of abuses.

The consequences of the spyware revolution are profound. In countries with few resources, security forces can now pursue high-tech operations using off-the-shelf technology that is almost as easy to acquire as headphones from Amazon. Among democracies, the technology has become an irresistible tool that can be deployed with little oversight; in the last year alone, security agencies in at least four

European countries—Greece, Hungary, Poland, and Spain—have been implicated in scandals in which state agencies have been accused of deploying spyware against journalists and political opposition figures. A global market for spyware also means that forms of surveillance and espionage that were once limited to a few major powers are now available to almost any country, and potentially to even more private firms. Left unregulated, the proliferation of this technology threatens to erode many of the institutions, processes, and values on which the liberal international order depends.

WE WILL SPY FOR YOU

The spyware revolution has emerged as a byproduct of a remarkable convergence of technological, social, and political developments over the past decade. Smartphones and other digital devices are vulnerable to surveillance because their applications often contain flaws and because they continually transmit data through insecure cellular and Internet networks. Although manufacturers of these technology platforms employ engineers to find and patch vulnerabilities, they tend to prioritize product development over security. By discovering and weaponizing "zero days"—software flaws that are unknown to their designers—spyware firms exploit the inherent insecurity of the digital consumer world.

But the extraordinary growth of the spyware market has also been driven by several broader trends. First, spyware takes advantage of a global digital culture that is shaped around always-on, always-connected smartphones. By hacking a personal device, spyware can provide its operators with a user's entire pattern of life in real time. Second, spyware offers security agencies an elegant way to circumvent end-to-end encryption, which has become a growing barrier to government mass surveillance programs that depend on the collection of telecommunications and Internet data. By getting inside a user's device, spyware allows its operators to read messages or listen to calls before they have been encrypted or after they have been decrypted; if the user can see it on the screen, so can the spyware. A third factor driving the industry's growth has been the rise of digitally enabled protest movements. Popular upheavals such as the color revolutions in former Soviet states in the first decade of this century and the Arab Spring in 2010–11 took many autocrats by surprise, and the organizers often used phones to mobilize protesters. By offering an almost godlike way to get inside activist networks, spyware has opened

up a powerful new method for governments to monitor dissent and take steps to neutralize it before large protests occur.

Finally, the spyware industry has also been fueled by the growing privatization of national security. Just as governments have turned to private contractors for complicated or controversial military operations, they have discovered that they can outsource surveillance and espionage to better-equipped and less visible private actors. Like soldiers of fortune, advanced spyware companies tend to put revenues ahead of ethics, selling their products without regard to the politics of their clients—giving rise to the term "mercenary spyware"—and like military contractors, their dealings with government security agencies are often cloaked in secrecy to avoid public scrutiny. Moreover, just as military contractors have offered lucrative private-sector careers for veterans of military and intelligence agencies, spyware firms and government security services have been building similarly mutually beneficial partnerships, boosting the industry in the process. Many senior members of NSO Group, for example, are veterans of Israeli intelligence, including the elite Military Intelligence Directorate.

Although lack of transparency has made the mercenary spyware industry difficult to measure, journalists have estimated it to be worth about $12 billion per year. Before recent financial setbacks brought on by a growing number of lawsuits, NSO Group was valued at $2 billion, and there are other major players in the market. Many companies now produce sophisticated spyware, including Cytrox (founded in North Macedonia and now with operations in Hungary and Israel), Israel-based Cyberbit and Candiru, Italy-based Hacking Team (now defunct), and the Anglo-German Gamma Group. Each of these firms can hypothetically serve numerous clients. Governments that appear to have used Cytrox's Predator spyware, for example, include Armenia, Egypt, Greece, Indonesia, Madagascar, and Serbia. In 2021, Mexico's secretary of Security and Public Safety, Rosa Icela Rodríguez, said that previous Mexican administrations had signed multiple contracts with NSO Group, totaling $61 million, to buy Pegasus spyware, and as Mexican and international researchers have shown, the government has kept using Pegasus despite the present leadership's public assurances that it would not. (In October 2022, Mexican President Andrés Manuel López Obrador denied the findings, stating that his administration was not using the spyware against journalists or political opponents.)

On the basis of such lucrative deals, spyware firms have enjoyed backing from major private equity funds, such as the San Francisco

NCD008FY23023_000000391

firm Francisco Partners and the London-based Novalpina Capital, thus bolstering their resources. Francisco Partners, which had a controlling stake in NSO Group for five years, told Bloomberg News in 2021, "[We are] deeply committed to ethical business practices, and we evaluate all our investments through that lens." Novalpina, which together with NSO's founders acquired Francisco Partners' stake in 2019, said it would bring the spyware firm "in full alignment with UN guiding principles on business and human rights," but revelations of abuses of Pegasus have continued, and correspondence published by *The Guardian* in 2022 indicated that Novalpina sought to discredit NSO Group's critics, including this author. (Lawyers for Novalpina told *The Guardian* that these were "tenuous and unsubstantiated allegations.") After a dispute between Novalpina's founding partners, the firm lost its controlling stake in NSO Group in 2021.

But the spyware industry also includes far less sophisticated firms in countries such as India, the Philippines, and Cyprus. As the surveillance equivalent of strip-mall phone repair shops, such outfits may lack the ability to identify zero days, but they can still accomplish objectives through simpler means. They may use credential phishing—using false pretenses, often via email or text message, to obtain a user's digital passwords or other sensitive personal information—or they may simply purchase software vulnerabilities from other hackers on the black market. And these smaller firms may be more willing to undertake illegal operations on behalf of private clients because they are located outside the jurisdiction in which a victim resides or because enforcement is lax.

It is hard to overestimate the reach and power of the latest commercial spyware. In its most advanced forms, it can silently infiltrate any vulnerable device anywhere in the world. Take the zero-day, zero-click exploit that Citizen Lab researchers discovered in 2021 on a Pegasus-infected iPhone. Using the exploit, which researchers called ForcedEntry, a spyware operator can surreptitiously intercept texts and phone calls, including those encrypted by apps such as Signal or WhatsApp; turn on the user's microphone and camera; track movements through a device's GPS; and gather photos, notes, contacts, emails, and documents. The operator can do almost anything a user can do and more, including reconfigure the device's security settings and acquire the digital tokens that are used to securely access cloud accounts so that surveillance on a target can continue even after the exploit has been removed from a device—all without the target's awareness. After the Citizen Lab shared Pegasus's ForcedEntry

with analysts at Apple and Google, Google's analysts described it as "one of the most technically sophisticated exploits we've ever seen," noting that it provided capabilities that were "previously thought to be accessible to only a handful of nation states."

SHOOTING THE MESSENGERS

Over the past decade, the rise of authoritarian regimes in many parts of the world has raised new questions about the durability of the liberal international order. As has been widely noted, many ruling elites have been able to slide toward authoritarianism by limiting or controlling political dissent, the media, the courts, and other institutions of civil society. Yet far less attention has been paid to the pervasive role of the mercenary spyware industry in this process. This neglect is partly the result of how little we know about spyware, including, in many cases, the identity of the specific government agencies that are using it. (Given the secretive nature of spyware transactions, it is far easier to identify victims than operators.) There is little doubt, however, that spyware has been used to systematically degrade liberal democratic practices and institutions.

One of the technology's most frequent uses has been to infiltrate opposition movements, particularly in the run-up to elections. Researchers have identified cases in which opposition figures have been targeted, not only in authoritarian states such as Saudi Arabia and the UAE but also in democratic countries such as India and Poland. Indeed, one of the most egregious cases arose in Spain, a parliamentary democracy and European Union member. Between 2017 and 2020, the Citizen Lab discovered, Pegasus was used to eavesdrop on a large cross section of Catalan civil society and government. The targets included every Catalan member of the European Parliament who supported independence for Catalonia, every Catalan president since 2010, and many members of Catalan legislative bodies, including multiple presidents of the Catalan parliament. Notably, some of the targeting took place amid sensitive negotiations between the Catalan and Spanish governments over the fate of Catalan independence supporters who were either imprisoned or in exile. After the findings drew international attention, Paz Esteban, the head of Spain's National Intelligence Center, acknowledged to Spanish lawmakers that spyware had been used against some Catalan politicians, and Esteban was subsequently fired. But it is still unclear which government agency was responsible, and which laws, if any, were used to justify such an extensive domestic spying operation.

NCD008FY23023_000000391

In some countries, spyware has proved equally effective against journalists who are investigating those in power, with far-reaching consequences for both the targets and their sources. In 2015, several devices belonging to Mexican journalist Carmen Aristegui and a member of her family were sent Pegasus exploit links while she was investigating corruption involving then Mexican President Enrique Peña Nieto. There is no smoking gun that identifies the responsible party, though strong circumstantial evidence suggests a Mexican government agency. In 2021, a Hungarian journalist investigating corruption in President Viktor Orban's inner circle was hacked with Pegasus. (The Hungarian government subsequently acknowledged that it had purchased the technology.) And that same year, the cellphone of *New York Times* Middle East correspondent Ben Hubbard was infected with Pegasus while he was working on a book about Saudi Arabia's de facto leader, Crown Prince Mohammed bin Salman.

One Egyptian opposition leader was targeted by two different governments.

Almost as frequently, spyware has been used to undermine judicial officials and civil society organizations that are trying to hold governments to account. Take the case of Alberto Nisman, a well-known Argentine anticorruption prosecutor who was investigating an alleged criminal conspiracy by high-level Argentine officials. In January 2015, Nisman was found dead in suspicious circumstances—his death was later ruled a homicide—the day before he was to provide testimony to Congress implicating then president of Argentina Cristina Fernández de Kirchner and her foreign minister, Héctor Timerman, in a cover-up of alleged Iranian involvement in the 1994 bombing of a Jewish center in Buenos Aires. Later that year, the Citizen Lab documented how a South American hack-for-hire group had been contracted to target Nisman with spyware before his death, suggesting that someone in power was keen to peer into his investigations. In Mexico in 2017, a still unknown government agency or agencies used Pegasus spyware against human rights groups and international investigators that were tracking down potential government cover-ups of the notorious disappearance and gruesome murder of 43 students in Iguala, Mexico. Subsequent reports showed that the Mexican government had badly botched the investigations and that government

personnel were implicated in a cover-up—findings that might never have come to light without the efforts of civil society watchdogs.

Other common Pegasus targets are lawyers involved with prominent or politically sensitive cases. In most liberal democracies, attorney-client privilege is sacrosanct. Yet the Citizen Lab has identified a variety of cases in which spyware has been used to hack or target lawyers' devices. In 2015, the tactic was used against two lawyers in Mexico who were representing the families of Nadia Vera, a slain government critic and women's rights advocate. More recently, multiple lawyers representing prominent Catalans were targeted as part of the Spanish surveillance campaign. And in Poland, Pegasus spyware was used several times to hack the device of Roman Giertych, legal counsel to Donald Tusk, a former prime minister and the leader of the country's main opposition party. (In early 2022, Polish Deputy Prime Minister Jaroslaw Kaczynski publicly acknowledged that the government had bought Pegasus spyware but denied that it had been used against the Polish opposition.)

As the availability of spyware grows, private-sector clients are also getting in on the act. Consider the activities of BellTroX, an Indian hack-for-hire company responsible for extensive espionage on behalf of private clients worldwide. Between 2015 and 2017, someone used BellTroX's services against American nonprofits that were working to publicize revelations that the oil company ExxonMobil had hidden its research about climate change for decades. BellTroX has also been used to target U.S. organizations working on net neutrality, presumably at the behest of a different client or clients that were opposed to that reform. BellTroX also has a burgeoning business in the legal world; law firms in many countries have used the company's services to spy on opposing counsel. In April 2022, an Israeli private detective who acted as a broker for BellTroX pleaded guilty in U.S. court to wire fraud, conspiracy to commit hacking, and aggravated identity theft, but BellTroX's India-based operators have remained out of reach of the law. (Asked by Reuters in 2020 to respond to the findings, the company's founder, Sumit Gupta, denied any wrongdoing and declined to disclose his clients.)

NOWHERE TO HIDE

The proliferating use of spyware against political and civil society targets in advanced democracies is concerning enough. Even more threatening, however, may be the ways in which the technology has allowed authoritarian regimes to extend their repression far beyond

their own borders. In past decades, autocrats faced significant barriers to repressing citizens who had gone into exile. With spyware, however, an operator can get inside a political exile's entire network without setting foot inside the target's adopted country, and with very few of the risks and costs associated with conventional international espionage.

Examples of this new form of transnational repression are manifold. Beginning in 2016, Cyberbit was used to target Ethiopian dissidents, lawyers, students, and others in nearly 20 countries. In 2021, the phones of two prominent Egyptians—exiled opposition politician Ayman Nour, who has been living in Turkey, and the host of a popular news program (who has asked to remain anonymous for his own safety)—were hacked with Cytrox's Predator spyware. In fact, the phone of Nour, who is an outspoken critic of Egyptian President Abdel Fattah el-Sisi, was simultaneously infected with both Predator and NSO Group's Pegasus spyware, each apparently operated by separate government clients—Egypt in the case of Predator and either Saudi Arabia or the UAE in the case of Pegasus. In a statement to *Vice News,* Cyberbit said that the Israeli government oversees its technology and that "the intelligence and defense agencies that purchase these products are obligated to use them in accordance with the law." In the Egyptian hacking case, Cytrox's CEO, Ivo Malinkovski, declined to comment; according to VICE news, he subsequently deleted references to Cytrox in his LinkedIn profile. (The governments of Egypt, Ethiopia, Saudi Arabia, and the UAE have declined to comment about the findings.)

Especially far-reaching has been the Saudi government's transnational spyware campaign. In 2018, a phone belonging to Ghanem al-Masarir, a Saudi dissident living in the United Kingdom, was hacked with Pegasus spyware. Coinciding with the infection of his device, al-Masarir was tracked down and physically assaulted by Saudi agents in London. Spyware may have also played a part in the notorious killing of the exiled Saudi journalist Jamal Khashoggi in the Saudi consulate in Turkey. In 2018, a phone owned by Omar Abdulaziz—a Saudi activist, Canadian permanent resident, and close confidant of Khashoggi—was hacked with Pegasus spyware. Abdulaziz and Khashoggi had been discussing their activism against the Saudi regime over what they mistakenly assumed were secure communications platforms. After Khashoggi's killing, forensic analysis revealed that the devices of several other people closest to Khashoggi, including his Egyptian wife and his Turkish fiancée, had also been infected. To what extent Khashoggi's

own phones were hacked is not known because his fiancée turned them over to Turkish authorities, who have withheld them from independent analysis, but his closest contacts were all under surveillance, providing Saudi agents with windows into Khashoggi's personal life, political activism, and movements in the months leading up to his murder. (The Saudi government has declined to comment on the revelations. In 2021, NSO Group told *The Guardian*, "Our technology was not associated in any way with the heinous murder of Jamal Khashoggi.")

In fact, targeting regime critics abroad with spyware is only one of several ways the Saudi government has employed digital technology to neutralize dissent. For example, according to a U.S. federal indictment, a top adviser to Saudi Crown Prince Mohammed bin Salman paid a Twitter employee $300,000 and provided other gifts in 2014 and 2015, apparently in exchange for spying on dissidents on the platform. The employee, who left Twitter in 2015, was convicted in U.S. court in 2022. When such tactics are used in combination with the type of highly intrusive surveillance that spyware represents, dissidents can come under extraordinary psychological pressure. Many victims of hacking have experienced debilitating shock knowing that their compromised devices have also put friends and associates at risk and that their every move is being watched. One female Saudi activist explained that being digitally targeted was a form of "psychological and emotional war" that caused her "endless fear and anxiety." By using spyware, autocrats and despots are thus able to clamp down on civil society networks well beyond their own borders even as they strengthen autocracy at home.

> One exploit can turn on a user's microphone and camera.

Despite a large and growing body of documentation about spyware abuses around the world, there are several reasons that the technology seems likely to become even more widespread. First, although much scrutiny of mercenary spyware firms has concerned their contracts with national government agencies, many firms market to more than one client in a given country, including local law enforcement. For example, in a fact-finding trip to Israel in the summer of 2022, officials for the European Parliament learned that NSO Group has at least 22 clients in 12 European countries, suggesting that a significant number of these clients are subnational agencies. Such deals raise further questions about accountability, given that research has shown

that local law enforcement agencies are often more susceptible to abuses, such as racial profiling or corruption, and tend to have poor transparency and insufficient oversight.

Second, although some mercenary spyware firms such as NSO Group claim that they deal only with government clients, there is little to prevent them from selling their technology to private firms or corrupt individuals. Evidence suggests that some already do: in July 2022, Microsoft's Threat Intelligence Center issued a report on an Austria-based spyware and hack-for-hire firm called DSIRF that had targeted individuals in banks, law firms, and consultancies in several countries. Though Microsoft did not specify what type of clients hired DSIRF, the firm advertises "due diligence" services to businesses, implying that these hacking operations were undertaken on behalf of private clients. When Reuters asked DSIRF about the Microsoft report, the company declined to comment. Although it is illegal if done without a warrant, such private-sector hacking is less likely to be deterred when hackers' firms are located outside the jurisdiction in which the targeting occurs. As protections for privacy rights, freedom of the press, and independent courts, come increasingly under threat in many countries, it will likely become even easier for corrupt firms or oligarchs to deploy mercenary spyware without accountability.

Third, spyware has become a central component of a broader menu of surveillance tools, such as location tracking and biometric identification, used by many government security agencies. The more that spyware is incorporated into everyday intelligence gathering and policing, the harder it will be to rein it in. More ominously, spyware may soon acquire even more invasive capabilities by exploiting wearable applications, such as biomedical monitors, emotional detection technology, and Internet-connected neural networks currently in development. Already, many digital applications aim to drill deeper into the subliminal or the unconscious aspects of users' behavior and gather data on their health and physiology. It is no longer science fiction to envision spyware that might use covert access to these data about our biological or cognitive systems to monitor and even manipulate a victim's behavior and overall well-being.

RESTRAINING ORDERS

For nearly a decade, the mercenary spyware industry has been able to expand its reach across the globe largely without regulation or accountability. But that is a choice governments have made, not an

inevitable outcome that must simply be accepted. As civil society watchdogs and journalists have brought to light flagrant abuses, it has become more difficult for major spyware vendors and government clients to hide their operations. In Europe and the United States, committees have held hearings on spyware, and government agencies have begun to develop new policies to limit its use. Notably, the U.S. Commerce Department has placed NSO Group, Candiru, and other hack-for-hire firms on an export restriction list, limiting their access to U.S. products and technology and sending a strong signal to potential investors that spyware companies are under growing scrutiny. Technology platforms have also taken action. Meta (the parent company of Facebook) and Apple have sued NSO Group in U.S. courts, notified victims of spyware infections, and worked to support civil society watchdogs. Apple has also donated $10 million to cybersurveillance research and has pledged to do likewise with any damages awarded from its lawsuit against NSO Group.

But curbing the global spread of mercenary spyware will require a comprehensive approach. To begin with, companies need to devote far more resources to identifying and rooting out spyware and ensuring that their services are properly secured against exploitation. WhatsApp and Apple have already shown how to alert victims when spyware is detected and hold spyware vendors such as NSO Group legally responsible for violations of their terms of service and other legal offenses. Whether through a shift in business culture, or more likely through stronger government regulations, technology platforms should also put more emphasis on security and scale back the relentless quest to vacuum up user data. In turn, the forensic investigations of the Citizen Lab, Amnesty International, journalists, and others will need to be broadened and supplemented by other organizations doing similar work, whether at NGOs, universities, or investigative news organizations. Digital forensic science and digital accountability should be recognized as a formal research discipline that can monitor spyware activity, assist victims and targets, and keep pressure on governments and corporations to be more transparent and accountable for their actions. For such a field to emerge, many years of public, private, and philanthropic support will be needed.

Ultimately, governments themselves will need to adopt a robust regulatory framework for spyware use. Regulating the industry will likely require the enactment of a complex set of rules that address various aspects of the spyware market. For example, domestic-based

spyware companies could be required to make regular public disclosures about their exports, and, in turn, government agencies could be required to report from whom and where they are importing spyware. Export rules need to be strengthened to prevent the sale of spyware to governments or other clients that are likely to use them in violation of international human rights law. Clear rules and standards of oversight for the use of spyware are also necessary. Specific legislation addressing the zero-day market will likely also be needed, although it will have to be carefully crafted so that legitimate security research is not hindered. Governments could also pass legislation giving victims of spyware the right to sue both foreign governments and spyware vendors for harms caused by espionage.

Such efforts could be reinforced at an international level through the development of a global spyware control regime. Military activities, for example, have long been subject to international oversight through such mechanisms as the UN's Register of Conventional Arms and the policies that have been put in place relating to standards for private military and security contractors or the banning of land mines. A similar process could lead to the international regulation of spyware, including requirements for transparency and reporting about its use. These existing models, however, suggest that success will require the buy-in of a significant number of countries, and more pressure is needed to persuade governments and world leaders that mercenary spyware poses a serious and growing threat to international security and the liberal international order.

No doubt, authoritarian governments and security agencies that currently benefit from spyware will seek to obstruct such regulation, but the growing risks to national security of an unregulated market may prompt a more sober assessment. In November 2022, Sir Jeremy Fleming, a top British intelligence official, warned that the proliferating use of mercenary spyware and "hackers for hire" by countries and malefactors "will increase the future threat to UK cybersecurity." Should the use of mercenary spyware continue to grow unchecked, the risks for democracy will become acute. If elites in any country can use this technology to neutralize legitimate political opposition on any point on earth, silence dissent through targeted espionage, undermine independent journalism, and erode public accountability with impunity, then the values on which the liberal international order is built may soon be no more secure than the passwords on our phones.

FW: [EXTERNAL] The Cybersecurity 202: A longtime DOJ cyber official gives an exclusive exit interview

From: "Mak, Hansen L. EOP/NCD" <(b) (6)>
To: "Dudley, Drenan E. EOP/NCD" <(b) (6)>
Date: Thu, 23 Feb 2023 08:59:37 -0500

FYSA on use of disruptive technology by DoJ and creation of a Strike Force. My assumption is that minimal to no additional funds are needed if they absorb within.

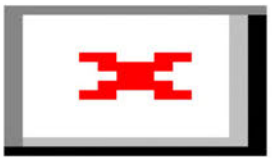
Justice and Commerce Departments Announce Creation of Disruptive Technology Strike Force | OPA | Department of Justice

The strike force's work will focus on investigating and prosecuting criminal violations of export laws; enhancing administrative enforcement of U.S. export controls; fostering partnerships with the private sector; leveraging international partnerships to coordinate law enforcement actions and disruption strategies; utilizing advanced data analytics and all-source intelligence to develop and build investigations; conducting regular trainings for field offices; and strengthening connectivity between the strike force and the Intelligence Community.

In addition to the National Security Division and the Bureau of Industry and Security, this strike force will be comprised of officials from designated U.S. Attorneys' Offices throughout the country, the FBI and the Department of Homeland Security's Homeland Security Investigations (HSI).

From: The Washington Post <email@washingtonpost.com>
Sent: Thursday, February 23, 2023 7:18 AM
To: Mak, Hansen L. EOP/NCD <(b) (6)>
Subject: [EXTERNAL] The Cybersecurity 202: A longtime DOJ cyber official gives an exclusive exit interview

View in browser



By Tim Starks

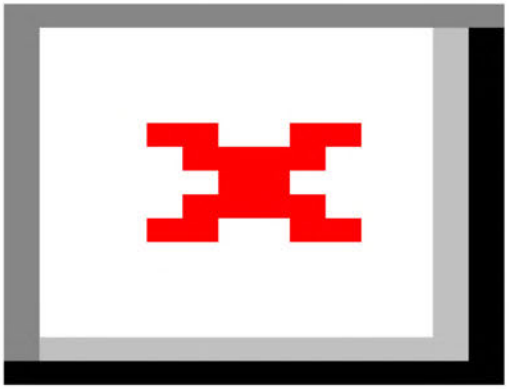
with research by Vanessa Montalbano

Welcome to The Cybersecurity 202! We'll have the day off from publishing Friday, so see you next on Monday.

Reading this online? *Sign up for The Cybersecurity 202 to get scoops and sharp analysis in your inbox each morning.*

Below: The European Commission bans TikTok on staffers' official devices, and states are crafting their own online privacy standards after a bipartisan bill failed in Congress last year. First:

Adam Hickey discusses his time working on cyber issues at DOJ, and what's next



Adam Hickey plans to join a law firm. (Carolyn Kaster/AP)

Adam Hickey, who has spent more than a decade at the Justice Department working on high-profile cyber cases, is leaving the department to go into the private sector. Hickey most recently served as deputy assistant attorney general at the Justice Department's National Security Division (NSD), where he supervised the office devoted to investigating and prosecuting nation-backed computer intrusions.

Hickey spoke with me on Wednesday about how the department has evolved its approach to cyber issues during his time there and some of the related areas he has focused on, like scrutinizing foreign companies investing in U.S. businesses. He also talked about challenges ahead for the department.

Hickey plans to join a law firm, which he declined to name. He began at the department in 2007 as a prosecutor in the Southern District of New York, then moving to the NSD in 2012 and taking his current role in 2016.

"When I came down here, my focus then was on building cases involving state actors conducting intrusions," Hickey said. "At the time, when we talked about cyber, one of the dominant topics was foreign governments hacking into systems and stealing either IP [intellectual property] or export control information. Now I think about how the cyber portfolio crosses across NSD."

A CHANGING DOJ

One of the key changes Hickey played a role in was the department increasingly naming who was responsible for major cyberattacks. "We live in a better world where we are transparent about what other actors or countries are doing, and what their employees are doing, and their proxies," he said of an accomplishment that was "certainly not mine alone."

- Leadership began treating cyber as not just an intelligence problem or diplomatic problem, recognizing the tools law enforcement can bring to bear to deter would-be attackers, Hickey said. Building cases demonstrates potential consequences even if the hackers are unlikely to see the inside of a jail cell, and it can scare off those who might be attracted to malicious hacking if they know they won't be able to leave their home country lest they be arrested, he said.

- Attributing attacks in charging documents also can aid the private sector, and stand to rally other allied countries, Hickey said — and all the better if other agencies and countries join in that attribution effort, as is increasingly common.

The U.S. first filed criminal charges against government-connected hackers in 2014, which made five Chinese military hackers the inaugural targets for their alleged widespread economic espionage. Some of the other major cases of Hickey's tenure, he said, have been the charging in 2017 of two alleged Russian spies and two cybercriminals whom they paid in the massive Yahoo hack; and the investigation of the hacks of Democratic organizations and officials in the lead-up to the 2016 elections.

Another notable shift, he said, was the department becoming "more comfortable using disruptive tools to either recoup gains or frustrate activities in the first place." One example of that, Hickey said, is the operation last year to go into computers infected by a botnet — which takes over devices to use them for illicit aims, like spreading malware — without their owners authorizing it. By doing so, the department said, it was able to disable the grip a Russian government-controlled botnet called Cyclops Blink had on thousands of devices.F

- The approach has raised privacy concerns, but Hickey said the department mitigates that by going to a court to get approval from a judge for a search warrant and eventually making affidavits public.

- The Cyclops Blink operation wouldn't have been possible without a strong relationship with the private sector, as the department coordinated with WatchGuard Technologies, he said. The botnet had exploited a vulnerability in company firewalls.

- Despite the increased willingness to use them, Hickey called operations like the Cyclops Blink disruption a "tool of last resort."

Hickey also touted stepped-up enforcement of the Foreign Agents Registration Act, which requires agents of foreign governments involved in political activities to disclose their affiliation. That includes the use of civil enforcement authority in 2019 for the first time since 1991, when a judge ordered a Florida broadcaster to register under the law for its work on behalf of a Russian state-owned media organization.

He counted as another accomplishment the growth of the Foreign Investment Review Section, which represents the department on the staff of the Committee on Foreign Investment in the United States (CFIUS). That multiagency committee reviews transactions involving foreign investments that could affect national security.

According to the New York Times, Hickey has been one of the government officials negotiating with TikTok on behalf of CFIUS in response to the national security concerns raised by Chinese ownership of the app. Hickey said he couldn't comment on the status of the TikTok process.

LOOKING AHEAD

Historically, "we have tended to undervalue or underprice security, as consumers and as businesses," he said. "But there's obviously a trend toward regulation, and I don't know how the federal government will ultimately tackle that."

Another challenge moving forward is what Hickey considers to be a "blending of the threats." Before, the department was focused on "card-carrying intelligence officers," he said, but lately he's been focused on criminals who are acting with impunity in nations that aren't cracking down on them.

Ransomware gangs showed signs of having less success last year. But even if gains in the fight against ransomware are temporary, they're still valuable, Hickey said.

"No one involved in law enforcement thinks we're going to end crime," he said. "You're bailing water out of a boat that has a hole in the hull. But if you didn't bail the water out, it would undoubtedly be worse." That means taking the fight to the gangs, forcing them to retool, and arresting as many of them as possible, even if it's a small number, he said.

The department hailed Hickey's tenure at the National Security Division.

"During that time, NSD has had unprecedented success in countering nation-state cyberthreats, enforcing sanctions and export controls, combating foreign malign influence and mitigating risks from foreign investment — in no small part because of Adam's vision and leadership," said **Luis Rossello**, a spokesperson.

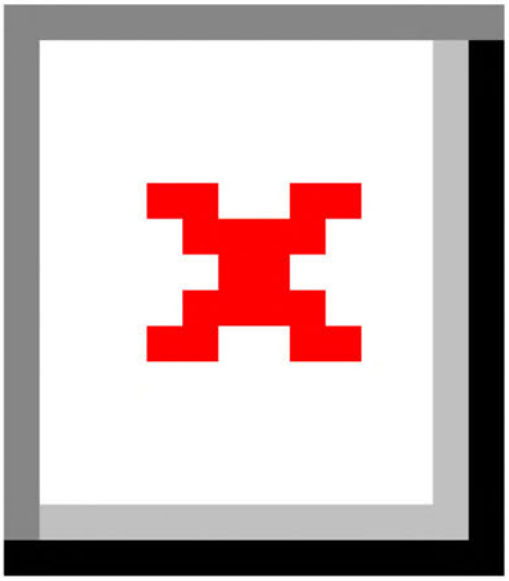
In Hickey's absence, **Andrew Adams** will be serving as acting deputy assistant attorney general on an interim basis.

Hickey didn't come into the department with a background in technology, but said he had an enthusiasm for national security, an interest in surveillance law and other "technocrat" leanings. Now he's seeing more lawyers joining the department with computer science education and younger people who are "digital natives." That can only help going forward, he said.

"I refer to it as a language that everyone uses everyday without being able to speak, and that's kind of dangerous," Hickey said, but "yeah, I'm optimistic."

The keys

European Commission bans TikTok on staff phones



The European Commission's ban follows similar announcements in the United States and other countries. (Reuters/Yves Herman)

The European Commission banned its staff from using TikTok on work phones, following similar restrictions in the United States, Emily Rauhala and Beatriz Ríos report. Staff members have been told that they have to remove TikTok from official devices, as well as personal phones that have work apps installed.

"The decision to restrict access for thousands of employees comes amid growing Western concern about Chinese technology, particularly links between tech companies and the Chinese government and the potential for data harvesting," Emily and Beatriz write. "In December, Congress banned the app from all federal devices. More than two dozen states have introduced similar bans. The commission's decision could lead to moves from other E.U. institutions."

TikTok has argued that it doesn't pose a security threat, and the company has launched a charm offensive to try to prove that it's not a national security threat.

Venture capital financing for cyber fell to $18.5 billion in 2022

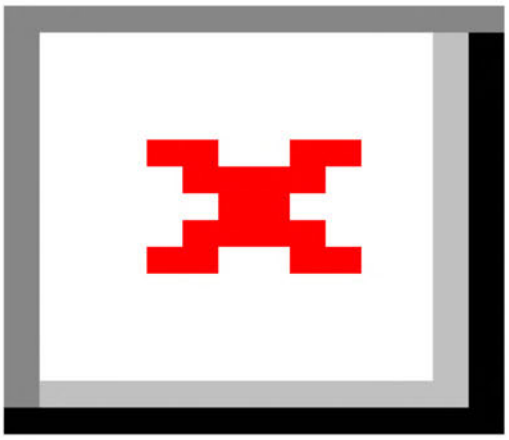
In the second half of 2022, venture capital investments for cybersecurity firms fell to $18.5 billion from $30.3 billion in 2021, according to the financial research firm Momentum Cyber, **The Record**'s Jonathan Greig reports.

Still, experts said that 2022 marked the industry's highest year on record and that the unpredictable economy that prevailed over the last year due to Russia's invasion of Ukraine likely impacted how much firms would be willing to invest in publicly traded start-ups. They warned, however, that the threat from cyberattacks is accelerating.

"While cybersecurity venture investment slowed in the second half of the year, continued budget increases from security teams and ongoing cybersecurity and geopolitical risk gives us optimism about the long-term future of this industry," Momentum Cyber's executive chairman **Dave DeWalt** said.

"We live at a seminal time in cybersecurity history, with risk rising to levels greater than we have ever seen," DeWalt added.

States are taking on Americans' online privacy



Indiana lawmakers at the Indiana Statehouse in Indianapolis on Feb. 7. (Arleigh Rodgers/AP)

After a broad bipartisan federal privacy bill died in Congress last year, advocates are looking at state capitals to enact tough new restrictions on how Americans' personal data can be shared, create a data broker registry and establish new rights for Americans to delete data about themselves**,** **Politico**'s Alfred Ng reports.

Already, politicians in Massachusetts and Illinois are proposing data privacy measures modeled after the failed bill while Democrats in Indiana are using it as inspiration to tighten legislation that has already been drafted. Four other states have also passed their own online privacy laws in the past two years — prompting tech companies to worry about a future national "patchwork" of hard-to-navigate data rules.

The new statehouse focus is meant to strengthen regulations in just enough places to force the tech industry into a de facto national standard, Ng writes. But a powerful industry-led campaign is already underway in several states, including Virginia and Utah, where weaker laws were enacted over the past two years.

The sector argues that a series of individual state privacy laws, including any that follow the proposed federal regulation, would create confusion for companies and citizens — and instead

of satisfying multiple systems, they are more likely to accommodate whatever the toughest standard is.

The American Data Privacy and Protection Act enjoyed broad bipartisan support on Capitol Hill and rare backing from both the tech industry and privacy advocates. But it was ultimately shot down by California Democrats, led by then-House Speaker Nancy Pelosi because of concerns that a national framework would weaken strong protections that the state has had since 2018.

Securing the ballot

Arizona's top prosecutor concealed records debunking election fraud claims

By Yvonne Wingett Sanchez and Isaac Stanley-Becker • **Read more »**

Global cyberspace

Ukraine suffered more data-wiping malware in 2022 than anywhere, ever

By Wired • **Read more »**

Putin silenced by Pro-Ukrainian hackers during DDoS attack on Russian media

By Cybernews • **Read more »**

Cyber insecurity

Cyberattack on food giant Dole temporarily shuts down North America production, company memo says

By CNN • **Read more »**

More vulnerabilities in industrial systems raise fresh concerns about critical infrastructure hacks

By CyberScoop • **Read more »**

NSA shares guidance on how to secure your home network

By Bleeping Computer • **Read more »**

Phone hackers use Florida man's password to steal $65K from bank account

By Click Orlando • **Read more »**

New S1deload Stealer malware hijacks Youtube, Facebook accounts

By Bleeping Computer • **Read more »**

Ransomware prevention saw 'massive' improvement in 2022

By CRN • **Read more »**

Industry report

AT&T seeks to shed cybersecurity division

By Reuters • **Read more »**

Government scan

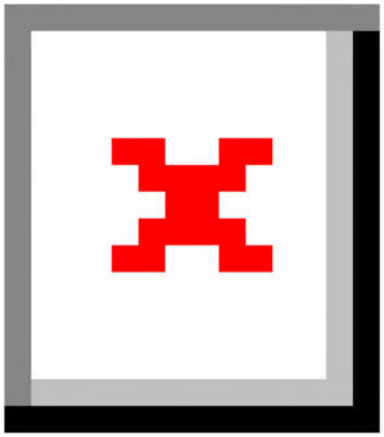
The Energy Department's Puesh Kumar on grid hacking, Ukraine and Pipedream malware

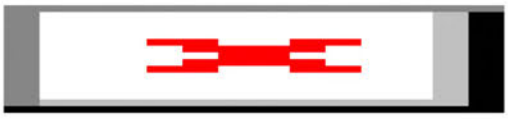
By CyberScoop • **Read more »**

Daybook

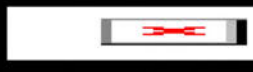
- The R Street Institute holds a webinar on the state of cybersecurity careers for Black professionals today at noon.
- Former U.S. national security adviser **John Bolton** will join The Washington Post for a conversation about the war in Ukraine and rising tensions with China on Friday at 11 a.m.

Secure log off





Thanks for reading. See you next week.



Manage my email newsletters and alerts | Unsubscribe from The Cybersecurity 202 | Privacy Policy | Help

You received this email because you signed up for The Cybersecurity 202 or because it is included in your subscription.

©2023 The Washington Post | 1301 K St NW, Washington DC 20071

Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
To: "Stupak, Philip M. EOP/NCD" (b) (6) >
Cc: sgarnault@garnault-associes.com
Date: Tue, 28 Feb 2023 17:19:01 -0500

Dear Philip,

I hope you are well.

We have a little issue. The CISA workshop is planned on Thursday morning and because of the lag, our agenda introduced a confusion in our planning.

Do we have any chance to meet tomorrow morning before 1pm? Or, can we move this from 11:00/12:00 to 12:00/13:00 ?

If not, we will contact CISA to work it out.

I apologize for this but be sure that our meeting is our priority.

Kind regards,

Pierre-Alexandre

> Le 28 févr. 2023 à 10:08, Stupak, Philip M. EOP/NCD (b) (6) > a écrit :
>
> Dear Pierre-Alexandre,
>
> Thank you for the note. I deleted MP Izard and reentered his information based on the shared passport. He should be good to enter. I have also submitted all the guests to clearance, and will alert you if any issues arise with entered information.
>
> I can certainly cover the TikTok Ban. We would like to better understand the delegation's thoughts on the Proposed Cybersecurity Certification Scheme for Cloud Services (EUCS) as I understand that EU Member State cyber experts and ENISA are likely meeting in the near future.
>
> Philip Stupak
> Director Federal Cybersecurity
> Office of the National Cyber Director
> Executive Office of the President
> (b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Tuesday, February 28, 2023 8:04 AM
To: Stupak, Philip M. EOP/NCD [redacted]
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I hope this email finds you well.
I am contacting you regarding the meeting.
MP Alexis Izard has not put his middle name in the form. I tried to refill the form but it appears I cannot do it as it has already been submitted. I don't know if this can be problematic? (I'm attaching to this email his passeport).

Moreover, if possible of course, we would be more than interested to talk about the TikTok ban from government phones.

Thank you again!

I wish you a very nice day.

Kind regards,

Pierre-Alexandre Houver

<image001.jpg>

Le 28 févr. 2023 à 00:13, Pierre-Alexandre Houver <pahouver@garnault-associes.com> a écrit :

Dear Philip,

Thank you very much!
I've just completed the form for every member of our delegation. Is it ok on your side?
Do not hesitate to tell me if you need additional information.
Please also find enclosed le list of the members of our delegation.

I remain at your entire disposal for any further information you may need.

Kind regards,

Pierre-Alexandre

<2023_CYBERTASKFORCE_DELEGATION.pdf>

Le 27 févr. 2023 à 14:36, Stupak, Philip M. EOP/NCD <(b) (6) [redacted] a écrit :

Dear Pierre-Alexandre,

Wonderful! We would like to welcome you to the White House complex and meet at the Eisenhower Executive Office Building. The visitor entrance is located at 17th Street NW and State Place NW (generally maps will find that location if you enter 1650 17thStreet NW). I will meet you there at 9:45am and bring you to the room.

Each member of your delegation will need to complete this form:https://events.whitehouse.gov/AppointmentRsvpForm?rid=PWMB7M6MR3

Everyone in the delegation needs to complete the form and names need to match what is printed on passports. Foreign visitors should enter "Washington" under the question about City of Residence and "District of Columbia" under the question about State of Residence. No need for a social security number, but please do enter passport numbers. Masks are only required if you are not vaccinated.

Given the tight turn around, please ask your delegation to complete the form as soon as possible, but no later than tomorrow at noon ET.

Please reach out with any questions.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6) [redacted]

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Monday, February 27, 2023 2:22 PM
To: Stupak, Philip M. EOP/NCD <(b) (6) [redacted]>
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you very much for your answer! We would be very honored and happy to meet with Deputy National Cyber Director Neal Higgins.

Thursday, March 2nd from 10 am to 11 am would work perfectly for our delegation.

I suppose that you may need personal data for access. Would you need IDs number or any information in order to plan accesses?

Also, would it be possible too to confirm the location in order to plan transports on our side?

Again, thank you very much.

I wish you a very nice day.

Kind regards,

--
Pierre-Alexandre Houver
Advisor to the president

27 boulevard de Solférino, 35000 Rennes
+ 33 6 86 51 56 96 - pahouver@garnault-associes.com

Le 27 févr. 2023 à 13:59, Stupak, Philip M. EOP/NCD (b) (6) [redacted] a écrit :

> Hello Sébastian,
>
> Apologies for the delay—your email came as we departed for the Munich Security Conference and we have been sorting schedules on our return. Unfortunately, (Acting) National Cyber Director Kemba Walden is unavailable to meet with the delegation. Our Deputy National Cyber Director Neal Higgins is available on Thursday, March 2, between 10am-12pm if that window works for you. Does your schedule permit an hour-long meeting during that window on Thursday?
>
> Philip Stupak

Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

Begin forwarded message:

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Date: February 14, 2023 at 4:01:51 AM EST
To: "Walden, Kemba E. EOP/NCD" <(b) (6)
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Kemba,

I hope this mail will find you well.

I am writing this email following a discussion with **Mr Vincent Voci**, Vice-President at the US Chamber of Commerce. As president of the French CyberTaskForce, we are currently planning to come as a parliamentary delegation to Washington D.C. from February 27th to March 3rd. Composed of French Members of Parliaments, Civil servants and private sector decision-makers, we are coming to the US to meet our colleagues and counterparts involved in technologies, cyber and space.

In this context, we would be particularly honored to meet you for an exchange of views focused on Cyberdefense. **We would be very honored to meeting you during our stay in D.C.**

As you know, cyber-attacks target large, small and critical organizations. However, addressing these threats become more and more complex for them as skills, materials and awareness are lacking. Therefore, we would be more than interested to have a 1 hour meeting with you to have a discussion on how US and France tackle these challenges and are working on developing our common resilience into cyberspace. For your complete information, we will also meet CISA on these issues.

Members of the delegation:

1. **Ms Constance Le Grip,** Member of Parliament, Second Vice-President of the Parliamentary Intelligence Delegation - Co-head of delegation
2. **Mr Sébastien Garnault**, Founder of the French Cyber Task Force, founder of Paris Cyber Summit - Co-head of Delegation
3. **Mr Alexis Izard,** Member of Parliament, author of the information report "Investing for France 2030" for the Finance programming Law for 2023
4. **Mr Robin Reda,** Member of Parliament, member of the committee for Finance
5. **Ms Constance Nebbula**, Vice-President « Digital and Cyber » of Pays de la Loire Regional Council
6. **Mr Florent Kirchner,** Head of the French national cybersecurity strategy - Prime minister
7. **Mr Bruno Charrat,** Deputy Director of Technological Research athe CEA - Atomic Energy Commission, representative of the Alliance for Digital Trust (French cybersecurity professional association)
8. **Mr Pierre-Alexandre Houver,** Advisor at Garnault & Associés
9. **Mr Baptiste Robert**, CEO at Predicta Lab

I warmly thank you and I stay personally at your entire disposal, and for your team, for any additional information you may need.

With best wishes,
Sébastien Garnault

--

Sébastien Garnault
Founder of CyberTaskForce and Paris Cyber Summit
President of Garnault & Associés

27, boulevard Solférino - F-35 000 Rennes
+33 6 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
To: "Stupak, Philip M. EOP/NCD" (b) (6)
Cc: sgarnault@garnault-associes.com
Date: Tue, 28 Feb 2023 18:13:12 -0500

Thank you. I've just informed Sebastien and he is personally calling the CISA. I keep you posted.

However, a meeting with you is still very interesting and key for all of us. We've made a mistake…

> Le 28 févr. 2023 à 17:56, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :
>
> I believe all of our deputies are in planned Friday meetings so you would be stuck with me. Because of the issue we'll discuss, our windows are very tight the next two weeks but we wanted to ensure an opportunity to meet with you.
>
> Philip Stupak
> Director of Federal Cybersecurity
> Office of the National Cyber Director
> Executive Office of the President
>
> > On Feb 28, 2023, at 5:47 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:
> >
> > Thank you Philip for your fast answer.
> >
> > We apologize, it is our mistake.. I am calling right now CISA to see what I can do. To make sure that we explore all possibilities, would be Friday morning available for you or not at all ? Sorry to ask…
> >
> > > Le 28 févr. 2023 à 17:39, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :
> > >
> > > Unfortunately, we have very little flexibility for a reason that I cannot discuss before Thursday. Should we still be able to meet on Thursday as planned then we will be able to brief you on that item and you will understand the lack of flexibility. Sorry!
> > >
> > > Philip Stupak
> > > Director of Federal Cybersecurity
> > > Office of the National Cyber Director

Executive Office of the President

> On Feb 28, 2023, at 5:19 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:

Dear Philip,

I hope you are well.

We have a little issue. The CISA workshop is planned on Thursday morning and because of the lag, our agenda introduced a confusion in our planning.

Do we have any chance to meet tomorrow morning before 1pm? Or, can we move this from 11:00/12:00 to 12:00/13:00 ?

If not, we will contact CISA to work it out.

I apologize for this but be sure that our meeting is our priority.

Kind regards,

Pierre-Alexandre

> Le 28 févr. 2023 à 10:08, Stupak, Philip M. EOP/NCD <(b) (6) a écrit :

Dear Pierre-Alexandre,

Thank you for the note. I deleted MP Izard and reentered his information based on the shared passport. He should be good to enter. I have also submitted all the guests to clearance, and will alert you if any issues arise with entered information.

I can certainly cover the TikTok Ban. We would like to better understand the delegation's thoughts on the Proposed Cybersecurity Certification Scheme for Cloud Services (EUCS) as I understand that EU Member State cyber experts and ENISA are likely meeting in the near future.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Tuesday, February 28, 2023 8:04 AM
To: Stupak, Philip M. EOP/NCD <(b) (6)>
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I hope this email finds you well.
I am contacting you regarding the meeting.
MP Alexis Izard has not put his middle name in the form. I tried to refill the form but it appears I cannot do it as it has already been submitted. I don't know if this can be problematic? (I'm attaching to this email his passeport).

Moreover, if possible of course, we would be more than interested to talk about the TikTok ban from government phones.

Thank you again!

I wish you a very nice day.

Kind regards,

Pierre-Alexandre Houver

<image001.jpg>

Le 28 févr. 2023 à 00:13, Pierre-Alexandre Houver <pahouver@garnault-associes.com> a écrit :

Dear Philip,

Thank you very much!
I've just completed the form for every member of our delegation. Is it ok on your side?
Do not hesitate to tell me if you need additional information.
Please also find enclosed le list of the members of our delegation.

I remain at your entire disposal for any further information you may need.

Kind regards,

Pierre-Alexandre

<2023_CYBERTASKFORCE_DELEGATION.pdf>

Le 27 févr. 2023 à 14:36, Stupak, Philip M. EOP/NCD <(b) (6) [redacted]> a écrit :

Dear Pierre-Alexandre,

Wonderful! We would like to welcome you to the White House complex and meet at the Eisenhower Executive Office Building. The visitor entrance is located at 17th Street NW and State Place NW (generally maps will find that location if you enter 1650 17thStreet NW). I will meet you there at 9:45am and bring you to the room.

Each member of your delegation will need to complete this form:https://events.whitehouse.gov/AppointmentRsvpForm?rid=PWMB7M6MR3

Everyone in the delegation needs to complete the form and names need to match what is printed on passports. Foreign visitors should enter "Washington" under the question about City of Residence and "District of Columbia" under the question about State of Residence. No need for a social security number, but please do enter passport numbers. Masks are only required if you are not vaccinated.

Given the tight turn around, please ask your delegation to complete the form as soon as possible, but no later than tomorrow at noon ET.

Please reach out with any questions.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Monday, February 27, 2023 2:22 PM
To: Stupak, Philip M. EOP/NCD (b) (6)
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you very much for your answer! We would be very honored and happy to meet with Deputy National Cyber Director Neal Higgins.

Thursday, March 2nd from 10 am to 11 am would work perfectly for our delegation.

I suppose that you may need personal data for access. Would you need IDs number or any information in order to plan accesses?

Also, would it be possible too to confirm the location in order to plan transports on our side?

Again, thank you very much.

I wish you a very nice day.

Kind regards,

--
Pierre-Alexandre Houver
Advisor to the president

27 boulevard de Solférino, 35000 Rennes
+ 33 6 86 51 56 96 - pahouver@garnault-associes.com

Le 27 févr. 2023 à 13:59, Stupak, Philip M. EOP/NCD (b) (6) > a écrit :

Hello Sébastian,

Apologies for the delay—your email came as we departed for the Munich Security Conference and we have been sorting schedules on our return. Unfortunately, (Acting) National Cyber Director Kemba Walden is unavailable to meet with the delegation. Our Deputy National Cyber Director Neal Higgins is available on Thursday, March 2, between 10am-12pm if that window works for you. Does your schedule permit an hour-long meeting during that window on Thursday?

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

Begin forwarded message:

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Date: February 14, 2023 at 4:01:51 AM EST
To: "Walden, Kemba E. EOP/NCD"
<(b) (6)>
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Kemba,

I hope this mail will find you well.

I am writing this email following a discussion with **Mr Vincent Voci**, Vice-President at the US Chamber of Commerce. As president of the French CyberTaskForce, we are currently planning to come as a parliamentary delegation to Washington D.C. from February 27th to March 3rd. Composed of French Members of Parliaments, Civil servants and private sector decision-makers, we are coming to the US to meet our colleagues and counterparts involved in technologies, cyber and space.

In this context, we would be particularly honored to meet you for an exchange of views focused on Cyberdefense. **We would be very honored to meeting you during our stay in D.C.**

As you know, cyber-attacks target large, small and critical organizations. However, addressing these threats become more and more complex for them as skills, materials and awareness are lacking. Therefore, we would be more than interested to have a 1 hour meeting with you to have a discussion on how US and France tackle these challenges and are working on developing our common resilience into cyberspace. For your complete information, we will also meet CISA on these issues.

Members of the delegation:

1. **Ms Constance Le Grip,** Member of Parliament, Second Vice-President of the Parliamentary Intelligence Delegation - Co-head of delegation
2. **Mr Sébastien Garnault,** Founder of the French Cyber Task Force, founder of Paris Cyber Summit - Co-head of Delegation
3. **Mr Alexis Izard,** Member of Parliament, author of the information report "Investing for France 2030" for the Finance programming Law for 2023
4. **Mr Robin Reda,** Member of Parliament, member of the committee for Finance
5. **Ms Constance Nebbula,** Vice-President « Digital and Cyber » of Pays de la Loire Regional Council
6. **Mr Florent Kirchner,** Head of the French national cybersecurity strategy - Prime minister
7. **Mr Bruno Charrat,** Deputy Director of Technological Research athe CEA - Atomic Energy Commission, representative of the Alliance for Digital Trust (French cybersecurity professional association)
8. **Mr Pierre-Alexandre Houver,** Advisor at Garnault & Associés
9. **Mr Baptiste Robert**, CEO at Predicta Lab

I warmly thank you and I stay personally at your entire disposal, and for your team, for any additional information you may need.

With best wishes,
Sébastien Garnault

--

Sébastien Garnault
Founder of CyberTaskForce and Paris Cyber Summit
President of Garnault & Associés

27, boulevard Solférino - F-35 000 Rennes
+33 6 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

From: "Stupak, Philip M. EOP/NCD" (b) (6) >
To: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Cc: sgarnault@garnault-associes.com
Date: Tue, 28 Feb 2023 17:39:19 -0500

Unfortunately, we have very little flexibility for a reason that I cannot discuss before Thursday. Should we still be able to meet on Thursday as planned then we will be able to brief you on that item and you will understand the lack of flexibility. Sorry!

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

> On Feb 28, 2023, at 5:19 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:
>
> Dear Philip,
>
> I hope you are well.
>
> We have a little issue. The CISA workshop is planned on Thursday morning and because of the lag, our agenda introduced a confusion in our planning.
>
> Do we have any chance to meet tomorrow morning before 1pm? Or, can we move this from 11:00/12:00 to 12:00/13:00 ?
>
> If not, we will contact CISA to work it out.
>
> I apologize for this but be sure that our meeting is our priority.
>
> Kind regards,
>
> Pierre-Alexandre
>
> > Le 28 févr. 2023 à 10:08, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :
> >
> > Dear Pierre-Alexandre,

Thank you for the note. I deleted MP Izard and reentered his information based on the shared passport. He should be good to enter. I have also submitted all the guests to clearance, and will alert you if any issues arise with entered information.

I can certainly cover the TikTok Ban. We would like to better understand the delegation's thoughts on the Proposed Cybersecurity Certification Scheme for Cloud Services (EUCS) as I understand that EU Member State cyber experts and ENISA are likely meeting in the near future.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6) [redacted]

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Tuesday, February 28, 2023 8:04 AM
To: Stupak, Philip M. EOP/NCD <(b) (6) [redacted]>
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I hope this email finds you well.
I am contacting you regarding the meeting.
MP Alexis Izard has not put his middle name in the form. I tried to refill the form but it appears I cannot do it as it has already been submitted. I don't know if this can be problematic? (I'm attaching to this email his passeport).

Moreover, if possible of course, we would be more than interested to talk about the TikTok ban from government phones.

Thank you again!

I wish you a very nice day.

Kind regards,

Pierre-Alexandre Houver

<image001.jpg>

Le 28 févr. 2023 à 00:13, Pierre-Alexandre Houver <pahouver@garnault-associes.com> a écrit :

Dear Philip,

Thank you very much!
I've just completed the form for every member of our delegation. Is it ok on your side?
Do not hesitate to tell me if you need additional information.
Please also find enclosed le list of the members of our delegation.

I remain at your entire disposal for any further information you may need.

Kind regards,

Pierre-Alexandre

<2023_CYBERTASKFORCE_DELEGATION.pdf>

Le 27 févr. 2023 à 14:36, Stupak, Philip M. EOP/NCD
<(b) (6) [redacted]> a écrit :

Dear Pierre-Alexandre,

Wonderful! We would like to welcome you to the White House complex and meet at the Eisenhower Executive Office Building. The visitor entrance is located at 17th Street NW and State Place NW (generally maps will find that location if you enter 1650 17th Street NW). I will meet you there at 9:45am and bring you to the room.

Each member of your delegation will need to complete this form:https://events.whitehouse.gov/AppointmentRsvpForm?rid=PWMB7M6MR3

Everyone in the delegation needs to complete the form and names need to match what is printed on passports. Foreign visitors should enter "Washington" under the question about City of Residence and "District of Columbia" under the question about State of Residence. No need for a social security number, but please do enter passport numbers. Masks are only required if you are not vaccinated.

Given the tight turn around, please ask your delegation to complete the form as soon as possible, but no later than tomorrow at noon ET.

Please reach out with any questions.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6) [redacted]

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Monday, February 27, 2023 2:22 PM
To: Stupak, Philip M. EOP/NCD <(b) (6) [redacted]>
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you very much for your answer! We would be very honored and happy to meet with Deputy National Cyber Director Neal Higgins.

Thursday, March 2nd from 10 am to 11 am would work perfectly for our delegation.

I suppose that you may need personal data for access. Would you need IDs number or any information in order to plan accesses?

Also, would it be possible too to confirm the location in order to plan transports on our side?

Again, thank you very much.

I wish you a very nice day.

Kind regards,

--
Pierre-Alexandre Houver
Advisor to the president

27 boulevard de Solférino, 35000 Rennes
+ 33 6 86 51 56 96 - pahouver@garnault-associes.com

Le 27 févr. 2023 à 13:59, Stupak, Philip M. EOP/NCD
<(b) (6) > a écrit :

Hello Sébastian,

Apologies for the delay—your email came as we departed for the Munich Security Conference and we have been sorting schedules on our return. Unfortunately, (Acting) National Cyber Director Kemba Walden is unavailable to meet with the delegation. Our Deputy National Cyber Director Neal Higgins is available on Thursday, March 2, between 10am-12pm if that window works for you. Does your schedule permit an hour-long meeting during that window on Thursday?

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

Begin forwarded message:

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Date: February 14, 2023 at 4:01:51 AM EST
To: "Walden, Kemba E. EOP/NCD" <(b) (6)
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Kemba,

I hope this mail will find you well.

I am writing this email following a discussion with **Mr Vincent Voci**, Vice-President at the US Chamber of Commerce. As president of the French CyberTaskForce, we are currently planning to come as a parliamentary delegation to Washington D.C. from February 27th to March 3rd. Composed of French Members of Parliaments, Civil servants and private sector decision-makers, we are coming to the US to meet our colleagues and counterparts involved in technologies, cyber and space.

In this context, we would be particularly honored to meet you for an exchange of views focused on Cyberdefense. **We would be very honored to meeting you during our stay in D.C.**

As you know, cyber-attacks target large, small and critical organizations. However, addressing these threats become more and more complex for them as skills, materials and

awareness are lacking. Therefore, we would be more than interested to have a 1 hour meeting with you to have a discussion on how US and France tackle these challenges and are working on developing our common resilience into cyberspace. For your complete information, we will also meet CISA on these issues.

Members of the delegation:

1. **Ms Constance Le Grip,** Member of Parliament, Second Vice-President of the Parliamentary Intelligence Delegation - Co-head of delegation
2. **Mr Sébastien Garnault,** Founder of the French Cyber Task Force, founder of Paris Cyber Summit - Co-head of Delegation
3. **Mr Alexis Izard,** Member of Parliament, author of the information report "Investing for France 2030" for the Finance programming Law for 2023
4. **Mr Robin Reda,** Member of Parliament, member of the committee for Finance
5. **Ms Constance Nebbula,** Vice-President « Digital and Cyber » of Pays de la Loire Regional Council
6. **Mr Florent Kirchner,** Head of the French national cybersecurity strategy - Prime minister
7. **Mr Bruno Charrat,** Deputy Director of Technological Research athe CEA - Atomic Energy Commission, representative of the Alliance for Digital Trust (French cybersecurity professional association)
8. **Mr Pierre-Alexandre Houver,** Advisor at Garnault & Associés
9. **Mr Baptiste Robert**, CEO at Predicta Lab

I warmly thank you and I stay personally at your entire disposal, and for your team, for any additional information you may need.

With best wishes,
Sébastien Garnault

--
Sébastien Garnault
Founder of CyberTaskForce and Paris Cyber Summit
President of Garnault & Associés

27, boulevard Solférino - F-35 000 Rennes
+33 6 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
To: "Stupak, Philip M. EOP/NCD" (b) (6) >
Cc: sgarnault@garnault-associes.com
Date: Tue, 28 Feb 2023 17:46:49 -0500

Thank you Philip for your fast answer.

We apologize, it is our mistake.. I am calling right now CISA to see what I can do. To make sure that we explore all possibilities, would be Friday morning available for you or not at all ? Sorry to ask…

Le 28 févr. 2023 à 17:39, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :

Unfortunately, we have very little flexibility for a reason that I cannot discuss before Thursday. Should we still be able to meet on Thursday as planned then we will be able to brief you on that item and you will understand the lack of flexibility. Sorry!

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 5:19 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:

Dear Philip,

I hope you are well.

We have a little issue. The CISA workshop is planned on Thursday morning and because of the lag, our agenda introduced a confusion in our planning.

Do we have any chance to meet tomorrow morning before 1pm? Or, can we move this from 11:00/12:00 to 12:00/13:00 ?

If not, we will contact CISA to work it out.

I apologize for this but be sure that our meeting is our priority.

Kind regards,

Pierre-Alexandre

Le 28 févr. 2023 à 10:08, Stupak, Philip M. EOP/NCD (b) (6) a écrit :

Dear Pierre-Alexandre,

Thank you for the note. I deleted MP Izard and reentered his information based on the shared passport. He should be good to enter. I have also submitted all the guests to clearance, and will alert you if any issues arise with entered information.

I can certainly cover the TikTok Ban. We would like to better understand the delegation's thoughts on the Proposed Cybersecurity Certification Scheme for Cloud Services (EUCS) as I understand that EU Member State cyber experts and ENISA are likely meeting in the near future.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Tuesday, February 28, 2023 8:04 AM
To: Stupak, Philip M. EOP/NCD <(b) (6)
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I hope this email finds you well.
I am contacting you regarding the meeting.
MP Alexis Izard has not put his middle name in the form. I tried to refill the form but it appears I cannot do it as it has already been submitted. I don't know if this can be problematic? (I'm attaching to this email his passeport).

Moreover, if possible of course, we would be more than interested to talk about the TikTok ban from government phones.

Thank you again!

I wish you a very nice day.

Kind regards,

Pierre-Alexandre Houver

<image001.jpg>

Le 28 févr. 2023 à 00:13, Pierre-Alexandre Houver <pahouver@garnault-associes.com> a écrit :

Dear Philip,

Thank you very much!
I've just completed the form for every member of our delegation. Is it ok on your side?
Do not hesitate to tell me if you need additional information.
Please also find enclosed le list of the members of our delegation.

I remain at your entire disposal for any further information you may need.

Kind regards,

Pierre-Alexandre

<2023_CYBERTASKFORCE_DELEGATION.pdf>

Le 27 févr. 2023 à 14:36, Stupak, Philip M. EOP/NCD
(b) (6) > a écrit :

Dear Pierre-Alexandre,

Wonderful! We would like to welcome you to the White House complex and meet at the Eisenhower Executive Office Building. The visitor entrance is located at 17th Street NW and State Place NW (generally maps will find that location if you enter 1650 17th Street NW). I will meet you there at 9:45am and bring you to the room.

Each member of your delegation will need to complete this form:https://events.whitehouse.gov/AppointmentRsvpForm?rid=PWMB7M6MR3

Everyone in the delegation needs to complete the form and names need to match what is printed on passports. Foreign visitors should enter "Washington" under the question about City of Residence and "District of Columbia" under the question about State of Residence. No need for a social security number, but please do enter passport numbers. Masks are only required if you are not vaccinated.

Given the tight turn around, please ask your delegation to complete the form as soon as possible, but no later than tomorrow at noon ET.

Please reach out with any questions.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@gamault-associes.com>
Sent: Monday, February 27, 2023 2:22 PM
To: Stupak, Philip M. EOP/NCD (b) (6) >
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you very much for your answer! We would be very honored and happy to meet with Deputy National Cyber Director Neal Higgins.

Thursday, March 2nd from 10 am to 11 am would work perfectly for our delegation.

I suppose that you may need personal data for access. Would you need IDs number or any information in order to plan accesses?

Also, would it be possible too to confirm the location in order to plan transports on our side?

Again, thank you very much.

I wish you a very nice day.

Kind regards,

--
Pierre-Alexandre Houver
Advisor to the president

27 boulevard de Solférino, 35000 Rennes
+ 33 6 86 51 56 96 - pahouver@garnault-associes.com

Le 27 févr. 2023 à 13:59, Stupak, Philip M. EOP/NCD
(b) (6) > a écrit :

Hello Sébastian,

Apologies for the delay—your email came as we departed for the Munich Security Conference and we have been sorting schedules on our return. Unfortunately, (Acting) National Cyber Director Kemba Walden is unavailable to meet with the delegation. Our Deputy National Cyber Director Neal Higgins is available on Thursday, March 2, between 10am-12pm if that window works for you. Does your schedule permit an hour-long meeting during that window on Thursday?

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

Begin forwarded message:

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Date: February 14, 2023 at 4:01:51 AM EST
To: "Walden, Kemba E. EOP/NCD"
<(b) (6) >
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Kemba,

I hope this mail will find you well.

I am writing this email following a discussion with **Mr Vincent Voci**, Vice-President at the US Chamber of Commerce. As president of the French CyberTaskForce, we are currently planning to come as a parliamentary delegation to Washington D.C. from February 27th to March 3rd. Composed of French Members of Parliaments, Civil servants and private sector decision-makers, we are coming to the US to meet our colleagues and counterparts involved in technologies, cyber and space.

In this context, we would be particularly honored to meet you for an exchange of views focused on Cyberdefense. **We would be very honored to meeting you during our stay in D.C.**

As you know, cyber-attacks target large, small and critical organizations. However, addressing these threats become more and more complex for them as skills, materials and awareness are lacking. Therefore, we would be more than interested to have a 1 hour meeting with you to have a discussion on how US and France tackle these challenges and are working on developing our common resilience into cyberspace. For your complete information, we will also meet CISA on these issues.

Members of the delegation:

1. **Ms Constance Le Grip,** Member of Parliament, Second Vice-President of the Parliamentary Intelligence Delegation - Co-head of delegation
2. **Mr Sébastien Garnault,** Founder of the French Cyber Task Force, founder of Paris Cyber Summit - Co-head of Delegation
3. **Mr Alexis Izard,** Member of Parliament, author of the information report "Investing for France 2030" for the Finance programming Law for 2023
4. **Mr Robin Reda,** Member of Parliament, member of the committee for Finance
5. **Ms Constance Nebbula,** Vice-President « Digital and Cyber » of Pays de la Loire Regional Council
6. **Mr Florent Kirchner,** Head of the French national cybersecurity strategy - Prime minister
7. **Mr Bruno Charrat,** Deputy Director of Technological Research athe CEA - Atomic Energy Commission, representative of the Alliance for Digital Trust (French cybersecurity professional association)
8. **Mr Pierre-Alexandre Houver,** Advisor at Garnault & Associés
9. **Mr Baptiste Robert**, CEO at Predicta Lab

I warmly thank you and I stay personally at your entire disposal, and for your team, for any additional information you may need.

With best wishes,
Sébastien Garnault

--

Sébastien Garnault
Founder of CyberTaskForce and Paris Cyber Summit
President of Garnault & Associés

27, boulevard Solférino - F-35 000 Rennes
+33 6 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

RE: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

From: "stupak, philip m. eop/ncd"
To: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Cc: sgarnault@garnault-associes.com
Date: Tue, 28 Feb 2023 10:03:19 -0500

Dear Pierre-Alexandre,

Thank you for the note. I deleted MP Izard and reentered his information based on the shared passport. He should be good to enter. I have also submitted all the guests to clearance, and will alert you if any issues arise with entered information.

I can certainly cover the TikTok Ban.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Tuesday, February 28, 2023 8:04 AM
To: Stupak, Philip M. EOP/NCD <(b) (6)>
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I hope this email finds you well.
I am contacting you regarding the meeting.
MP Alexis Izard has not put his middle name in the form. I tried to refill the form but it appears I cannot do it as it has already been submitted. I don't know if this can be problematic? (I'm attaching to this email his passeport).

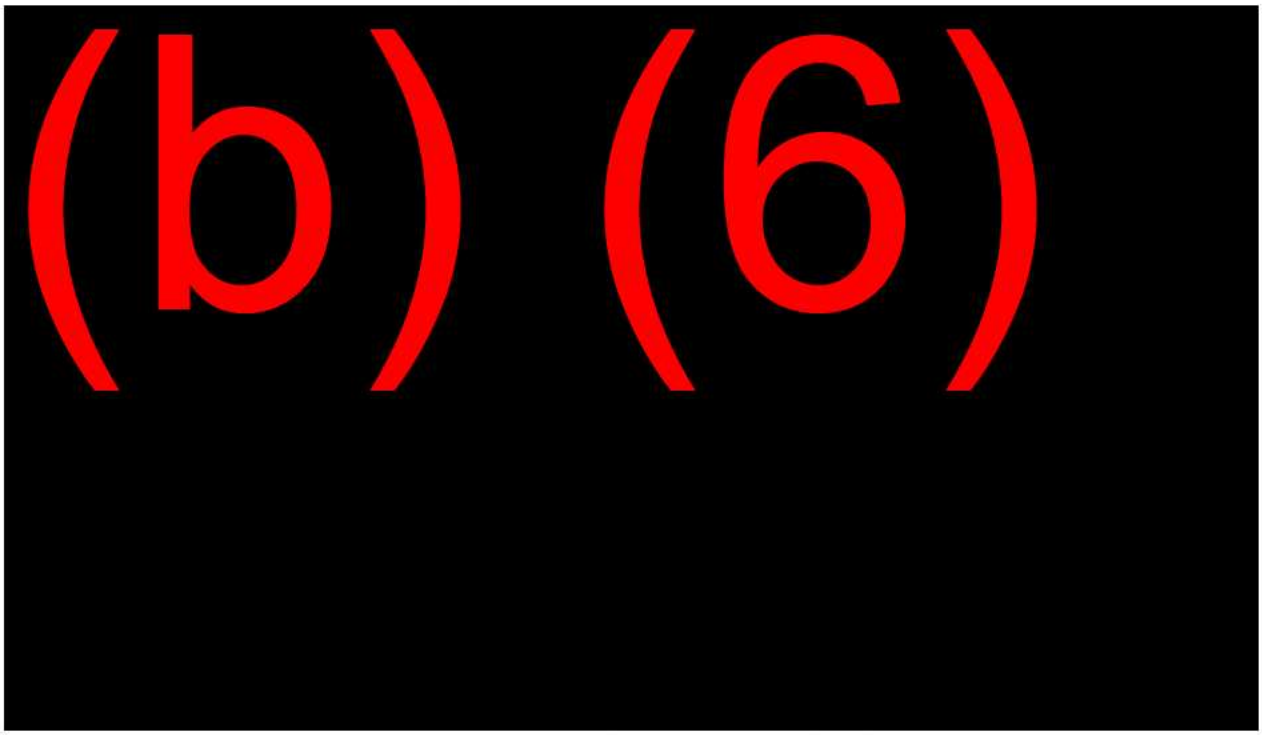
Moreover, if possible of course, we would be more than interested to talk about the TikTok ban from government phones.

Thank you again!

I wish you a very nice day.

Kind regards,

Pierre-Alexandre Houver



Le 28 févr. 2023 à 00:13, Pierre-Alexandre Houver <pahouver@garnault-associes.com> a écrit :

Dear Philip,

Thank you very much!
I've just completed the form for every member of our delegation. Is it ok on your side?
Do not hesitate to tell me if you need additional information.
Please also find enclosed le list of the members of our delegation.

I remain at your entire disposal for any further information you may need.

Kind regards,

Pierre-Alexandre

<2023_CYBERTASKFORCE_DELEGATION.pdf>

Le 27 févr. 2023 à 14:36, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :

Dear Pierre-Alexandre,

Wonderful! We would like to welcome you to the White House complex and meet at the Eisenhower Executive Office Building. The visitor entrance is located at 17th Street NW and State Place NW (generally maps will find that location if you enter 1650 17thStreet NW). I will meet you there at 9:45am and bring you to the room.

Each member of your delegation will need to complete this form:https://events.whitehouse.gov/AppointmentRsvpForm?rid=PWMB7M6MR3

Everyone in the delegation needs to complete the form and names need to match what is printed on passports. Foreign visitors should enter "Washington" under the question about City of Residence and "District of Columbia" under the question about State of Residence. No need for a social security number, but please do enter passport numbers. Masks are only required if you are not vaccinated.

Given the tight turn around, please ask your delegation to complete the form as soon as possible, but no later than tomorrow at noon ET.

Please reach out with any questions.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Monday, February 27, 2023 2:22 PM
To: Stupak, Philip M. EOP/NCD <(b) (6) >
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you very much for your answer! We would be very honored and happy to meet with Deputy National Cyber Director Neal Higgins.

Thursday, March 2nd from 10 am to 11 am would work perfectly for our delegation.

I suppose that you may need personal data for access. Would you need IDs number or any information in order to plan accesses?

Also, would it be possible too to confirm the location in order to plan transports on our side?

Again, thank you very much.

I wish you a very nice day.

Kind regards,

--
Pierre-Alexandre Houver
Advisor to the president

27 boulevard de Solférino, 35000 Rennes
+ 33 6 86 51 56 96 - pahouver@garnault-associes.com

Le 27 févr. 2023 à 13:59, Stupak, Philip M. EOP/NCD (b) (6) > a écrit :

> Hello Sébastian,
>
> Apologies for the delay—your email came as we departed for the Munich Security Conference and we have been sorting schedules on our return. Unfortunately, (Acting) National Cyber Director Kemba Walden is unavailable to meet with the delegation. Our Deputy National Cyber Director Neal Higgins is available on Thursday, March 2, between 10am-12pm if that window works for you. Does your schedule permit an hour-long meeting during that window on Thursday?
>
> Philip Stupak
> Director Federal Cybersecurity
> Office of the National Cyber Director
> Executive Office of the President
> (b) (6)
>
> Begin forwarded message:
>
> **From:** Sébastien Garnault <sgarnault@garnault-associes.com>
> **Date:** February 14, 2023 at 4:01:51 AM EST
> **To:** "Walden, Kemba E. EOP/NCD" <(b) (6) >
> **Cc:** Pierre-Alexandre Houver <pahouver@garnault-associes.com>
> **Subject: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd**
>
> Dear Kemba,
>
> I hope this mail will find you well.
>
> I am writing this email following a discussion with **Mr Vincent Voci**, Vice-President at the US Chamber of Commerce. As president of the French CyberTaskForce, we are currently planning to come as a parliamentary delegation to Washington D.C. from February 27th to March 3rd. Composed

of French Members of Parliaments, Civil servants and private sector decision-makers, we are coming to the US to meet our colleagues and counterparts involved in technologies, cyber and space.

In this context, we would be particularly honored to meet you for an exchange of views focused on Cyberdefense. **We would be very honored to meeting you during our stay in D.C.**

As you know, cyber-attacks target large, small and critical organizations. However, addressing these threats become more and more complex for them as skills, materials and awareness are lacking. Therefore, we would be more than interested to have a 1 hour meeting with you to have a discussion on how US and France tackle these challenges and are working on developing our common resilience into cyberspace. For your complete information, we will also meet CISA on these issues.

Members of the delegation:

1. **Ms Constance Le Grip,** Member of Parliament, Second Vice-President of the Parliamentary Intelligence Delegation - Co-head of delegation
2. **Mr Sébastien Garnault,** Founder of the French Cyber Task Force, founder of Paris Cyber Summit - Co-head of Delegation
3. **Mr Alexis Izard,** Member of Parliament, author of the information report "Investing for France 2030" for the Finance programming Law for 2023
4. **Mr Robin Reda,** Member of Parliament, member of the committee for Finance
5. **Ms Constance Nebbula,** Vice-President « Digital and Cyber » of Pays de la Loire Regional Council
6. **Mr Florent Kirchner,** Head of the French national cybersecurity strategy - Prime minister
7. **Mr Bruno Charrat,** Deputy Director of Technological Research athe CEA - Atomic Energy Commission, representative of the Alliance for Digital Trust (French cybersecurity professional association)
8. **Mr Pierre-Alexandre Houver,** Advisor at Garnault & Associés
9. **Mr Baptiste Robert**, CEO at Predicta Lab

I warmly thank you and I stay personally at your entire disposal, and for your team, for any additional information you may need.

With best wishes,
Sébastien Garnault

--

Sébastien Garnault
Founder of CyberTaskForce and Paris Cyber Summit
President of Garnault & Associés

27, boulevard Solférino - F-35 000 Rennes
+33 6 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

From: Sébastien Garnault <sgarnault@garnault-associes.com>
To: "Stupak, Philip M. EOP/NCD" (b) (6)
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Date: Wed, 01 Mar 2023 11:32:34 -0500

That is great.

I've contacted by my embassy who would like to invite you tonight at our cocktail. Please don't be surprise if you receive it today.

I wish you a wonderful day.
Sebastien

--
Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

> Le 1 mars 2023 à 11:10, Stupak, Philip M. EOP/NCD <(b) (6)> a écrit :
>
> Wonderful, we are confirmed. I will meet you Friday, March 3, at 915am at the 17th Street and State Place entrance.
>
> Philip Stupak
> Director Federal Cybersecurity
> Office of the National Cyber Director
> Executive Office of the President
> (b) (6)
>
> **From:** Sébastien Garnault <sgarnault@garnault-associes.com>
> **Sent:** Wednesday, March 1, 2023 10:18 AM
> **To:** Stupak, Philip M. EOP/NCD <(b) (6)>
> **Cc:** Pierre-Alexandre Houver <pahouver@garnault-associes.com>
> **Subject:** Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you so much for the work ! It works perfectly and I confirm that we will all attend from 9:30 to 10:30.

Again, I apologise for the trouble.

With very best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 1 mars 2023 à 10:12, Stupak, Philip M. EOP/NCD (b) (6) > a écrit :

We are able to accommodate Friday morning from 0930-1030. As feared, our deputies are all unavailable to meet but we can hold this meeting at the Assistant National Cyber Director level (the equivalent to an Agency Assistant Secretary). We are still confirming availabilities but we will likely have:

1. Nick Leiserson, ANCD for Cyber Policy & Programs
2. Drenan Dudley, ANCD for Budget Review & Assessment
3. Philip Stupak, (Acting) ANCD for International
4. Amanda Suarez, Senior Strategy & Research Advisor
5. Stephen Vina, Senior Advisor to the DNCD National Cybersecurity

Kindly let me know if that works for your delegation, and we will get the rooms and clearances moved over.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Sent: Tuesday, February 28, 2023 6:58 PM
To: Stupak, Philip M. EOP/NCD <(b) (6) [redacted]>
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I really appreciate what you are doing and thank you for your understanding. Let me know and I will make everything to make it the easiest for you.

Do not hesitate to use my number if needed (+33680716056).

With best wishes,
Sebastien

--
Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 28 févr. 2023 à 18:51, Stupak, Philip M. EOP/NCD (b) (6) [redacted] a écrit :

Sébastien,

Let me work out some details with the team in the morning and see if we may make Friday morning work. I believe Neal Higgins will be otherwise unable to meet but I will hopefully be able to assemble a group of senior leaders from our Office.

I will revert early tomorrow.

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director

On Feb 28, 2023, at 6:40 PM, Sébastien Garnault <sgarnault@garnault-associes.com> wrote:

Director Stupak, dear Philip,

First of all, I would like to apologize deeply and formally. I feel very embarrassed for what is happening and I take back the lead from now on regarding our meeting.

I called CISA to see how the situation can be fixed. Unfortunately, we engaged too much work on strategic topics for both of our countries to cancel the workshop. This workshop involves many of your colleagues and it wouldn't be acceptable, and serious, to modify it.

However, I think key to meet you and make our bilateral discussion alive. I mean that if there is any opportunity to meet you on Friday morning, I would cancelled all we have, as it is not strategic for the delegation.

Again, it is very embarrassing and I hope you won't consider the situation as a lack of serious of the CyberTaskForce delegation.

What do you think ?

I stay personally available at anytime to sort it out.

With best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
+33 6 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 28 févr. 2023 à 17:56, Stupak, Philip M. EOP/NCD
<(b) (6) a écrit :

I believe all of our deputies are in planned Friday meetings so you would be stuck with me. Because of the issue we'll discuss, our windows are very tight the next two weeks but we wanted to ensure an opportunity to meet with you.

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 5:47 PM, Pierre-Alexandre Houver
<pahouver@garnault-associes.com> wrote:

Thank you Philip for your fast answer.

We apologize, it is our mistake.. I am calling right now CISA to see what I can do. To make sure that we explore all possibilities, would be Friday morning available for you or not at all ? Sorry to ask…

Le 28 févr. 2023 à 17:39, Stupak, Philip M. EOP/NCD
(b) (6) > a écrit :

Unfortunately, we have very little flexibility for a reason that I cannot discuss before Thursday. Should we still be able to meet on Thursday as planned then we will be able to brief you on that item and you will understand the lack of flexibility. Sorry!

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 5:19 PM, Pierre-Alexandre Houver
<pahouver@garnault-associes.com> wrote:

Dear Philip,

I hope you are well.

We have a little issue. The CISA workshop is planned on Thursday morning and because of the lag, our agenda introduced a confusion in our planning.

Do we have any chance to meet tomorrow morning before 1pm? Or, can we move this from 11:00/12:00 to 12:00/13:00 ?

If not, we will contact CISA to work it out.

I apologize for this but be sure that our meeting is our priority.

Kind regards,

Pierre-Alexandre

Le 28 févr. 2023 à 10:08, Stupak, Philip M. EOP/NCD
<(b) (6) > a écrit :

Dear Pierre-Alexandre,

Thank you for the note. I deleted MP Izard and reentered his information based on the shared passport. He should be good to enter. I have also submitted all the guests to clearance, and will alert you if any issues arise with entered information.

I can certainly cover the TikTok Ban. We would like to better understand the delegation's thoughts on the Proposed Cybersecurity Certification Scheme for Cloud Services (EUCS) as I understand that EU Member State cyber experts and ENISA are likely meeting in the near future.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Tuesday, February 28, 2023 8:04 AM
To: Stupak, Philip M. EOP/NCD
<(b) (6) [redacted]>
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I hope this email finds you well.
I am contacting you regarding the meeting.
MP Alexis Izard has not put his middle name in the form. I tried to refill the form but it appears I cannot do it as it has already been submitted. I don't know if this can be problematic? (I'm attaching to this email his passeport).

Moreover, if possible of course, we would be more than interested to talk about the TikTok ban from government phones.

Thank you again!

I wish you a very nice day.

Kind regards,

Pierre-Alexandre Houver

<image001.jpg>

Le 28 févr. 2023 à 00:13, Pierre-Alexandre Houver <pahouver@garnault-associes.com> a écrit :

Dear Philip,

Thank you very much!
I've just completed the form for every member of our delegation. Is it ok on your side?
Do not hesitate to tell me if you need additional information.
Please also find enclosed le list of the members of our delegation.

I remain at your entire disposal for any further information you may need.

Kind regards,

Pierre-Alexandre

<2023_CYBERTASKFORCE_DELEGATION.pdf>

Le 27 févr. 2023 à 14:36, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :

Dear Pierre-Alexandre,

Wonderful! We would like to welcome you to the White House complex and meet at the Eisenhower Executive Office Building. The visitor entrance is located at 17th Street NW and State Place NW (generally maps will find that location if you enter 1650 17thStreet NW). I will meet you there at 9:45am and bring you to the room.

Each member of your delegation will need to complete this form:https://events.whitehouse.gov/AppointmentRsvpForm?rid=PWMB7M6MR3

Everyone in the delegation needs to complete the form and names need to match what is printed on passports. Foreign visitors should enter "Washington" under the question about City of Residence and "District of Columbia" under the question about State of Residence. No need for a social security number, but please do enter passport numbers. Masks are only required if you are not vaccinated.

Given the tight turn around, please ask your delegation to complete the form as soon as possible, but no later than tomorrow at noon ET.

Please reach out with any questions.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Monday, February 27, 2023 2:22 PM
To: Stupak, Philip M. EOP/NCD
(b) (6)
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you very much for your answer! We would be very honored and happy to meet with Deputy National Cyber Director Neal Higgins.

Thursday, March 2nd from 10 am to 11 am would work perfectly for our delegation.

I suppose that you may need personal data for access. Would you need IDs number or any information in order to plan accesses?

Also, would it be possible too to confirm the location in order to plan transports on our side?

Again, thank you very much.

I wish you a very nice day.

Kind regards,

--
Pierre-Alexandre Houver
Advisor to the president

27 boulevard de Solférino, 35000 Rennes
+ 33 6 86 51 56 96 - pahouver@garnault-associes.com

Le 27 févr. 2023 à 13:59, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :

> Hello Sébastian,
>
> Apologies for the delay—your email came as we departed for the Munich Security Conference and we have been sorting schedules on our return. Unfortunately, (Acting) National Cyber Director Kemba Walden is unavailable to meet with the delegation. Our Deputy National Cyber Director Neal Higgins is available on Thursday, March 2, between 10am-12pm if that window works for you. Does your schedule permit an hour-long meeting during that window on Thursday?
>
> Philip Stupak
> Director Federal Cybersecurity
> Office of the National Cyber Director
> Executive Office of the President
> (b) (6)
>
> Begin forwarded message:

From: Sébastien Garnault <sgarnault@garnault-associates.com>
Date: February 14, 2023 at 4:01:51 AM EST
To: "Walden, Kemba E. EOP/NCD" <(b) (6)
Cc: Pierre-Alexandre Houver <pahouver@garnault-associates.com>
Subject: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Kemba,

I hope this mail will find you well.

I am writing this email following a discussion with **Mr Vincent Voci**, Vice-President at the US Chamber of Commerce. As president of the French CyberTaskForce, we are currently planning to come as a parliamentary delegation to Washington D.C. from February 27th to March 3rd. Composed of French Members of Parliaments, Civil servants and private sector decision-makers, we are coming to the US to meet our colleagues and counterparts involved in technologies, cyber and space.

In this context, we would be particularly honored to meet you for an exchange of views focused on Cyberdefense. **We would be very honored to meeting you during our stay in D.C.**

As you know, cyber-attacks target large, small and critical organizations. However, addressing these threats become more and more complex for them as skills, materials and awareness are lacking. Therefore, we would be more than interested to have a 1 hour meeting with you to have a discussion on how US and France tackle these challenges and are working on developing our common resilience into cyberspace. For your complete information, we will also meet CISA on these issues.

Members of the delegation:

1. **Ms Constance Le Grip,** Member of Parliament, Second Vice-President of the Parliamentary Intelligence Delegation - Co-head of delegation
2. **Mr Sébastien Garnault,** Founder of the French Cyber Task Force, founder of Paris Cyber Summit - Co-head of Delegation

3. **Mr Alexis Izard,** Member of Parliament, author of the information report "Investing for France 2030" for the Finance programming Law for 2023
4. **Mr Robin Reda,** Member of Parliament, member of the committee for Finance
5. **Ms Constance Nebbula,** Vice-President « Digital and Cyber » of Pays de la Loire Regional Council
6. **Mr Florent Kirchner,** Head of the French national cybersecurity strategy - Prime minister
7. **Mr Bruno Charrat,** Deputy Director of Technological Research athe CEA - Atomic Energy Commission, representative of the Alliance for Digital Trust (French cybersecurity professional association)
8. **Mr Pierre-Alexandre Houver,** Advisor at Garnault & Associés
9. **Mr Baptiste Robert**, CEO at Predicta Lab

I warmly thank you and I stay personally at your entire disposal, and for your team, for any additional information you may need.

With best wishes,
Sébastien Garnault

--
Sébastien Garnault
Founder of CyberTaskForce and Paris Cyber Summit
President of Garnault & Associés

27, boulevard Solférino - F-35 000 Rennes
+33 6 80 71 60 56
- sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

From: Sébastien Garnault <sgarnault@garnault-associes.com>
To: "Stupak, Philip M. EOP/NCD" (b) (6)
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Date: Wed, 01 Mar 2023 10:17:42 -0500

Dear Philip,

Thank you so much for the work ! It works perfectly and I confirm that we will all attend from 9:30 to 10:30.

Again, I apologise for the trouble.

With very best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

> Le 1 mars 2023 à 10:12, Stupak, Philip M. EOP/NCD (b) (6) a écrit :
>
> We are able to accommodate Friday morning from 0930-1030. As feared, our deputies are all unavailable to meet but we can hold this meeting at the Assistant National Cyber Director level (the equivalent to an Agency Assistant Secretary). We are still confirming availabilities but we will likely have:
>
> 1. Nick Leiserson, ANCD for Cyber Policy & Programs
> 2. Drenan Dudley, ANCD for Budget Review & Assessment
> 3. Philip Stupak, (Acting) ANCD for International
> 4. Amanda Suarez, Senior Strategy & Research Advisor
> 5. Stephen Vina, Senior Advisor to the DNCD National Cybersecurity
>
> Kindly let me know if that works for your delegation, and we will get the rooms and clearances moved over.
>
> Philip Stupak

Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Sent: Tuesday, February 28, 2023 6:58 PM
To: Stupak, Philip M. EOP/NCD (b) (6)
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I really appreciate what you are doing and thank you for your understanding. Let me know and I will make everything to make it the easiest for you.

Do not hesitate to use my number if needed (+33680716056).

With best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 28 févr. 2023 à 18:51, Stupak, Philip M. EOP/NCD (b) (6) a écrit :

Sébastien,

Let me work out some details with the team in the morning and see if we may make Friday morning work. I believe Neal Higgins will be otherwise unable to meet but I will hopefully be able to assemble a group of senior leaders from our Office.

I will revert early tomorrow.

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 6:40 PM, Sébastien Garnault <sgarnault@garnault-associes.com> wrote:

Director Stupak, dear Philip,

First of all, I would like to apologize deeply and formally. I feel very embarrassed for what is happening and I take back the lead from now on regarding our meeting.

I called CISA to see how the situation can be fixed. Unfortunately, we engaged too much work on strategic topics for both of our countries to cancel the workshop. This workshop involves many of your colleagues and it wouldn't be acceptable, and serious, to modify it.

However, I think key to meet you and make our bilateral discussion alive. I mean that if there is any opportunity to meet you on Friday morning, I would cancelled all we have, as it is not strategic for the delegation.

Again, it is very embarrassing and I hope you won't consider the situation as a lack of serious of the CyberTaskForce delegation.

What do you think ?

I stay personally available at anytime to sort it out.

With best wishes,
Sebastien

--
Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
+33 6 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 28 févr. 2023 à 17:56, Stupak, Philip M. EOP/NCD
(b) (6) > a écrit :

I believe all of our deputies are in planned Friday meetings so you would be stuck with me. Because of the issue we'll discuss, our windows are very tight the next two weeks but we wanted to ensure an opportunity to meet with you.

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

> On Feb 28, 2023, at 5:47 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:
>
> Thank you Philip for your fast answer.
>
> We apologize, it is our mistake.. I am calling right now CISA to see what I can do. To make sure that we explore all possibilities, would be Friday morning available for you or not at all ? Sorry to ask…

> Le 28 févr. 2023 à 17:39, Stupak, Philip M. EOP/NCD
> <(b) (6) > a écrit :
>
> Unfortunately, we have very little flexibility for a reason that I cannot discuss before Thursday. Should we still be able to meet on Thursday as planned then we will be able to brief you on that item and you will understand the lack of flexibility. Sorry!
>
> Philip Stupak
> Director of Federal Cybersecurity
> Office of the National Cyber Director
> Executive Office of the President

> On Feb 28, 2023, at 5:19 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:
>
> Dear Philip,
>
> I hope you are well.

We have a little issue. The CISA workshop is planned on Thursday morning and because of the lag, our agenda introduced a confusion in our planning.

Do we have any chance to meet tomorrow morning before 1pm? Or, can we move this from 11:00/12:00 to 12:00/13:00 ?

If not, we will contact CISA to work it out.

I apologize for this but be sure that our meeting is our priority.

Kind regards,

Pierre-Alexandre

Le 28 févr. 2023 à 10:08, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :

Dear Pierre-Alexandre,

Thank you for the note. I deleted MP Izard and reentered his information based on the shared passport. He should be good to enter. I have also submitted all the guests to clearance, and will alert you if any issues arise with entered information.

I can certainly cover the TikTok Ban. We would like to better understand the delegation's thoughts on the Proposed Cybersecurity Certification Scheme for Cloud Services (EUCS) as I understand that EU Member State cyber experts and ENISA are likely meeting in the near future.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
202-881-6385

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Tuesday, February 28, 2023 8:04 AM
To: Stupak, Philip M. EOP/NCD <(b) (6) >
Cc: sgarnault@garnault-associes.com

Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I hope this email finds you well.
I am contacting you regarding the meeting.
MP Alexis Izard has not put his middle name in the form. I tried to refill the form but it appears I cannot do it as it has already been submitted. I don't know if this can be problematic? (I'm attaching to this email his passeport).

Moreover, if possible of course, we would be more than interested to talk about the TikTok ban from government phones.

Thank you again!

I wish you a very nice day.

Kind regards,

Pierre-Alexandre Houver

<image001.jpg>

Le 28 févr. 2023 à 00:13, Pierre-Alexandre Houver <pahouver@garnault-associes.com> a écrit :

Dear Philip,

Thank you very much!
I've just completed the form for every member of our delegation. Is it ok on your side?
Do not hesitate to tell me if you need additional information.

Please also find enclosed le list of the members of our delegation.

I remain at your entire disposal for any further information you may need.

Kind regards,

Pierre-Alexandre

<2023_CYBERTASKFORCE_DELEGATION.pdf>

Le 27 févr. 2023 à 14:36, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :

Dear Pierre-Alexandre,

Wonderful! We would like to welcome you to the White House complex and meet at the Eisenhower Executive Office Building. The visitor entrance is located at 17th Street NW and State Place NW (generally maps will find that location if you enter 1650 17thStreet NW). I will meet you there at 9:45am and bring you to the room.

Each member of your delegation will need to complete this form:https://events.whitehouse.gov/AppointmentRsvpForm?rid=PWMB7M6MR3

Everyone in the delegation needs to complete the form and names need to match what is printed on passports. Foreign visitors should enter "Washington" under the question about City of Residence and

"District of Columbia" under the question about State of Residence. No need for a social security number, but please do enter passport numbers. Masks are only required if you are not vaccinated.

Given the tight turn around, please ask your delegation to complete the form as soon as possible, but no later than tomorrow at noon ET.

Please reach out with any questions.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Monday, February 27, 2023 2:22 PM
To: Stupak, Philip M. EOP/NCD
<(b) (6)
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you very much for your answer! We would be very honored and happy to meet with Deputy National Cyber Director Neal Higgins.

Thursday, March 2nd from 10 am to 11 am would work perfectly for our delegation.

I suppose that you may need personal data for access. Would you need IDs number or any information in order to plan accesses?

Also, would it be possible too to confirm the location in order to plan transports on our side?

Again, thank you very much.

I wish you a very nice day.

Kind regards,

--
Pierre-Alexandre Houver
Advisor to the president

27 boulevard de Solférino, 35000 Rennes
+ 33 6 86 51 56 96 - pahouver@garnault-associes.com

Le 27 févr. 2023 à 13:59, Stupak, Philip M. EOP/NCD <(b) (6) [redacted]> a écrit :

Hello Sébastian,

Apologies for the delay—your email came as we departed for the Munich Security Conference and we have been sorting schedules on our return. Unfortunately, (Acting) National Cyber Director Kemba Walden is unavailable to meet with the delegation. Our Deputy National Cyber Director Neal Higgins is available on Thursday, March 2, between 10am-12pm if that window works for you. Does your schedule permit an hour-long meeting during that window on Thursday?

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6) [redacted]

Begin forwarded message:

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Date: February 14, 2023 at 4:01:51 AM EST
To: "Walden, Kemba E. EOP/NCD" <(b) (6) [redacted]
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Kemba,

I hope this mail will find you well.

I am writing this email following a discussion with **Mr Vincent Voci**, Vice-President at the US Chamber of Commerce. As president of the French CyberTaskForce, we are currently planning to come as a parliamentary delegation to Washington D.C. from February 27th to March 3rd. Composed of French Members of Parliaments, Civil servants and private sector decision-makers, we are coming to the US to meet our colleagues and counterparts involved in technologies, cyber and space.

In this context, we would be particularly honored to meet you for an exchange of views focused on Cyberdefense. **We would be very honored to meeting you during our stay in D.C.**

As you know, cyber-attacks target large, small and critical organizations. However, addressing these threats become more and more complex for them as skills, materials and awareness are lacking. Therefore, we would be more than interested to have a 1 hour meeting with you to have a discussion on how US and France tackle these challenges and are working on developing our common resilience into cyberspace. For your complete information, we will also meet CISA on these issues.

Members of the delegation:

1. **Ms Constance Le Grip,** Member of Parliament, Second Vice-President of the Parliamentary Intelligence Delegation - Co-head of delegation
2. **Mr Sébastien Garnault,** Founder of the French Cyber Task Force, founder of Paris Cyber Summit - Co-head of Delegation
3. **Mr Alexis Izard,** Member of Parliament, author of the information report "Investing for France 2030" for the Finance programming Law for 2023
4. **Mr Robin Reda,** Member of Parliament, member of the committee for Finance
5. **Ms Constance Nebbula,** Vice-President « Digital and Cyber » of Pays de la Loire Regional Council
6. **Mr Florent Kirchner,** Head of the French national cybersecurity strategy - Prime minister
7. **Mr Bruno Charrat,** Deputy Director of Technological Research athe CEA - Atomic Energy Commission, representative of the Alliance for Digital Trust (French cybersecurity professional association)
8. **Mr Pierre-Alexandre Houver,** Advisor at Garnault & Associés
9. **Mr Baptiste Robert**, CEO at Predicta Lab

I warmly thank you and I stay personally at your entire disposal, and for your team, for any additional information you may need.

With best wishes,
Sébastien Garnault

--
Sébastien Garnault
Founder of CyberTaskForce and Paris Cyber Summit
President of Garnault & Associés

27, boulevard Solférino - F-35 000 Rennes
+33 6 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

From: "Stupak, Philip M. EOP/NCD" <(b) (6) [redacted]>
To: Sébastien Garnault <sgarnault@garnault-associes.com>
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Date: Thu, 02 Mar 2023 09:11:42 -0500

Good news, the embargo has been lifted and I can formally share the strategy with you and your delegation. I enjoyed last night and look forward to tomorrow's discussion.

FACT SHEET
https://www.whitehouse.gov/briefing-room/statements-releases/2023/03/02/fact-sheet-biden-harris-administration-announces-national-cybersecurity-strategy/

NATIONAL CYBERSECURITY STRATEGY
https://www.whitehouse.gov/wp-content/uploads/2023/03/National-Cybersecurity-Strategy-2023.pdf

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

> On Mar 1, 2023, at 11:33 AM, Sébastien Garnault <sgarnault@garnault-associes.com> wrote:
>
> That is great.
>
> I've contacted by my embassy who would like to invite you tonight at our cocktail. Please don't be surprise if you receive it today.
>
> I wish you a wonderful day.
> Sebastien
>
> --
> **Sébastien Garnault**
> Fondateur de la CyberTaskForce
> Président de Garnault & Associés
>
> 27, boulevard Solférino - Rennes (35000)
> 06 80 71 60 56 - sgarnault@garnault-associes.com
> @SebGarnault - Profil LinkedIn
>
> -
> Sent from my phone

Le 1 mars 2023 à 11:10, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :

Wonderful, we are confirmed. I will meet you Friday, March 3, at 915am at the 17th Street and State Place entrance.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Sent: Wednesday, March 1, 2023 10:18 AM
To: Stupak, Philip M. EOP/NCD (b) (6) >
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you so much for the work ! It works perfectly and I confirm that we will all attend from 9:30 to 10:30.

Again, I apologise for the trouble.

With very best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 1 mars 2023 à 10:12, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :

We are able to accommodate Friday morning from 0930-1030. As feared, our deputies are all unavailable to meet but we can hold this meeting at the Assistant National Cyber Director level (the equivalent to an Agency Assistant Secretary). We are still confirming availabilities but we will likely have:

1. Nick Leiserson, ANCD for Cyber Policy & Programs
2. Drenan Dudley, ANCD for Budget Review & Assessment
3. Philip Stupak, (Acting) ANCD for International
4. Amanda Suarez, Senior Strategy & Research Advisor
5. Stephen Vina, Senior Advisor to the DNCD National Cybersecurity

Kindly let me know if that works for your delegation, and we will get the rooms and clearances moved over.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
202-881-6385

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Sent: Tuesday, February 28, 2023 6:58 PM
To: Stupak, Philip M. EOP/NCD (b) (6)
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I really appreciate what you are doing and thank you for your understanding. Let me know and I will make everything to make it the easiest for you.

Do not hesitate to use my number if needed (+33680716056).

With best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 28 févr. 2023 à 18:51, Stupak, Philip M. EOP/NCD
<(b) (6) [redacted]> a écrit :

Sébastien,

Let me work out some details with the team in the morning and see if we may make Friday morning work. I believe Neal Higgins will be otherwise unable to meet but I will hopefully be able to assemble a group of senior leaders from our Office.

I will revert early tomorrow.

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 6:40 PM, Sébastien Garnault <sgarnault@garnault-associes.com> wrote:

Director Stupak, dear Philip,

First of all, I would like to apologize deeply and formally. I feel very embarrassed for what is happening and I take back the lead from now on regarding our meeting.

I called CISA to see how the situation can be fixed. Unfortunately, we engaged too much work on strategic topics for both of our countries to cancel the workshop. This workshop involves many of your colleagues and it wouldn't be acceptable, and serious, to modify it.

However, I think key to meet you and make our bilateral discussion alive. I mean that if there is any opportunity to meet you on Friday morning, I would cancelled all we have, as it is not strategic for the delegation.

Again, it is very embarrassing and I hope you won't consider the situation as a lack of serious of the CyberTaskForce delegation.

What do you think ?

I stay personally available at anytime to sort it out.

With best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
+33 6 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 28 févr. 2023 à 17:56, Stupak, Philip M. EOP/NCD
(b) (6) [redacted] a écrit :

I believe all of our deputies are in planned Friday meetings so you would be stuck with me. Because of the issue we'll discuss, our windows are very tight the next two weeks but we wanted to ensure an opportunity to meet with you.

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 5:47 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:

Thank you Philip for your fast answer.

We apologize, it is our mistake.. I am calling right now CISA to see what I can do. To make sure that we explore all possibilities, would be Friday morning available for you or not at all ? Sorry to ask…

Le 28 févr. 2023 à 17:39, Stupak, Philip M. EOP/NCD
(b) (6) > a écrit :

Unfortunately, we have very little flexibility for a reason that I cannot discuss before Thursday. Should we still be able to meet on Thursday as planned then we will be able to brief you on that item and you will understand the lack of flexibility. Sorry!

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 5:19 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:

Dear Philip,

I hope you are well.

We have a little issue. The CISA workshop is planned on Thursday morning and because of the lag, our agenda introduced a confusion in our planning.

Do we have any chance to meet tomorrow morning before 1pm? Or, can we move this from 11:00/12:00 to 12:00/13:00 ?

If not, we will contact CISA to work it out.

I apologize for this but be sure that our meeting is our priority.

Kind regards,

Pierre-Alexandre

Le 28 févr. 2023 à 10:08, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :

Dear Pierre-Alexandre,

Thank you for the note. I deleted MP Izard and reentered his information based on the shared passport. He should be good to enter. I have also submitted all the guests to clearance, and will alert you if any issues arise with entered information.

I can certainly cover the TikTok Ban. We would like to better understand the delegation's thoughts on the Proposed Cybersecurity Certification Scheme for Cloud Services (EUCS) as I understand that EU Member State cyber experts and ENISA are likely meeting in the near future.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Tuesday, February 28, 2023 8:04 AM
To: Stupak, Philip M. EOP/NCD
(b) (6)
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I hope this email finds you well.
I am contacting you regarding the meeting.
MP Alexis Izard has not put his middle name in the form. I tried to refill the form but it appears I cannot do it as it has already been submitted. I don't know if this can be problematic? (I'm attaching to this email his passeport).

Moreover, if possible of course, we would be more than interested to talk about the TikTok ban from government phones.

Thank you again!

I wish you a very nice day.

Kind regards,

Pierre-Alexandre Houver

<image001.jpg>

Le 28 févr. 2023 à 00:13, Pierre-Alexandre Houver <pahouver@garnault-associes.com> a écrit :

Dear Philip,

Thank you very much!
I've just completed the form for every member of our delegation. Is it ok on your side?
Do not hesitate to tell me if you need additional information.
Please also find enclosed le list of the members of our delegation.

I remain at your entire disposal for any further information you may need.

Kind regards,

Pierre-Alexandre

<2023_CYBERTASKFORCE_DELEGATION.pdf>

Le 27 févr. 2023 à 14:36, Stupak, Philip M. EOP/NCD <(b) (6) [redacted]> a écrit :

Dear Pierre-Alexandre,

Wonderful! We would like to welcome you to the White House complex and meet at the Eisenhower Executive Office Building. The visitor entrance is located at 17th Street NW and State Place NW (generally maps will find that location if you enter 1650 17thStreet NW). I will meet you there at 9:45am and bring you to the room.

Each member of your delegation will need to complete this form:https://events.whitehouse.gov/AppointmentRsvpForm?rid=PWMB7M6MR3

Everyone in the delegation needs to complete the form and names need to match what is printed on passports. Foreign visitors should enter "Washington" under the question about City of Residence and "District of Columbia" under the question about State of Residence. No need for a social security number, but please do enter passport numbers. Masks are only required if you are not vaccinated.

Given the tight turn around, please ask your delegation to complete the form as soon as possible, but no later than tomorrow at noon ET.

Please reach out with any questions.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
202-881-6385

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Monday, February 27, 2023 2:22 PM
To: Stupak, Philip M. EOP/NCD
(b) (6)
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you very much for your answer! We would be very honored and happy to meet with Deputy National Cyber Director Neal Higgins.

Thursday, March 2nd from 10 am to 11 am would work perfectly for our delegation.

I suppose that you may need personal data for access. Would you need IDs number or any information in order to plan accesses?

Also, would it be possible too to confirm the location in order to plan transports on our side?

Again, thank you very much.

I wish you a very nice day.

Kind regards,

--
Pierre-Alexandre Houver
Advisor to the president

27 boulevard de Solférino, 35000 Rennes

+ 33 6 86 51 56 96 - pahouver@garnault-associes.com

Le 27 févr. 2023 à 13:59, Stupak, Philip M. EOP/NCD (b) (6) > a écrit :

Hello Sébastian,

Apologies for the delay—your email came as we departed for the Munich Security Conference and we have been sorting schedules on our return. Unfortunately, (Acting) National Cyber Director Kemba Walden is unavailable to meet with the delegation. Our Deputy National Cyber Director Neal Higgins is available on Thursday, March 2, between 10am-12pm if that window works for you. Does your schedule permit an hour-long meeting during that window on Thursday?

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

Begin forwarded message:

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Date: February 14, 2023 at 4:01:51 AM EST
To: "Walden, Kemba E. EOP/NCD" <(b) (6) >
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Kemba,

I hope this mail will find you well.

I am writing this email following a discussion with **Mr Vincent Voci**, Vice-President at the US Chamber of Commerce. As president of the French CyberTaskForce, we are currently planning to come as a parliamentary delegation to Washington D.C. from February 27th to March 3rd. Composed of French Members of Parliaments, Civil servants and private sector decision-makers, we are coming to the US to meet our colleagues and counterparts involved in technologies, cyber and space.

In this context, we would be particularly honored to meet you for an exchange of views focused on Cyberdefense. **We would be very honored to meeting you during our stay in D.C.**

As you know, cyber-attacks target large, small and critical organizations. However, addressing these threats become more and more complex for them as skills, materials and awareness are lacking. Therefore, we would be more than interested to have a 1 hour meeting with you to have a discussion on how US and France tackle these challenges and are working on developing our common resilience into cyberspace. For your complete information, we will also meet CISA on these issues.

Members of the delegation:

1. **Ms Constance Le Grip,** Member of Parliament, Second Vice-President of the Parliamentary Intelligence Delegation - Co-head of delegation
2. **Mr Sébastien Garnault,** Founder of the French Cyber Task Force, founder of Paris Cyber Summit - Co-head of Delegation
3. **Mr Alexis Izard,** Member of Parliament, author of the information report "Investing for France 2030" for the Finance programming Law for 2023
4. **Mr Robin Reda,** Member of Parliament, member of the committee for Finance
5. **Ms Constance Nebbula,** Vice-President

« Digital and Cyber » of Pays de la Loire Regional Council

6. **Mr Florent Kirchner,** Head of the French national cybersecurity strategy - Prime minister
7. **Mr Bruno Charrat,** Deputy Director of Technological Research athe CEA - Atomic Energy Commission, representative of the Alliance for Digital Trust (French cybersecurity professional association)
8. **Mr Pierre-Alexandre Houver,** Advisor at Garnault & Associés
9. **Mr Baptiste Robert**, CEO at Predicta Lab

I warmly thank you and I stay personally at your entire disposal, and for your team, for any additional information you may need.

With best wishes,
Sébastien Garnault

--
Sébastien Garnault
Founder of CyberTaskForce and Paris Cyber Summit
President of Garnault & Associés

27, boulevard Solférino - F-35 000 Rennes
+33 6 80 71 60 56
- sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
To: "Stupak, Philip M. EOP/NCD" <(b) (6) [redacted]>
Date: Thu, 02 Mar 2023 13:41:19 -0500

Perfect!
Thank you very much!

> Le 2 mars 2023 à 13:11, Stupak, Philip M. EOP/NCD <(b) (6) [redacted]> a écrit :
>
> Yes, everyone cleared through background checks. Please have the delegation bring their passports tomorrow. Thanks!
>
> Philip Stupak
> Director of Federal Cybersecurity
> Office of the National Cyber Director
> Executive Office of the President
>
> > On Mar 2, 2023, at 1:08 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:
> >
> > Just a quick question: is everything in order reguarding the accreditations for tomorrow morning?
> >
> > Thanks again!
> >
> > Pierre-Alexandre
> >
> > > Le 2 mars 2023 à 13:04, Pierre-Alexandre Houver <pahouver@garnault-associes.com> a écrit :
> > >
> > > Thank you very much for this Philip!
> > >
> > > Pierre-Alexandre
> > >
> > > > Le 2 mars 2023 à 09:11, Stupak, Philip M. EOP/NCD <(b) (6) [redacted]> a écrit :

Good news, the embargo has been lifted and I can formally share the strategy with you and your delegation. I enjoyed last night and look forward to tomorrow's discussion.

FACT SHEET
https://www.whitehouse.gov/briefing-room/statements-releases/2023/03/02/fact-sheet-biden-harris-administration-announces-national-cybersecurity-strategy/

NATIONAL CYBERSECURITY STRATEGY
https://www.whitehouse.gov/wp-content/uploads/2023/03/National-Cybersecurity-Strategy-2023.pdf

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

> On Mar 1, 2023, at 11:33 AM, Sébastien Garnault <sgarnault@garnault-associes.com> wrote:
>
> That is great.
>
> I've contacted by my embassy who would like to invite you tonight at our cocktail. Please don't be surprise if you receive it today.
>
> I wish you a wonderful day.
> Sebastien
>
> --
> **Sébastien Garnault**
> Fondateur de la CyberTaskForce
> Président de Garnault & Associés
>
> 27, boulevard Solférino - Rennes (35000)
> 06 80 71 60 56 - sgarnault@garnault-associes.com
> @SebGarnault - Profil LinkedIn
>
> -
> Sent from my phone
>
> > Le 1 mars 2023 à 11:10, Stupak, Philip M. EOP/NCD <(b) (6) [redacted]> a écrit :
> >
> > Wonderful, we are confirmed. I will meet you Friday, March 3, at 915am at the 17th Street and State Place entrance.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Sent: Wednesday, March 1, 2023 10:18 AM
To: Stupak, Philip M. EOP/NCD <(b) (6)>
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you so much for the work ! It works perfectly and I confirm that we will all attend from 9:30 to 10:30.

Again, I apologise for the trouble.

With very best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 1 mars 2023 à 10:12, Stupak, Philip M. EOP/NCD <(b) (6)> a écrit :

We are able to accommodate Friday morning from 0930-1030. As feared, our deputies are all unavailable to meet but we can hold this meeting at the Assistant National Cyber Director level (the equivalent to an Agency Assistant Secretary). We are still confirming availabilities but we will likely have:

1. Nick Leiserson, ANCD for Cyber Policy & Programs
2. Drenan Dudley, ANCD for Budget Review & Assessment

3. Philip Stupak, (Acting) ANCD for International
4. Amanda Suarez, Senior Strategy & Research Advisor
5. Stephen Vina, Senior Advisor to the DNCD National Cybersecurity

Kindly let me know if that works for your delegation, and we will get the rooms and clearances moved over.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Sent: Tuesday, February 28, 2023 6:58 PM
To: Stupak, Philip M. EOP/NCD <(b) (6)>
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I really appreciate what you are doing and thank you for your understanding. Let me know and I will make everything to make it the easiest for you.

Do not hesitate to use my number if needed (+33680716056).

With best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 28 févr. 2023 à 18:51, Stupak, Philip M. EOP/NCD
<(b) (6) [redacted] a écrit :

Sébastien,

Let me work out some details with the team in the morning and see if we may make Friday morning work. I believe Neal Higgins will be otherwise unable to meet but I will hopefully be able to assemble a group of senior leaders from our Office.

I will revert early tomorrow.

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 6:40 PM, Sébastien Garnault <sgarnault@garnault-associes.com> wrote:

Director Stupak, dear Philip,

First of all, I would like to apologize deeply and formally. I feel very embarrassed for what is happening and I take back the lead from now on regarding our meeting.

I called CISA to see how the situation can be fixed. Unfortunately, we engaged too much work on strategic topics for both of our countries to cancel the workshop. This workshop involves many of your colleagues and it wouldn't be acceptable, and serious, to modify it.

However, I think key to meet you and make our bilateral discussion alive. I mean that if there is any opportunity to meet you on Friday morning, I would cancelled all we have, as it is not strategic for the delegation.

Again, it is very embarrassing and I hope you won't consider the situation as a lack of serious of the CyberTaskForce delegation.

What do you think ?

I stay personally available at anytime to sort it out.

With best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
+33 6 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 28 févr. 2023 à 17:56, Stupak, Philip M. EOP/NCD <(b) (6) [redacted]> a écrit :

I believe all of our deputies are in planned Friday meetings so you would be stuck with me. Because of the issue we'll discuss, our windows are very tight the next two weeks but we wanted to ensure an opportunity to meet with you.

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 5:47 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:

Thank you Philip for your fast answer.

We apologize, it is our mistake.. I am calling right now CISA to see what I can do. To make sure that we explore all possibilities, would be Friday morning available for you or not at all ? Sorry to ask…

Le 28 févr. 2023 à 17:39, Stupak, Philip M. EOP/NCD <(b) (6) [redacted]> a écrit :

Unfortunately, we have very little flexibility for a reason that I cannot discuss before Thursday. Should we still be able to meet on Thursday as planned then we will be able to brief you on that item and you will understand the lack of flexibility. Sorry!

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

> On Feb 28, 2023, at 5:19 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:
>
> Dear Philip,
>
> I hope you are well.
>
> We have a little issue. The CISA workshop is planned on Thursday morning and because of the lag, our agenda introduced a confusion in our planning.
>
> Do we have any chance to meet tomorrow morning before 1pm? Or, can we move this from 11:00/12:00 to 12:00/13:00 ?
>
> If not, we will contact CISA to work it out.
>
> I apologize for this but be sure that our meeting is our priority.

Kind regards,

Pierre-Alexandre

Le 28 févr. 2023 à 10:08, Stupak, Philip M. EOP/NCD (b) (6) > a écrit :

Dear Pierre-Alexandre,

Thank you for the note. I deleted MP Izard and reentered his information based on the shared passport. He should be good to enter. I have also submitted all the guests to clearance, and will alert you if any issues arise with entered information.

I can certainly cover the TikTok Ban. We would like to better understand the delegation's thoughts on the Proposed Cybersecurity Certification Scheme for Cloud Services (EUCS) as I understand that EU Member State cyber experts and ENISA are likely meeting in the near future.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Tuesday, February 28, 2023

8:04 AM
To: Stupak, Philip M. EOP/NCD <(b) (6)
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I hope this email finds you well.
I am contacting you regarding the meeting.
MP Alexis Izard has not put his middle name in the form. I tried to refill the form but it appears I cannot do it as it has already been submitted. I don't know if this can be problematic? (I'm attaching to this email his passeport).

Moreover, if possible of course, we would be more than interested to talk about the TikTok ban from government phones.

Thank you again!

I wish you a very nice day.

Kind regards,

Pierre-Alexandre Houver

<image001.jpg>

Le 28 févr. 2023 à 00:13,
Pierre-Alexandre Houver
<pahouver@garnault-associes.com> a écrit :

Dear Philip,

Thank you very much!
I've just completed the form for every member of our delegation. Is it ok on your side?
Do not hesitate to tell me if you need additional information.
Please also find enclosed le list of the members of our delegation.

I remain at your entire disposal for any further information you may need.

Kind regards,

Pierre-Alexandre

<2023_CYBERTASKFORCE_DELEGATION.pdf>

Le 27 févr. 2023 à 14:36,
Stupak, Philip M.
EOP/NCD
<(b) (6)
> a écrit :

Dear Pierre-Alexandre,

Wonderful! We would like to welcome you to the White House complex and meet at the Eisenhower Executive Office Building. The visitor entrance is located at 17th Street NW and State Place NW (generally maps will find that location if you enter 1650 17thStreet NW). I will meet you there at 9:45am and bring you to the room.

Each member of your delegation will need to complete this form:https://events.whitehouse.gov/AppointmentRsvpForm?rid=PWMB7M6MR3

Everyone in the delegation needs to complete the form and names need to match what is printed on passports. Foreign visitors should enter "Washington" under the question about City of Residence and "District of Columbia" under the question about State of Residence. No need for a social security number, but please do enter passport numbers. Masks

are only required if you are not vaccinated.

Given the tight turn around, please ask your delegation to complete the form as soon as possible, but no later than tomorrow at noon ET.

Please reach out with any questions.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Monday, February 27, 2023 2:22 PM
To: Stupak, Philip M. EOP/NCD
(b) (6)
>
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you very much for your answer! We would be very honored and happy to meet with Deputy National Cyber Director Neal Higgins.

Thursday, March 2nd from 10 am to 11 am would work perfectly for our delegation.

I suppose that you may need personal data for access. Would you need IDs number or any information in order to plan accesses?

Also, would it be possible too to confirm the location in order to plan transports on our side?

Again, thank you very much.

I wish you a very nice day.

Kind regards,

--
Pierre-Alexandre Houver
Advisor to the president

27 boulevard de Solférino,
35000 Rennes
+ 33 6 86 51 56
96 - pahouver@garnault-associes.com

Le 27 févr. 2023 à 13:59,
Stupak, Philip M.
EOP/NCD
(b) (6) [redacted] a écrit :

> Hello Sébastian,
>
> Apologies for the delay—your email came as we departed for the Munich

Security Conference and we have been sorting schedules on our return. Unfortunately, (Acting) National Cyber Director Kemba Walden is unavailable to meet with the delegation. Our Deputy National Cyber Director Neal Higgins is available on Thursday, March 2, between 10am-12pm if that window works for you. Does your schedule permit an hour-long meeting during that window on Thursday?

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
202-881-6385

Begin forwarded message:

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Date: February 14, 2023 at 4:01:51 AM EST
To: "Walden, Kemba E. EOP/NCD" <(b) (6) [redacted]>
Cc: Pierre-

Alexandre Houver <pahouver@garnault-associes.com>

Subject: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Kemba,

I hope this mail will find you well.

I am writing this email following a discussion with **Mr Vincent Voci**, Vice-President at the US Chamber of Commerce. As president of the French CyberTaskForce, we are currently planning to come as a parliamentary delegation to Washington D.C. from February 27th to March 3rd. Composed of French Members of Parliaments, Civil servants and private sector decision-makers, we are coming to the US to meet our colleagues and counterparts involved in technologies, cyber and space.

In this context, we would be particularly honored to meet you for an exchange of views focused on Cyberdefense. **We would be very honored to meeting you**

during our stay in D.C.

As you know, cyber-attacks target large, small and critical organizations. However, addressing these threats become more and more complex for them as skills, materials and awareness are lacking. Therefore, we would be more than interested to have a 1 hour meeting with you to have a discussion on how US and France tackle these challenges and are working on developing our common resilience into cyberspace. For your complete information, we will also meet CISA on these issues.

Members of the delegation:

1. **Ms Constance Le Grip,** Member of Parliament, Second Vice-President of the Parliamentary Intelligence Delegation - Co-head of delegation
2. **Mr Sébastien Garnault,** Founder of the

French Cyber Task Force, founder of Paris Cyber Summit - Co-head of Delegation

3. **Mr Alexis Izard,** Member of Parliament, author of the information report "Investing for France 2030" for the Finance programming Law for 2023
4. **Mr Robin Reda,** Member of Parliament, member of the committee for Finance
5. **Ms Constance Nebbula,** Vice-President « Digital and Cyber » of Pays de la Loire Regional Council

6. **Mr Florent Kirchner,** Head of the French national cybersecurity strategy - Prime minister
7. **Mr Bruno Charrat,** Deputy Director of Technological Research athe CEA - Atomic Energy Commission, representative of the Alliance for Digital Trust (French cybersecurity professional association)
8. **Mr Pierre-Alexandre Houver,** Advisor at Garnault & Associés
9. **Mr Baptiste Robert**, CEO at Predicta Lab

I warmly thank you and I stay personally at your entire disposal, and for your team, for any additional information you may need.

With best wishes,
Sébastien Garnault

--
Sébastien Garnault
Founder of CyberTaskForce and Paris Cyber Summit
President of Garnault & Associés

27, boulevard Solférino - F-35 000 Rennes
+33 6 80 71 60 56
- sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

From: "Stupak, Philip M. EOP/NCD" <(b) (6) [redacted]>
To: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Cc: Sébastien Garnault <sgarnault@garnault-associes.com>
Date: Thu, 02 Mar 2023 13:11:36 -0500

Yes, everyone cleared through background checks. Please have the delegation bring their passports tomorrow. Thanks!

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

> On Mar 2, 2023, at 1:08 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:
>
> Just a quick question: is everything in order reguarding the accreditations for tomorrow morning?
>
> Thanks again!
>
> Pierre-Alexandre
>
> > Le 2 mars 2023 à 13:04, Pierre-Alexandre Houver <pahouver@garnault-associes.com> a écrit :
> >
> > Thank you very much for this Philip!
> >
> > Pierre-Alexandre
> >
> > > Le 2 mars 2023 à 09:11, Stupak, Philip M. EOP/NCD (b) (6) [redacted]> a écrit :
> > >
> > > Good news, the embargo has been lifted and I can formally share the strategy with you and your delegation. I enjoyed last night and look forward to tomorrow's discussion.
> > >
> > > **FACT SHEET**
> > > https://www.whitehouse.gov/briefing-room/statements-releases/2023/03/02/fact-sheet-biden-harris-administration-announces-national-cybersecurity-strategy/

NATIONAL CYBERSECURITY STRATEGY
https://www.whitehouse.gov/wp-content/uploads/2023/03/National-Cybersecurity-Strategy-2023.pdf

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

> On Mar 1, 2023, at 11:33 AM, Sébastien Garnault <sgarnault@garnault-associes.com> wrote:

That is great.

I've contacted by my embassy who would like to invite you tonight at our cocktail. Please don't be surprise if you receive it today.

I wish you a wonderful day.
Sebastien

--
Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

> Le 1 mars 2023 à 11:10, Stupak, Philip M. EOP/NCD <(b) (6) > a écrit :

Wonderful, we are confirmed. I will meet you Friday, March 3, at 915am at the 17th Street and State Place entrance.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Sent: Wednesday, March 1, 2023 10:18 AM

To: Stupak, Philip M. EOP/NCD <(b) (6) [redacted]>
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you so much for the work ! It works perfectly and I confirm that we will all attend from 9:30 to 10:30.

Again, I apologise for the trouble.

With very best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 1 mars 2023 à 10:12, Stupak, Philip M. EOP/NCD
(b) (6) [redacted]> a écrit :

We are able to accommodate Friday morning from 0930-1030. As feared, our deputies are all unavailable to meet but we can hold this meeting at the Assistant National Cyber Director level (the equivalent to an Agency Assistant Secretary). We are still confirming availabilities but we will likely have:

1. Nick Leiserson, ANCD for Cyber Policy & Programs
2. Drenan Dudley, ANCD for Budget Review & Assessment
3. Philip Stupak, (Acting) ANCD for International
4. Amanda Suarez, Senior Strategy & Research Advisor
5. Stephen Vina, Senior Advisor to the DNCD National Cybersecurity

Kindly let me know if that works for your delegation, and we will get the rooms and clearances moved over.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Sent: Tuesday, February 28, 2023 6:58 PM
To: Stupak, Philip M. EOP/NCD (b) (6)
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I really appreciate what you are doing and thank you for your understanding. Let me know and I will make everything to make it the easiest for you.

Do not hesitate to use my number if needed (+33680716056).

With best wishes,
Sebastien

--

Sébastien Garnault
Fondateur de la CyberTaskForce
Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
06 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 28 févr. 2023 à 18:51, Stupak, Philip M. EOP/NCD
<(b) (6)> a écrit :

Sébastien,

Let me work out some details with the team in the morning and see if we may make Friday morning work. I believe Neal Higgins will be

otherwise unable to meet but I will hopefully be able to assemble a group of senior leaders from our Office.

I will revert early tomorrow.

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 6:40 PM, Sébastien Garnault <sgarnault@garnault-associes.com> wrote:

Director Stupak, dear Philip,

First of all, I would like to apologize deeply and formally. I feel very embarrassed for what is happening and I take back the lead from now on regarding our meeting.

I called CISA to see how the situation can be fixed. Unfortunately, we engaged too much work on strategic topics for both of our countries to cancel the workshop. This workshop involves many of your colleagues and it wouldn't be acceptable, and serious, to modify it.

However, I think key to meet you and make our bilateral discussion alive. I mean that if there is any opportunity to meet you on Friday morning, I would cancelled all we have, as it is not strategic for the delegation.

Again, it is very embarrassing and I hope you won't consider the situation as a lack of serious of the CyberTaskForce delegation.

What do you think ?

I stay personally available at anytime to sort it out.

With best wishes,
Sebastien

--
Sébastien Garnault
Fondateur de la CyberTaskForce

Président de Garnault & Associés

27, boulevard Solférino - Rennes (35000)
+33 6 80 71 60 56 - sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn

-
Sent from my phone

Le 28 févr. 2023 à 17:56, Stupak, Philip M. EOP/NCD [redacted] a écrit :

I believe all of our deputies are in planned Friday meetings so you would be stuck with me. Because of the issue we'll discuss, our windows are very tight the next two weeks but we wanted to ensure an opportunity to meet with you.

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 5:47 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:

Thank you Philip for your fast answer.

We apologize, it is our mistake.. I am calling right now CISA to see what I can do. To make sure that we explore all possibilities, would be Friday morning available for you or not at all ? Sorry to ask…

Le 28 févr. 2023 à 17:39, Stupak, Philip M. EOP/NCD <[redacted] a écrit :

Unfortunately, we have very little flexibility for a reason that I cannot discuss before Thursday. Should we still be able to meet on Thursday as planned then we will be able to brief you on that

item and you will understand the lack of flexibility. Sorry!

Philip Stupak
Director of Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President

On Feb 28, 2023, at 5:19 PM, Pierre-Alexandre Houver <pahouver@garnault-associes.com> wrote:

Dear Philip,

I hope you are well.

We have a little issue. The CISA workshop is planned on Thursday morning and because of the lag, our agenda introduced a confusion in our planning.

Do we have any chance to meet tomorrow morning before 1pm? Or, can we move this from 11:00/12:00 to 12:00/13:00 ?

If not, we will contact CISA to work it out.

I apologize for this but be sure that our meeting is our priority.

Kind regards,

Pierre-Alexandre

Le 28 févr. 2023 à 10:08, Stupak, Philip M. EOP/NCD <(b) (6) [redacted]> a écrit :

Dear Pierre-Alexandre,

Thank you for the note. I deleted MP Izard and reentered his information based on the shared passport. He should be good to enter. I have also submitted all the guests to clearance, and will alert you if any issues arise with entered information.

I can certainly cover the TikTok Ban. We would like to better understand the delegation's thoughts on the Proposed Cybersecurity Certification Scheme for Cloud Services (EUCS) as I understand that EU Member State cyber experts and ENISA are likely meeting in the near future.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Tuesday, February 28, 2023 8:04 AM
To: Stupak, Philip M. EOP/NCD <(b) (6)
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

I hope this email finds you well.
I am contacting you regarding the meeting.
MP Alexis Izard has not put his middle name in the form. I tried to refill the form but it appears I cannot do it as it has already been submitted. I don't know if this can be problematic? (I'm attaching to this email his passeport).

Moreover, if possible of course, we would be more than interested to talk about the TikTok ban from government phones.

Thank you again!

I wish you a very nice day.

Kind regards,

Pierre-Alexandre Houver

<image001.jpg>

Le 28 févr. 2023 à 00:13, Pierre-Alexandre Houver <pahouver@garnault-associes.com> a écrit :

Dear Philip,

Thank you very much!
I've just completed the form for every member of our delegation. Is it ok on your side?
Do not hesitate to tell me if you need additional information.
Please also find enclosed le list of the members of our delegation.

I remain at your entire disposal for any further information you may need.

Kind regards,

Pierre-Alexandre

<2023_CYBERTASKFORCE_DELEGATION.pdf>

Le 27 févr. 2023 à 14:36,
Stupak, Philip M. EOP/NCD
<(b) (6)
> a écrit :

Dear Pierre-Alexandre,

Wonderful! We would like to welcome you to the White House complex and meet at the Eisenhower Executive Office Building. The visitor entrance is located at 17th Street NW and State Place NW (generally maps will find that location if you enter 1650 17thStreet NW). I will meet you there at 9:45am and bring you to the room.

Each member of your delegation will need to complete this form:https://events.whitehous

e.gov/AppointmentRsvpForm?rid=PWMB7M6MR3

Everyone in the delegation needs to complete the form and names need to match what is printed on passports. Foreign visitors should enter "Washington" under the question about City of Residence and "District of Columbia" under the question about State of Residence. No need for a social security number, but please do enter passport numbers. Masks are only required if you are not vaccinated.

Given the tight turn around, please ask your delegation to complete the form as soon as possible, but no later than tomorrow at noon ET.

Please reach out with any questions.

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
(b) (6)

From: Pierre-Alexandre Houver <pahouver@garnault-associes.com>
Sent: Monday, February 27, 2023 2:22 PM
To: Stupak, Philip M. EOP/NCD <(b) (6) >
Cc: sgarnault@garnault-associes.com
Subject: Re: [EXTERNAL] Meeting proposition - French

CyberTaskForce Delegation | February 27th to March 3rd

Dear Philip,

Thank you very much for your answer! We would be very honored and happy to meet with Deputy National Cyber Director Neal Higgins.

Thursday, March 2nd from 10 am to 11 am would work perfectly for our delegation.

I suppose that you may need personal data for access. Would you need IDs number or any information in order to plan accesses?

Also, would it be possible too to confirm the location in order to plan transports on our side?

Again, thank you very much.

I wish you a very nice day.

Kind regards,

--
Pierre-Alexandre Houver
Advisor to the president

27 boulevard de Solférino,
35000 Rennes
+ 33 6 86 51 56
96 - pahouver@garnault-associes.com

Le 27 févr. 2023 à 13:59,
Stupak, Philip M. EOP/NCD
<(b) (6)
> a écrit :

Hello Sébastian,

Apologies for the delay—your email came as we departed for the Munich Security Conference and we have been sorting schedules on our return. Unfortunately, (Acting) National Cyber Director Kemba Walden is unavailable to meet with the delegation. Our Deputy National Cyber Director Neal Higgins is available on Thursday, March 2, between 10am-12pm if that window works for you. Does your schedule permit an hour-long meeting during that window on Thursday?

Philip Stupak
Director Federal Cybersecurity
Office of the National Cyber Director
Executive Office of the President
202-881-6385

Begin forwarded message:

From: Sébastien Garnault <sgarnault@garnault-associes.com>
Date: February 14, 2023 at 4:01:51 AM EST
To: "Walden, Kemba E. EOP/NCD" (b) (6) [redacted]>
Cc: Pierre-Alexandre Houver <pahouver@garnault-associes.com>

Subject: [EXTERNAL] Meeting proposition - French CyberTaskForce Delegation | February 27th to March 3rd

Dear Kemba,

I hope this mail will find you well.

I am writing this email following a discussion with **Mr Vincent Voci**, Vice-President at the US Chamber of Commerce. As president of the French CyberTaskForce, we are currently planning to come as a parliamentary delegation to Washington D.C. from February 27th to March 3rd. Composed of French Members of Parliaments, Civil servants and private sector decision-makers, we are coming to the US to meet our colleagues and counterparts involved in technologies, cyber and space.

In this context, we would be particularly honored to meet you for an exchange of views focused on Cyberdefense. **We would be very honored to meeting you during our stay in D.C.**

As you know, cyber-attacks target large, small and critical organizations. However, addressing these threats become more and more complex for them as skills, materials and awareness are lacking. Therefore, we would be more than interested to have a 1 hour meeting with you to have a discussion on how US and France tackle these challenges and are

working on developing our common resilience into cyberspace. For your complete information, we will also meet CISA on these issues.

Members of the delegation:

1. **Ms Constance Le Grip,** Member of Parliament, Second Vice-President of the Parliamentary Intelligence Delegation - Co-head of delegation
2. **Mr Sébastien Garnault,** Founder of the French Cyber Task Force, founder of Paris Cyber Summit - Co-head of Delegation
3. **Mr Alexis Izard,** Member of Parliament, author of the information report "Investing for France 2030" for the Finance programming Law for 2023
4. **Mr Robin Reda,** Member of Parliament, member of the committee for Finance
5. **Ms Constance Nebbula,** Vice-President « Digital and Cyber » of Pays de la

Loire Regiona
l Council

6. **Mr Florent Kirchner,** He ad of the French national cybersecurity strategy - Prime minister
7. **Mr Bruno Charrat,** Dep uty Director of Technological Research athe CEA - Atomic Energy Commission, representative of the Alliance for Digital Trust (French cybersecurity professional association)
8. **Mr Pierre-Alexandre Houver,** Adv isor at Garnault & Associés
9. **Mr Baptiste Robert**, CEO at Predicta Lab

I warmly thank you and I stay personally at your entire disposal, and for your team, for any additional information you may need.

With best wishes,
Sébastien Garnault

--
Sébastien Garnault
Founder of CyberTaskForce and Paris Cyber Summit

President of
Garnault &
Associés

27, boulevard
Solférino - F-35 000
Rennes
+33 6 80 71 60 56
- sgarnault@garnault-associes.com
@SebGarnault - Profil LinkedIn